

Authorised Version No. 228

Sentencing Act 1991

No. 49 of 1991

Authorised Version incorporating amendments as at
18 November 2024

TABLE OF PROVISIONS

<i>Section</i>	<i>Page</i>
Part 1—Preliminary	1
1 Purposes	1
2 Commencement	3
3 Definitions	3
4 Application	40
Part 2—Governing principles	41
5 Sentencing guidelines	41
5AA Court not to have regard to previous good character or lack of previous findings of guilt or convictions in certain circumstances	54
5A Standard sentence scheme	55
5B Sentencing for a standard sentence offence	56
6 Factors to be considered in determining offender's character	57
6AAA Sentence discount for guilty plea	57
Part 2AA—Guideline judgments	59
6AA Definition	59
6AB Power of Court of Appeal to give or review guideline judgments	59
6ABA Guideline judgments on application of Attorney-General	60
6AC Content of guideline judgment	61
6AD Procedural requirements	62
6AE Matters to which Court of Appeal must have regard	63
6AF Use of evidence in giving or reviewing guideline judgment	63
6AG Relationship between guideline judgments and other sentencing matters	64
Part 2A—Serious offenders	65
6A Application of Part	65
6B Definitions for purposes of this Part	65

<i>Section</i>	<i>Page</i>
6C Factors relevant to consideration of whether offender is a serious offender	67
6D Factors relevant to length of prison sentence	68
6E Sentences to be served cumulatively	69
6F Serious offender status to be noted on record	69
Part 2B—Continuing criminal enterprise offenders	70
6G Application of Part	70
6H Definitions for purposes of this Part	70
6I Increased maximum penalty for CCE offences	71
6J CCE offender status to be noted on record	71
Part 3—Sentences	72
Division 1—General	72
7 Sentences	72
8 Conviction or non-conviction	74
Division 1A—Pre-sentence reports	75
8A Court may order pre-sentence report	75
8B Contents of pre-sentence report	76
8C Distribution of pre-sentence report	78
8D Disputed pre-sentence report	78
Division 1B—Drug and alcohol reports	79
8E Drug and alcohol assessment report	79
8F Distribution of drug and alcohol assessment report	80
8G Disputed drug and alcohol assessment report	80
8H Drug and alcohol pre-release report	81
8I Approved drug and alcohol assessment agencies	82
Division 1C—Victim impact statements	82
8J Definitions	82
8K Victim may make victim impact statement	84
8L Contents of victim impact statement	84
8M Medical report	85
8N Distribution of written statement	86
8O Examination of victim	86
8P Witnesses	87
8Q Reading aloud of victim impact statement	87
8R Alternative arrangements for reading aloud of victim impact statement	88
8S Alternative arrangements for examination	89
Division 2—Custodial orders	90
Subdivision (1)—Imprisonment	90
9 Aggregate sentence of imprisonment	90

<i>Section</i>	<i>Page</i>
9A	Notice of intention to seek statutory minimum sentence for manslaughter 92
9B	Custodial sentence must be imposed for manslaughter in circumstances of gross violence 94
9C	Custodial sentence must be imposed for manslaughter by single punch or strike 96
10	Custodial sentence must be imposed for causing serious injury in circumstances of gross violence 98
10AA	Custodial sentence for certain offences against emergency workers, custodial officers and youth justice custodial workers on duty 99
10AB	Custodial sentence for offence of contravening supervision order or interim supervision order under Serious Offenders Act 2018 107
10AC	Custodial sentence must be imposed for offence of aggravated home invasion 108
10AD	Custodial sentence must be imposed for offence of aggravated carjacking 108
10AE	Custodial sentence must be imposed for offences against sections 317AC and 317AD in certain circumstances 109
10A	Special reasons relevant to imposing minimum non-parole periods 109
11	Fixing of non-parole period by sentencing court 113
11A	Fixing of non-parole period for standard sentence offence 115
12	References to non-parole period 116
13	Fixing of non-parole period otherwise than by sentencing court 116
14	Fixing of new non-parole period in respect of multiple sentences 118
15	Order of service of sentences 119
16	Sentences—whether concurrent or cumulative 119
16A	Person may consent to imprisonment in respect of unpaid fines 125
17	Commencement of sentences 125
18	Time held in custody before trial etc. to be deducted from sentence 127
Subdivision (1A)—Indefinite sentences	131
18A	Indefinite sentence 131
18B	When court may impose indefinite sentence in respect of serious offence 132
18C	Application for indefinite sentence 133
18D	Adjournment of sentencing 133
18E	Court Secure Treatment Orders 134
18F	Sentencing hearing 135
18G	Reasons for indefinite sentence 135
18H	Review of indefinite sentence 135

<i>Section</i>	<i>Page</i>
18I Court may order reports	136
18J Distribution of reports	137
18K Disputed report	137
18L Review hearing	138
18M Outcome of review	138
18N Re-integration program	138
18O Appeal	139
18P Offender to be present during hearings	140
Subdivision (1C)—Drug and alcohol treatment orders	142
18X Purposes of drug and alcohol treatment order	142
18Y Order only available at Drug Court	143
18Z When drug and alcohol treatment order can be made	143
18ZA Order can cover multiple offences	146
18ZB Effect of Drug Court declining to make an order	146
18ZC The parts of a drug and alcohol treatment order	147
18ZD Sentence of imprisonment must be imposed	148
18ZE Activation of custodial part of an order	149
18ZF Core conditions	152
18ZG Program conditions	154
18ZH Variation on assessing offender's progress	155
18ZI Case conferences	156
18ZJ Rewards for complying with conditions	157
18ZK Cancellation as a reward	158
18ZL Failure to comply with conditions	159
18ZM Service in a secure custody facility	161
18ZN Commission of certain offences	163
18ZO Drug Court may hear and determine certain offences	165
18ZP Cancellation	168
18ZQ Drug and alcohol treatment order assessment reports	171
18ZR Appeals from Magistrates' Court	174
18ZS Immunity from prosecution for certain offences	178
18ZT Order made by Court of Appeal	179
Subdivision (4)—Youth justice centre orders and youth residential centre orders	182
32 Youth justice centre or youth residential centre order	182
32A Aggregate sentence of detention	184
33 Sentences to be concurrent unless otherwise directed	186
34 Commencement of sentences	187
35 Time held in custody before trial etc. to be deducted from sentence	189
Part 3A—Sentences—community correction orders	193
Division 1—Preliminary	193
36 Purpose of an order	193

<i>Section</i>	<i>Page</i>
Division 2—General	193
37 Community correction order	193
38 Period and commencement of a community correction order	194
39 Intensive compliance period	194
40 Community correction order may cover multiple offences	195
41 Presumption of concurrency	196
41A Maximum cumulative community correction orders	196
42 Concurrent unpaid community work where there are several orders	196
43 Fine and a community correction order	197
44 Imprisonment and a community correction order	197
44A Mandatory treatment and monitoring order	198
Division 3—Making a community correction order	199
45 Terms of a community correction order	199
46 Power of the Secretary to give written directions	200
47 Court may attach conditions	201
48 Residual condition	201
48A Matters to be considered when attaching conditions	202
Division 4—Conditions	202
48B Definitions	202
48C Unpaid community work condition	203
48CA Order with conditions under sections 48C and 48D	204
48D Treatment and rehabilitation condition	205
48E Supervision condition	206
48F Non-association condition	207
48G Residence restriction or exclusion condition	208
48H Place or area exclusion condition	209
48I Curfew condition	210
48J Alcohol exclusion condition	211
48JA Bond condition	212
48K Judicial monitoring condition	214
48L Power of court on review under a judicial monitoring condition	215
48LA Electronic monitoring of offender	217
48LB Confidentiality of personal information	219
Division 5—Variation etc. of order	222
48M Variation etc. of community correction order	222
48N Application for variation etc. of a community correction order	224
48O Suspension by Secretary	225

<i>Section</i>	<i>Page</i>
Division 6—Miscellaneous matters	225
48P Secretary may direct offender to report at another place	225
48Q Order made by Court of Appeal	226
Part 3B—Sentences—fines	227
Division 1—Fines	227
49 Power to fine	227
50 Maximum fine	228
51 Aggregate fines	228
52 Financial circumstances of offender	229
53 Court to take forfeiture, compensation and restitution orders into account	230
54 Other matters court may have regard to in fixing amount of fine	230
55 Liability of director if body corporate unable to pay fine	231
Division 2—Instalment orders and time to pay orders	232
56 Instalment order	232
57 Application for instalment order	232
58 Order to pay operates subject to instalment order	232
59 Time to pay order	232
60 Application for time to pay order	232
61 Application for variation or cancellation of order	233
62 Notice of application	233
63 Variation or cancellation of order	234
Division 3—Fine conversion order	235
64 Fine conversion order	235
65 Application for order under section 64	235
67 Variation etc. of fine conversion order	236
68 Application for variation etc. of a fine conversion order	237
Division 4—Fine default by natural person—warrant to arrest	238
69 Issue of warrant to arrest person in default	238
69A Warrant to arrest may be issued other than in paper form	238
69B Who may execute warrant?	239
69C When may warrant be executed?	241
Division 5—Fine default by natural person—orders of court	241
69D Court may make fine default unpaid community work order on application	241
69E Orders of court in relation to fine default on arrest	242
69F Order of court in absence of offender	243
69FA Orders of court in relation to fine defaulter on arrest—Fines Reform Act 2014	244

<i>Section</i>	<i>Page</i>
69FB Order of court in absence of fine defaulter—Fines Reform Act 2014	245
69G Order of court if material change in circumstances of offender	245
69H Other orders of court	247
69I Variation etc. of fine default unpaid community work order	248
69J Application for variation etc. of a fine default unpaid community work order	249
69K Limit on fine for which unpaid community work can be ordered	250
69L Costs	250
69M Warrant to seize property returned unsatisfied	250
Division 6—Calculation of period of imprisonment or unpaid community work	251
69N Term of imprisonment	251
69O Term of unpaid community work	251
69P Determining amount of unpaid fine or instalment	252
69Q Period of unpaid community work to be performed	252
69R Cumulative unpaid community work if there are several orders	253
Division 7—Terms and operation of fines work orders	254
69S Period of a fines work order	254
69T When does a fines work order expire?	254
69U Part payment of fine to reduce unpaid community work	254
69V Terms of a fines work order	255
69W Suspension by Secretary	256
69X Secretary may direct offender to report at another place or to another person	256
Division 8—Enforcement of fines against bodies corporate	256
69Y Enforcement of fines against bodies corporate	256
Division 9—General	257
69Z Notice of orders to be given	257
69ZA Oath or affirmation	257
69ZB Application of fines etc.	257
69ZC Penalty payable to body corporate	257
69ZD Recovery of penalties	258
69ZE Order made by Court of Appeal	258
69ZF Rules of court	258
69ZG Application to infringement enforcement procedure	260

<i>Section</i>	<i>Page</i>
Part 3BA—Sentences—other orders	261
Division 1—Dismissals, discharges and adjournments	261
Subdivision (1)—General	261
70 Purpose of orders under this Division	261
71 Abolition of common law bonds	262
71A Limitation on making of orders under this Division	262
Subdivision (2)—Release on conviction	262
72 Release on adjournment following conviction	262
73 Unconditional discharge	263
74 Compensation or restitution	263
Subdivision (3)—Release without conviction	264
75 Release on adjournment without conviction	264
76 Unconditional dismissal	265
77 Compensation or restitution	265
Subdivision (4)—Variation of orders for release on adjournment	265
78 Variation of order for release on adjournment	265
Division 2—Intellectually disabled offenders	267
80 Justice plan condition	267
81 Review of justice plan by Secretary	269
82 Review of justice plan condition by sentencing court	270
82AA Residential treatment order	272
82A Review of residential treatment order by sentencing court	273
83 Notice of application	274
Division 3—Deferral of sentencing in the Magistrates' Court or County Court	275
83A Deferral of sentencing	275
Part 3C—Sentences—contravention of sentence	279
Division 1—Offences	279
83AC Contravention of order for release on adjournment	279
83AD Contravention of community correction order	279
83ADA Contravention of fine conversion order	279
83ADB Contravention of fine default unpaid community work order	280
83AE Particular contraventions of directions of Secretary	280
83AF Offence to fail to obey a written direction of Secretary	282
Division 2—Procedure for contravention offence	282
83AG Commencement of a proceeding	282

<i>Section</i>	<i>Page</i>
83AH Time for commencing a proceeding	284
83AI Issue of summons or warrant to arrest	284
83AJ Transfer of a proceeding	285
83AK Issue of warrant to arrest on failure to comply with bail or summons	286
83AL Process where offender before higher court, orders of that court	287
83AM Process where offender before higher court, orders of Magistrates' Court	288
83AS Powers of the court on finding of guilt for contravention of community correction order	290
83ASA Powers of court on finding of guilt for contravention of fines work order	291
83AT Powers of the court on finding of guilt for contravention of order for release on adjournment	294
Division 3—Direction of certain conditions on failure to comply	294
83AU Direction of unpaid community work condition on failure to comply	294
83AV Direction of curfew condition on failure to comply	295
83AW Reasonable excuse for a failure to comply	297
83AX Notice of direction to be given in writing	297
83AY Review by the sentencing court	298
83AZ Powers of a sentencing court on review	298
Part 3D—Superannuation orders	300
83B Purpose of Part	300
83C Application of Part	300
83D Definitions	300
83E Application for a superannuation order	308
83F Court may make a superannuation order	310
83G Effect of superannuation order	312
83H Provisions applying to a superannuation order	312
83I Powers of an authorised person to require information	312
83J Protection of administrators providing information	313
83K Disclosure of information	313
Part 4—Orders in addition to sentence	314
Division 1—Restitution	314
84 Restitution order	314
85 Enforcement of restitution order	317
Division 2—Compensation	317
Subdivision (1)—Compensation for pain and suffering etc.	317
85A Definitions	317
85B Compensation order	318

<i>Section</i>	<i>Page</i>
85C	Application for compensation order 320
85D	Extension of time for making application 320
85E	Proceeding on an application 321
85F	Court must not refuse to hear and determine application except in certain circumstances 322
85G	Evidence 323
85H	Court may take financial circumstances of offender into account 323
85I	Court must reduce compensation by amount of assistance under victims of crime legislation 324
85J	Court to give reasons for its decision 324
85K	Costs of proceeding 324
85L	Right to bring civil proceedings unaffected 325
85M	Enforcement of order 325
Subdivision (2)—Compensation for property loss	325
86AA	Court to ask if application for compensation order will be made 325
86	Compensation order 326
87	Enforcement of compensation order 330
Division 2A—Recovery of assistance paid under victims of crime legislation	330
87A	Recovery of assistance paid under Victims of Crime Assistance Act 1996 330
87AB	Recovery of assistance paid under Victims of Crime (Financial Assistance Scheme) Act 2022 332
87B	Enforcement of order under section 87A or 87AB 334
Division 2B—Recovery of costs incurred by emergency service agencies	334
87C	Definitions 334
87D	Cost recovery order 337
87E	Application for cost recovery order 338
87F	Extension of time for making application 338
87G	How offender may appear on an application 338
87H	Court may have regard to relevant facts 339
87I	Evidence 340
87J	Court may take financial circumstances of offender into account 341
87K	Court to give reasons for its decision 341
87L	Costs of proceeding 342
87M	Right to bring civil proceedings unaffected 342
87N	Enforcement of order 342

<i>Section</i>	<i>Page</i>
Division 3—Driver licences and learner permits—suspension, cancellation and driver disqualification	343
87P Definition	343
87Q Matters to be sent to the Secretary to the Department of Transport	345
88 Application of Evidence Act 2008	345
89 Suspension or cancellation of driver licence or learner permit and driver disqualification—certain motor vehicle offences	345
89A Suspension or cancellation of driver licence or learner permit and driver disqualification—any offence	349
89B Commencement of period of disqualification	351
89C Finding on cancellation of driver licence or learner permit or driver disqualification	351
89D Presumption in favour of concurrency	352
89DA Cancellation on disqualification	353
89DB Effect of cancellation	353
Division 4—Alcohol exclusion orders	354
89DC Definitions	354
89DD Alcohol exclusion order	358
89DE When an alcohol exclusion order must be made	359
89DF Offences for contravening alcohol exclusion order	361
89DG Variation of alcohol exclusion order	362
89DH Chief Commissioner to report on alcohol exclusion orders	364
Division 5—Serious drug offender	365
89DI Declaration by court that person is serious drug offender	365
Part 4A—Identity crime certificates	366
89E Definitions	366
89F Court may issue certificate to victim of identity crime	366
89G Contents of certificate	367
89H Process for dealing with application	367
Part 5—Mentally ill offenders	368
Division 1—Court Assessment Orders	368
90 What is a Court Assessment Order?	368
91 When may the court make a Court Assessment Order?	369
92 Contents of a Court Assessment Order and notification requirements	370
93 Effect and duration of Court Assessment Order	371
94 Court powers following Court Assessment Order	371
Division 2—Court Secure Treatment Orders	372
94A What is a Court Secure Treatment Order?	372

<i>Section</i>	<i>Page</i>
94B When may the court make a Court Secure Treatment Order?	372
94C Effect and duration of Court Secure Treatment Order	373
Division 3—Taking persons subject to Court Assessment Order or Court Secure Treatment Order	374
94D Custody of persons subject to Court Assessment Order or Court Secure Treatment Order	374
Division 4—Transitional provisions	375
94E Definition	375
94F Assessment order and diagnosis, assessment and treatment order	375
94G Hospital security order	375
94H Restricted involuntary treatment order	376
94I Proceedings in relation to orders	377
Part 6—Making of sentencing and other orders	378
Division 1—Explanation of orders	378
95 Explanation of orders	378
Division 3—Taking other charges into account	380
100 Disposal of other pending charges	380
Division 4—Passing of sentence	383
101 Time and place of sentence	383
102 Sentence by another judge or magistrate	384
103 Sentences not invalidated by failure to comply with procedural requirements	386
Part 7—Correction of errors	387
104 Correction of sentences by Supreme Court on judicial review	387
104A Power to correct clerical mistakes, etc.	388
104B Court may reopen proceeding to correct penalties imposed contrary to law	390
104C Effect of reopening a proceeding under section 104B	392
104D When proceedings are finally disposed of	392
Part 8—Historical homosexual convictions	393
105 Definitions	393
105AA Application of this Part	399
105A Part to bind the Crown	400
105B Application to Secretary for convictions for historical homosexual offences to be expunged	400
105C Submission of further information etc.	402

Section		Page
105D	Consideration of application	403
105E	Response to enquiries or requests for information	405
105F	Appointment of advisors	405
105G	Mandatory tests	406
105H	Withdrawal of application	407
105I	Determination of application	408
105J	Effect of expungement of conviction	409
105K	Obligations in relation to official records	410
105L	Jurisdiction of VCAT	412
105M	Restriction on right to re-apply	413
105N	Delegation	413
105O	Confidentiality	414
105P	Giving of notices	414
105Q	Evidentiary provisions	415
105R	Immunity	415
105S	No entitlement to compensation	416
Part 9—Royal prerogative of mercy		418
106	Saving of royal prerogative of mercy	418
107	Release by Governor in exercise of royal prerogative of mercy	418
108	Penalties for offences may be remitted	420
Part 9A—Sentencing Advisory Council		421
108A	Definitions	421
108B	Establishment of Sentencing Advisory Council	421
108C	Functions of the Council	422
108D	Powers of the Council	422
108E	Delegation	423
108F	Board of directors	423
108G	Chairperson	425
108H	Terms and conditions of office of directors	425
108I	Vacancies and removal of directors from office	425
108J	Travelling and other allowances	426
108K	Validity of acts or decisions	426
108L	Meetings of the Board	426
108M	Staff	427
108N	Appointment of consultants	427
108O	Control on expenditure	427
108P	Parliamentary requirement for information	428
Part 10—Miscellaneous provisions		429
109	Penalty scale	429
109A	Operation of penalty provisions	431
110	Meaning of penalty units	431
111	Location and effect of penalty provisions	432
112	Classification of offences as indictable or summary	432

<i>Section</i>	<i>Page</i>
112A	Maximum fine for indictable offence heard and determined summarily 432
113	Maximum term of imprisonment for indictable offence heard and determined summarily 433
113A	Maximum term of imprisonment for summary offence 433
113B	Maximum cumulative term of imprisonment imposable by Magistrates' Court 433
113C	Maximum term of imprisonment where none prescribed 434
113D	Increased maximum fine for body corporate 434
114	Effect of alterations in penalties 435
115	Old offences relevant in determining previous convictions 435
115A	Effect where punishment suffered for indictable offence 436
115B	Delegation 436
Part 11—Regulations and general matters	438
115C	Infringement penalties 438
115D	Power to serve an infringement notice 438
115E	Appointment of authorised person 438
115F	Reports 439
116	Regulations 439
116A	Review of amendments made by Sentencing Amendment (Emergency Worker Harm) Act 2020 441
Part 12—Transitionals	442
117	Transitional provisions 442
117A	Transitional provisions—Sentencing (Amendment) Act 1993 442
117B	Transitional provisions—Miscellaneous Acts (Omnibus Amendments) Act 1996 443
118	Transitional provisions (1997 amendments) 444
119	Transitional provisions (Sentencing (Amendment) Act 1997) 446
120	Transitional provisions (1998 amendments) 446
121	Transitional provision—Courts and Tribunals Legislation (Amendment) Act 2000 447
122	Transitional provisions—Sentencing (Amendment) Act 1999 447
123	Transitional provision—Magistrates' Court (Infringements) Act 2000 448
124	Transitional provisions—Victims of Crime Assistance (Amendment) Act 2000 449
125	Transitional provisions—Sentencing (Emergency Service Costs) Act 2001 449
126	Transitional provisions—Sentencing (Amendment) Act 2002 450
126B	Application of amendment made by the Road Safety (Alcohol Interlocks) Act 2002 450

<i>Section</i>		<i>Page</i>
127	Transitional provision—Crimes (Property Damage and Computer Offences) Act 2003	451
127A	Transitional provisions—Corrections and Sentencing Acts (Home Detention) Act 2003	451
128	Transitional provision—Sentencing (Amendment) Act 2003	452
129	Transitional provision—Children and Young Persons (Age Jurisdiction) Act 2004	452
130	Transitional provision—Sentencing (Further Amendment) Act 2005	452
131	Transitional provision—Sentencing and Mental Health Acts (Amendment) Act 2005	452
132	Transitional provision—Courts Legislation (Jurisdiction) Act 2006	453
133	Transitional provisions—Sentencing (Suspended Sentences) Act 2006	453
134	Transitional provision—Working with Children Act 2005	454
135	Transitional provision—Criminal Procedure Legislation Amendment Act 2008	454
136	Transitional provision—Justice Legislation Amendment (Sex Offences Procedure) Act 2008	455
137	Transitional provision—Crimes Amendment (Identity Crime) Act 2009	455
138	Transitional provision—Statute Law Amendment (Evidence Consequential Provisions) Act 2009	455
139	Transitional provision—Criminal Procedure Act 2009	456
140	Transitional provision—Sentencing Amendment Act 2009	457
141	Transitional provision—Justice Legislation Amendment Act 2010	457
141A	Transitional provision—Sentencing Legislation Amendment (Abolition of Home Detention) Act 2011	459
142	Transitional provision—Justice Legislation Amendment (Victims of Crime Assistance and Other Matters) Act 2010	460
143	Transitional provision—Sentencing Amendment Act 2010	461
144	Transitional provision—Sentencing Further Amendment Act 2011	464
145	Transitional provisions—Criminal Procedure Amendment Act 2012	464
147	Transitional provision—Sentencing Amendment (Community Correction Reform) Act 2011	464
148	Transitional provision—Road Safety and Sentencing Acts Amendment Act 2012	464
149	Transitional provision—Criminal Procedure and Sentencing Acts Amendment (Victims of Crime) Act 2012	465
149A	Validation—Justice Legislation Amendment Act 2013	466

<i>Section</i>	<i>Page</i>
149B Transitional provision—Sentencing Amendment (Abolition of Suspended Sentences and Other Matters) Act 2013	466
149C Further transitional provision—Sentencing Amendment (Abolition of Suspended Sentences and Other Matters) Act 2013	466
149D Additional transitional provision—Sentencing Amendment (Abolition of Suspended Sentences and Other Matters) Act 2013	467
150 Transitional provisions—Road Safety and Sentencing Acts Amendment Act 2013	468
151 Transitional provision—Summary Offences and Sentencing Amendment Act 2014	471
152 Transitional provisions—Sentencing Amendment (Coward's Punch Manslaughter and Other Matters) Act 2014	472
153 Transitional provision—Criminal Organisations Control and Other Acts Amendment Act 2014—alcohol exclusion orders	472
154 Transitional provisions—Sentencing Amendment (Emergency Workers) Act 2014—general	473
156 Transitional provision—Justice Legislation Amendment (Confiscation and Other Matters) Act 2014	473
156A Transitional provision—Sentencing Amendment (Correction of Sentencing Error) Act 2015	474
157 Transitional provision—Sentencing Amendment (Historical Homosexual Convictions Expungement) Act 2014	474
158 Transitional provisions—Crimes Legislation Amendment Act 2016	475
159 Transitional provisions—Serious Sex Offenders (Detention and Supervision) Amendment (Community Safety) Act 2016	475
160 Transitional provision—Police and Justice Legislation Amendment (Miscellaneous) Act 2016	475
161 Transitional provision—Children and Justice Legislation Amendment (Youth Justice Reform) Act 2017	476
162 Transitional provision—Sentencing (Community Correction Order) and Other Acts Amendment Act 2016	477
163 Transitional—Justice Legislation Amendment (Parole Reform and Other Matters) Act 2016	477
164 Transitional—Fines Reform Amendment Act 2017	478
165 Transitional provision—Transport Legislation Amendment (Better Roads Victoria and Other Amendments) Act 2019	478
165A Transitional provisions—Sentencing Amendment (Sentencing Standards) Act 2017	478

<i>Section</i>	<i>Page</i>
166 Transitional—Justice Legislation Amendment (Victims) Act 2018	479
167 Transitional provisions—Justice Legislation Miscellaneous Amendment Act 2018	480
168 Transitional provision—Victims and Other Legislation Amendment Act 2018	482
169 Transitional provision—Justice Legislation Amendment (Police and Other Matters) Act 2019	482
170 Transitional provision—Sentencing Amendment (Emergency Worker Harm) Act 2020	482
171 Transitional provision—Justice Legislation Amendment (Drug Court and Other Matters) Act 2020	483
Schedules	485
Schedule 1—Serious offender offences	485
Schedule 1A—Continuing criminal enterprise offences	519
Schedule 2—Forms for use where other offences taken into account in sentencing	521
Schedule 3—Transitional provisions—Sentencing Amendment (Community Correction Reform) Act 2011	523
Schedule 3A—Transitional provisions—Serious Offenders Act 2018	540
Schedule 4—Justice Legislation Amendment Act 2013—validation	541
Endnotes	545
1 General information	545
2 Table of Amendments	547
3 Explanatory details	572

Authorised Version No. 228

Sentencing Act 1991

No. 49 of 1991

Authorised Version incorporating amendments as at
18 November 2024

The Parliament of Victoria enacts as follows:

Part 1—Preliminary

1 Purposes

The purposes of this Act are—

- (a) to promote consistency of approach in the sentencing of offenders;
- (b) to have within the one Act all general provisions dealing with the powers of courts to sentence offenders;
- (c) to provide fair procedures—
 - (i) for imposing sentences; and
 - (ii) for dealing with offenders who breach or contravene the terms or conditions of their sentences;
- (d) to prevent crime and promote respect for the law by—
 - (i) providing for sentences that are intended to deter the offender or other persons from committing offences of the same or a similar character; and
 - (ii) providing for sentences that facilitate the rehabilitation of offenders; and
 - (iii) providing for sentences that allow the court to denounce the type of conduct in which the offender engaged; and

S. 1(c)(ii)
amended by
No. 26/2012
s. 26.

- (iv) ensuring that offenders are only punished to the extent justified by—
 - (A) the nature and gravity of their offences; and
 - (B) their culpability and degree of responsibility for their offences; and
 - (C) the presence of any aggravating or mitigating factor concerning the offender and of any other relevant circumstances; and
- (v) promoting public understanding of sentencing practices and procedures;
- (e) to provide sentencing principles to be applied by courts in sentencing offenders;

S. 1(f)
repealed by
No. 41/1993
s. 19.

* * * * *

- (g) to provide for the sentencing of special categories of offender;
- (h) to set out the objectives of various sentencing and other orders;
- (i) to ensure that victims of crime receive adequate compensation and restitution;
- (j) to provide a framework for the setting of maximum penalties;
- (k) to vary the penalties that may be imposed in respect of offences under the **Crimes Act 1958**;
- (l) generally to reform the sentencing laws of Victoria.

2 Commencement

This Act comes into operation on a day or days to be proclaimed.

3 Definitions

(1) In this Act—

S. 3
amended by
No. 41/1993
s. 4(a).

* * * *

S. 3(1) def. of
*accredited
agency*
inserted by
No. 57/1998
s. 26(3),
repealed by
No. 30/2021
s. 94.

Adult Parole Board means Adult Parole Board
established by section 61 of the **Corrections
Act 1986**;

alcohol exclusion condition means a condition
that may be attached to a community
correction order under section 48J(1);

S. 3(1) def. of
*alcohol
exclusion
condition*
inserted by
No. 65/2011
s. 3(1).

* * * *

S. 3(1) def. of
alcoholic
repealed by
No. 43/2010
s. 48(1)(a).

approved drug and alcohol assessment agency
means a person or body approved under
section 8I by the Secretary to the Department
of Health for the purposes of Division 1B of
Part 3;

S. 3(1) def. of
*approved
drug and
alcohol
assessment
agency*
inserted by
No. 48/1997
s. 25(1),
amended by
Nos 46/2008
s. 287(a),
65/2011
s. 3(2).

Sentencing Act 1991
No. 49 of 1991
Part 1—Preliminary

S. 3(1) def. of
*approved
mental health
service*
inserted by
No. 98/1995
s. 64(1)(a),
repealed by
No. 26/2014
s. 429(1)(a)).

* * * *

S. 3(1) def. of
*authorised
person*
inserted by
No. 30/2010
s. 3(a),
substituted by
No. 65/2011
s. 3(3).

authorised person means a person appointed by
the Secretary under section 115E;

S. 3(1) def. of
*authorised
psychiatrist*
substituted by
No. 26/2014
s. 429(1)(b)),
amended by
No. 39/2022
s. 861(a).

authorised psychiatrist has the same meaning as
in the **Mental Health and Wellbeing
Act 2022**;

S. 3(1) def. of
*baseline
offence*
inserted by
No. 52/2014
s. 3,
repealed by
No. 34/2017
s. 3.

* * * *

S. 3(1) def. of
*baseline
sentence*
inserted by
No. 52/2014
s. 3,
repealed by
No. 34/2017
s. 3.

* * * *

bond condition means a condition that may be attached to a community correction order under section 48JA(1);

S. 3(1) def. of *bond condition* inserted by No. 65/2011 s. 55.

Category A serious youth offence means any of the following offences—

S. 3(1) def. of *Category A serious youth offence* inserted by No. 43/2017 s. 20, amended by Nos 32/2018 s. 133, 16/2020 s. 23(a).

- (a) murder;
- (b) attempted murder;
- (c) manslaughter;
- (d) child homicide;
- (da) homicide by firearm;
- (e) an offence against any of the following sections of the **Crimes Act 1958**—
 - (i) section 15A (intentionally causing serious injury in circumstances of gross violence);
 - (ii) section 77B (aggravated home invasion);
 - (iii) section 79A (aggravated carjacking);
 - (iv) section 197A (arson causing death);
 - (v) section 318 (culpable driving causing death);
- (f) an offence against any one of the following—
 - (i) section 4B of the **Terrorism (Community Protection) Act 2003**;
 - (ii) a provision of Subdivision A of Division 72 of Chapter 4

of the Criminal Code of the
Commonwealth;

(iii) a provision of Part 5.3 or 5.5
of the Criminal Code of the
Commonwealth;

(iv) a provision of the Crimes
(Foreign Incursions and
Recruitment) Act 1978 of the
Commonwealth as in force
before its repeal;

S. 3(1) def. of
*Category B
serious youth
offence*
inserted by
No. 43/2017
s. 20.

Category B serious youth offence means
an offence against any of the following
sections of the **Crimes Act 1958**—

- (a) section 15B (recklessly causing
serious injury in circumstances of
gross violence);
- (b) section 38 (rape);
- (c) section 39 (rape by compelling
sexual penetration);
- (d) section 77A (home invasion);
- (e) section 79 (carjacking);

S. 3(1) def. of
*category 1
offence*
inserted by
No. 65/2016
s. 3,
amended by
Nos 65/2016
s. 23, 48/2018
s. 73, 3/2019
s. 21(1).

category 1 offence means any of the following
offences committed by a person who is
18 years of age or more at the time of the
commission of the offence—

- (a) murder;
- (b) an offence against section 15A(1) of
the **Crimes Act 1958** (causing serious
injury intentionally in circumstances of
gross violence);
- (c) an offence against section 15B(1) of
the **Crimes Act 1958** (causing serious
injury recklessly in circumstances of
gross violence);

- (ca) an offence against section 16 of the **Crimes Act 1958** (causing serious injury intentionally) if—
 - (i) the victim was an emergency worker on duty, a custodial officer on duty or a youth justice custodial worker on duty within the meaning of section 10AA(8), (9), (10) and (11); and
 - (ii) the offender knew or was reckless as to whether the victim was a person referred to in subparagraph (i);
- (cb) an offence against section 17 of the **Crimes Act 1958** (causing serious injury recklessly) if—
 - (i) the victim was an emergency worker on duty, a custodial officer on duty or a youth justice custodial worker on duty within the meaning of section 10AA(8), (9), (10) and (11); and
 - (ii) the offender knew or was reckless as to whether the victim was a person referred to in subparagraph (i);
- (cc) an offence against section 18 of the **Crimes Act 1958** (causing injury intentionally or recklessly) if—
 - (i) the victim was an emergency worker on duty, a custodial officer on duty or a youth justice custodial worker on duty within the meaning of section 10AA(8), (9), (10) and (11); and

- (ii) the offender knew or was reckless as to whether the victim was a person referred to in subparagraph (i);
- (d) an offence against section 38(1) of the **Crimes Act 1958** (rape);
- (e) an offence against section 39(1) of the **Crimes Act 1958** (rape by compelling sexual penetration);
- (f) an offence against section 49A(1) of the **Crimes Act 1958** (sexual penetration of a child under the age of 12);
- (g) an offence against section 49J(1) of the **Crimes Act 1958** (persistent sexual abuse of a child under the age of 16);
- (h) an offence against section 50C(1) of the **Crimes Act 1958** (sexual penetration of a child or lineal descendant) if the victim was, at the time of the offence, under the age of 18;
- (i) an offence against section 50D(1) of the **Crimes Act 1958** (sexual penetration of a step-child) if the victim was, at the time of the offence, under the age of 18;
- (ia) an offence against section 77B(2) of the **Crimes Act 1958** (aggravated home invasion);
- (ib) an offence against section 79A(2) of the **Crimes Act 1958** (aggravated carjacking);
- (ic) an offence against section 317AC of the **Crimes Act 1958** (intentionally exposing an emergency worker, a custodial officer or a youth justice

- custodial worker to risk by driving) if, in the commission of the offence, an emergency worker on duty, a custodial officer on duty or a youth justice custodial worker on duty within the meaning of section 317AB is injured;
- (id) an offence against section 317AD of the **Crimes Act 1958** (aggravated offence of intentionally exposing an emergency worker, a custodial officer or a youth justice custodial worker to risk by driving) if, in the commission of the offence, an emergency worker on duty, a custodial officer on duty or a youth justice custodial worker on duty within the meaning of section 317AB is injured;
- (j) an offence against section 71(1) of the **Drugs, Poisons and Controlled Substances Act 1981** (trafficking in a drug or drugs of dependence—large commercial quantity);
- (ja) an offence against section 71AA(2) of the **Drugs, Poisons and Controlled Substances Act 1981** (trafficking in a drug or drugs of dependence for the benefit of or at the direction of a criminal organisation—commercial quantity);
- (k) an offence against section 72 of the **Drugs, Poisons and Controlled Substances Act 1981** (cultivation of narcotic plants—large commercial quantity);
- (l) an offence against any of the following provisions of the **Crimes Act 1958** as in force before their repeal by

section 16 of the **Crimes Amendment
(Sexual Offences) Act 2016**—

- (i) section 44(1) (incest with the person's child, other lineal descendant or step-child) if the victim was, at the time of the offence, under the age of 18;
- (ii) section 44(2) (incest with a child, other lineal descendant or step-child under the age of 18 of the person's de facto spouse);
- (iii) section 45(1) (sexual penetration of child under the age of 16) committed in the circumstance of aggravation described in section 45(2)(a) of the **Crimes Act 1958** as then in force;
- (iv) section 47A(1) (persistent sexual abuse of child under the age of 16);

S. 3(1) def. of
*category 2
offence*
inserted by
No. 65/2016
s. 3,
amended by
Nos 65/2017
s. 15, 48/2018
s. 74, 3/2019
ss 7, 21(2),
16/2020
s. 23(b).

category 2 offence means any of the following offences committed by a person who is 18 years of age or more at the time of the commission of the offence—

- (a) manslaughter;
- (b) an offence against section 5A of the **Crimes Act 1958** (child homicide);
- (ba) an offence against section 5B of the **Crimes Act 1958** (homicide by firearm);
- (c) an offence against section 16 of the **Crimes Act 1958** (causing serious injury intentionally) other than a category 1 offence;

- (d) an offence against section 63A of the **Crimes Act 1958** (kidnapping);
- (da) an offence against section 75A(2) of the **Crimes Act 1958** (armed robbery) if—
 - (i) the offender has with him or her a firearm at the time of the offence;
or
 - (ii) a victim of the offence has suffered injury as a direct result of the offence; or
 - (iii) the offence was committed by the offender in company with one or more other persons;
- (db) an offence against section 77A(3) of the **Crimes Act 1958** (home invasion);
- (dc) an offence against section 79(2) of the **Crimes Act 1958** (carjacking);
- (e) an offence against section 197A of the **Crimes Act 1958** (arson causing death);
- (ea) an offence against section 318(1) of the **Crimes Act 1958** (culpable driving causing death);
- (eb) an offence against section 319(1) of the **Crimes Act 1958** (dangerous driving causing death);
- (f) the offence of kidnapping at common law;
- (g) an offence against section 71AA(1) of the **Drugs, Poisons and Controlled Substances Act 1981** (trafficking in a drug or drugs of dependence—commercial quantity);

- (h) an offence against section 72A of the **Drugs, Poisons and Controlled Substances Act 1981** (cultivation of narcotic plants—commercial quantity);
- (i) an offence against section 4B(1) of the **Terrorism (Community Protection) Act 2003** (providing documents or information facilitating terrorist acts);
- (j) an offence against section 317AD of the **Crimes Act 1958** (aggravated offence of intentionally exposing an emergency worker, a custodial officer or a youth justice custodial worker to risk by driving) other than a category 1 offence;
- (k) an offence against section 317AF of the **Crimes Act 1958** (aggravated offence of recklessly exposing an emergency worker, a custodial officer or a youth justice custodial worker to risk by driving);
- (l) an offence against section 31C of the **Crimes Act 1958** (discharging a firearm reckless to safety of a police officer or a protective services officer) in circumstances where the offender's conduct created a risk to the physical safety of the victim or to any member of the public;
- (m) the offence of common assault committed in the circumstances referred to in section 320A(1) or (2) of the **Crimes Act 1958** if the assault consisted of or included the direct application of force within the meaning of the definition of *assault* in section 31(2) of that Act;

Sentencing Act 1991
No. 49 of 1991
Part 1—Preliminary

*	*	*	*	*	S. 3(1) def. of <i>Chief Commissioner of Police</i> inserted by No. 77/2010 s. 3(a) (as amended by No. 9/2011 s. 3), repealed by No. 37/2014 s. 10(Sch. item 151.1(b)).
*	*	*	*	*	S. 3(1) def. of <i>Chief General Manager</i> repealed by No. 46/1998 s. 7(Sch. 1).
<i>chief psychiatrist</i> means chief psychiatrist within the meaning of the Mental Health and Wellbeing Act 2022 ;					S. 3(1) def. of <i>chief psychiatrist</i> amended by Nos 26/2014 s. 429(1)(c)), 39/2022 s. 861(b).
<i>collection fee</i> has the same meaning as it has in the Fines Reform Act 2014 ;					S. 3(1) def. of <i>collection fee</i> inserted by No. 17/2022 s. 81.
*	*	*	*	*	S. 3(1) def. of <i>combined custody and treatment order</i> inserted by No. 48/1997 s. 4(a), repealed by No. 65/2011 s. 3(14)(a).
*	*	*	*	*	S. 3(1) def. of <i>community-based order</i> repealed by No. 65/2011 s. 3(14)(b).

S. 3(1) def. of
*community
correction
order*
inserted by
No. 26/2012
s. 27(1).

community correction order means an order
made under Part 3A;

community corrections centre means community
corrections centre established under Part 9 of
the **Corrections Act 1986**;

community corrections officer means community
corrections officer appointed under Part 4 of
the **Corrections Act 1986**;

S. 3(1) def. of
*community
service
condition*
repealed by
No. 65/2011
s. 3(14)(c).

* * * * *

S. 3(1) def. of
contravention
inserted by
No. 30/2010
s. 3(a).

contravention in relation to a provision of an
order or a sentence includes a failure to
comply with that provision;

S. 3(1) def. of
*contravention
summons*
inserted by
No. 30/2010
s. 3(a),
substituted by
No. 65/2011
s. 3(4),
repealed by
No. 26/2012
s. 27(2).

* * * * *

S. 3(1) def. of
*Court
Assessment
Order*
inserted by
No. 26/2014
s. 429(2).

Court Assessment Order means an Order within
the meaning of section 90;

Court Secure Treatment Order means an Order within the meaning of section 94A;

S. 3(1) def. of *Court Secure Treatment Order* inserted by No. 26/2014 s. 429(2).

curfew condition means a condition that may be attached to a community correction order under section 48I(1);

S. 3(1) def. of *curfew condition* inserted by No. 65/2011 s. 3(1).

depositions has the same meaning as in the **Criminal Procedure Act 2009**;

S. 3(1) def. of *depositions* inserted by No. 68/2009 s. 97(Sch. item 110.1).

designated mental health service means a designated mental health service within the meaning of section 3(1) of the **Mental Health and Wellbeing Act 2022**;

S. 3(1) def. of *designated mental health service* inserted by No. 26/2014 s. 429(2), amended by Nos 21/2015 s. 3(Sch. 1 item 47.1), 39/2022 s. 861(c).

detention, in relation to an order or sentence of a court, means detention in a youth justice centre or youth residential centre;

S. 3(1) def. of *detention* inserted by No. 48/1997 s. 4(b), amended by No. 48/2006 s. 42(Sch. item 32.1(a)).

director, in relation to a body corporate, includes any person occupying the position of director of the body corporate (by whatever name called) and includes a person in accordance with whose directions or instructions the directors of the body corporate are accustomed to act;

S. 3(1) def. of
*Director of
Public
Prosecutions*
inserted by
No. 77/2010
s. 3(a) (as
amended by
No. 9/2011
s. 3).

Director of Public Prosecutions means the
Director of Public Prosecutions appointed
under the **Constitution Act 1975**;

S. 3(1) def. of
*Director-
General of
Community
Services*
repealed by
No. 46/1998
s. 7(Sch. 1).

* * * *

S. 3(1) def. of
*Director-
General of
Corrections*
repealed by
No. 45/1996
s. 18(Sch. 2
item 11.1).

* * * *

driver licence has the same meaning as in the
Road Safety Act 1986;

S. 3(1) def. of
Drug Court
inserted by
No. 2/2002
s. 4(1),
substituted by
No. 43/2020
s. 6(a).

Drug Court means the Drug Court Division of
either—

- (a) the Magistrates' Court; or
- (b) the County Court;

S. 3(1) def. of
*Drug Court
officer*
inserted by
No. 2/2002
s. 4(1),
amended by
No. 108/2004
s. 117(1)
(Sch. 3
item 181.1).

Drug Court officer means a person who—

- (a) is employed under Part 3 of the **Public
Administration Act 2004**; and
- (b) exercises powers or performs functions
in relation to the Drug Court;

Sentencing Act 1991
No. 49 of 1991
Part 1—Preliminary

*	*	*	*	*	S. 3(1) def. of <i>drug-dependent person</i> repealed by No. 43/2010 s. 48(1)(a).
<i>drug of addiction</i> means a drug of dependence within the meaning of the Drugs, Poisons and Controlled Substances Act 1981 ;					S. 3(1) def. of <i>drug of addiction</i> inserted by No. 42/1993 s. 60.
<i>drug and alcohol treatment order</i> means an order under Subdivision (1C) of Division 2 of Part 3;					S. 3(1) def. of <i>drug treatment order</i> inserted by No. 2/2002 s. 4(1), substituted as def. of <i>drug and alcohol treatment order</i> by No. 43/2020 s. 6(b).
<i>enforcement warrant fee</i> has the same meaning as it has in the Fines Reform Act 2014 ;					S. 3(1) def. of <i>enforcement warrant fee</i> inserted by No. 17/2022 s. 81.
<i>escape offence</i> means an offence against section 479C of the Crimes Act 1958 ;					S. 3(1) def. of <i>escape offence</i> inserted by No. 41/1993 s. 4(b).

S. 3(1) def. of
*family
violence
intervention
order*
inserted by
No. 30/2010
s. 3(a),
amended by
No. 53/2016
s. 124(b).

family violence intervention order means—

- (a) a family violence intervention order within the meaning of section 11 of the **Family Violence Protection Act 2008**; or
- (ab) a non-local DVO made by a court that is a recognised DVO; or
- (b) one of the following orders made under the **Crimes (Family Violence) Act 1987** as in force immediately before its repeal—
 - (i) an intervention order made on grounds referred to in section 4 or 4A of that Act, and subsequently varied or extended under section 16 or 16A of that Act;
 - (ii) an intervention order made on grounds referred to in section 4 or 4A of that Act, and subsequently varied or extended under section 16 or 16A of that Act;
 - (iii) an interim intervention order made on grounds referred to in section 8 of that Act;

S. 3(1) def. of
fine
amended by
Nos 19/1999
s. 12(1),
31/2013 s. 8,
substituted by
No. 32/2013
s. 46(1).

fine means the sum of money payable by an offender under an order of a court made on the offender being convicted or found guilty of an offence and includes costs but does not include—

- (a) money payable by way of restitution or compensation; or

- (b) any costs of or incidental to an application for restitution or compensation payable by an offender under an order of a court; or
- (c) costs incurred between the parties in a civil proceeding; or
- (d) costs incurred by third parties; or
- (e) money payable by an offender under an order of a court to an organisation that provides a charitable or community service or to the court for payment to such an organisation;

fine conversion order means an order made under section 64 or any order made under that provision as varied under section 67;

S. 3(1) def. of *fine conversion order* inserted by No. 65/2011 s. 3(1), amended by Nos 26/2012 s. 27(3), 32/2013 s. 46(2), substituted by No. 59/2017 s. 127.

fine default unpaid community work order means an order made under section 69D, 69H(2)(a) or 69M(4) or any order made under those provisions as varied under section 69I;

S. 3(1) def. of *fine default unpaid community work order* inserted by No. 65/2011 s. 3(1), amended by Nos 26/2012 s. 27(4), 32/2013 s. 46(3).

finer work order means a fine conversion order or a fine default unpaid community work order;

S. 3(1) def. of *finer work order* inserted by No. 32/2013 s. 46(4).

Sentencing Act 1991
No. 49 of 1991
Part 1—Preliminary

S. 3(1) def. of <i>Full Court</i> repealed by No. 19/1999 s. 16(1).	*	*	*	*	*
S. 3(1) def. of <i>home detention order</i> inserted by No. 53/2003 s. 3, substituted by No. 30/2010 s. 3(b), repealed by No. 48/2011 s. 12.	*	*	*	*	*
S. 3(1) def. of <i>hospital security order</i> inserted by No. 69/2005 s. 3(1)(a), repealed by No. 26/2014 s. 429(1)(d)).	*	*	*	*	*
S. 3(1) def. of <i>indefinite sentence</i> inserted by No. 41/1993 s. 4(c).	<i>indefinite sentence</i> means a sentence of imprisonment for an indefinite term imposed under Subdivision (1A) of Division 2 of Part 3;				
S. 3(1) def. of <i>inspector</i> repealed by No. 43/2010 s. 48(1)(a).	*	*	*	*	*
S. 3(1) def. of <i>instalment order</i> amended by Nos 65/2011 s. 3(5), 26/2012 s. 27(5).	<i>instalment order</i> means an order made under Part 3B that a fine be paid by two or more instalments and includes such an order as varied under that Part;				

Sentencing Act 1991
No. 49 of 1991
Part 1—Preliminary

*	*	*	*	*	S. 3(1) def. of <i>intensive correction management order</i> inserted by No. 77/2010 s. 3(a) (as amended by No. 9/2011 s. 3), repealed by No. 65/2011 s. 3(13)(a).
*	*	*	*	*	S. 3(1) def. of <i>intensive correction management order (drug and alcohol)</i> inserted by No. 77/2010 s. 3(a) (as amended by No. 9/2011 s. 3), repealed by No. 65/2011 s. 3(13)(b).
*	*	*	*	*	S. 3(1) def. of <i>intensive correction management order (general)</i> inserted by No. 77/2010 s. 3(a) (as amended by No. 9/2011 s. 3), repealed by No. 65/2011 s. 3(13)(c).
*	*	*	*	*	S. 3(1) def. of <i>intensive correction order</i> repealed by No. 65/2011 s. 3(14)(d).

S. 3(1) def. of
*intimate
image offence*
inserted by
No. 38/2022
s. 40.

intimate image offence has the same meaning as
in the **Criminal Procedure Act 2009**;

S. 3(1) def. of
*involuntary
patient*
repealed by
No. 26/2014
s. 429(1)(e).

* * * *

S. 3(1) def. of
*judicial
monitoring
condition*
inserted by
No. 65/2011
s. 3(1).

judicial monitoring condition means a condition
that may be attached to a community
correction order under section 48K(1);

S. 3(1) def. of
justice plan
amended by
Nos 46/1998
s. 7(Sch. 1),
23/2006
s. 226(a),
substituted by
No. 65/2011
s. 3(6).

justice plan means a plan requested under
section 80(3)(c);

S. 3(1) def. of
*justice plan
condition*
inserted by
No. 65/2011
s. 3(1).

justice plan condition means a condition that may
be attached to—

- (a) a community correction order; or
- (b) an order releasing an offender on
adjournment with or without recording
a conviction—

under section 80(1);

lawyer means an Australian lawyer;

S. 3(1) def. of *lawyer* inserted by No. 18/2005 s. 18(Sch. 1 item 97.1), amended by No. 17/2014 s. 160(Sch. 2 item 88).

learner permit has the same meaning as in the **Road Safety Act 1986**;

S. 3(1) def. of *learner permit* inserted by No. 65/2011 s. 3(1).

legal practitioner means an Australian legal practitioner;

S. 3(1) def. of *legal practitioner* inserted by No. 18/2005 s. 18(Sch. 1 item 97.1), amended by No. 17/2014 s. 160(Sch. 2 item 88).

*

*

*

*

*

S. 3(1) def. of *licence restoration report* inserted by No. 57/1998 s. 26(3), amended by No. 65/2011 s. 3(7), repealed by No. 56/2013 s. 31.

local law means local law made under Division 3 of Part 3 of the **Local Government Act 2020**;

S. 3(1) def. of *local law* amended by No. 9/2020 s. 390(Sch. 1 item 90.1).

S. 3(1) def. of
*mandatory
treatment and
monitoring
order*
inserted by
No. 48/2018
s. 75.

mandatory treatment and monitoring order
means an order made under section 44A;

S. 3(1) def. of
*median
sentence*
inserted by
No. 52/2014
s. 3,
repealed by
No. 34/2017
s. 3.

* * * * *

S. 3(1) def. of
*Mental Health
Review Board*
substituted as
*Mental Health
Tribunal* by
No. 26/2014
s. 429(1)(f),
amended by
No. 39/2022
s. 861(d).

Mental Health Tribunal means the Mental Health
Tribunal established by section 330 of the
Mental Health and Wellbeing Act 2022;

S. 3(1) def. of
mental illness
inserted by
No. 98/1995
s. 64(1)(b),
amended by
Nos 26/2014
s. 429(1)(g),
39/2022
s. 861(e).

mental illness has the same meaning as in the
Mental Health and Wellbeing Act 2022;

S. 3(1) def. of
*monitored
condition*
inserted by
No. 32/2013
s. 23.

monitored condition means any of the following
conditions—

- (a) a curfew condition;
- (b) a place or area exclusion condition;

motor vehicle has the same meaning as in the
Road Safety Act 1986;

<i>nominal sentence</i> , in relation to an indefinite sentence, means the period fixed in accordance with section 18A(3);	S. 3(1) def. of <i>nominal sentence</i> inserted by No. 41/1993 s. 4(d).
<i>non-association condition</i> means a condition that may be attached to a community correction order under section 48F(1);	S. 3(1) def. of <i>non-association condition</i> inserted by No. 65/2011 s. 3(1).
<i>non-local DVO</i> means a non-local DVO within the meaning of the National Domestic Violence Order Scheme Act 2016 ;	S. 3(1) def. of <i>non-local DVO</i> inserted by No. 53/2016 s. 124(a).
<i>non-parole period</i> , in relation to a sentence of imprisonment, means a period fixed in accordance with Subdivision (1) of Division 2 of Part 3 during which the offender is not eligible to be released on parole;	
<i>offence involving an assault</i> means an offence against any of the following sections of the Crimes Act 1958 — (a) section 15A (intentionally causing serious injury in circumstances of gross violence); (b) section 15B (recklessly causing serious injury in circumstances of gross violence); (c) section 16 (intentionally causing serious injury); (d) section 17 (recklessly causing serious injury);	S. 3(1) def. of <i>offence involving an assault</i> inserted by No. 43/2017 s. 45.

- (e) section 18 (intentionally or recklessly causing injury);

S. 3(1) def. of offence involving property damage inserted by No. 43/2017 s. 45.

offence involving property damage means—

- (a) an offence against section 197 of the **Crimes Act 1958** (criminal damage); or
(b) an offence against section 9(1)(c) of the **Summary Offences Act 1966** (wilful damage);

S. 3(1) def. of operational period amended by No. 48/1997 s. 14(1)(a), repealed by No. 32/2013 s. 8(a).

* * * * *

S. 3(1) def. of penalty reminder notice fee inserted by No. 17/2022 s. 81.

penalty reminder notice fee has the same meaning as it has in the **Infringements Act 2006**;

S. 3(1) def. of personal development condition repealed by No. 65/2011 s. 3(14)(e).

* * * * *

S. 3(1) def. of personal safety intervention order inserted by No. 53/2010 s. 221(Sch. item 10.1(a)).

personal safety intervention order means—

- (a) a personal safety intervention order within the meaning of the **Personal Safety Intervention Orders Act 2010**; or
(b) an intervention order within the meaning of the **Stalking Intervention Orders Act 2008** (as in force immediately before its repeal); or

- (c) an order made under section 4 of the **Crimes (Family Violence) Act 1987** of a kind referred to in section 21A(5) of the **Crimes Act 1958**, both as in force immediately before their repeal;
- place or area exclusion condition*** means a condition that may be attached to a community correction order under section 48H(1);
- police officer*** has the same meaning as in the **Victoria Police Act 2013**;
- Post Sentence Authority*** means the Post Sentence Authority continued in existence under section 290 of the **Serious Offenders Act 2018**;
- prescribed person*** means a person prescribed under the regulations;
- prisoner*** has the same meaning as in the **Corrections Act 1986**;
- prison offence*** has the same meaning as in Part 7 of the **Corrections Act 1986**;
- S. 3(1) def. of *place or area exclusion condition* inserted by No. 65/2011 s. 3(1).
- S. 3(1) def. of *police officer* inserted by No. 37/2014 s. 10(Sch. item 151.1(a)).
- S. 3(1) def. of *Post Sentence Authority* inserted by No. 57/2017 s. 52(1), substituted by No. 27/2018 s. 364(1).
- S. 3(1) def. of *prescribed officer* substituted as *prescribed person* by No. 48/1997 s. 14(1)(b).

proper officer, in relation to a court, means the officer or officers of that court prescribed by rules of that court for the purpose of the provision in which the term is used;

proper venue, in relation to the Magistrates' Court, has the same meaning as in the **Magistrates' Court Act 1989**;

S. 3(1) def. of *psychiatric in-patient service* repealed by No. 98/1995 s. 64(1)(c).

* * * * *

S. 3(1) def. of *psychiatrist* inserted by No. 48/2018 s. 75.

psychiatrist means a person who is registered under the Health Practitioner Regulation National Law as a medical practitioner in the speciality of psychiatry (other than as a student);

S. 3(1) def. of *recognised DVO* inserted by No. 53/2016 s. 124(a).

recognised DVO means a recognised DVO within the meaning of the **National Domestic Violence Order Scheme Act 2016**;

S. 3(1) def. of *Regional Manager* amended by No. 2/2002 s. 4(2), substituted by No. 65/2011 s. 3(8), amended by Nos 26/2012 s. 27(6), 43/2020 s. 6(c).

Regional Manager, in relation to—

- (a) a drug and alcohol treatment order; or
- (b) a community correction order; or
- (ba) a fine conversion order; or
- (c) a fine default unpaid community work order—

means the person appointed under Part 4 of the **Corrections Act 1986** to be the Regional Manager of the region in which the community corrections centre specified in the order is located;

registered psychologist means a person registered under the Health Practitioner Regulation National Law to practise in the psychology profession (other than as a student);

S. 3(1) def. of *registered psychologist* inserted by No. 48/2018 s. 75.

residence restriction or exclusion condition means a condition that may be attached to a community correction order under section 48G(1);

S. 3(1) def. of *residence restriction or exclusion condition* inserted by No. 65/2011 s. 3(1).

residential treatment facility has the same meaning as it has in section 3(1) of the **Disability Act 2006**;

S. 3(1) def. of *residential treatment facility* inserted by No. 23/2006 s. 226(b).

residential treatment order means an order made under section 82AA(1);

S. 3(1) def. of *residential treatment order* inserted by No. 23/2006 s. 226(b), amended by No. 65/2011 s. 3(9).

* * * * *

S. 3(1) def. of *restricted involuntary treatment order* inserted by No. 69/2005 s. 3(1)(a), repealed by No. 26/2014 s. 429(1)(h).

S. 3(1) def. of
Secretary
inserted by
No. 46/1998
s. 7(Sch. 1),
substituted by
Nos 65/2011
s. 3(10),
45/2019
s. 50(1).

Secretary means the Secretary to the Department
of Justice and Community Safety;

S. 3(1) def. of
*Secretary
to the
Department
of Health*
inserted by
No. 29/2010
s. 71(1).

Secretary to the Department of Health means the
Department Head (within the meaning of the
Public Administration Act 2004) of the
Department of Health;

S. 3(1) def. of
*secure
custody
facility*
inserted by
No. 2/2002
s. 4(1),
amended by
No. 48/2006
s. 42(Sch.
item 32.1(b)).

secure custody facility means—

- (a) a prison as defined in section 3 of the
Corrections Act 1986; or
- (b) a youth justice centre; or
- (c) any other place the Minister specifies
under subsection (2);

S. 3(1) def. of
*Secure
Treatment
Order*
inserted by
No. 26/2014
s. 429(2),
amended by
No. 39/2022
s. 861(f).

Secure Treatment Order means an Order within
the meaning of section 534 of the **Mental
Health and Wellbeing Act 2022**;

S. 3(1) def. of
*security
patient*
amended by
Nos 26/2014
s. 429(1)(i),
39/2022
s. 861(g).

security patient has the same meaning as in the
Mental Health and Wellbeing Act 2022;

security resident has the same meaning as it has in section 3(1) of the **Disability Act 2006**;

S. 3(1) def. of *security resident* substituted by No. 23/2006 s. 226(c).

sentencing court, in relation to an order made under this Act, means the court that made the order;

S. 3(1) def. of *sentencing court* inserted by No. 65/2011 s. 3(1).

serious offence, for the purposes of Subdivision (1A) of Division 2 of Part 3 (indefinite sentences) means—

- (a) murder; or
- (b) manslaughter; or
- (baa) child homicide; or
- * * * * *
- (bb) homicide by firearm; or
- (c) an offence against any of the following sections of the **Crimes Act 1958**—
 - (iaa) section 15A (causing serious injury intentionally in circumstances of gross violence);
 - (iab) section 15B (causing serious injury recklessly in circumstances of gross violence);
 - (i) section 16 (causing serious injury intentionally);
 - (ii) section 20 (threats to kill);
 - (iii) section 38 (rape);
 - (iv) section 39(1) (rape by compelling sexual penetration);

S. 3(1) def. of *serious offence* inserted by No. 41/1993 s. 4(e), amended by Nos 67/2000 s. 10(1)(a)(b), 77/2005 s. 8(4)(a), 82/2006 s. 7(1), 2/2006 s. 43(1) (as amended by No. 76/2006 s. 14(1)), 7/2008 s. 7(4)(a), 6/2013 s. 8, 32/2013 s. 8(b), 63/2014 s. 5(3)(a), 74/2014 s. 19(1), 47/2016 s. 41(1), 16/2020 s. 23(c), 38/2022 s. 17.

- (iva) section 42(1) (assault with intent to commit a sexual offence);
- (v) section 50C(1) (sexual penetration of a child or lineal descendant), 50D(1) (sexual penetration of a step-child) or 50F(1) (sexual penetration of a sibling or half-sibling) in circumstances other than where both people are aged 18 or older and each consented (as defined by sections 36 and 36AA of the **Crimes Act 1958**) to the sexual penetration;
- (vi) section 49A(1) (sexual penetration of a child under the age of 12) or 49B(1) (sexual penetration of a child under the age of 16);
- * * * * *
- (viii) section 49J(1) (persistent sexual abuse of a child under the age of 16);
- (ix) section 47 (abduction or detention for a sexual purpose);
- (x) section 49P (abduction or detention of a child under the age of 16 for a sexual purpose);
- (xi) section 63A (kidnapping);
- (xii) section 75A (armed robbery); or
- (ca) an offence against section 45(1) (sexual penetration of child under the age of 10) (as amended) of the **Crimes Act 1958** inserted in the **Crimes Act 1958** on 5 August 1991 by section 3 of the **Crimes (Sexual**

- Offences) Act 1991** and repealed by section 5 of the **Crimes (Amendment) Act 2000**; or
- (cb) an offence against section 46(1) (sexual penetration of child aged between 10 and 16) (as amended) of the **Crimes Act 1958** inserted in the **Crimes Act 1958** on 5 August 1991 by section 3 of the **Crimes (Sexual Offences) Act 1991** and repealed by section 5 of the **Crimes (Amendment) Act 2000**; or
- (cc) an offence against any of the following provisions of the **Crimes Act 1958** inserted in the **Crimes Act 1958** on 5 August 1991 by section 3 of the **Crimes (Sexual Offences) Act 1991** and repealed by section 16 of the **Crimes Amendment (Sexual Offences) Act 2016**—
- (i) section 44(1), (2) or (4) (incest) in circumstances other than where both people are aged 18 or older and each consented to the sexual penetration;
 - (ii) section 47A(1) (persistent sexual abuse of child under the age of 16);
 - (iii) section 55 (abduction or detention);
 - (iv) section 56(1) or (2) (abduction of child under the age of 16); or
- (cd) an offence against section 45(1) of the **Crimes Act 1958** (sexual penetration of child under the age of 16) inserted in the **Crimes Act 1958** on 22 November

2000 by section 5 of the **Crimes (Amendment) Act 2000** and repealed by section 16 of the **Crimes Amendment (Sexual Offences) Act 2016**; or

- (d) an offence against a provision of the **Crimes Act 1958** which was **repealed** before the commencement of section 4(e) of the **Sentencing (Amendment) Act 1993** and which the presiding judge is satisfied beyond reasonable doubt, having regard to the facts in evidence, could have been charged as an offence against a provision mentioned in paragraph (c) had it been committed while that provision was in force; or
- (da) an offence that, at the time it was committed, was a serious offence; or
- (e) any of the following common law offences—
 - (i) rape;
 - (ii) assault with intent to rape; or
- (f) an offence of conspiracy to commit, incitement to commit or attempting to commit, an offence referred to in any of the preceding paragraphs;

Sentencing Act 1991
No. 49 of 1991
Part 1—Preliminary

*	*	*	*	*	S. 3(1) defs of <i>serious sexual offender</i> , <i>serious violent offence</i> , <i>serious violent offender</i> inserted by No. 41/1993 s. 4(e), repealed by No. 48/1997 s. 7(1).
<i>severe substance dependence</i> has the same meaning as in section 5 of the Severe Substance Dependence Treatment Act 2010 ;					
*	*	*	*	*	S. 3(1) def. of <i>sexual offence</i> inserted by No. 41/1993 s. 4(e), amended by Nos 24/1994 s. 4(1)(a), 22/1996 s. 20, repealed by No. 48/1997 s. 7(1).
*	*	*	*	*	S. 3(1) def. of <i>significant offence</i> inserted by No. 77/2010 s. 3(a) (as amended by No. 9/2011 s. 3), repealed by No. 32/2013 s. 8(c).

Sentencing Act 1991
No. 49 of 1991
Part 1—Preliminary

S. 3(1) def. of
*stalking
intervention
order*
inserted by
No. 30/2010
s. 3(a),
repealed by
No. 53/2010
s. 221(Sch.
item 10.1(b)).

* * * *

S. 3(1) def. of
*standard
sentence*
inserted by
No. 34/2017
s. 17.

standard sentence, in relation to an offence,
means the period specified by an Act as the
standard sentence for the offence;

Note

See section 5A.

S. 3(1) def. of
*standard
sentence
offence*
inserted by
No. 34/2017
s. 17.

standard sentence offence means an offence for
which an Act specifies a standard sentence;

Note

See section 5A.

subordinate instrument has the same meaning
as in the **Interpretation of Legislation
Act 1984**;

S. 3(1) def. of
*supervision
condition*
substituted by
No. 65/2011
s. 3(11).

supervision condition means a condition that may
be attached to a community correction order
under section 48E(1);

S. 3(1) def. of
*Temporary
Treatment
Order*
inserted by
No. 26/2014
s. 429(2),
amended by
No. 39/2022
s. 861(h).

Temporary Treatment Order means an Order
within the meaning of section 180 of the
Mental Health and Wellbeing Act 2022;

time to pay order means an order made under Part 3B that an offender be allowed time to pay a fine and includes such an order as varied under that Part;

S. 3(1) def. of *time to pay order* inserted by No. 32/2013 s. 46(4).

total effective sentence has the same meaning as in the **Criminal Procedure Act 2009**;

S. 3(1) def. of *total effective sentence* inserted by No. 52/2014 s. 3.

treatment and rehabilitation condition means a condition that may be attached to a community correction order under section 48D(1);

S. 3(1) def. of *treatment and rehabilitation condition* inserted by No. 65/2011 s. 3(1).

* * * * *

S. 3(1) def. of *treatment centre* repealed by No. 43/2010 s. 48(1)(a).

* * * * *

S. 3(1) def. of *treatment period* repealed by No. 48/1997 s. 14(1)(c).

undertaking means a written undertaking by the offender in the prescribed form;

unpaid community work condition means a condition that may be attached to a community correction order under section 48C(1);

S. 3(1) def. of *unpaid community work condition* inserted by No. 77/2010 s. 3(a) (as amended by No. 9/2011 s. 3), substituted by No. 65/2011 s. 3(12).

S. 3(1) def. of
victim
inserted by
No. 24/1994
s. 4(1)(b),
amended by
No. 54/2000
s. 22(1).

victim, in relation to an offence, means a person who, or body that, has suffered injury, loss or damage (including grief, distress, trauma or other significant adverse effect) as a direct result of the offence, whether or not that injury, loss or damage was reasonably foreseeable by the offender;

S. 3(1) def. of
violent offence
inserted by
No. 41/1993
s. 4(f),
amended by
No. 24/1994
s. 4(1)(c),
repealed by
No. 48/1997
s. 7(1).

* * * *

S. 3(1) def. of
working day
inserted by
No. 41/1993
s. 4(f).

working day, in relation to a court, means a day on which the offices of the court are open;

S. 3(1) def. of
young person
inserted by
No. 41/1993
s. 4(f),
repealed by
No. 48/1997
s. 4(c).

* * * *

S. 3(1) def. of
young offender
amended by
No. 48/1997
s. 4(d).

young offender means an offender who at the time of being sentenced is under the age of 21 years;

S. 3(1) def. of
youth justice centre
inserted by
No. 48/2006
s. 42(Sch.
item 32.1(c)).

youth justice centre has the same meaning as in the **Children, Youth and Families Act 2005**;

youth justice centre order means an order made under Subdivision (4) of Division 2 of Part 3 directing the detention of a young offender in a youth justice centre;

S. 3(1) def. of *youth justice centre order* inserted by No. 48/2006 s. 42(Sch. item 32.1(c)).

* * * * *

S. 3(1) def. of *Youth Parole Board* substituted by No. 48/2006 s. 42(Sch. item 32.1(d)), repealed by No. 61/2014 s. 170(1).

youth residential centre has the same meaning as in the **Children, Youth and Families Act 2005**;

S. 3(1) def. of *youth residential centre* inserted by No. 48/1997 s. 4(e), substituted by No. 48/2006 s. 42(Sch. item 32.1(e)).

youth residential centre order means an order made under Subdivision (4) of Division 2 of Part 3 directing the detention of a young offender in a youth residential centre;

S. 3(1) def. of *youth residential centre order* inserted by No. 48/1997 s. 4(e).

* * * * *

S. 3(1) defs of *youth training centre* and *youth training centre order* inserted by No. 48/1997 s. 4(e), repealed by No. 48/2006 s. 42(Sch. 32.1(f)).

S. 3(2)
inserted by
No. 41/1993
s. 4(g),
amended by
No. 24/1994
s. 4(2)(a)(i)
(ii)(b),
repealed by
No. 48/1997
s. 7(2),
new s. 3(2)
inserted by
No. 2/2002
s. 4(3).

- (2) The Minister may, by notice published in the Government Gazette, specify a place for the purposes of paragraph (c) of the definition of *secure custody facility* in subsection (1).

S. 3(3)
inserted by
No. 2/2002
s. 4(3).

- (3) Section 6(b) of the **Corrections Act 1986** is taken to include an order under section 18ZL(1)(f) that a person serve a period in a place referred to in paragraph (c) of the definition of *secure custody facility* in subsection (1).

4 Application

This Act applies to all courts except the Children's Court.

Part 2—Governing principles

5 Sentencing guidelines

- (1) The only purposes for which sentences may be imposed are—
- (a) to punish the offender to an extent and in a manner which is just in all of the circumstances; or
 - (b) to deter the offender or other persons from committing offences of the same or a similar character; or
 - (c) to establish conditions within which it is considered by the court that the rehabilitation of the offender may be facilitated; or
 - (d) to manifest the denunciation by the court of the type of conduct in which the offender engaged; or
 - (e) to protect the community from the offender; or
 - (f) a combination of two or more of those purposes.

(2AA) Despite anything to the contrary in this Act, in sentencing an offender a court must not have regard to¹—

S. 5(2AA)
inserted by
No. 48/1997
s. 5.

- (a) any possibility or likelihood that the length of time actually spent in custody by the offender will be affected by executive action of any kind; or
- (b) any sentencing practices arising at any time out of section 10 of this Act as in force at any time before its expiry on 22 April 1997.

S. 5(2AA)(b)
amended by
No. 69/2014
s. 7.

Sentencing Act 1991
No. 49 of 1991
Part 2—Governing principles

S. 5(2AB)
inserted by
No. 69/1997
s. 4.

(2AB) If, in sentencing an offender, a court imposes a less severe sentence than it would otherwise have imposed because of an undertaking given by the offender to assist, after sentencing, law enforcement authorities in the investigation or prosecution of an offence, the court must announce that it is doing so and cause to be noted in the records of the court the fact that the undertaking was given and its details.

S. 5(2AC)
inserted by
No. 69/1997
s. 4.

(2AC) Nothing in subsection (2AB) requires a court to state the sentence that it would have imposed but for the undertaking that was given.

(2) In sentencing an offender a court must have regard to—

(a) the maximum penalty prescribed for the offence; and

(ab) the standard sentence, if any, for the offence; and

S. 5(2)(ab)
inserted by
No. 52/2014
s. 4,
repealed by
No. 34/2017
s. 4, new
s. 5(2)(ab)
inserted by
No. 34/2017
s. 18.

(b) current sentencing practices; and

(c) the nature and gravity of the offence; and

(d) the offender's culpability and degree of responsibility for the offence; and

S. 5(2)(daaa)
inserted by
No. 77/2009
s. 3.

(daaa) whether the offence was motivated (wholly or partly) by hatred for or prejudice against a group of people with common characteristics with which the victim was associated or with which the offender believed the victim was associated; and

(daa) the impact of the offence on any victim of the offence; and

S. 5(2)(daa)
inserted by
No. 15/2005
s. 3.

(da) the personal circumstances of any victim of the offence; and

S. 5(2)(da)
inserted by
No. 24/1994
s. 5.

(db) any injury, loss or damage resulting directly from the offence; and

S. 5(2)(db)
inserted by
No. 24/1994
s. 5.

(e) whether the offender pleaded guilty to the offence and, if so, the stage in the proceedings at which the offender did so or indicated an intention to do so; and

(f) the offender's previous character; and

(g) the presence of any aggravating or mitigating factor concerning the offender or of any other relevant circumstances.

Note

See section 5AA in relation to the court having regard to previous good character or lack of previous findings of guilt or convictions in certain circumstances.

Note to s. 5(2)
inserted by
No. 5/2018
s. 32.

(2A) In sentencing an offender a court—

S. 5(2A)
inserted by
No. 90/1991
s. 34.

(a) may have regard to a forfeiture order made under the **Confiscation Act 1997** in respect of property—

S. 5(2A)(a)
amended by
No. 108/1997
s. 156(a)(i).

(i) that was used in, or in connection with, the commission of the offence;

(ii) that was intended to be used in, or in connection with, the commission of the offence;

S. 5(2A)(a)(iii)
amended by
No. 108/1997
s. 156(a)(ii).

(iii) that was derived or realised, or substantially derived or realised, directly or indirectly, from property referred to in subparagraph (i) or (ii);

S. 5(2A)(ab)
inserted by
No. 63/2003
s. 50(1),
amended by
No. 55/2014
s. 48(1).

- (ab) if it is satisfied that property was acquired lawfully, may have regard to automatic forfeiture under Division 2 or 3 of Part 3 of the **Confiscation Act 1997** in respect of property—
- (i) that was used in, or in connection with, the commission of the offence;
 - (ii) that was intended to be used in, or in connection with, the commission of the offence;
 - (iii) that was derived or realised, or substantially derived or realised, directly or indirectly, from property referred to in subparagraph (i) or (ii);
- (b) must not have regard to a forfeiture order made under that Act in respect of property that was derived or realised, or substantially derived or realised, directly or indirectly, by any person as a result of the commission of the offence;
- (c) may have regard to a pecuniary penalty order made under that Act to the extent to which it relates to benefits in excess of profits derived from the commission of the offence;
- (d) must not have regard to a pecuniary penalty order made under that Act to the extent to which relates to profits (as opposed to benefits) derived from the commission of the offence;

S. 5(2A)(b)
amended by
No. 108/1997
s. 156(b).

- | | |
|--|--|
| (e) subject to paragraph (ab), must not have regard to the automatic forfeiture of property under Division 2 or 3 of Part 3 of that Act or a pecuniary penalty made under that Act in relation to a Schedule 2 offence; | S. 5(2A)(e) inserted by No. 108/1997 s. 156(c), amended by Nos 63/2003 s. 50(2), 87/2004 s. 24(a), 55/2014 s. 48(2), substituted by No. 27/2016 s. 46. |
| (f) must not have regard to the automatic forfeiture of property under Division 4 of Part 3 of that Act in relation to a serious drug offence. | S. 5(2A)(f) inserted by No. 27/2016 s. 46. |
| (2B) Nothing in subsection (2A) prevents a court from having regard to a forfeiture order or civil forfeiture order made under, or automatic forfeiture occurring by operation of, the Confiscation Act 1997 as an indication of remorse or co-operation with the authorities on the part of the offender. | S. 5(2B) inserted by No. 90/1991 s. 34, amended by No. 108/1997 s. 156(d). |
| (2BA) In sentencing an offender, a court— | S. 5(2BA) inserted by No. 1/2005 s. 48. |
| (a) must not have regard to the fact that the offender is subject to an extended supervision order or interim extended supervision order under the Serious Sex Offenders Monitoring Act 2005 but, if relevant to the conditions of any sentence imposed by it, may have regard to the conditions of that order and the terms of any current directions or instructions given by the Post Sentence Authority under section 16 of that Act; | S. 5(2BA)(a) amended by Nos 21/2008 s. 25(1), 57/2017 s. 52(2). |

Sentencing Act 1991
No. 49 of 1991
Part 2—Governing principles

S. 5(2BA)(b)
amended by
No. 21/2008
s. 25(1),
repealed by
No. 91/2009
s. 219(Sch. 3
item 2.1).

* * * *

S. 5(2BB)
inserted by
No. 1/2005
s. 48.

(2BB) For the purposes of subsection (2BA)(a), the court may request the Secretary within the meaning of the **Serious Sex Offenders Monitoring Act 2005** to provide it with a report setting out—

S. 5(2BB)(a)
amended by
No. 21/2008
s. 25(1).

(a) the conditions of the extended supervision order or interim extended supervision order to which the offender is subject under that Act; and

S. 5(2BB)(b)
amended by
No. 57/2017
s. 52(2).

(b) the terms of any current directions or instructions given by the Post Sentence Authority under section 16 of that Act in relation to that order.

S. 5(2BC)
inserted by
No. 34/2005
s. 27,
amended by
Nos 57/2005
s. 50(1),
34/2020 s. 238.

(2BC) In sentencing an offender a court must not have regard to any consequences that may arise under the **Sex Offenders Registration Act 2004** or the **Worker Screening Act 2020** from the imposition of the sentence.

S. 5(2BD)
inserted by
No. 91/2009
s. 219(Sch. 3
item 2.2).

(2BD) In sentencing an offender, a court—

S. 5(2BD)(a)
amended by
Nos 57/2017
s. 52(2),
27/2018
s. 364(2).

(a) must not have regard to the fact that the offender is subject to an order made under the **Serious Offenders Act 2018** but, if relevant to the conditions of any sentence imposed by it, may have regard to the conditions (if any) imposed on that order and the terms of any current directions or instructions given by the Authority under Part 11 of that Act;

- (b) must not have regard to any possibility or likelihood of an application being made under that Act for an order in respect of the offender.
- (2BE) For the purposes of subsection (2BD)(a), the court may request the Secretary to provide it with a report setting out—
- (a) the conditions of the supervision order or interim supervision order to which the offender is subject under that Act; and
- (b) the terms of any current directions or instructions given by the Post Sentence Authority under section 119, 120(2) or 121 of that Act in relation to that order.
- (2C) In sentencing an offender a court may have regard to the conduct of the offender on or in connection with the trial or hearing as an indication of remorse or lack of remorse on his or her part.
- (2CA) In sentencing an offender who has been found guilty of murder, conspiracy to murder, accessory to murder or manslaughter in circumstances in which the body or remains of the deceased victim have not been located, a court may have regard to whether the offender has cooperated in the investigation of the offence to identify—
- (a) the location, or last known location, of that body or those remains; and
- (b) the place where the body or remains of the victim of the offence may be found.

S. 5(2BE)
inserted by
No. 91/2009
s. 219(Sch. 3
item 2.2),
amended by
No. 65/2011
s. 4(1).

S. 5(2BE)(b)
amended by
No. 57/2017
s. 52(2).

S. 5(2C)
inserted by
No. 60/1993
s. 26,
amended by
Nos 35/1999
s. 37(1)(a)(b),
68/2009
s. 97(Sch.
item 110.2).

S. 5(2CA)
inserted by
No. 76/2016
s. 9.

S. 5(2D)
inserted by
No. 60/1993
s. 26,
substituted by
No. 35/1999
s. 37(2),
amended by
Nos 68/2009
s. 97(Sch.
item 110.3),
30/2010 s. 24.

(2D) In having regard to the conduct of the offender under subsection (2C), the court may consider the extent to which the offender complied with, or failed to comply with, a requirement imposed on the offender by or under Part 5.5 of Chapter 5 of the **Criminal Procedure Act 2009**.

S. 5(2E)
inserted by
No. 60/1993
s. 26,
amended by
Nos 109/1994
s. 34(14)(a),
19/1999
s. 16(2),
68/2009
s. 97(Sch.
item 110.4).

(2E) An offender who pleads guilty to an offence after the determination by the Court of Appeal² of a question of law reserved under section 302(2) of the **Criminal Procedure Act 2009** is to be taken to have pleaded guilty immediately after arraignment.

S. 5(2F)
inserted by
No. 74/2014
s. 17.

(2F) In sentencing an offender for the incidents of the commission of an offence included in a course of conduct charge (within the meaning of clause 4A of Schedule 1 to the **Criminal Procedure Act 2009**) a court—

- (a) must impose a sentence that reflects the totality of the offending that constitutes the course of conduct; and
- (b) must not impose a sentence that exceeds the maximum penalty prescribed for the offence if charged as a single offence.

Note

If a jury finds a person guilty of a course of conduct charge, in making finding of facts relevant to sentencing the sentencing judge determines the course of conduct in which the person engaged and by reference to which the person will be sentenced.

- (2G) Subject to subsection (2GA), in sentencing an offender for a category 1 offence, a court must make an order under Division 2 of Part 3 (other than a sentence of imprisonment imposed in addition to making a community correction order in accordance with section 44).
- (2GA) In sentencing an offender for an offence referred to in paragraph (ca), (cb), (cc), (ic) or (id) of the definition of **category 1 offence** where the court has found under section 10A that a special reason exists and having regard to the Parliament's intention set out in section 10A(3)(aa) to (b), a court must make either—
- (a) an order referred to in subsection (2G); or
 - (b) a mandatory treatment and monitoring order (whether or not a sentence of imprisonment is imposed under section 44), a residential treatment order or a Court Secure Treatment Order if—
 - (i) the offender proves on the balance of probabilities that, at the time of the commission of the offence, the offender had impaired mental functioning that is causally linked to the commission of the offence and substantially and materially reduces the offender's culpability; and
 - (ii) the court is satisfied that a mandatory treatment and monitoring order, a residential treatment order or a Court Secure Treatment Order, as the case requires, is appropriate.

S. 5(2G)
inserted by
No. 65/2016
s. 4(1),
amended by
No. 48/2018
s. 76(1).

S. 5(2GA)
inserted by
No. 48/2018
s. 76(2),
amended by
No. 23/2020
s. 3(1).

Sentencing Act 1991
No. 49 of 1991
Part 2—Governing principles

S. 5(2GB)
inserted by
No. 48/2018
s. 76(2),
amended by
No. 23/2020
s. 3(2).

- (2GB) Before making an order under subsection (2GA)(b) a court must—
- (a) have received a report addressing the matters in subsection (2GA)(b)(i) by a psychiatrist or a registered psychologist who has examined the offender in relation to the offending; and
 - (b) have regard to that report and any other evidence that the court considers relevant.

S. 5(2GC)
inserted by
No. 48/2018
s. 76(2),
amended by
No. 23/2020
s. 3(3).

- (2GC) Subsection (2GA) does not apply to impaired mental functioning caused substantially by self-induced intoxication.

S. 5(2H)
inserted by
No. 65/2016
s. 4(1).

- (2H) In sentencing an offender for a category 2 offence, a court must make an order under Division 2 of Part 3 (other than a sentence of imprisonment imposed in addition to making a community correction order in accordance with section 44) unless—
- (a) the offender has assisted or has given an undertaking to assist, after sentencing, law enforcement authorities in the investigation or prosecution of an offence; or

Notes

- 1 Section 5(2AB) also applies.
- 2 If an offender fails to fulfil an undertaking, the Director of Public Prosecutions has a right under section 291 of the **Criminal Procedure Act 2009** to appeal against the less severe sentence imposed.

S. 5(2H)(b)
repealed by
No. 48/2018
s. 76(3).

* * * * *

(c) the offender proves on the balance of probabilities that—

(i) subject to subsection (2HA), at the time of the commission of the offence, he or she had impaired mental functioning that is causally linked to the commission of the offence and substantially and materially reduces the offender's culpability; or

S. 5(2H)(c)(i)
amended by
Nos 48/2018
s. 76(4),
23/2020
s. 3(4).

(ii) the offender has impaired mental functioning that would result in the offender being subject to substantially and materially greater than the ordinary burden or risks of imprisonment; or

S. 5(2H)(c)(ii)
amended by
No. 48/2018
s. 76(5).

(d) the court proposes to make a Court Secure Treatment Order or a residential treatment order in respect of the offender; or

(e) there are substantial and compelling circumstances that are exceptional and rare and that justify not making an order under Division 2 of Part 3 (that is not a sentence of imprisonment imposed in addition to making a community correction order in accordance with section 44).

S. 5(2H)(e)
amended by
No. 48/2018
s. 76(6).

(2HA) Subsection (2H)(c)(i) does not apply to impaired mental functioning caused substantially by self-induced intoxication.

S. 5(2HA)
inserted by
No. 48/2018
s. 76(7),
amended by
No. 23/2020
s. 3(5).

(2HB) In subsections (2GA), (2GC), (2H) and (2HA)—
impaired mental functioning has the same meaning as in section 10A;

S. 5(2HB)
inserted by
No. 48/2018
s. 76(7).

self-induced intoxication has the same meaning as in section 322T(5) and (6) of the **Crimes Act 1958**.

S. 5(2HC)
inserted by
No. 48/2018
s. 76(8).

(2HC) In determining whether there are substantial and compelling circumstances under subsection (2H)(e), the court—

- (a) must regard general deterrence and denunciation of the offender's conduct as having greater importance than the other purposes set out in section 5(1); and
- (b) must give less weight to the personal circumstances of the offender than to other matters such as the nature and gravity of the offence; and
- (c) must not have regard to—
 - (i) the offender's previous good character (other than an absence of previous convictions or findings of guilt); or
 - (ii) an early guilty plea; or
 - (iii) prospects of rehabilitation; or
 - (iv) parity with other sentences.

S. 5(2I)
inserted by
No. 65/2016
s. 4(1).

(2I) In determining whether there are substantial and compelling circumstances under subsection (2H)(e), the court must have regard to—

- (a) the Parliament's intention that in sentencing an offender for a category 2 offence only an order under Division 2 of Part 3 (that is not a sentence of imprisonment imposed in addition to making a community correction order in accordance with section 44) should ordinarily be made; and
- (b) whether the cumulative impact of the circumstances of the case would justify a departure from such a sentence.

S. 5(2J)
inserted by
No. 48/2018
s. 76(9).

(2J) In sentencing a young offender aged 16 years or more but under 18 years at the time of the commission of an indictable offence, the Supreme

Court or the County Court must have regard to any requirement in this Act that a specified minimum non-parole period of imprisonment be fixed or a specified minimum term of imprisonment be imposed, had the offence been committed by an adult.

- (3) Subject to subsections (2G), (2GA) and (2H), a court must not impose a sentence that is more severe than that which is necessary to achieve the purpose or purposes for which the sentence is imposed.

S. 5(3)
amended by
Nos 65/2016
s. 4(2),
48/2018
s. 76(10).

- (4) Subject to subsections (2G), (2GA) and (2H), a court must not impose a sentence that involves the confinement of the offender unless it considers that the purpose or purposes for which the sentence is imposed cannot be achieved by a sentence that does not involve the confinement of the offender.

S. 5(4)
amended by
Nos 65/2016
s. 4(2),
48/2018
s. 76(10).

* * * * *

S. 5(4A)
inserted by
No. 48/1997
s. 8(1),
amended by
No. 2/2002
s. 4(4),
repealed by
No. 65/2011
s. 4(2).

- (4B) Subject to subsections (2G), (2GA) and (2H), a court must not impose a sentence that involves the confinement of the offender unless it considers that the purpose or purposes for which the sentence is imposed cannot be achieved by a drug and alcohol treatment order.

S. 5(4B)
inserted by
No. 2/2002
s. 4(5),
amended by
Nos 65/2011
s. 4(3),
65/2016
s. 4(2),
48/2018
s. 76(10),
43/2020
s. 7(a).

S. 5(4C)
inserted by
No. 69/2014
s. 16,
amended by
Nos 65/2016
s. 4(2),
48/2018
s. 76(10).

(4C) Subject to subsections (2G), (2GA) and (2H), a court must not impose a sentence that involves the confinement of the offender unless it considers that the purpose or purposes for which the sentence is imposed cannot be achieved by a community correction order to which one or more of the conditions referred to in sections 48F, 48G, 48H, 48I and 48J are attached.

S. 5(5)
amended by
Nos 65/2011
s. 4(4),
43/2020
s. 7(b).

(5) A court must not impose a drug and alcohol treatment order unless it considers that the purpose or purposes for which the sentence is imposed cannot be achieved by a community correction order.

S. 5(6)
amended by
No. 65/2011
s. 4(5).

(6) A court must not impose a community correction order unless it considers that the purpose or purposes for which the sentence is imposed cannot be achieved by imposing a fine.

(7) A court must not impose a fine unless it considers that the purpose or purposes for which the sentence is imposed cannot be achieved by a dismissal, discharge or adjournment.

S. 5AA
inserted by
No. 5/2018
s. 33.

5AA Court not to have regard to previous good character or lack of previous findings of guilt or convictions in certain circumstances

(1) Despite section 5(2), in sentencing an offender for a child sexual offence, a court must not have regard to the offender's previous good character or lack of previous findings of guilt or convictions if the court is satisfied the offender's previous good character or lack of previous findings of guilt or convictions was of assistance to the offender in the commission of the offence.

(2) Subsection (1) does not apply to an offender who is under the age of 18 years at the time of the commission of the offence.

(3) In this section—

child sexual offence means a sexual offence within the meaning of section 3 of the **Criminal Procedure Act 2009** (other than an intimate image offence), committed in relation to a person under the age of 18 years.

S. 5AA(3)
def. of *child sexual offence*
amended by
No. 38/2022
s. 41.

5A Standard sentence scheme

(1) If the Act that creates an offence, or prescribes the maximum penalty for an offence, specifies a period as the standard sentence for the offence, then—

- (a) the offence is a standard sentence offence; and
- (b) the period specified as the standard sentence for the offence is the sentence for an offence that, taking into account only the objective factors affecting the relative seriousness of that offence, is in the middle of the range of seriousness.

S. 5A
inserted by
No. 41/1993
s. 5,
repealed by
No. 48/1997
s. 7(3),
new s. 5A
inserted by
No. 52/2014
s. 5,
amended by
No. 63/2014
s. 7(17),
repealed by
No. 34/2017
s. 5, new s. 5A
inserted by
No. 34/2017
s. 19.

(2) An offence of conspiracy to commit, incitement to commit or attempting to commit a standard sentence offence is itself not a standard sentence offence.

(3) For the purposes of subsection (1)(b), objective factors affecting the relative seriousness of an offence are to be determined—

- (a) without reference to matters personal to a particular offender or class of offenders; and
- (b) wholly by reference to the nature of the offending.

S. 5B
inserted by
No. 52/2014
s. 5,
repealed by
No. 34/2017
s. 6, new s. 5B
inserted by
No. 34/2017
s. 19.

S. 5B(1)(b)
amended by
No. 22/2020
s. 25(1).

S. 5B(1)(c)
repealed by
No. 22/2020
s. 25(2).

5B Sentencing for a standard sentence offence

(1) This section applies in relation to sentencing an offender for a standard sentence offence unless—

(a) the offender was under the age of 18 at the time of the commission of the offence; or

(b) the offence is heard and determined summarily.

* * * * *

(2) In sentencing an offender for a standard sentence offence, a court—

(a) must take the standard sentence into account as one of the factors relevant to sentencing; and

(b) despite section 5(2)(b), must only have regard to sentences previously imposed for the offence as a standard sentence offence in relation to the sentencing for which this section applied.

(3) Subsection (2)—

(a) does not limit the matters that a court is otherwise required or permitted to take into account in determining the appropriate sentence for a standard sentence offence; and

(b) is not intended to affect the approach to sentencing known as instinctive synthesis.

(4) A court that sentences an offender for a standard sentence offence must at the time of doing so state the reasons for—

- (a) imposing that sentence; and
 - (b) any non-parole period fixed in accordance with section 11 as part of that sentence if that period is shorter than the period specified in section 11A(4)(a), (b) or (c), as the case requires.
- (5) As part of its reasons under subsection (4), a court must refer to the standard sentence for the offence and explain how the sentence imposed by it relates to that standard sentence.

6 Factors to be considered in determining offender's character

In determining the character of an offender a court may consider (among other things)—

- (a) the number, seriousness, date, relevance and nature of any previous findings of guilt or convictions of the offender; and
- (b) the general reputation of the offender; and
- (c) any significant contributions made by the offender to the community.

6AAA Sentence discount for guilty plea

- (1) If—
- (a) in sentencing an offender, a court imposes a less severe sentence than it would otherwise have imposed because the offender pleaded guilty to the offence; and
 - (b) the sentence imposed on the offender is or includes—
 - (i) an order under Division 2 of Part 3; or
 - (ia) an order that the offender serve a term of imprisonment; or

S. 6AAA
inserted by
No. 8/2008
s. 3.

S. 6AAA
(1)(b)(ia)
inserted by
No. 65/2016
s. 5.

S. 6AAA
(1)(b)(ib)
inserted by
No. 65/2016
s. 5.

(ib) a community correction order for a period of 2 years or more; or

(ii) a fine exceeding 10 penalty units; or

(iii) an aggregate fine exceeding 20 penalty units—

the court must state the sentence and the non-parole period, if any, that it would have imposed but for the plea of guilty.

(2) If an offender is sentenced for more than one offence in the same proceeding and subsection (1)(a) and (b) apply, the court must state, in respect of any total effective period of imprisonment—

(a) the sentence; and

(b) the non-parole period, if any—

that it would have imposed but for the plea of guilty and need not state those matters in respect of each offence.

(3) In the case of a sentence other than a sentence referred to in subsection (1)(b), the court may state the sentence that it would have imposed but for the plea of guilty.

S. 6AAA(4)
amended by
No. 22/2009
s. 5,
substituted by
No. 48/2012
s. 43.

(4) If the court makes a statement under this section, it must record or cause to be recorded (whether in writing or another form) the matters stated under subsection (1), (2) or (3), as the case may be.

(5) For the purposes of this section, an aggregate sentence imposed in respect of two or more offences is to be treated as a sentence imposed in respect of one offence.

Part 2AA—Guideline judgments

Pt 2AA
(Heading and
ss 6AA–6AG)
inserted by
No. 13/2003
s. 4.

6AA Definition

S. 6AA
inserted by
No. 13/2003
s. 4.

In this Part—

guideline judgment means a judgment that is expressed to contain guidelines to be taken into account by courts in sentencing offenders for offences (other than offences against a law of the Commonwealth), being guidelines that apply—

S. 6AA def. of
*guideline
judgment*
amended by
No. 34/2017
s. 38.

- (a) generally; or
- (b) to a particular court or class of court; or
- (c) to a particular offence or class of offence; or
- (d) to a particular penalty or class of penalty; or
- (e) to a particular class of offender.

6AB Power of Court of Appeal to give or review guideline judgments

S. 6AB
inserted by
No. 13/2003
s. 4.

- (1) On hearing and considering an appeal against sentence, the Court of Appeal may (on its own initiative or on an application made by a party to the appeal) consider whether—
 - (a) to give a guideline judgment; or
 - (b) to review a guideline judgment given by it in a previous proceeding.

- (2) On a review of a guideline judgment, the Court of Appeal may—
 - (a) confirm the guideline judgment; or
 - (b) vary the guideline judgment; or
 - (c) revoke the guideline judgment; or
 - (d) substitute the guideline judgment with a new guideline judgment.
- (3) The Court of Appeal may give or review a guideline judgment even if it is not necessary for the purpose of determining any appeal in which the judgment is given or reviewed.
- (4) A decision of the Court of Appeal to give or review a guideline judgment must be a unanimous decision of the Judges constituting the Court.
- (5) A guideline judgment may be given separately to, or included in, the Court of Appeal's judgment in an appeal.
- (6) Nothing in this Part requires the Court of Appeal to give or review a guideline judgment if it considers it inappropriate to do so.

S. 6ABA
inserted by
No. 34/2017
s. 39.

6ABA Guideline judgments on application of Attorney-General

- (1) The Attorney-General may apply to the Court of Appeal for it to give a guideline judgment, or review a guideline judgment previously given by it, if the Attorney-General believes that—
 - (a) a guideline judgment is required to be given or reviewed to address a broad or systemic sentencing issue; and
 - (b) the making of the application is in the public interest.

- (2) An application is not to be made in respect of any proceeding before any court or with respect to a particular offender.
- (3) An application may include submissions with respect to the framing of the proposed guideline judgment.
- (4) The Court of Appeal must state the reasons if it refuses to give or review a guideline judgment on an application under this section.
- (5) A guideline judgment given or reviewed on an application under this section must be given or reviewed separately from any proceeding before the Court with respect to a particular offender.

6AC Content of guideline judgment

- (1) A guideline judgment may set out—
 - (a) criteria to be applied in selecting among various sentencing alternatives;
 - (b) the weight to be given to the various purposes specified in section 5(1) for which a sentence may be imposed;
 - (c) the criteria by which a sentencing court is to determine the gravity of an offence;
 - (d) the criteria which a sentencing court may use to reduce the sentence for an offence;
 - (e) the weighting to be given to relevant criteria;
- (ea) guidelines for sentencing offenders for standard sentence offences;

S. 6AC
inserted by
No. 13/2003
s. 4,
amended by
No. 34/2017
s. 40(2) (ILA
s. 39B(1).

S. 6AC(1)(ea)
inserted by
No. 52/2014
s. 6,
repealed by
No. 34/2017
s. 7, new
s. 6AC(1)(ea)
inserted by
No. 34/2017
s. 20.

S. 6AC(1)(eb)
inserted by
No. 34/2017
s. 40(1).

(eb) guidelines as to the appropriate level or range of sentences for a particular offence or class of offence;

(f) any other matter consistent with the principles contained in this Act.

S. 6AC(2)
inserted by
No. 34/2017
s. 40(2).

(2) Counsel for the prosecution or the defence may make a submission to a court considering the sentence for an offence, on the level or range of sentences that could be imposed for it, if that level or range has been set out in a guideline judgment.

S. 6AC(3)
inserted by
No. 34/2017
s. 40(2).

(3) Subsections (1)(eb) and (2) have effect despite any rule of law or practice to the contrary and any such rule is abolished.

S. 6AD
inserted by
No. 13/2003
s. 4,
amended by
No. 34/2017
s. 41(1)(2) (ILA
s. 39B(1)).

6AD Procedural requirements

(1) If the Court of Appeal is considering (including on an application by the Attorney-General under section 6ABA) whether to give or review a guideline judgment or decides to give or review a guideline judgment it must—

(a) cause the Sentencing Advisory Council to be notified and consider any views stated in writing, within the period specified in the notification, by that Council; and

(b) give—

(i) the Director of Public Prosecutions or a lawyer representing the Director; and

(ii) a lawyer representing Victoria Legal Aid, whether or not employed by Victoria Legal Aid, or a lawyer arranged by Victoria Legal Aid—

an opportunity to appear before the Court and make a submission on the matter.

S. 6AD(1)(b)(i)
amended by
No. 18/2005
s. 18(Sch. 1
item 97.2).

S. 6AD(1)(b)(ii)
amended by
No. 18/2005
s. 18(Sch. 1
item 97.2).

- (2) In specifying a period for the purposes of subsection (1)(a), the Court of Appeal must take into consideration the period reasonably required for the Sentencing Advisory Council to—

S. 6AD(2)
inserted by
No. 34/2017
s. 41(2).

- (a) undertake research and statistical analysis;
and
(b) consult with relevant persons within the criminal justice system as well as the general public.

- (3) Views stated by the Sentencing Advisory Council under subsection (1)(a) or a submission made under subsection (1)(b) may include a view or submission with respect to the framing of the proposed guideline judgment.

S. 6AD(3)
inserted by
No. 34/2017
s. 41(2).

6AE Matters to which Court of Appeal must have regard

S. 6AE
inserted by
No. 13/2003
s. 4.

In considering the giving of, or in reviewing, a guideline judgment the Court of Appeal must have regard to—

- (a) the need to promote consistency of approach in sentencing offenders; and
(b) the need to promote public confidence in the criminal justice system; and
(c) any views stated by the Sentencing Advisory Council and any submissions made by the Director of Public Prosecutions or a lawyer under section 6AD.

S. 6AE(c)
amended by
No. 18/2005
s. 18(Sch. 1
item 97.2).

6AF Use of evidence in giving or reviewing guideline judgment

S. 6AF
inserted by
No. 13/2003
s. 4,
amended by
No. 68/2009
s. 97(Sch.
item 110.5).

Nothing in Part 6.3 of Chapter 6 of the **Criminal Procedure Act 2009** limits the evidence or other matters that the Court of Appeal may take into consideration in giving or reviewing a guideline judgment and the Court may inform itself as it sees fit.

S. 6AG
inserted by
No. 13/2003
s. 4.

6AG Relationship between guideline judgments and other sentencing matters

A guideline in a guideline judgment—

- (a) is additional to any other matter that is required to be taken into account under Part 2; and
- (b) does not limit or take away from any such requirement.

Part 2A—Serious offenders

Pt 2A
(Heading and
ss 6A–6F)
inserted by
No. 48/1997
s. 6.

6A Application of Part

S. 6A
inserted by
No. 48/1997
s. 6.

This Part applies to a court in sentencing—

- (a) a serious sexual offender for a sexual offence or a violent offence;
- (b) a serious violent offender for a serious violent offence;
- (c) a serious drug offender for a drug offence;
- (d) a serious arson offender for an arson offence.

6B Definitions for purposes of this Part

S. 6B
inserted by
No. 48/1997
s. 6.

(1) In this Part—

arson offence means an offence to which clause 5 of Schedule 1 applies;

drug offence means an offence to which clause 4 of Schedule 1 applies;

serious violent offence means an offence to which clause 3 of Schedule 1 applies;

sexual offence means an offence to which clause 1 of Schedule 1 applies;

violent offence means an offence to which clause 2 of Schedule 1 applies.

(2) In this Part—

serious arson offender means an offender (other than a young offender) who has been convicted of an arson offence for which he or she has been sentenced to a term of imprisonment or detention in a youth justice centre;

S. 6B(2) def. of
*serious arson
offender*
amended by
No. 48/2006
s. 42(Sch.
item 32.2(a)).

S. 6B(2) def. of
*serious drug
offender*
amended by
No. 48/2006
s. 42(Sch.
item 32.2(b)).

serious drug offender means an offender
(other than a young offender) who has been
convicted of a drug offence for which he or
she has been sentenced to a term of
imprisonment or detention in a youth justice
centre;

S. 6B(2) def. of
*serious
sexual
offender*
amended by
Nos 48/2006
s. 42(Sch.
item 32.2(c)),
18/2008 s. 15,
74/2014 s. 18,
48/2018 s. 77.

serious sexual offender means an offender
(other than a young offender)—

- (a) who has been convicted of 2 or more
sexual offences for each of which he or
she has been sentenced to a term of
imprisonment or detention in a youth
justice centre; or
- (ab) who has been convicted of an offence
to which clause 1(a)(viii) or 1(dab)(iii)
of Schedule 1 applies for which he or
she has been sentenced to a term of
imprisonment or detention in a youth
justice centre; or
- (ac) who has been convicted of committing
the incidents of a sexual offence
included in a course of conduct charge
(within the meaning of clause 4A of
Schedule 1 to the **Criminal Procedure
Act 2009**) for which he or she has been
sentenced to a term of imprisonment or
detention in a youth justice centre; or
- (b) who has been convicted of at least one
sexual offence and at least one violent
offence arising out of the one course of
conduct for each of which he or she has
been sentenced to a term of
imprisonment or detention in a youth
justice centre;

serious violent offender means an offender (other than a young offender) who has been convicted of a serious violent offence for which he or she has been sentenced to a term of imprisonment or detention in a youth justice centre.

S. 6B(2) def. of *serious violent offender* amended by No. 48/2006 s. 42(Sch. item 32.2(d)).

(3) In this Part—

relevant offence, in relation to a serious offender, means—

- (a) an arson offence in the case of a serious arson offender;
- (b) a drug offence in the case of a serious drug offender;
- (c) a sexual offence or a violent offence in the case of a serious sexual offender;
- (d) a serious violent offence in the case of a serious violent offender;

serious offender means—

- (a) serious arson offender; or
- (b) serious drug offender; or
- (c) serious sexual offender; or
- (d) serious violent offender.

6C Factors relevant to consideration of whether offender is a serious offender

S. 6C inserted by No. 48/1997 s. 6.

- (1) In considering whether an offender being sentenced is a serious offender, a court must have regard to a conviction or convictions for a relevant offence irrespective of whether recorded—
- (a) in the current trial or hearing; or
 - (b) in another trial or hearing; or
 - (c) in different trials or hearings held at different times; or

S. 6C(1)(d)
amended by
No. 68/2009
s. 97(Sch.
item 110.6).

(d) in separate trials of different charges in the one indictment.

- (2) In sentencing an offender a court may only treat a conviction for an offence as a conviction for a relevant offence if it is satisfied beyond reasonable doubt that it is.
- (3) Despite subsection (2), in sentencing an offender a court must have regard to a conviction for an offence against a law of the Commonwealth or of a place outside Victoria (whether or not in Australia) and must treat it as a conviction for a relevant offence if it is satisfied beyond reasonable doubt that—
- (a) the offence is substantially similar to an arson offence, drug offence, serious violent offence, sexual offence or violent offence (as the case requires); and
 - (b) the offender was for that offence sentenced to a term of imprisonment or detention.
- (4) Division 2 of Part 5.8 of Chapter 5 of the **Criminal Procedure Act 2009** applies for the purposes of subsection (3) in relation to the proof of a previous conviction within the meaning of that section.

S. 6C(4)
amended by
No. 68/2009
s. 97(Sch.
item 110.7).

S. 6D
inserted by
No. 48/1997
s. 6.

6D Factors relevant to length of prison sentence

If under section 5 the Supreme Court or the County Court in sentencing a serious offender for a relevant offence considers that a sentence of imprisonment is justified, the Court, in determining the length of that sentence—

- (a) must regard the protection of the community from the offender as the principal purpose for which the sentence is imposed; and

- (b) may, in order to achieve that purpose, impose a sentence longer than that which is proportionate to the gravity of the offence considered in the light of its objective circumstances.

6E Sentences to be served cumulatively

Every term of imprisonment imposed by a court on a serious offender for a relevant offence must, unless otherwise directed by the court, be served cumulatively on any uncompleted sentence or sentences of imprisonment imposed on that offender, whether before or at the same time as that term.

S. 6E
inserted by
No. 48/1997
s. 6.

6F Serious offender status to be noted on record

- (1) A court that sentences a serious offender for a relevant offence must, at the time of doing so, cause to be entered in the records of the court in respect of that offence the fact that the offender was sentenced for it as a serious offender.
- (2) Despite anything to the contrary in the **Evidence Act 2008** or the **Criminal Procedure Act 2009**, a statement of the fact that an offender was sentenced for a relevant offence as a serious offender may be included in a certificate issued under section 178 of the **Evidence Act 2008** or in a criminal record filed under Division 2 of Part 5.8 of Chapter 5 of the **Criminal Procedure Act 2009**.

S. 6F
inserted by
No. 48/1997
s. 6.

S. 6F(2)
amended by
Nos 68/2009
s. 97(Sch.
item 110.8),
69/2009
s. 54(Sch. Pt 1
item 51.1).

Pt 2B
(Heading and
ss 6G–6J)
inserted by
No. 108/1997
s. 148.

Part 2B—Continuing criminal enterprise offenders

S. 6G
inserted by
No. 108/1997
s. 148.

6G Application of Part

This Part applies to a court in sentencing a continuing criminal enterprise offender for a continuing criminal enterprise offence.

S. 6H
inserted by
No. 108/1997
s. 148.

6H Definitions for purposes of this Part

(1) In this Part—

continuing criminal enterprise offence means an offence referred to in Schedule 1A;

continuing criminal enterprise offender means an offender who is found guilty of—

- (a) a continuing criminal enterprise offence and who in another trial or hearing or more than one other trial or hearing had been found guilty of 2 or more relevant offences;
- (b) 2 continuing criminal enterprise offences and who in another trial or hearing had been found guilty of a relevant offence;
- (c) 3 or more continuing criminal enterprise offences;

relevant offence, in relation to a continuing criminal enterprise offence, means a continuing criminal enterprise offence of which an offender has been found guilty within the period of 10 years before the date on which the later offence was committed.

- (2) For the purposes of the definition of **relevant offence** in subsection (1), if an offence of which an offender has been found guilty was committed between two dates, the offence was committed on the earlier date.

6I Increased maximum penalty for CCE offences

S. 6I
inserted by
No. 108/1997
s. 148.

- (1) A continuing criminal enterprise offender is liable, for a continuing criminal enterprise offence, to a maximum term of imprisonment of 2 times the length of the maximum term prescribed for the offence or 25 years, whichever is the lesser.
- (2) This section has effect despite anything to the contrary in this or any other Act.

6J CCE offender status to be noted on record

S. 6J
inserted by
No. 108/1997
s. 148.

- (1) A court that sentences a continuing criminal enterprise offender for a continuing criminal enterprise offence must, at the time of doing so, cause to be entered in the records of the court in respect of that offence the fact that the offender was sentenced for a continuing criminal enterprise offence.
- (2) Despite anything to the contrary in the **Evidence Act 2008** or the **Criminal Procedure Act 2009**, a statement of the fact that an offender was sentenced for a continuing criminal enterprise offence as a continuing criminal enterprise offender may be included in a certificate issued under section 178 of the **Evidence Act 2008** or in a criminal record filed under Division 2 of Part 5.8 of Chapter 5 of the **Criminal Procedure Act 2009**.

S. 6J(2)
amended by
Nos 68/2009
s. 97(Sch.
item 110.9),
69/2009
s. 54(Sch. Pt 1
item 51.2).

Part 3—Sentences

Division 1—General

7 Sentences

S. 7 (Heading)
inserted by
No. 68/2009
s. 97(Sch.
item 110.10).

S. 7
amended by
No. 19/1999
s. 4 (ILA
s. 39B(1)).

S. 7(1)
amended by
No. 45/2012
s. 6.

(1) If a court finds a person guilty of an offence, it
may, subject to any specific provision relating to
the offence and subject to this Act—

(a) record a conviction and order that the
offender serve a term of imprisonment; or

S. 7(1)(ab)
inserted by
No. 48/1997
s. 8(2)(a),
repealed by
No. 65/2011
s. 5(1).

* * * *

S. 7(1)(aab)
inserted by
No. 69/1997
s. 5,
amended by
Nos 69/2005
s. 3(1)(b),
26/2014 s. 430.

(aab) subject to Part 5, record a conviction and
order that the offender be detained and
treated in a designated mental health service
as a security patient (Court Secure Treatment
Order); or

S. 7(1)(ac)
inserted by
No. 2/2002
s. 4(6),
amended by
No. 43/2020
s. 8.

(ac) record a conviction and make a drug and
alcohol treatment order in respect of the
offender; or

Sentencing Act 1991
No. 49 of 1991
Part 3—Sentences

*	*	*	*	*	S. 7(1)(b) repealed by No. 65/2011 s. 5(2).	
*	*	*	*	*	S. 7(1)(ba) inserted by No. 30/2010 s. 4, repealed by No. 48/2011 s. 13.	
*	*	*	*	*	S. 7(1)(c) amended by No. 32/2013 s. 3, repealed by No. 32/2013 s. 9.	
					(d) in the case of a young offender, record a conviction and order that the young offender be detained in a youth justice centre; or	S. 7(1)(d) amended by Nos 48/1997 s. 8(2)(b)(i)(ii), 48/2006 s. 42(Sch. item 32.3).
					(da) in the case of a young offender, record a conviction and order that the young offender be detained in a youth residential centre; or	S. 7(1)(da) inserted by No. 48/1997 s. 8(2)(c).
					(e) with or without recording a conviction, make a community correction order in respect of the offender; or	S. 7(1)(e) amended by No. 65/2011 s. 5(3).
					(f) with or without recording a conviction, order the offender to pay a fine; or	
					(g) record a conviction and order the release of the offender on the adjournment of the hearing on conditions; or	
					(h) record a conviction and order the discharge of the offender; or	

S. 7(2)
inserted by
No. 19/1999
s. 4,
amended by
No. 72/2004
s. 38,
substituted by
No. 65/2011
s. 5(4).

- (i) without recording a conviction, order the release of the offender on the adjournment of the hearing on conditions; or
 - (j) without recording a conviction, order the dismissal of the charge for the offence; or
 - (k) impose any other sentence or make any order that is authorised by this or any other Act.
- (2) If the Magistrates' Court or County Court finds a person guilty of an offence, it may defer sentencing the person in accordance with section 83A.

8 Conviction or non-conviction

- (1) In exercising its discretion whether or not to record a conviction, a court must have regard to all the circumstances of the case including—
- (a) the nature of the offence; and
 - (b) the character and past history of the offender; and
 - (c) the impact of the recording of a conviction on the offender's economic or social well-being or on his or her employment prospects.
- (2) Except as otherwise provided by this or any other Act, a finding of guilt without the recording of a conviction must not be taken to be a conviction for any purpose.

- (3) A finding of guilt without the recording of a conviction—
- (a) does not prevent a court from making any other order that it is authorised to make in consequence of the finding by this or any other Act;
 - (b) has the same effect as if one had been recorded for the purpose of—
 - (i) appeals against sentence; or
 - (ii) proceedings for variation or contravention of sentence; or
 - (iii) proceedings against the offender for a subsequent offence; or
 - (iv) subsequent proceedings against the offender for the same offence.

S. 8(3)(b)(ii)
amended by
No. 65/2011
s. 6.

Division 1A—Pre-sentence reports

Pt 3 Div. 1A
(Heading and
ss 8A–8D)
inserted by
No. 65/2011
s. 7.

8A Court may order pre-sentence report

S. 8A
inserted by
No. 65/2011
s. 7.

- (1) If a court finds a person guilty of an offence, before passing sentence the court may order a pre-sentence report in respect of the offender and adjourn the proceeding to enable the report to be prepared.
- (2) A court must order a pre-sentence report if it is considering making a community correction order, a youth justice centre order or a youth residential centre order so that it may—
 - (a) establish the person's suitability for the order being considered; and

- (b) establish that any necessary facilities exist; and
 - (c) if the order being considered is a community correction order, gain advice concerning the most appropriate condition or conditions to be attached to the order.
- (3) A court is not required to order a pre-sentence report under subsection (2) if it is considering making a community correction order with an unpaid community work condition of up to a maximum of 300 hours as the sole condition attached to the order.
- (4) If a court orders a pre-sentence report, it must be prepared by—
 - (a) the Secretary to the Department of Human Services if the court is considering making a youth justice centre order or a youth residential centre order; or
 - (b) the Secretary in any other case.
- (5) The author of a pre-sentence report must conduct any investigation that he or she thinks appropriate or that is directed by the court.

S. 8B
inserted by
No. 65/2011
s. 7.

8B Contents of pre-sentence report

- (1) A pre-sentence report may set out all or any of the following matters which, on investigation, appear to the author of the report to be relevant to the sentencing of the offender and are readily ascertainable by him or her—
 - (a) the age of the offender;
 - (b) the social history and background of the offender;
 - (c) the medical and psychiatric history of the offender;

- (d) any alcohol, drug and any other substance history disclosed by the offender;
- (e) the educational background of the offender;
- (f) the employment history of the offender;
- (g) the circumstances of any other offences of which the offender has been found guilty and which are known to the court;
- (h) the extent to which the offender is complying with any sentence currently in force in respect of him or her;
- (i) the financial circumstances of the offender;
- (j) the ability of the offender to pay a bond;
- (k) any special needs of the offender;
- (l) any other services that address the risk of recidivism from which the offender may benefit;
- (m) any courses, programs, treatment, therapy or other assistance that could be available to the offender and from which he or she may benefit;
- (n) the relevance and appropriateness of any proposed condition;
- (o) the capacity of the offender to perform unpaid community work for any proposed unpaid community work condition;
- (p) the recommended duration of any intensive compliance period fixed under a community correction order;
- (pa) if a monitored condition is proposed in relation to a community correction order—
 - (i) the suitability of the offender to be electronically monitored;

S. 8B(1)(pa)
inserted by
No. 32/2013
s. 24.

- (ii) the availability of appropriate resources or facilities, including but not limited to devices or equipment, for the offender to be electronically monitored;
 - (iii) the appropriateness of the offender being electronically monitored in all the circumstances;
 - (q) the appropriateness of confirming an existing order that applies to the offender;
 - (r) any other information that the author believes is relevant and appropriate.
- (2) The author of a pre-sentence report must include in the report any other matter relevant to the sentencing of the offender which the court has directed to be set out in the report.

S. 8C
inserted by
No. 65/2011
s. 7.

8C Distribution of pre-sentence report

- (1) A pre-sentence report must be filed with the court no later than the time directed by the court.
- (2) The author of a pre-sentence report must, a reasonable time before sentencing is to take place, provide a copy of the report to—
- (a) the prosecutor; and
 - (b) any legal practitioner representing the offender; and
 - (c) if the court has so directed, the offender; and
 - (d) any other person that the court considers appropriate.

S. 8D
inserted by
No. 65/2011
s. 7.

8D Disputed pre-sentence report

- (1) The prosecution or the defence may file with the court a notice of intention to dispute the whole or any part of a pre-sentence report.

- (2) If a notice is filed under subsection (1) before sentencing is to take place, the court must not take the report or the part in dispute (as the case requires) into consideration when determining sentence unless the party that filed the notice has been given the opportunity—
- (a) to lead evidence on the disputed matters; and
 - (b) to cross-examine the author of the report on its contents.

Division 1B—Drug and alcohol reports

Pt 3 Div. 1B
(Heading and
ss 8E–8I)
inserted by
No. 65/2011
s. 7.

8E Drug and alcohol assessment report

S. 8E
inserted by
No. 65/2011
s. 7.

- (1) If a court is considering making a community correction order the court may order a drug and alcohol assessment report if the court is satisfied that the offender had a drug or alcohol dependency that contributed to the offender's criminal behaviour.
- (2) If a court orders a drug and alcohol assessment report under subsection (1), it must be prepared by an approved drug and alcohol assessment agency.
- (3) The purpose of a drug and alcohol assessment report is—
 - (a) to assess whether the offender has a drug or alcohol dependency; and
 - (b) to make recommendations as to his or her suitability to undergo treatment and rehabilitation under a community correction order.
- (4) A drug and alcohol assessment report may set out any matters which, on investigation, appear to the author of the report to be relevant to the

assessment of the offender and are readily ascertainable by him or her.

- (5) The author of a drug and alcohol assessment report must conduct any investigation that he or she thinks appropriate or that is directed by the court.

S. 8F
inserted by
No. 65/2011
s. 7.

8F Distribution of drug and alcohol assessment report

- (1) A drug and alcohol assessment report must be filed with the court no later than the time directed by the court.
- (2) The author of a drug and alcohol assessment report must, a reasonable time before sentencing is to take place, provide a copy of the report to—
- (a) the prosecutor; and
 - (b) any legal practitioner representing the offender; and
 - (c) if the court has so directed, the offender; and
 - (d) any other person that the court considers appropriate.

S. 8G
inserted by
No. 65/2011
s. 7.

8G Disputed drug and alcohol assessment report

- (1) The prosecution or the defence may file with the court a notice of intention to dispute the whole or any part of a drug and alcohol assessment report.
- (2) If a notice is filed under subsection (1) before sentencing is to take place, the court must not take the report or the part in dispute (as the case requires) into consideration when determining sentence unless the party that filed the notice has been given the opportunity—
- (a) to lead evidence on the disputed matters; and
 - (b) to cross-examine the author of the report on its contents.

8H Drug and alcohol pre-release report

S. 8H
inserted by
No. 65/2011
s. 7.

- (1) A court must order a drug and alcohol pre-release report if—
 - (a) the sentencing court received a drug and alcohol assessment report under section 8E; and
 - (b) the court is satisfied that the offender has a drug or alcohol dependency; and
 - (c) the offender was sentenced to a term of imprisonment of not more than 3 months in addition to a community correction order to commence on the release of the offender from imprisonment.
- (2) A drug and alcohol pre-release report in respect of an offender must be prepared by an approved drug and alcohol assessment agency.
- (3) A drug and alcohol pre-release report must specify any treatment for drug or alcohol dependency that the offender is to undergo during the period of the community correction order on release from custody.
- (4) The author of a drug and alcohol pre-release report must conduct any investigation that he or she thinks appropriate or that is directed by the court.
- (5) The author of a drug and alcohol pre-release report must, a reasonable time before the offender's release from custody is to take place, provide a copy of the report to—
 - (a) the Secretary; and
 - (b) the offender; and
 - (c) any other person that the court considers appropriate.

S. 8I
inserted by
No. 65/2011
s. 7.

8I Approved drug and alcohol assessment agencies

- (1) A person or body may apply to the Secretary to the Department of Health for approval as a drug and alcohol assessment agency for the purposes of this Division.
- (2) The Secretary to the Department of Health may approve an applicant under subsection (1) as a drug and alcohol assessment agency subject to any conditions, limitations or restrictions specified in the approval.
- (3) The Secretary to the Department of Health must specify the period during which an approval under subsection (2) continues in force.

Pt 3 Div. 1C
(Heading and
ss 8J–8S)
inserted by
No. 65/2011
s. 7.

Division 1C—Victim impact statements

S. 8J
inserted by
No. 65/2011
s. 7.

8J Definitions

In this Division—

S. 8J def. of
dentist
amended by
No. 43/2012
s. 3(Sch.
item 46.1).

dentist means—

- (a) a person registered or qualified to be registered under the Health Practitioner Regulation National Law—
 - (i) to practise in the dentistry profession (other than as a student); and
 - (ii) in the dentists division of that profession; or
- (b) a person entitled to practise dentistry in a place out of Australia under an enactment of that place corresponding to the Health Practitioner Regulation

National Law, whether or not the person does so practise;

medical expert means medical practitioner, dentist or psychologist;

medical matters includes dental matters and psychological matters;

medical practitioner means—

- (a) a person registered or qualified to be registered under the Health Practitioner Regulation National Law to practise in the medical profession (other than as a student); or
- (b) a person entitled to practise medicine in a place out of Australia under an enactment of that place corresponding to the Health Practitioner Regulation National Law, whether or not the person does so practise;

medical report means a written statement made under section 8M(1);

psychologist means—

- (a) a person registered or qualified to be registered under the Health Practitioner Regulation National Law to practise in the psychology profession (other than as a student); or
- (b) a person who is qualified or registered to practise psychology in a place out of Australia under an enactment of that place corresponding to the Health Practitioner Regulation National Law, whether or not the person does so practise.

victim impact statement means a statement made by a victim under section 8K(1);

S. 8K
inserted by
No. 65/2011
s. 7.

8K Victim may make victim impact statement

- (1) If a court finds a person guilty of an offence, a victim of the offence may make a statement to the court for the purpose of assisting the court in determining sentence.
- (2) A victim impact statement may be made—
 - (a) in writing by statutory declaration; or
 - (b) in writing by statutory declaration and orally by sworn or affirmed evidence.
- (3) A victim impact statement may be made by another person on behalf of a victim—
 - (a) who is under the age of 18 years; or
 - (b) who the court is satisfied is incapable of making the statement because of mental illness or for any other reason; or
 - (c) that is not an individual.

S. 8K(2)(b)
amended by
No. 6/2018
s. 68(Sch. 2
item 115.1).

S. 8L
inserted by
No. 65/2011
s. 7.

8L Contents of victim impact statement

- (1) A victim impact statement contains particulars of the impact of the offence on the victim and of any injury, loss or damage suffered by the victim as a direct result of the offence.
- (2) A victim impact statement may include photographs, drawings or poems and other material that relates to the impact of the offence on the victim or to any injury, loss or damage suffered by the victim as a direct result of the offence.
- (3) The court may rule as inadmissible the whole or any part of a victim impact statement, including the whole or any part of a medical report attached to it.

- (4) It is the intention of Parliament that in interpreting and applying this section, courts have regard to the following—
- (a) the victim impact statement allows the victim to tell the court about the impact of the offence on the victim;
 - (b) the victim impact statement is not inadmissible merely because it contains subjective or emotive material.
- (5) The court may receive the whole of a victim impact statement despite—
- (a) an objection being taken to the statement or part of the statement; or
 - (b) the statement containing inadmissible material.
- (6) If the court receives a victim impact statement that contains inadmissible material, the court, in sentencing the offender—
- (a) is not to rely on the material that the court considers to be inadmissible; and
 - (b) need not specify which of the material is not being relied on.

S. 8L(4)
inserted by
No. 42/2018
s. 26.

S. 8L(5)
inserted by
No. 42/2018
s. 26.

S. 8L(6)
inserted by
No. 42/2018
s. 26.

Note

Section 8Q provides that only the admissible parts of a victim impact statement may be read aloud in open court.

8M Medical report

- (1) A written statement on medical matters concerning the victim may be attached to the victim impact statement.
- (2) The written statement under subsection (1)—
- (a) must be made and signed by a medical expert; and

S. 8M
inserted by
No. 65/2011
s. 7.

- (b) may include any document which the medical expert intends should be read with the statement whether the document was in existence at the time the statement was made or was a document which the medical expert obtained or caused to be brought into existence subsequently.

S. 8N
inserted by
No. 65/2011
s. 7,
substituted by
No. 42/2018
s. 27.

8N Distribution of written statement

- (1) If the victim prepares a victim impact statement, the victim must, a reasonable time before sentencing is to take place, provide a copy to the prosecutor, and the copy must include a copy of any medical report attached to the victim impact statement.
- (2) If the victim provides a copy of a victim impact statement and any attached medical report to the prosecutor under subsection (1), the prosecutor, as soon as practicable after receiving it, must—
 - (a) file a copy of the victim impact statement and any attached medical report with the court; and
 - (b) provide a copy of the victim impact statement and any attached medical report to the offender or the legal practitioner representing the offender.

S. 8O
inserted by
No. 65/2011
s. 7.

8O Examination of victim

- (1) The court may, at the request of the offender or the prosecutor, call a victim who has made a victim impact statement, or a person who has made a victim impact statement on behalf of a victim, or a medical expert who made a medical report attached to a victim impact statement, to give evidence.

- (2) A victim or other person who gives evidence under subsection (1) may be cross-examined and re-examined.

8P Witnesses

S. 8P
inserted by
No. 65/2011
s. 7.

- (1) A victim, or a person who has made a victim impact statement on behalf of a victim, may call a witness to give evidence in support of any matter contained in the victim impact statement or in a medical report attached to it.
- (2) A witness who gives evidence under subsection (1) may be cross-examined and re-examined.
- (3) Any party to the proceeding may lead evidence on any matter contained in a victim impact statement or in a medical report attached to it.

8Q Reading aloud of victim impact statement

S. 8Q
inserted by
No. 65/2011
s. 7.

- (1) A person who has made a victim impact statement may request that any part of that victim impact statement—
- (a) is read aloud or displayed in the course of the sentencing hearing by—
- (i) the person making the request; or
- (ii) a person chosen by the person making the request who consents and who is approved by the court for that purpose; or
- (b) is read aloud in the course of the sentencing hearing by the prosecutor.
- (2) If a request is made under subsection (1) and the person specified in the request is available to do so during the course of the sentencing hearing, the court must ensure that any admissible parts of the victim impact statement that are—
- (a) identified in the request; and

- (b) appropriate and relevant to sentencing—
are read aloud or displayed by the person or
persons specified in the request in open court in
the course of the sentencing hearing.
- (3) For the purposes of subsection (2), the court may
direct the person who made the request or the
person chosen by that person as to which
admissible parts of the victim impact statement
are appropriate and relevant to sentencing.
- (4) Nothing in this section prevents the presiding
judge or magistrate from reading aloud any
admissible part of a victim impact statement in the
course of sentencing the offender or at any other
time in the course of the sentencing hearing.

S. 8R
inserted by
No. 65/2011
s. 7.

**8R Alternative arrangements for reading aloud of
victim impact statement**

- (1) On the application of the person who is to read
aloud the victim impact statement at a sentencing
hearing, on the application of the prosecutor or on
its own motion, the court may direct that
alternative arrangements be made for the reading
aloud of a victim impact statement under
section 8Q, including arrangements—
- (a) permitting the victim impact statement to be
read aloud from a place other than the court
room by means of a closed-circuit television
or other facilities that enable communication
between that place and the court room;
- (b) using screens to remove the person reading
the victim impact statement from the direct
line of vision of the offender;
- (c) permitting a person, chosen by the person
reading the victim impact statement and
approved by the court for this purpose, to be
beside the person reading the victim impact
statement while it is read aloud, for the

- purpose of providing emotional support to the person reading the victim impact statement;
- (d) permitting only persons specified by the court to be present while the victim impact statement is read aloud;
 - (e) requiring legal practitioners not to robe.
- (2) The court may, on the application of the person who is to read aloud the victim impact statement, on the application of the prosecutor or on its own motion, revoke or vary a direction made under subsection (1).
- (3) For the purposes of this section, the ***reading aloud*** of a victim impact statement includes the display of material included in the victim impact statement.

8S Alternative arrangements for examination

S. 8S
inserted by
No. 65/2011
s. 7.

- (1) On the application of a victim or other person who gives evidence under section 8O or 8P, on the application of the prosecutor or on its own motion, the court may direct that alternative arrangements be made for the examination and cross-examination of that person.
- (2) A direction made under subsection (1) may include—
 - (a) permitting the person to be examined and cross-examined from a place other than the court room by means of a closed-circuit television or other facilities that enable communication between that place and the court room;
 - (b) using screens to remove the person from the direct line of vision of the offender;

- (c) permitting a person, chosen by the person being examined and cross-examined and approved by the court for this purpose, to be beside the person being examined and cross-examined during the examination and cross-examination, for the purpose of providing emotional support for the person being examined and cross-examined;
 - (d) permitting only persons specified by the court to be present while the person is being examined and cross-examined;
 - (e) requiring legal practitioners not to robe;
 - (f) requiring legal practitioners to be seated while examining or cross-examining the person.
- (3) The court may, on the application of a person who gives evidence under section 8O or 8P, on the application of the prosecutor or on its own motion, revoke or vary a direction made under subsection (1).

Division 2—Custodial orders

Subdivision (1)—Imprisonment

9 Aggregate sentence of imprisonment³

S. 9
substituted by
No. 48/1997
s. 9.

S. 9(1)
amended by
No. 50/2006
s. 38(1).

- (1) If an offender is convicted by a court of two or more offences which are founded on the same facts, or form, or are part of, a series of offences of the same or a similar character, the court may impose an aggregate sentence of imprisonment in respect of those offences in place of a separate sentence of imprisonment in respect of all or any two or more of them.

- (1A) Despite subsection (1), a court must not impose an aggregate sentence of imprisonment if—
- (a) the offender is a serious offender within the meaning of Part 2A and any of the offences of which the offender is convicted is a relevant offence within the meaning of that Part; or
 - (ab) the offences comprise at least one offence that is a standard sentence offence; or
 - (b) the offences comprise at least one offence committed by the offender while released under a parole order and one offence committed at another time.
- (2) The term of an aggregate sentence of imprisonment imposed in accordance with subsection (1) must not exceed the total effective period of imprisonment that could have been imposed in respect of the offences in accordance with this Act if the court had imposed a separate sentence of imprisonment in respect of each of them.
- (3) If a court proposes to impose an aggregate sentence of imprisonment, it must before doing so announce in open court, in language likely to be readily understood by the offender—
- (a) the decision to impose an aggregate sentence and the reasons for doing so; and
 - (b) the effect of the proposed aggregate sentence.

S. 9(1A)
inserted by
No. 50/2006
s. 38(2).

S. 9(1A)(ab)
inserted by
No. 52/2014
s. 7,
repealed by
No. 34/2017
s. 8, new
s. 9(1A)(ab)
inserted by
No. 34/2017
s. 21.

S. 9(2)
amended by
No. 50/2006
s. 38(3).

S. 9(3)
amended by
No. 50/2006
s. 38(4).

S. 9(4)
inserted by
No. 30/2010
s. 5,
amended by
No. 48/2012
s. 44(1).

- (4) If a court imposes an aggregate sentence of imprisonment in respect of 2 or more offences, the court—
- (a) is not required to identify separate events giving rise to specific charges; and
 - (b) is not required to announce—
 - (i) the sentences that would have been imposed for each offence had separate sentences been imposed; or
 - (ii) whether those sentences would have been imposed concurrently or cumulatively.

S. 9(4A)
inserted by
No. 48/2012
s. 44(2).

- (4A) For the avoidance of doubt, an aggregate sentence of imprisonment may be imposed in respect of convictions for offences that are the subject of a rolled-up charge or a representative charge.

Note

A representative charge is a charge in an indictment for an offence that is representative of a number of offences of the same type alleged to have been committed by the accused. A rolled-up charge is a charge in an indictment that alleges that the accused has committed more than one offence of the same type between specified dates.

S. 9(5)
inserted by
No. 30/2010
s. 5.

- (5) Subsection (4) does not affect the requirements of section 6AAA.

S. 9A
inserted by
No. 72/2014
s. 6.

9A Notice of intention to seek statutory minimum sentence for manslaughter

- (1) This section applies to—
- (a) a committal proceeding for an offence of murder or manslaughter; and

- (b) a trial for an offence of murder or manslaughter.

Note

Subsection (1) refers to both murder and manslaughter as under section 421 of the **Crimes Act 1958** on a trial for an offence of murder an accused may be found guilty of manslaughter.

- (2) The DPP may give notice that, if the accused is found guilty of the offence of manslaughter, the prosecution intends to seek the imposition of a sentence in accordance with section 9B or 9C.
- (3) The DPP must specify in the notice whether the notice relates to either section 9B or 9C.
- (4) The DPP must give notice by—
 - (a) serving the notice on the accused by ordinary service; and
 - (b) filing a copy of the notice.
- (5) The DPP must give the notice—
 - (a) for a notice given in relation to a committal proceeding, before the Magistrates' Court commits the accused for trial in accordance with section 144 of the **Criminal Procedure Act 2009**; or
 - (b) for a notice given in relation to a trial—
 - (i) on or before the day on which the DPP serves on the accused and files a summary of the prosecution opening in accordance with section 182 of the **Criminal Procedure Act 2009**; or
 - (ii) if the accused is to be arraigned for the offence without such a summary having been served and filed, at least 7 days before the arraignment.

- (6) The court in which the accused is to be tried, by order, may abridge the period before arraignment referred to in subsection (5)(b)(ii) if it considers that it is in the interests of justice to do so.
- (7) Unless the court referred to in subsection (6) otherwise orders, no material in support of an order under that subsection need be filed.
- (8) The DPP may revoke a notice at any time by—
 - (a) serving a notice of revocation on the accused by ordinary service; and
 - (b) filing a copy of the notice.
- (9) In this section—
 - filing** means—
 - (a) in relation to a committal proceeding, filing with the registrar of the venue of the Magistrates' Court at which the committal proceeding is, or is to be, held; or
 - (b) in relation to a trial, filing in the court in which the accused is to be tried;

ordinary service has the same meaning as in the **Criminal Procedure Act 2009**.

S. 9B
inserted by
No. 72/2014
s. 6.

9B Custodial sentence must be imposed for manslaughter in circumstances of gross violence

- (1) This section applies to the sentencing of an offender (whether on appeal or otherwise) for an offence of manslaughter if—
 - (a) the prosecution served and filed a notice under section 9A in relation to the offence; and
 - (b) the notice specifies, in accordance with section 9A(3), that it relates to this section; and

(c) the notice has not been revoked under section 9A(8).

- (2) In sentencing the offender, the court must impose a term of imprisonment and fix under section 11 a non-parole period of not less than 10 years unless the court finds under section 10A that a special reason exists.

Note

Section 11(3) requires that a non-parole period must be at least 6 months less than the term of the sentence.

- (3) Subsection (2) applies to the court in sentencing the offender only if—

(a) the court is satisfied beyond reasonable doubt that—

(i) the offender in company with 2 or more other persons caused the victim's death;
or

(ii) the offender entered into an agreement, arrangement or understanding with 2 or more persons to engage in the conduct that resulted in the victim's death; and

S. 9B(3)(a)(ii)
substituted by
No. 72/2014
s. 10.

Note

See Subdivision (1) (Complicity in commission of offences) of Division 1 of Part II of the **Crimes Act 1958**.

(b) the court is also satisfied beyond reasonable doubt that—

(i) the offender planned in advance to have with him or her and to use an offensive weapon or firearm, and in fact used the offensive weapon or firearm to cause the victim's death; or

- (ii) the offender planned in advance to engage in the conduct that resulted in the victim's death and at the time of the planning a reasonable person would have foreseen that the conduct would be likely to result in death; or
 - (iii) the offender caused two or more serious injuries to the victim during a sustained or prolonged attack on the victim.
- (4) Subsection (2) does not apply to a person who is under the age of 18 years at the time of the commission of the offence.
- (5) In this section—

firearm, offensive weapon and ***serious injury***
have the meanings given by section 15 of the
Crimes Act 1958.

S. 9C
inserted by
No. 72/2014
s. 6.

9C Custodial sentence must be imposed for manslaughter by single punch or strike

- (1) This section applies to the sentencing of an offender (whether on appeal or otherwise) for an offence of manslaughter if—
- (a) the prosecution served and filed a notice under section 9A in relation to the offence; and
 - (b) the notice specifies, in accordance with section 9A(3), that it relates to this section; and
 - (c) the notice has not been revoked under section 9A(8).

- (2) In sentencing the offender, the court must impose a term of imprisonment and fix under section 11 a non-parole period of not less than 10 years unless the court finds under section 10A that a special reason exists.

Note

Section 11(3) requires that a non-parole period must be at least 6 months less than the term of the sentence.

- (3) Subsection (2) applies to the court in sentencing the offender only if the court is satisfied beyond reasonable doubt that—
- (a) the victim's death was caused by a punch or strike that, under section 4A(2) of the **Crimes Act 1958**, is taken to be a dangerous act for the purposes of the law relating to manslaughter by an unlawful and dangerous act; and
 - (b) the offender intended that the punch or strike be delivered to the victim's head or neck; and
 - (c) the victim was not expecting to be punched or struck by the offender; and
 - (d) the offender knew that the victim was not expecting, or was probably not expecting, to be punched or struck by the offender.
- (4) The court may be satisfied of the matters specified in subsection (3)(c) and (d) even if the victim was involved in a confrontation with the offender or any other person before the punch or strike was delivered.

- (5) The fact that the offender warned the victim of the punch or strike immediately before delivering it does not mean that the victim was expecting to be punched or struck by the offender.

Example

The offender might only warn the victim of the punch or strike so close to the time of the delivery of the punch or strike that the victim is not expecting to be punched or struck by the offender.

- (6) Subsection (2) does not apply to—

- (a) a person who is involved in the commission of the offence within the meaning of section 323(1)(a) or (b) of the **Crimes Act 1958**; or

S. 9C(6)(a)
substituted by
No. 72/2014
s. 11(1).

Note to
s. 9C(6)(a)
repealed by
No. 72/2014
s. 11(2).

* * * * *

- (b) a person who is under the age of 18 years at the time of the commission of the offence.

- (7) In this section—

strike has the meaning given by section 4A of the **Crimes Act 1958**.

10 Custodial sentence must be imposed for causing serious injury in circumstances of gross violence

- (1) In sentencing an offender for an offence against section 15A or 15B of the **Crimes Act 1958** (whether on appeal or otherwise), a court must impose a term of imprisonment and fix under section 11 a non-parole period of not less than 4 years unless the court finds under section 10A that a special reason exists.

Note

Section 11(3) requires that a non-parole period must be at least 6 months less than the term of the sentence.

S. 10
(Heading)
substituted by
No. 72/2014
s. 7.

S. 10
amended by
No. 41/1993
s. 6,
expired by
force of
No. 49/1991
s. 10(5)⁴,
new s. 10
inserted by
No. 6/2013
s. 9.

(2) Subsection (1) does not apply to—

(aa) an offender to the sentencing of whom section 10AA(1) applies; or

S. 10(2)(aa)
inserted by
No. 69/2014
s. 3.

(a) a person who is involved in the commission of the offence within the meaning of section 323(1)(a) or (b) of the **Crimes Act 1958**; or

S. 10(2)(a)
substituted by
No. 63/2014
s. 7(18).

* * * * *

Note to
s. 10(2)(a)
repealed by
No. 63/2014
s. 7(19).

(b) a person who is under the age of 18 years at the time of the commission of the offence.

10AA Custodial sentence for certain offences against emergency workers, custodial officers and youth justice custodial workers on duty

S. 10AA
(Heading)
amended by
No. 28/2016
s. 3(1),
substituted by
Nos 43/2017
s. 46(5),
48/2018
s. 78(1).

S. 10AA
inserted by
No. 69/2014
s. 4 (as
amended by
No. 79/2014
s. 67).

(1) Subject to subsection (2), in sentencing an offender (whether on appeal or otherwise) for an offence against a section of the **Crimes Act 1958** specified in column 1 of Table 1 committed against an emergency worker on duty, a custodial officer on duty or a youth justice custodial worker on duty, a court must impose a term of imprisonment and fix under section 11 a non-parole period of not less than the period specified

S. 10AA(1)
amended by
Nos 28/2016
s. 3(2),
43/2017
s. 46(1).

in column 2 of that Table in relation to that offence unless the court finds under section 10A that a special reason exists.

TABLE 1

<i>Column 1 Offence</i>	<i>Column 2 Minimum non-parole period</i>
Section 15A	5 years
Section 15B	5 years
Section 16	3 years
Section 17	2 years

Note

Section 11(3) requires that a non-parole period must be at least 6 months less than the term of the sentence.

S. 10AA(2)
amended by
Nos 28/2016
s. 3(2),
43/2017
s. 46(1),
48/2018
s. 78(2)(a)(b).

- (2) In the circumstances described in subsection (3), in sentencing a young offender for an offence against a section of the **Crimes Act 1958** specified in column 1 of Table 2 committed against an emergency worker on duty, a custodial officer on duty or a youth justice custodial worker on duty, a court is not required to impose a term of imprisonment and fix a non-parole period in accordance with subsection (1) or impose a term of imprisonment in accordance with subsection (4) but, if it decides not to do so, it must make a youth justice centre order for a term not less than the term specified in column 2 of that Table in relation to that offence.

S. 10AA(2)
(Table 2)
amended by
No. 48/2018
s. 78(2)(c).

TABLE 2

<i>Column 1 Offence</i>	<i>Column 2 Minimum youth justice centre term</i>
Section 16	3 years
Section 17	2 years
Section 18	6 months

- (3) The circumstances are that the court—
- (a) has not made a finding under section 10A that a special reason exists; and
 - (b) has received a pre-sentence report and believes—
 - (i) that there are reasonable prospects for the rehabilitation of the young offender; or
 - (ii) that the young offender is particularly impressionable, immature or likely to be subjected to undesirable influences in an adult prison.
- (4) In sentencing an offender (whether on appeal or otherwise) for an offence against section 18 of the **Crimes Act 1958** committed against an emergency worker on duty, a custodial officer on duty or a youth justice custodial worker on duty, a court must impose a term of imprisonment of not less than 6 months unless the court finds under section 10A that a special reason exists.
- (5) Subsections (1), (2) and (4) apply to a court in sentencing an offender for the offence only if it is satisfied beyond reasonable doubt that—
- (a) a victim of the offence was an emergency worker on duty, a custodial officer on duty or a youth justice custodial worker on duty (as the case may be); and
 - (b) at the time of carrying out the conduct the offender knew or was reckless as to whether the victim was an emergency worker or a custodial officer or a youth justice custodial worker (as the case may be).

S. 10AA(4)
amended by
Nos 28/2016
s. 3(2),
43/2017
s. 46(1).

S. 10AA(5)(a)
amended by
Nos 28/2016
s. 3(3)(a),
43/2017
s. 46(1).

S. 10AA(5)(b)
amended by
Nos 28/2016
s. 3(3)(b),
43/2017
s. 46(2).

(6) Subsections (1), (2) and (4) do not apply to an offender—

S. 10AA(6)(a)
substituted by
No. 79/2014
s. 63(1),
amended by
No. 23/2020
s. 4(1).

(a) who is involved in the commission of the offence within the meaning of section 323(1)(a) or (b) of the **Crimes Act 1958** and proves on the balance of probabilities that the offender's involvement was minor; or

Note to
s. 10AA(6)(a)
repealed by
No. 79/2014
s. 63(2).

* * * * *

(b) who is under the age of 18 years at the time of the commission of the offence.

(7) Subdivision (4) (except section 32(1), (2), (2A) and (2B)) applies in relation to a youth justice centre order made under subsection (2).

(8) In this section—

S. 10AA(8)
def. of
*custodial
officer*
inserted by
No. 28/2016
s. 3(4).

custodial officer means—

- (a) a Governor, prison officer or escort officer within the meaning of the **Corrections Act 1986**; or
- (b) a police custody officer within the meaning of the **Victoria Police Act 2013**; or
- (c) a person authorised under section 9A(1) of the **Corrections Act 1986** to exercise a function or power of a Governor, a prison officer or an escort officer under that Act; or
- (d) a person authorised under section 9A(1A) or (1B) of the **Corrections Act 1986** to exercise a function or power referred to in that subsection;

emergency treatment means unplanned or unexpected treatment of a patient that may be necessary, as a matter of urgency—

- (a) to save the patient's life; or
- (b) to prevent damage to the patient's health; or
- (c) to prevent the patient from suffering or continuing to suffer pain or distress;

emergency worker means—

- (a) a police officer or protective services officer within the meaning of the **Victoria Police Act 2013**; or
- (b) an operational staff member within the meaning of the **Ambulance Services Act 1986**; or
- (c) a person employed or engaged to provide, or support the provision of, emergency treatment to patients in a hospital; or
- (d) a person employed by Fire Rescue Victoria established under the **Fire Rescue Victoria Act 1958** or a member of a fire or emergency service unit established under that Act; or
- (e) an officer or employee of the Country Fire Authority under the **Country Fire Authority Act 1958**; or
- (f) an officer or member of a brigade under the **Country Fire Authority Act 1958**, whether a part-time officer or member, a permanent officer or member or a volunteer officer or member within the meaning of that Act; or

S. 10AA(8)
def. of
emergency worker
amended by
Nos 48/2018
s. 78(3),
20/2019 s. 187,
49/2019
s. 186(Sch. 4
item 37.1),
23/2020
s. 4(2).

- (g) a casual fire-fighter within the meaning of Part V of the **Country Fire Authority Act 1958**; or
- (h) a volunteer auxiliary worker appointed under section 17A of the **Country Fire Authority Act 1958**; or
- (i) a person with emergency response duties employed in the Department of Environment, Land, Water and Planning or the Department of Transport or the Department of Jobs, Precincts and Regions; or
- (j) a registered member or probationary member within the meaning of the **Victoria State Emergency Service Act 2005** or an employee in the Victoria State Emergency Service; or
- (k) a volunteer emergency worker within the meaning of the **Emergency Management Act 1986**; or
- (l) any other person or body—
 - (i) required or permitted under the terms of their employment by, or contract for services with, the Crown or a government agency to respond (within the meaning of the **Emergency Management Act 2013**) to an emergency (within the meaning of that Act); or
 - (ii) engaged by the Crown or a government agency to provide services or perform work in relation to a particular emergency; or

(m) any other person or body who—

(i) is employed or engaged in another State or a Territory or by the Commonwealth to perform functions of a similar kind to those referred to in any other paragraph of this definition; and

(ii) is on duty in Victoria;

hospital means a public hospital, private hospital, denominational hospital or day procedure centre within the meaning of the **Health Services Act 1988**;

S. 10AA(8)
def. of
hospital
amended by
No. 43/2017
s. 46(3)(a).

youth justice custodial worker means a person—

(a) who is employed or engaged by the Secretary in a remand centre, a youth residential centre or a youth justice centre; and

(b) whose duties include duties in relation to detainees in the custody of the Secretary.

S. 10AA(8)
def. of *youth justice custodial worker*
inserted by
No. 43/2017
s. 46(3)(b),
amended by
No. 45/2019
s. 50(2).

(9) For the purposes of this section an emergency worker is on duty if—

(a) in the case of a police officer or protective services officer within the meaning of the **Victoria Police Act 2013**, the officer is performing any duty or exercising any power as such an officer; or

(b) in the case of an operational staff member within the meaning of the **Ambulance Services Act 1986**, the staff member is providing, or attempting to provide, care or treatment to a patient; or

S. 10AA(9)(c)
inserted by
No. 23/2020
s. 4(3).

(c) in the case of a person employed or engaged to provide, or support the provision of, emergency treatment to patients in a hospital, the person is providing, or supporting the provision of, or attempting to provide or support the provision of, such treatment; or

(ca) in the case of a person employed or engaged in another State or a Territory or by the Commonwealth to perform functions of a similar kind to an emergency worker, the person is on duty at any time when the person is performing a function or exercising a power as an emergency worker; or

(d) in any other case, the person is performing any duty or exercising any power in response to an emergency within the meaning of the **Emergency Management Act 2013**.

S. 10AA(10)
inserted by
No. 28/2016
s. 3(5).

(10) For the purposes of this section a custodial officer is on duty if—

(a) in the case of a Governor, prison officer or escort officer within the meaning of the **Corrections Act 1986**, the Governor or officer is exercising a function or power as a Governor, prison officer or escort officer (as the case may be); or

(b) in the case of a police custody officer within the meaning of the **Victoria Police Act 2013**, the officer is exercising a function or power as a police custody officer; or

(c) in the case of a person authorised under section 9A(1) of the **Corrections Act 1986** to exercise a function or power of a Governor, a prison officer or an escort officer under that Act, the person is exercising a function or power specified in the instrument of authorisation; or

(d) in the case of a person authorised under section 9A(1A) or (1B) of the **Corrections Act 1986**, the person is exercising a function or power specified in the instrument of authorisation.

- (11) For the purposes of this section, a youth justice custodial worker is on duty at any time when he or she is performing a function or exercising a power as a youth justice custodial worker.

S. 10AA(11)
inserted by
No. 43/2017
s. 46(4).

10AB Custodial sentence for offence of contravening supervision order or interim supervision order under Serious Offenders Act 2018

S. 10AB
(Heading)
substituted by
No. 27/2018
s. 364(3).

S. 10AB
inserted by
No. 32/2016
s. 40.

- (1) Subject to subsection (2), in sentencing an offender for an offence against section 169 of the **Serious Offenders Act 2018** (whether on appeal or otherwise), a court must impose a term of imprisonment of not less than 12 months unless the court finds under section 10A that a special reason exists.

S. 10AB(1)
amended by
No. 27/2018
s. 364(4).

Notes

- 1 Section 11(1) requires the court to fix a non-parole period in the case of a sentence of 2 years imprisonment or more.
 - 2 Section 11(2) enables the court to fix a non-parole period in the case of a sentence of imprisonment of 1 year or more but less than 2 years.
 - 3 Section 11(3) requires that a non-parole period must be at least 6 months less than the term of the sentence.
- (2) Subsection (1) applies only if the court is satisfied beyond reasonable doubt that the offender intentionally or recklessly contravened a restrictive condition of the supervision order or interim supervision order.

S. 10AB(2)
amended by
No. 27/2018
s. 364(5).

S. 10AB(3)
substituted by
No. 27/2018
s. 364(6).

- (3) In this section, *interim supervision order*, *restrictive condition* and *supervision order* have the same meaning as in the **Serious Offenders Act 2018**.

S. 10AC
inserted by
No. 50/2016
s. 5.

10AC Custodial sentence must be imposed for offence of aggravated home invasion

- (1) In sentencing an offender (whether on appeal or otherwise) for an offence against section 77B of the **Crimes Act 1958**, a court must impose a term of imprisonment and fix under section 11 a non-parole period of not less than 3 years unless the court finds under section 10A that a special reason exists.

Note

Section 11(3) requires that a non-parole period must be at least 6 months less than the term of the sentence.

- (2) Subsection (1) does not apply to an offender who is under the age of 18 years at the time of the offence.

S. 10AD
inserted by
No. 50/2016
s. 5.

10AD Custodial sentence must be imposed for offence of aggravated carjacking

- (1) In sentencing an offender (whether on appeal or otherwise) for an offence against section 79A of the **Crimes Act 1958**, a court must impose a term of imprisonment and fix under section 11 a non-parole period of not less than 3 years unless the court finds under section 10A that a special reason exists.

Note

Section 11(3) requires that a non-parole period must be at least 6 months less than the term of the sentence.

- (2) Subsection (1) does not apply to an offender who is under the age of 18 years at the time of the offence.

10AE Custodial sentence must be imposed for offences against sections 317AC and 317AD in certain circumstances

S. 10AE
inserted by
No. 65/2017
s. 16,
amended by
No. 65/2017
s. 19.

- (1) Subject to subsection (2), in sentencing an offender (whether on appeal or otherwise) for an offence against section 317AC or 317AD of the **Crimes Act 1958**, a court must impose a term of imprisonment and fix under section 11 a non-parole period of not less than 2 years if, in the commission of the offence, an emergency worker on duty, a custodial officer on duty or a youth justice custodial worker on duty is injured.
- (2) Subsection (1) does not apply—
- (a) to an offender who is under the age of 18 years at the time of the offence; or
 - (b) if the court finds under section 10A that a special reason exists.

S. 10AE(1)
amended by
No. 3/2019
s. 84.

10A Special reasons relevant to imposing minimum non-parole periods

S. 10A
(Heading)
substituted by
No. 72/2014
s. 8(1).

- (1) In this section—

S. 10A
inserted by
No. 6/2013
s. 9.

impaired mental functioning means—

- (a) a mental illness within the meaning of the **Mental Health and Wellbeing Act 2022**; or
- (b) an intellectual disability within the meaning of the **Disability Act 2006**; or
- (c) an acquired brain injury; or

S. 10A(1)
def. of
impaired mental functioning
amended by
Nos 70/2013
s. 3(Sch. 1
item 49),
48/2018
ss 79(1)(a),
84(1), 39/2022
s. 862.

- (d) an autism spectrum disorder; or
- (e) a neurological impairment, including but not limited to dementia;

S. 10A(1)
def. of *self-induced intoxication*
inserted by
No. 48/2018
s. 79(1)(b).

self-induced intoxication has the same meaning as in section 322T(5) and (6) of the **Crimes Act 1958**.

S. 10A(2)
amended by
Nos 72/2014
s. 8(2),
69/2014
s. 5(2) (as
amended by
No. 72/2014
s. 13(2)),
32/2016
s. 41(1),
50/2016
s. 6(1), 3/2019
s. 85(1).

- (2) For the purposes of section 9B, 9C, 10, 10AA, 10AB, 10AC, 10AD or 10AE, a court may make a finding that a special reason exists if—

- (a) the offender has assisted or has given an undertaking to assist, after sentencing, law enforcement authorities in the investigation or prosecution of an offence; or

Notes

- 1 Section 5(2AB) also applies.
- 2 If an offender fails to fulfil an undertaking, the Director of Public Prosecutions has a right under section 291 of the **Criminal Procedure Act 2009** to appeal against the less severe sentence imposed.

S. 10A(2)(b)
repealed by
No. 48/2018
s. 79(2).

* * * * *

- (c) the offender proves on the balance of probabilities that—

S. 10A(2)(c)(i)
amended by
Nos 48/2018
s. 79(3),
23/2020
s. 5(1).

- (i) subject to subsection (2A), at the time of the commission of the offence, he or she had impaired mental functioning that is causally linked to the commission of the offence and substantially and materially reduces the offender's culpability; or

- | | |
|--|---|
| (ii) he or she has impaired mental functioning that would result in the offender being subject to substantially and materially greater than the ordinary burden or risks of imprisonment; or | S. 10A(2)(c)(ii) amended by No. 48/2018 s. 79(4). |
| (d) the court proposes to make a Court Secure Treatment Order or a residential treatment order in respect of the offender; or | S. 10A(2)(d) amended by No. 79/2014 s. 71. |
| (e) there are substantial and compelling circumstances that are exceptional and rare and that justify doing so. | S. 10A(2)(e) amended by No. 48/2018 s. 79(5). |
| (2A) Subsection (2)(c)(i) does not apply to impaired mental functioning caused substantially by self-induced intoxication. | S. 10A(2A) inserted by No. 69/2014 s. 5(3), amended by Nos 20/2015 s. 54, 28/2016 s. 4, 43/2017 s. 47, substituted by No. 48/2018 s. 79(6), amended by No. 23/2020 s. 5(2). |
| (2B) In determining whether there are substantial and compelling circumstances under subsection (2)(e), the court— | S. 10A(2B) inserted by No. 48/2018 s. 79(7). |
| (a) must regard general deterrence and denunciation of the offender's conduct as having greater importance than the other purposes set out in section 5(1); and | |
| (b) must give less weight to the personal circumstances of the offender than to other matters such as the nature and gravity of the offence; and | |

(c) must not have regard to—

- (i) the offender's previous good character (other than an absence of previous convictions or findings of guilt); or
- (ii) an early guilty plea; or
- (iii) prospects of rehabilitation; or
- (iv) parity with other sentences.

(3) In determining whether there are substantial and compelling circumstances under subsection (2)(e), the court must have regard to—

S. 10A(3)(aa)
inserted by
No. 72/2014
s. 8(3).

(aa) the Parliament's intention that a sentence of imprisonment should ordinarily be imposed and that a non-parole period of not less than 10 years should ordinarily be fixed for an offence of manslaughter in circumstances in which section 9B(2) or 9C(2) applies; and

S. 10A(3)(a)
substituted by
No. 69/2014
s. 5(4).

(a) the Parliament's intention that a sentence of imprisonment should ordinarily be imposed for an offence covered by section 10(1) or, subject to section 10AA(2), for an offence covered by section 10AA(1) and that a non-parole period of not less than the length specified in section 10(1) or 10AA(1) (as the case requires) should ordinarily be fixed in respect of that sentence; and

S. 10A(3)(ab)
inserted by
No. 69/2014
s. 5(4),
amended by
No. 23/2020
s. 5(3).

(ab) the Parliament's intention that a sentence of imprisonment of not less than 6 months should ordinarily be imposed for an offence covered by section 10AA(4); and

S. 10A(3)(ac)
inserted by
No. 32/2016
s. 41(2).

(ac) the Parliament's intention that a sentence of imprisonment of not less than 12 months should ordinarily be imposed for an offence covered by section 10AB; and

- | | |
|---|--|
| (ad) the Parliament's intention that a sentence of imprisonment should ordinarily be imposed and that a non-parole period of not less than 3 years should ordinarily be fixed for an offence covered by section 10AC; and | S. 10A(3)(ad) inserted by No. 50/2016 s. 6(2), amended by No. 3/2019 s. 85(2). |
| (ae) the Parliament's intention that a sentence of imprisonment should ordinarily be imposed and that a non-parole period of not less than 3 years should ordinarily be fixed for an offence covered by section 10AD; and | S. 10A(3)(ae) inserted by No. 50/2016 s. 6(2), amended by No. 3/2019 s. 85(3). |
| (af) the Parliament's intention that a sentence of imprisonment should ordinarily be imposed and that a non-parole period of not less than 2 years should ordinarily be fixed for an offence covered by section 10AE; and | S. 10A(3)(af) inserted by No. 3/2019 s. 85(4). |
| (b) whether the cumulative impact of the circumstances of the case would justify a departure from that sentence and, where relevant, minimum non-parole period. | S. 10A(3)(b) amended by No. 69/2014 s. 5(4). |
- (4) If a court makes a finding under subsection (2), it must—
- (a) state in writing the special reason; and
 - (b) cause that reason to be entered in the records of the court.
- (5) The failure of a court to comply with subsection (4) does not invalidate any order made by it.

11 Fixing of non-parole period by sentencing court

- (1) If a court sentences an offender to be imprisoned in respect of an offence for—
 - (a) the term of his or her natural life; or

S. 11(1)(b)
amended by
No. 48/1997
s. 28(1).

(b) a term of 2 years or more—

the court must, as part of the sentence, fix a period during which the offender is not eligible to be released on parole unless it considers that the nature of the offence or the past history of the offender make the fixing of such a period inappropriate.

S. 11(2)
amended by
No. 48/1997
s. 28(1)(2).

(2) If a court sentences an offender to be imprisoned in respect of an offence for a term of less than 2 years but not less than one year, the court may, as part of the sentence, fix a period during which the offender is not eligible to be released on parole.

S. 11(2A)
inserted by
No. 65/2016
s. 6.

- (2A) However, a court must not fix under subsection (2) a non-parole period as part of a sentence of imprisonment if the court, in accordance with section 44, makes a community correction order in respect of the offender in addition to imposing the sentence of imprisonment.
- (3) A non-parole period fixed under subsection (1) or (2) must be at least 6 months less than the term of the sentence.
- (4) If a court sentences an offender to be imprisoned in respect of more than one offence, any period fixed under subsection (1) or (2) must be in respect of the aggregate period of imprisonment that the offender will be liable to serve under all the sentences then imposed.

11A Fixing of non-parole period for standard sentence offence

S. 11A
inserted by
No. 52/2014
s. 8,
repealed by
No. 34/2017
s. 9, new
s. 11A
inserted by
No. 34/2017
s. 22.

- (1) This section applies to a court when fixing, in accordance with section 11, a non-parole period—
 - (a) for a standard sentence offence; or
 - (b) in respect of a total effective sentence imposed in respect of 2 or more sentences, at least one of which is for a standard sentence offence.
- (2) This section also applies to a court when fixing, in accordance with section 14, a new single non-parole period in circumstances where the further sentence is a sentence of imprisonment for a standard sentence offence.
- (3) However, this section only applies to a court when fixing a non-parole period for a standard sentence offence if section 5B applied in relation to the sentencing for that offence.
- (4) Unless the court considers that it is in the interests of justice not to do so, the court must fix a non-parole period of at least—
 - (a) 30 years if the relevant term is the term of the offender's natural life; or
 - (b) 70% of the relevant term if that term is a term of 20 years or more; or
 - (c) 60% of the relevant term if that term is a term of less than 20 years.
- (5) In subsection (4) **the relevant term** is—
 - (a) if a non-parole period is being fixed for a standard sentence offence, the sentence for that offence; and
 - (b) if a non-parole period is being fixed in respect of a total effective sentence referred to in subsection (1)(b), that sentence.

- (6) Nothing in this section affects the fixing of a non-parole period for an offence that is not a standard sentence offence or in respect of a total effective sentence imposed in respect of 2 or more sentences, none of which is for a standard sentence offence.

12 References to non-parole period

A reference in this or any other Act to a non-parole period includes a reference to a minimum term fixed in accordance with Part 3 of the **Penalties and Sentences Act 1985** or any corresponding previous enactment.

13 Fixing of non-parole period otherwise than by sentencing court

S. 13(1)
amended by
Nos 45/1996
s. 18(Sch. 2
item 11.2),
65/2011
s. 8(1).

- (1) The failure of the sentencing court to fix a non-parole period in accordance with section 11 does not invalidate the sentence but—

S. 13(1)(a)
amended by
No. 19/1999
s. 16(3).

- (a) the Court of Appeal in respect of a sentence imposed by the Supreme Court or the County Court; or

S. 13(1)(ab)
inserted by
No. 3/2016
s. 56(1),
amended by
No. 1/2022
s. 80.

- (ab) in the case of a sentence imposed by the Magistrates' Court constituted by the Chief Magistrate who is a dual commission holder, the Court of Appeal; or

S. 13(1)(b)
amended by
No. 3/2016
s. 56(2).

- (b) the County Court in respect of a sentence imposed by the Magistrates' Court, other than a sentence referred to in paragraph (ab)—

may, on the application of the offender or of the Secretary fix a non-parole period in accordance with that section in any manner in which the sentencing court might have done so.

- (2) The Supreme Court may fix a non-parole period in accordance with section 11 in respect of a term of imprisonment or detention being served by—
- (a) any person who at the commencement of this subsection is serving a sentence of imprisonment for the term of his or her natural life in respect of which a non-parole period had not been fixed; or
- (b) any person who at that commencement is imprisoned in accordance with a pardon granted by the Governor under the royal prerogative of mercy or section 496 of the **Crimes Act 1958**, whether or not the Governor fixed a period during which the person was not eligible to be released on parole; or
- (c) any person who at the commencement of section 7(1) of the **Sentencing (Amendment) Act 1993** is serving a period of detention during the Governor's pleasure imposed under section 473 of the **Crimes Act 1958** (as in force before its repeal).
- (3) The Supreme Court may fix a non-parole period under subsection (2) on the application of the offender or of the Secretary and it may do so as if it had just sentenced the offender to that term of imprisonment or detention and, in the case of detention, as if the detention were imprisonment for a term of not less than one year.

S. 13(2)
amended by
No. 41/1993
s. 7(1)(i).

S. 13(2)(b)
amended by
No. 41/1993
s. 7(1)(ii).

S. 13(2)(c)
inserted by
No. 41/1993
s. 7(1)(ii).

S. 13(3)
amended by
Nos 41/1993
s. 7(2),
45/1996
s. 18(Sch. 2
item 11.3),
48/1997
s. 28(2),
65/2011
s. 8(2).

S. 13(4)
amended by
No. 68/2009
s. 97(Sch.
item 110.11).

- (4) For the purposes of Part 6.3 of Chapter 6 of the **Criminal Procedure Act 2009** *sentence* includes an order made under subsection (2) and that Part applies, with any necessary modifications, to an appeal against such an order as it applies to an appeal against the sentence passed on a conviction.

14 Fixing of new non-parole period in respect of multiple sentences

- (1) If—
- (a) a court has sentenced an offender to be imprisoned in respect of an offence and has fixed a non-parole period in respect of the sentence; and
 - (b) before the end of that non-parole period the offender is sentenced by a court to a further term of imprisonment in respect of which it proposes to fix a non-parole period—

the court must fix a new single non-parole period in respect of all the sentences the offender is to serve or complete.

- (2) The new single non-parole period fixed at the time of the imposition of the further sentence—
- (a) supersedes any previous non-parole period that the offender is to serve or complete; and
 - (b) must not be such as to render the offender eligible to be released on parole earlier than would have been the case if the further sentence had not been imposed.

S. 14A
inserted by
No. 30/2010
s. 6,
repealed by
No. 48/2011
s. 14.

* * * * *

15 Order of service of sentences

- (1) If an offender has been sentenced to several terms of imprisonment in respect of any of which a non-parole period was fixed, the offender must serve—
 - (a) firstly, any term or terms in respect of which a non-parole period was not fixed;
 - (b) secondly, the non-parole period;
 - (c) thirdly, unless and until released on parole, the balance of the term or terms after the end of the non-parole period.
- (2) If during the service of a sentence a further sentence is imposed, service of the first-mentioned sentence must, if necessary, be suspended in order that the sentences may be served in the order referred to in subsection (1).

16 Sentences—whether concurrent or cumulative⁵

- | | |
|---|--|
| <ol style="list-style-type: none">(1) Subject to subsection (1A), every term of imprisonment imposed on a person by a court must, unless otherwise directed by the court, be served concurrently with any uncompleted sentence or sentences of imprisonment or detention in a youth justice centre or youth residential centre imposed on that person, whether before or at the same time as that term. | <p>S. 16(1)
substituted by
No. 41/1993
s. 8(a),
amended by
Nos 48/1997
s. 17(1),
48/2006
s. 42(Sch.
item 32.3).</p> |
| <ol style="list-style-type: none">(1A) Subsection (1) does not apply to a term of imprisonment imposed—<ol style="list-style-type: none">(a) in default of payment of a fine or sum of money; or(b) on a prisoner in respect of a prison offence or an escape offence; or(c) on a serious offender within the meaning of Part 2A for a relevant offence within the meaning of that Part; or | <p>S. 16(1A)
inserted by
No. 41/1993
s. 8(a).</p>

<p>S. 16(1A)(c)
substituted by
No. 48/1997
s. 7(4).</p> |

S. 16(1A)(d)
substituted by
No. 48/1997
s. 10(1).

(d) on any person for an offence committed while released under a parole order⁶; or

S. 16(1A)(e)
inserted by
No. 48/1997
s. 10(1),
amended by
No. 43/2017
s. 50(a)⁷.

(e) on any person for an offence committed while released on bail in relation to another offence⁸; or

S. 16(1A)(ea)
inserted by
No. 3/2019
s. 8(1).

(ea) on any person for an offence against section 31C of the **Crimes Act 1958** in circumstances where the offender's conduct created a risk to the physical safety of the victim or to any member of the public; or

New
s. 16(1A)(f)
inserted by
No. 3/2019
s. 87(2).

(f) on a young offender because of the operation of section 33(1A); or

S. 16(1A)(g)
inserted by
No. 65/2017
s. 17(2).

(g) on any person for an offence against section 317AC of the **Crimes Act 1958**; or

S. 16(1A)(h)
inserted by
No. 65/2017
s. 17(2).

(h) on any person for an offence against section 317AD of the **Crimes Act 1958**; or

S. 16(1A)(i)
inserted by
No. 65/2017
s. 17(2).

(i) on any person for an offence against section 317AE of the **Crimes Act 1958**; or

S. 16(1A)(j)
inserted by
No. 65/2017
s. 17(2).

(j) on any person for an offence against section 317AF of the **Crimes Act 1958**; or

- (k) on any person for an offence against section 317AG of the **Crimes Act 1958**; or

S. 16(1A)(k) inserted by No. 65/2017 s. 17(2), amended by No. 3/2019 s. 8(2)(a).

- (l) on any person for common assault committed in the circumstances referred to in section 320A(1) or (2) of the **Crimes Act 1958** if the assault consisted of or included the direct application of force within the meaning of the definition of **assault** in section 31(2) of that Act.

S. 16(1A)(l) inserted by No. 3/2019 s. 8(2)(b).

* * * * *

S. 16(1A)(f) inserted by No. 43/2017 s. 50(b), repealed by No. 3/2019 s. 87(1).

- (2) Every term of imprisonment imposed on a person by a court in default of payment of a fine or sum of money must, unless otherwise directed by the court, be served—

- (a) cumulatively on any uncompleted sentence or sentences of imprisonment or detention in a youth justice centre or youth residential centre imposed on that person in default of payment of a fine or sum of money; but
- (b) concurrently with any other uncompleted sentence or sentences of imprisonment or detention imposed on that person—

S. 16(2)(a) amended by Nos 48/1997 s. 17(1), 48/2006 s. 42(Sch. item 32.3).

whether that other sentence was, or those other sentences were, imposed before or at the same time as that term.

S. 16(2A)
inserted by
No. 99/2000
s. 15,
amended by
Nos 32/2006
s. 92(1),
47/2014
s. 305(1).

(2A) A reference in subsection (2) to a term of imprisonment imposed on a person by a court is to be read as including a reference to a term of imprisonment imposed on a person under Part 14 of the **Fines Reform Act 2014**.

S. 16(3)
amended by
Nos 41/1993
s. 8(b),
48/1997
s. 17(1),
48/2006
s. 42(Sch.
item 32.3).

(3) Every term of imprisonment imposed on a prisoner by a court in respect of a prison offence or an escape offence must, unless otherwise directed by the court because of the existence of exceptional circumstances, be served cumulatively on any uncompleted sentence or sentences of imprisonment or detention in a youth justice centre or youth residential centre imposed on that prisoner, whether before or at the same time as that term.

S. 16(3A)
inserted by
No. 41/1993
s. 8(c),
repealed by
No. 48/1997
s. 7(5).

* * * * *

S. 16(3B)
inserted by
No. 41/1993
s. 8(c),
substituted by
No. 48/1997
s. 10(2),
amended by
No. 46/2013
s. 5(1).

(3B) Subject to subsection (3BA), every term of imprisonment imposed on a person for an offence committed while released under a parole order made in respect of another sentence of imprisonment (***the parole sentence***) must, unless otherwise directed by the court because of the existence of exceptional circumstances, be served cumulatively on any period of imprisonment which he or she may be required to serve in custody in a prison on cancellation of the parole order⁹.

S. 16(3BA)
inserted by
No. 46/2013
s. 5(2).

(3BA) Every term of imprisonment imposed on a prisoner for an offence against section 78A of the **Corrections Act 1986** must, unless otherwise directed by the court because of the existence of

exceptional circumstances, be served cumulatively on—

- (a) any period of imprisonment the prisoner may be required to serve in custody in a prison on cancellation of the parole order under which that prisoner was released when he or she committed the offence against section 78A; and
 - (b) any period of imprisonment imposed on the prisoner for an offence committed while released under the parole order referred to in paragraph (a), whether before or at the same time as that term.
- (3C) Every term of imprisonment imposed on a person for an offence committed while released on bail in relation to any other offence or offences must, unless otherwise directed by the court, be served cumulatively on any uncompleted sentence or sentences of imprisonment imposed on that offender, whether before or at the same time as that term¹⁰.
- S. 16(3C)
inserted by
No. 48/1997
s. 10(2).
- (3D) Every term of imprisonment imposed on a person for an offence against section 317AC, 317AD, 317AE, 317AF or 317AG of the **Crimes Act 1958** must, unless otherwise directed by the court, be served cumulatively on any uncompleted sentence or sentences of imprisonment imposed on that offender, whether before or at the same time as that term.
- S. 16(3D)
inserted by
No. 65/2017
s. 17(3).
- (3E) Every term of imprisonment imposed on a person for—
- (a) an offence against section 31C of the **Crimes Act 1958** in circumstances where the offender's conduct created a risk to the physical safety of the victim or to any member of the public; or
- S. 16(3E)
inserted by
No. 3/2019
s. 8(3).

- (b) a common assault committed in the circumstances referred to in section 320A(1) or (2) of the **Crimes Act 1958** if the assault consisted of or included the direct application of force within the meaning of the definition of *assault* in section 31(2) of that Act—

must, unless otherwise directed by the court, be served cumulatively on any uncompleted sentence or sentences of imprisonment imposed on that offender, whether before or at the same time as that term.

- (4) A court that imposes a term of imprisonment for an offence against the law of Victoria on a person already undergoing a sentence or sentences of imprisonment for an offence against the law of the Commonwealth must direct when the new term commences which must be no later than immediately after—
- (a) the completion of that sentence or those sentences if a non-parole period or pre-release period (as defined in Part 1B of the Crimes Act 1914 of the Commonwealth) was not fixed in respect of it or them; or
- (b) the end of that period if one was fixed.

* * * * *

S. 16(5)
repealed by
No. 48/1997
s. 32(1).

- (6) This section has effect despite anything to the contrary in any Act.

16A Person may consent to imprisonment in respect of unpaid fines

S. 16A
inserted by
No. 87/2009
s. 58.

- (1) A person who has one or more warrants issued against them under section 69, and who is already in custody serving an uncompleted sentence of imprisonment may request, in writing, the sheriff to apply to the court for an order for that person to serve a period of imprisonment in default of payment of the outstanding fine or any instalment under an instalment order under any one or more warrants.
- (2) The Court may order that the person be imprisoned in accordance with section 16(2) for a term calculated in accordance with section 69N.
- (3) If the Court makes an order under subsection (2), the Court may count the time served by the person from the date the person requested the sheriff to make an application under subsection (1) as time already served for the purposes of the term of imprisonment imposed on the person under subsection (2).
- (4) A court may make an order under subsection (2) whether or not the person is brought before the court.

S. 16A(1)
amended by
Nos 32/2013
s. 56(1),
47/2014
s. 305(2),
17/2022 s. 82.

S. 16A(2)
amended by
No. 32/2013
s. 56(2).

17 Commencement of sentences¹¹

- (1) Subject to sections 16 and 18, a sentence of imprisonment commences on the day that it is imposed unless the offender is not then in custody in which case it commences on the day he or she is apprehended under a warrant to imprison issued in respect of the sentence.
- (2) If an offender sentenced to a term of imprisonment is allowed to be or to go at large for any reason, the period between then and the day on which he or she is taken into custody to

undergo the sentence does not count in calculating the term to be served and service of the sentence is suspended during that period.

- (3) If an offender lawfully imprisoned under a sentence escapes or fails to return after an authorised absence, the period between then and the day on which he or she surrenders or is apprehended does not count in calculating the term to be served and service of the sentence is suspended during that period.
- (4) Despite anything to the contrary in this or any other Act or in any rule of law or practice, a sentence of imprisonment must be calculated exclusive of any time during which service of it is suspended under subsection (2) or (3).
- (5) If an offender to whom subsection (3) applies is in the period during which service of the sentence is suspended under that subsection imprisoned or detained in a youth justice centre or youth residential centre under another sentence, the unexpired portion of the suspended sentence takes effect—
- (a) if it is to be served cumulatively on the sentence or sentences he or she is then undergoing—on the day that sentence is, or those sentences are, completed; or
 - (b) in any other case—at the end of the period of suspension.
- (6) If an offender sentenced to a term of imprisonment and allowed to be or to go at large pending an appeal or the consideration of any question of law reserved or case stated is imprisoned or detained in a youth justice centre or youth residential centre under another sentence at the time when the appeal, question of law or case stated is finally determined, the first-mentioned

S. 17(5)
amended by
Nos 48/1997
s. 17(1),
48/2006
s. 42(Sch.
item 32.3).

S. 17(6)
amended by
Nos 48/1997
s. 17(1),
48/2006
s. 42(Sch.
item 32.3).

sentence or the unexpired portion of it takes effect—

- (a) if it is to be served cumulatively on the sentence or sentences he or she is then undergoing—on the day that sentence is, or those sentences are, completed; or
 - (b) in any other case—on the day on which the appeal, question of law or case stated is finally determined.
- (7) Subsection (6) applies unless the sentencing court or the court determining the appeal, question of law or case stated otherwise directs.
- (8) If a person serving a sentence of imprisonment becomes a security patient, an involuntary patient or a security resident, time spent as such counts in calculating the term to be served.

18 Time held in custody before trial etc. to be deducted from sentence¹²

- (1) If an offender is in respect of an offence sentenced to a term of imprisonment or to a period of detention in an approved mental health service under a hospital security order, any period during which he or she was held in custody in relation to—
- (a) proceedings for the offence; or
 - (b) proceedings arising from those proceedings including any period pending the determination of an appeal—

must be reckoned as a period of imprisonment or detention already served under the sentence unless the sentencing court or the court fixing a non-parole period in respect of the sentence otherwise orders.

S. 18(1)
amended by
Nos 48/1997
s. 11(1),
69/1997
s. 6(1)(a)(b),
10/1999
s. 18(1),
substituted by
No. 82/2006
s. 3(1),
amended by
No. 26/2012
ss 28, 431(1),
substituted by
No. 32/2013
s. 10(1).

Sentencing Act 1991
No. 49 of 1991
Part 3—Sentences

S. 18(1A) inserted by No. 10/1999 s. 18(2), repealed by No. 1/2000 s. 8(a), new s. 18(1A) inserted by No. 53/2003 s. 4(1), repealed by No. 30/2010 s. 7(a).	*	*	*	*	*
S. 18(1B) inserted by No. 10/1999 s. 18(2), repealed by No. 1/2000 s. 8(a).	*	*	*	*	*
S. 18(2) amended by Nos 53/2003 s. 4(2), 30/2010 s. 7(b).	(2) Subsection (1) does not apply—				
	(a) to a period of custody of less than one day; or				
	(b) to a sentence of imprisonment or period of detention in a designated mental health service of less than one day; or				
S. 18(2)(ba) inserted by No. 48/1997 s. 11(2)(a), repealed by No. 65/2011 s. 9.	*	*	*	*	*
S. 18(2)(bb) inserted by No. 30/2010 s. 7(c), repealed by No. 48/2011 s. 15.	*	*	*	*	*

Sentencing Act 1991
No. 49 of 1991
Part 3—Sentences

*	*	*	*	*	S. 18(2)(c) amended by No. 48/1997 s. 11(2)(b), repealed by No. 32/2013 s. 10(2).
*	*	*	*	*	S. 18(2)(ca) inserted by No. 10/1999 s. 18(3), repealed by No. 1/2000 s. 8(b).
				(d) to a period of custody previously declared under this section or section 35 as reckoned to be a period of imprisonment or detention already served under another sentence of imprisonment or detention or Court Secure Treatment Order imposed on the offender.	S. 18(2)(d) inserted by No. 48/1997 s. 11(2)(b), amended by Nos 69/1997 s. 6(2)(b), 82/2006 s. 3(2), 26/2014 s. 431(3).
				(3) If an offender was held in custody in circumstances to which subsection (1) applies, then—	S. 18(3) amended by Nos 53/2003 s. 4(3), 30/2010 s. 7(b).
				(a) the informant or person who arrested the offender must, if present before the court, inform it, whether from his or her own knowledge or from inquiries made by him or her, of the length of the period of custody; or	
				(b) if that person is not present before the court, it may take and receive other evidence (whether oral or written and whether on oath or by affirmation or otherwise) of the length of the period of custody.	S. 18(3)(b) amended by No. 6/2018 s. 68(Sch. 2 item 115.2).
				(4) If an offender was held in custody in circumstances to which subsection (1) applies, then the court must declare the period to be reckoned as already served under the sentence and	S. 18(4) amended by No. 48/1997 s. 11(3).

cause to be noted in the records of the court the fact that the declaration was made and its details.

S. 18(4A)
inserted by
No. 53/2003
s. 4(4),
repealed by
No. 30/2010
s. 7(a).

* * * * *

S. 18(5)
amended by
No. 69/1997
s. 6(3).

- (5) The person with custody of the record referred to in subsection (4) must indorse on the warrant or other authority for the imprisonment or detention of the offender particulars of the matters referred to in that subsection.

S. 18(5A)
inserted by
No. 53/2003
s. 4(5),
repealed by
No. 30/2010
s. 7(a).

* * * * *

- (6) If a person charged with a series of offences committed on different occasions has been in custody continuously since arrest, the period of custody for the purposes of subsection (1) must be reckoned from the time of his or her arrest even if he or she is not convicted of the offence with respect to which he or she was first arrested or of other offences in the series.

S. 18(7)
amended by
Nos 53/2003
s. 4(6),
30/2010
s. 7(d).

- (7) If on an application under this subsection the sentencing court is satisfied that the period declared under subsection (4) was not correct it may declare the correct period and amend the sentence accordingly.
- (8) An application under subsection (7) may be made by—
- (a) the offender; or

- (b) the Director of Public Prosecutions, if the sentencing court was the Supreme Court or the County Court; or
- (c) the informant or police prosecutor, if the sentencing court was the Magistrates' Court.

Subdivision (1A)—Indefinite sentences

Pt 3 Div. 2
Subdiv. (1A)
(Heading and
ss 18A–18Q)
inserted by
No. 41/1993
s. 9.

18A Indefinite sentence

S. 18A
inserted by
No. 41/1993
s. 9.

- (1) If a person (other than a young person) is convicted by the Supreme Court or the County Court of a serious offence, the court may sentence him or her to an indefinite term of imprisonment.
- (2) A court must not fix a non-parole period in respect of an indefinite sentence.
- (3) The court must specify in the order imposing an indefinite sentence a nominal sentence of a period equal in length to the non-parole period that it would have fixed had the court sentenced the offender to be imprisoned in respect of the serious offence for a fixed term.
- (4) An offender serving an indefinite sentence is not eligible to be released on parole.
- (5) A court may impose an indefinite sentence—
 - (a) on its own initiative; or
 - (b) on an application made by the Director of Public Prosecutions.
- (6) A court may impose an indefinite sentence in respect of a serious offence regardless of the maximum penalty prescribed for the offence.

S. 18A(7)
substituted by
No. 26/2014
s. 432.

- (7) If a court is considering imposing an indefinite sentence on an offender it must also consider whether section 94B applies and, if it considers that it does apply, the court must make a Court Secure Treatment Order under section 94B.

S. 18B
inserted by
No. 41/1993
s. 9.

18B When court may impose indefinite sentence in respect of serious offence

- (1) A court may only impose an indefinite sentence on an offender in respect of a serious offence if it is satisfied, to a high degree of probability, that the offender is a serious danger to the community because of—
- (a) his or her character, past history, age, health or mental condition; and
 - (b) the nature and gravity of the serious offence; and
 - (c) any special circumstances.
- (2) In determining whether the offender is a serious danger to the community, the court must have regard to—
- (a) whether the nature of the serious offence is exceptional;
 - (b) anything relevant to this issue contained in the certified transcript of any proceeding against the offender in relation to a serious offence;
 - (c) any medical, psychiatric or other relevant report received by it;
 - (d) the risk of serious danger to members of the community if an indefinite sentence were not imposed;
 - (e) the need to protect members of the community from the risk referred to in paragraph (d)—

and may have regard to anything else that it thinks fit.

- (3) The prosecution has the onus of proving that an offender is a serious danger to the community.

18C Application for indefinite sentence

S. 18C
inserted by
No. 41/1993
s. 9.

- (1) An application for an indefinite sentence by the Director of Public Prosecutions—
- (a) may only be made if the Director has filed with the court on the day of the conviction or within 5 working days after that day a notice of intention to make the application;
 - (b) must be made within 10 working days after the day of the conviction or within any longer period fixed by the court during that 10 working day period.
- (2) On the filing of a notice under subsection (1)(a), the court must revoke any order made for the offender's release pending sentencing and remand him or her in custody.

18D Adjournment of sentencing

S. 18D
inserted by
No. 41/1993
s. 9.

If a court is considering imposing an indefinite sentence on an offender, whether on its own initiative or because of a notice filed under section 18C(1)(a), it must on the day of the conviction or within 5 working days after that day explain, or cause to be explained, to the offender in language likely to be readily understood by him or her—

- (a) the fact that it is considering imposing an indefinite sentence; and
- (b) the effect of an order for an indefinite sentence—

and adjourn sentencing until at least 25 working days after the day of the conviction.

S. 18E
inserted by
No. 41/1993
s. 9,
amended by
Nos 24/1994
s. 6(1),
69/2005
ss 3(1)(c)
(2)(3)(a),
substituted by
No. 26/2014
s. 433.

18E Court Secure Treatment Orders

- (1) If a court imposes an indefinite sentence on an offender as mentioned in section 94(1)(b) after considering the authorised psychiatrist's report made after examining the offender subject to a Inpatient Court Assessment Order made under section 90, the court must deduct from the nominal sentence the period of time that the offender was detained under the Court Assessment Order.
- (2) Section 94C applies if a person is found guilty of a serious offence and a court imposes an indefinite sentence in the same way it applies on any other finding of guilt but as if—
 - (a) section 94C(3) provided that the duration of the Court Secure Treatment Order was for an indefinite period; and
 - (b) section 94C(4) did not require the fixing of a non-parole period but instead required the court to specify a nominal sentence as if the Court Secure Treatment Order were an indefinite sentence; and
 - (c) in section 94C(5) the words "before the end of the period specified in a Court Secure Treatment Order" were omitted; and
 - (d) section 94C(5) referred to—
 - (i) an indefinite term instead of the unexpired portion of the Court Secure Treatment Order; and
 - (ii) release under a re-integration program instead of release on parole.
- (3) A Court Secure Treatment Order made under section 94B (as applied by subsection (2) of this section) has effect for all purposes as an indefinite sentence.

18F Sentencing hearing

Before imposing an indefinite sentence, a court must—

S. 18F
inserted by
No. 41/1993
s. 9.

- (a) give both the prosecution and the defence the opportunity to lead admissible evidence on any matter relevant to imposing such a sentence;
- (ab) subject to Division 1C of Part 3, take into consideration any victim impact statement made, or other evidence given, under that Division;
- (b) subject to Division 1A of Part 3, take into consideration any pre-sentence report filed with the court;
- (c) have regard to any submissions on sentence made to it.

S. 18F(ab)
inserted by
No. 24/1994
s. 6(2),
amended by
No. 65/2011
s. 10(1).

S. 18F(b)
amended by
No. 65/2011
s. 10(2).

18G Reasons for indefinite sentence

A court that imposes an indefinite sentence on an offender must, at the time of doing so—

S. 18G
inserted by
No. 41/1993
s. 9.

- (a) state the reasons for its decision; and
- (b) cause those reasons to be entered in the records of the court.

18H Review of indefinite sentence

- (1) A court that imposes an indefinite sentence on an offender must review the sentence—
 - (a) on the application of the Director of Public Prosecutions, as soon as practicable after the offender has served the nominal sentence;
 - (b) on the application of the offender, at any time after the expiry of three years from the carrying out of the review under

S. 18H
inserted by
No. 41/1993
s. 9.

paragraph (a) and thereafter at intervals of not less than three years.

- (2) The Director of Public Prosecutions must make the application to the court necessary for it to carry out the review required by subsection (1)(a) within the time specified in that subsection.
- (3) The court must cause a copy of an application by an offender under subsection (1)(b) to be provided to the Director of Public Prosecutions as soon as practicable after it has been filed with the court.
- (4) Within 10 working days after the date of filing of an application by an offender under subsection (1)(b), the court must give directions for its hearing and, subject to those directions, must hear the application within 25 working days after the date of filing.
- (5) A court on a review need not be constituted by the same judge who constituted the court when it imposed the sentence.

S. 18I
inserted by
No. 41/1993
s. 9.

18I Court may order reports

S. 18(1)
amended by
Nos 45/1996
s. 18(Sch. 2
item 11.4),
46/1998
s. 7(Sch. 1),
46/2008
s. 287(b),
29/2010
s. 71(2),
65/2011 s. 11.

- (1) At any time after the making of an application under section 18H(1)(a) or (b) the court may order the Secretary to the Department of Health, the Secretary to the Department of Human Services or the Secretary or any other person or body to prepare a report in respect of the offender and file it with the court within the time directed by it.
- (2) The author of a report must conduct any investigation that the author thinks appropriate or that is directed by the court.

- (3) A report must relate to the period since the indefinite sentence was imposed or last reviewed, as the case requires.

18J Distribution of reports

S. 18J
inserted by
No. 41/1993
s. 9.

- (1) The court must, a reasonable time before the review is to take place, cause a copy of a report ordered by it under section 18I(1) to be provided to—
- (a) the Director of Public Prosecutions; and
 - (b) the legal practitioners representing the offender; and
 - (c) if the court has so directed, the offender.
- (2) If the prosecution or the defence has caused a report in respect of the offender to be prepared for the purposes of the review, it must, a reasonable time before the review is to take place, file it with the court and provide a copy to the Director of Public Prosecutions or the legal practitioners representing the offender, as the case requires.

18K Disputed report

S. 18K
inserted by
No. 41/1993
s. 9.

- (1) The Director of Public Prosecutions or the offender may file with the court a notice of intention to dispute the whole or any part of a report provided under section 18J.
- (2) If a notice is filed under subsection (1) before the review is to take place, the court must not take the report or the part in dispute (as the case requires) into consideration on the hearing of the review unless the party that filed the notice has been given the opportunity—
- (a) to lead evidence on the disputed matters; and
 - (b) to cross-examine the author of the report on its contents.

S. 18L
inserted by
No. 41/1993
s. 9.

18L Review hearing

On the hearing of a review under section 18H(1)(a) or (b), a court must—

- (a) give both the Director of Public Prosecutions and the offender the opportunity to lead admissible evidence on any relevant matter;
- (b) subject to section 18K, take into consideration any report in respect of the offender that is filed with the court;
- (c) have regard to any submissions on the review made to it.

S. 18M
inserted by
No. 41/1993
s. 9.

18M Outcome of review

- (1) On a review under section 18H(1)(a) or (b) the court, unless it is satisfied (to a high degree of probability) that the offender is still a serious danger to the community, must by order—
 - (a) discharge the indefinite sentence; and
 - (b) make the offender subject to a 5 year re-integration program administered by the Adult Parole Board and issue a warrant to imprison in the same way as if it had sentenced the offender to a term of imprisonment for 5 years.
- (2) The indefinite sentence continues in force if the court does not make an order under subsection (1).

S. 18N
inserted by
No. 41/1993
s. 9.

18N Re-integration program

The provisions of Division 5 of Part 8 (parole) and of section 112 (regulations) of the **Corrections Act 1986** apply to a re-integration program in the same way that they apply to parole but as if—

- (a) references in those provisions to parole or release on parole were references to a re-integration program or release under a re-integration program;

- (b) persons made subject to a re-integration program were serving a prison sentence of 5 years during the whole of which they were eligible to be released under the re-integration program;
- (c) references in those provisions to a parole order were references to an order made by the Adult Parole Board releasing an offender under a re-integration program;
- (d) references in those provisions to a non-parole period were omitted;
- (e) references in those provisions to the parole period were references to the period of release under the re-integration program.

18O Appeal¹³

S. 18O
inserted by
No. 41/1993
s. 9.

- (1) An offender may appeal to the Court of Appeal against the refusal of a court to make an order under section 18M(1).
- (2) The Director of Public Prosecutions may appeal to the Court of Appeal against an order made under section 18M(1).
- (3) On an appeal under this section the Court of Appeal may—
 - (a) in the case of an appeal under subsection (1), confirm the refusal and dismiss the appeal or uphold the appeal and make the order that it thinks ought to have been made; or

S. 18O(1)
amended by
No. 109/1994
s. 34(14)(b).

S. 18O(2)
amended by
No. 109/1994
s. 34(14)(b).

S. 18O(3)
amended by
No. 109/1994
s. 34(14)(b).

S. 18O(3)(b)
amended by
No. 68/2009
s. 97(Sch.
item 110.12).

(b) in the case of an appeal under subsection (2), confirm the order and dismiss the appeal or uphold the appeal and set aside the order made.

S. 18O(4)
amended by
No. 68/2009
s. 97(Sch.
item 110.13).

(4) An indefinite sentence revives on the setting aside of an order under section 18M(1) and the original warrant to imprison or other authority for the offender's imprisonment is to be regarded as again in force.

S. 18P
inserted by
No. 41/1993
s. 9.

18P Offender to be present during hearings

(1) Subject to this section, the offender must be present—

(a) during the hearing of evidence under section 18F;

(b) during the hearing of a review under section 18H(1)(a) or (b).

(2) The court may order the officer in charge of the prison or other institution in which the offender is detained to cause the offender to be brought before the court for a hearing referred to in subsection (1).

S. 18P(3)
amended by
No. 68/2009
s. 97(Sch.
item 110.14).

(3) Subsection (2) is additional to, and does not limit, the court's powers under section 332 of the **Criminal Procedure Act 2009**.

(4) If the offender acts in a way that makes the hearing in the offender's presence impracticable, the court may order that the offender be removed and the hearing continue in his or her absence.

(5) If the offender is unable to be present at a hearing because of illness or for any other reason, the court may proceed with the hearing in his or her absence if it is satisfied that—

- (a) doing so will not prejudice the offender's interests; and
- (b) the interests of justice require that the hearing should proceed even in the absence of the offender.

*	*	*	*	*	S. 18Q inserted by No. 41/1993 s. 9, repealed by No. 24/1994 s. 6(3).
*	*	*	*	*	Pt 3 Div. 2 Subdiv. (1B) (Heading and ss 18Q–18W) inserted by No. 48/1997 s. 12, amended by Nos 10/1999 s. 30, 19/1999 ss 5, 6, 68/2009 s. 97(Sch. items 110.15– 110.18), 30/2010 s. 8, 48/2011 s. 16, repealed by No. 65/2011 s. 12.

Subdivision (1C)—Drug and alcohol treatment orders

Pt 3 Div. 2
Subdiv. (1C)
(Heading)
amended by
No. 43/2020
s. 9.

Pt 3 Div. 2
Subdiv. (1C)
(Heading and
ss 18X–18ZS)
inserted by
No. 2/2002
s. 5.

18X Purposes of drug and alcohol treatment order

S. 18X
(Heading)
amended by
No. 43/2020
s. 10(1).

S. 18X
inserted by
No. 2/2002
s. 5.

S. 18X(1)
amended by
No. 43/2020
s. 10(2).

- (1) The particular purposes of a drug and alcohol treatment order are—
 - (a) to facilitate the rehabilitation of the offender by providing a judicially-supervised, therapeutically-oriented, integrated drug or alcohol treatment and supervision regime;
 - (b) to take account of an offender's drug or alcohol dependency;
 - (c) to reduce the level of criminal activity associated with drug or alcohol dependency;
 - (d) to reduce the offender's health risks associated with drug or alcohol dependency.
- (2) Nothing in subsection (1) affects the operation of section 5(1) but, if considering making a drug and alcohol treatment order, the Drug Court must regard the rehabilitation of the offender and the protection of the community from the offender (achieved through the offender's rehabilitation) as

S. 18X(2)
amended by
No. 43/2020
s. 10(2).

having greater importance than the other purposes set out in section 5(1).

18Y Order only available at Drug Court

Only the Drug Court may make a drug and alcohol treatment order.

S. 18Y
inserted by
No. 2/2002
s. 5,
amended by
No. 43/2020
s. 11.

18Z When drug and alcohol treatment order can be made

S. 18Z
(Heading)
amended by
No. 43/2020
s. 12(1).

S. 18Z
inserted by
No. 2/2002
s. 5.

(1) The Drug Court may make a drug and alcohol treatment order if—

S. 18Z(1)
amended by
No. 43/2020
s. 12(2)(a).

(a) an offender pleads guilty to an offence that is within the jurisdiction of the Magistrates' Court or the County Court (as the case requires) and punishable on conviction by imprisonment, other than—

S. 18Z(1)(a)
amended by
No. 43/2020
s. 12(2)(b).

(i) a sexual offence as defined in section 6B(1); or

(ii) subject to subsection (5), an offence involving the infliction of actual bodily harm; and

(b) the Drug Court convicts the offender of the offence; and

(c) the Drug Court is satisfied on the balance of probabilities that—

(i) the offender is dependent on drugs or alcohol; and

(ii) the offender's dependency contributed to the commission of the offence; and

S. 18Z(1)(d)
amended by
No. 65/2011
s. 13(1),
substituted by
No. 43/2020
s. 12(2)(c).

(d) the Drug Court considers that, otherwise, it would be appropriate to impose—

(i) if the proceeding is in the Magistrates' Court, a sentence of imprisonment; or

(ii) if the proceeding is in the County Court, a sentence of imprisonment of no more than 4 years; and

S. 18Z(1)(da)
inserted by
No. 43/2020
s. 12(2)(c).

(da) the Drug Court considers that, had it been appropriate to impose a sentence described in paragraph (d), the Drug Court would not have suspended that sentence in whole or in part; and

S. 18Z(1)(e)
amended by
No. 43/2020
s. 12(2)(a).

(e) the Drug Court has received a drug and alcohol treatment order assessment report on the offender under section 18ZQ.

S. 18Z(2)
amended by
No. 43/2020
s. 12(3).

(2) The Drug Court Division of the Magistrates' Court must not make a drug and alcohol treatment order in respect of an offender who is subject to—

(a) a parole order; or

S. 18Z(2)(b)
repealed by
No. 65/2011
s. 13(2).

* * * * *

S. 18Z(2)(c)
amended by
No. 68/2009
s. 97(Sch.
item 110.19).

(c) a sentence of the County Court or Supreme Court.

S. 18Z(2A)
inserted by
No. 43/2020
s. 12(4).

(2A) The Drug Court Division of the County Court must not make a drug and alcohol treatment order in respect of an offender who is subject to—

(a) a parole order; or

(b) a sentence of the Supreme Court.

- (2B) The Drug Court Division of the County Court must not make a drug and alcohol treatment order in respect of an offender who is convicted of an offence to which section 10, 10AA, 10AB, 10AC, 10AD or 10AE applies. **S. 18Z(2B) inserted by No. 43/2020 s. 12(4).**
- (3) The Drug Court must not make a drug and alcohol treatment order unless— **S. 18Z(3) amended by No. 43/2020 s. 12(5).**
- (a) it is satisfied in all the circumstances that it is appropriate to do so; and
 - (b) the offender agrees in writing to the making of the order and to comply with the treatment and supervision part of the order.
- Note**
- Section 18ZC sets out what the treatment and supervision part of the order is.
- (4) The Drug Court may make a drug and alcohol treatment order in respect of an offender regardless of whether— **S. 18Z(4) amended by No. 43/2020 s. 12(5).**
- (a) the offender's drug or alcohol dependency contributed on one or more previous occasions to the offender—
 - (i) committing an offence of which the offender was convicted or found guilty; or
 - (ii) failing to comply with the conditions of bail or of a sentence; or **S. 18Z(4)(a)(ii) amended by No. 68/2009 s. 97(Sch. item 110.19).**
 - (b) the offender has been previously sentenced to one or more terms of imprisonment.

S. 18Z(5)
amended by
No. 43/2020
s. 12(6).

- (5) Despite subsection (1)(a)(ii), the Division of the Magistrates' Court may make a drug and alcohol treatment order in respect of an offender where the offence involved the infliction of actual bodily harm if it is satisfied that the harm was of a minor nature.

S. 18ZA
inserted by
No. 2/2002
s. 5.

18ZA Order can cover multiple offences

S. 18ZA(1)
amended by
No. 43/2020
s. 13.

- (1) A drug and alcohol treatment order may be made in respect of one or more offences committed by an offender.

S. 18ZA(2)
amended by
No. 43/2020
s. 13.

- (2) An offender can only be subject to one drug and alcohol treatment order at any particular time.

S. 18ZB
inserted by
No. 2/2002
s. 5,
amended by
No. 43/2020
s. 14(1)(3) (ILA
s. 39B(1)).

18ZB Effect of Drug Court declining to make an order

- (1) If an offender has pleaded guilty to an offence or offences in respect of which the Drug Court could make a drug and alcohol treatment order but it does not consider it appropriate to do so, the Drug Court must—

(a) sentence the offender in relation to the offence or offences if the offender consents to the Drug Court doing so; or

(b) adjourn the matter for sentencing in accordance with subsection (2) or (3) (whichever is applicable).

S. 18ZB(1)(b)
substituted by
No. 43/2020
s. 14(2).

- (2) If the Drug Court Division of the Magistrates' Court is to adjourn a matter under subsection (1)(b), it must adjourn the matter to the Magistrates' Court (other than the Drug Court) at the same venue.

S. 18ZB(2)
inserted by
No. 43/2020
s. 14(3).

- (3) If the Drug Court Division of the County Court is to adjourn a matter under subsection (1)(b), it may adjourn the matter to either—

S. 18ZB(3)
inserted by
No. 43/2020
s. 14(3).

- (a) if the offence is within the jurisdiction of the Magistrates' Court, the Magistrates' Court; or
(b) in any case, the County Court (other than the Drug Court) at the same venue.

18ZC The parts of a drug and alcohol treatment order

S. 18ZC
(Heading)
amended by
No. 43/2020
s. 15(1).

S. 18ZC
inserted by
No. 2/2002
s. 5.

- (1) A drug and alcohol treatment order consists of 2 parts—

S. 18ZC(1)
amended by
No. 43/2020
s. 15(2).

- (a) the treatment and supervision part; and
(b) the custodial part.

* * * * *

S. 18ZC(2)
repealed by
No. 43/2020
s. 15(3).

- (3) The custodial part of a drug and alcohol treatment order consists of the sentence of imprisonment that the Drug Court must impose on the offender under section 18ZD.

S. 18ZC(3)
amended by
No. 43/2020
s. 15(4).

- (4) The treatment and supervision part of a drug and alcohol treatment order consists of—

S. 18ZC(4)
inserted by
No. 43/2020
s. 15(5).

- (a) the core conditions attached to the order; and
(b) the program conditions attached to the order.

S. 18ZC(5)
inserted by
No. 43/2020
s. 15(5).

- (5) The core conditions operate—
- (a) if the custodial part is a sentence of imprisonment of no more than 2 years—
 - (i) for 2 years; or
 - (ii) if the treatment and supervision part is cancelled earlier under section 18ZK, 18ZN or 18ZP, until that cancellation; or
 - (b) if the custodial part is a sentence of imprisonment of more than 2 years—
 - (i) for the length of the custodial part; or
 - (ii) if the treatment and supervision part is cancelled earlier under section 18ZK, 18ZN or 18ZP, until that cancellation.

S. 18ZC(6)
inserted by
No. 43/2020
s. 15(5).

- (6) The program conditions operate—
- (a) for 2 years; or
 - (b) if the treatment and supervision part is cancelled earlier under section 18ZK, 18ZN or 18ZP, until that cancellation.

S. 18ZC(7)
inserted by
No. 43/2020
s. 15(5).

- (7) The treatment and supervision part is taken to continue to operate while either the core conditions or the program conditions operate.

S. 18ZD
inserted by
No. 2/2002
s. 5.

18ZD Sentence of imprisonment must be imposed

S. 18ZD(1)
amended by
No. 43/2020
s. 16(1).

- (1) When making a drug and alcohol treatment order, the Drug Court must impose on the offender a sentence of imprisonment of no more than the maximum duration specified in subsection (1A).

- (1A) The maximum duration is—
- (a) for the Drug Court Division of the Magistrates' Court, 2 years; or
- (b) for the Drug Court Division of the County Court, 4 years.
- (2) The Drug Court must impose the sentence of imprisonment that it would have imposed if it had not made the drug and alcohol treatment order.
- (3) Despite anything to the contrary in section 11, the Drug Court must not fix a non-parole period in accordance with that section as part of the sentence imposed by it.
- Note**
- A non-parole period may be fixed as part of certain orders under this Subdivision activating the custodial part of a drug and alcohol treatment order (see section 18ZE(3)).

S. 18ZD(1A)
inserted by
No. 43/2020
s. 16(2).

S. 18ZD(2)
amended by
No. 43/2020
s. 16(3)(a).

Note to
s. 18ZD(3)
amended by
No. 43/2020
s. 16(3)(b).

18ZE Activation of custodial part of an order

S. 18ZE
inserted by
No. 2/2002
s. 5.

- (1) Despite anything to the contrary in this Act, an offender is not to serve the custodial part of a drug and alcohol treatment order, and that part of the order does not commence, except in accordance with an order under this Subdivision activating that part of the order.
- Note**
- The Drug Court may make an order activating some or all of the custodial part under section 18ZL(1)(f) (which involves serving a period in a secure custody facility), or under section 18ZN or 18ZP.
- (2) In making an order under this Subdivision activating some or all of the custodial part of a drug and alcohol treatment order, the Drug Court must first—

S. 18ZE(1)
amended by
No. 43/2020
s. 17(1).

S. 18ZE(2)
amended by
No. 43/2020
s. 17(1).

- (a) calculate the remaining length of the custodial part of the order by subtracting from the length of the sentence of imprisonment imposed under the order—
 - (i) each period of custody declared under this Act as reckoned to be a period already served under the sentence; and
 - (ii) each period of custody served in a secure custody facility under the custodial part of the order because of an order under section 18ZL(1)(f); and
- (b) if required to do so by subsection (2A) or (2B), reduce the remaining length of the custodial part of the order in accordance with whichever of those subsections applies.

S. 18ZE(2)(b)
substituted by
No. 43/2020
s. 17(2).

- (2A) For the purposes of subsection (2)(b), if—
- (a) the length of the custodial part of the drug and alcohol treatment order is no more than 2 years; and
 - (b) the sum of the following periods of time is more than 2 years—
 - (i) the remaining length of the custodial part; and
 - (ii) the period during which the treatment and supervision part of the order has already operated—

the remaining length of the custodial part must be reduced so that the sum of those periods is 2 years.

S. 18ZE(2B)
inserted by
No. 43/2020
s. 17(3).

- (2B) For the purposes of subsection (2)(b), if—
- (a) the length of the custodial part of the drug and alcohol treatment order is more than 2 years; and

(b) the sum of the following periods of time is more than the length of the custodial part—

- (i) the remaining length of the custodial part; and
- (ii) the period during which the treatment and supervision part of the order has already operated—

the remaining length of the custodial part must be reduced so that the sum of those periods is equal to the length of the custodial part.

- (3) If the Drug Court makes an order under section 18ZN(1)(b)(i) or 18ZP(2)(a) activating the custodial part of a drug and alcohol treatment order for a period of one year or more, the Drug Court may, as part of the order under that section, fix in respect of the custodial part a non-parole period in accordance with section 11, as if the Drug Court had just sentenced the offender to that term of imprisonment.

S. 18ZE(3)
amended by
No. 43/2020
s. 17(1).

Example

The Drug Court decides to make an order activating the custodial part of a drug and alcohol treatment order 18 months after the drug and alcohol treatment order was made. When it made the drug and alcohol treatment order, it imposed a sentence of imprisonment of 8 months. The Drug Court—

Example to
s. 18ZE(3)
amended by
No. 43/2020
s. 17(1).

- (a) calculates that the remaining length of the custodial part of the drug and alcohol treatment order is 7 months because the length of the sentence of imprisonment imposed under the order was 8 months from which the Drug Court subtracts—
 - (i) 14 days that the offender spent in custody before sentencing; and
 - (ii) 16 days that the offender served in a secure custody facility because of an earlier order under section 18ZL(1)(f); and

- (b) calculates that the total of—
 - (i) the remaining length of the custodial part (7 months); and
 - (ii) the period during which the treatment and supervision part of the drug and alcohol treatment order has already operated (18 months)—is 25 months, which is 1 month over 2 years; and
- (c) so that the total is 2 years, reduces the remaining length of the custodial part by 1 month to 6 months.

This means that the Drug Court may make an order activating the custodial part for no more than 6 months.

S. 18ZF
inserted by
No. 2/2002
s. 5.

18ZF Core conditions

S. 18ZF(1)
amended by
No. 43/2020
s. 18.

- (1) The core conditions attached to a drug and alcohol treatment order are that, while the treatment and supervision part of the order operates, the offender—
 - (a) must not commit, whether in or outside Victoria, another offence punishable on conviction by imprisonment; and
 - (b) must attend the Drug Court when required by the Drug Court to do so; and
 - (c) must report to a specified community corrections centre or other specified place within 2 clear working days after the order is made; and
 - (d) must undergo treatment for drug or alcohol dependency as specified in the order or from time to time by—
 - (i) the Drug Court; or

- (ii) a specified community corrections officer; or
 - (iii) a specified Drug Court officer; and
 - (e) must report to, and accept visits from, a specified community corrections officer or specified Drug Court officer; and
 - (f) must give notice of any change of address within 2 clear working days before the change, unless there are special circumstances, to—
 - (i) the Drug Court; or
 - (ii) a specified community corrections officer; or
 - (iii) a specified Drug Court officer; and
 - (g) must not leave Victoria except with the permission, granted either generally or in a particular case, of one of the following—
 - (i) the Drug Court;
 - (ii) a specified community corrections officer;
 - (iii) a specified Drug Court officer; and
 - (h) must obey all lawful instructions and directions of the Drug Court, community corrections officers or specified Drug Court officers.
- (2) A drug and alcohol treatment order must have all the core conditions attached to it and the offender must comply with all of those conditions.

S. 18ZF(2)
amended by
No. 43/2020
s. 18.

S. 18ZG
inserted by
No. 2/2002
s. 5.

18ZG Program conditions

S. 18ZG(1)
amended by
No. 43/2020
s. 19(1).

- (1) The program conditions that may be attached to a drug and alcohol treatment order are that, while the treatment and supervision part of the order operates, the offender—
- (a) must submit to drug or alcohol testing as specified in the order; and
 - (b) must submit to detoxification or other treatment specified in the order (whether or not residential in nature); and
 - (c) must attend vocational, educational, employment or other programs as specified in the order; and
 - (d) must submit to medical, psychiatric or psychological treatment as specified in the order; and
 - (e) must not associate with specified persons; and
 - (f) must reside at a specified place for a specified period; and
 - (g) must do or not do anything else that the Drug Court considers necessary or appropriate concerning—
 - (i) the offender's drug or alcohol dependency; or
 - (ii) the personal factors that the Drug Court considers contributed to the offender's criminal behaviour.

**Note to
s. 18ZG(1)**
inserted by
No. 43/2020
s. 19(2).

Note

Section 18ZC(7) sets out the period during which the treatment and supervision part of a drug and alcohol treatment order operates.

(2) The Drug Court must attach to a drug and alcohol treatment order at least one program condition but must not attach any more program conditions than it considers necessary to achieve the purposes for which the order is made.

S. 18ZG(2)
amended by
No. 43/2020
s. 19(1).

(3) An offender must comply with all of the program conditions attached to the drug and alcohol treatment order.

S. 18ZG(3)
amended by
No. 43/2020
s. 19(1).

* * * * *

S. 18ZGA
inserted by
No. 30/2010
s. 10,
repealed by
No. 48/2011
s. 17.

18ZH Variation on assessing offender's progress

S. 18ZH
inserted by
No. 2/2002
s. 5.

(1) The Drug Court may vary the treatment and supervision part of a drug and alcohol treatment order from time to time if the Drug Court considers it appropriate to do so based on its assessment of the offender's progress.

S. 18ZH(1)
amended by
No. 43/2020
s. 20(1).

Note

The Drug Court may also vary the treatment and supervision part of a drug and alcohol treatment order under section 18ZJ, 18ZL or 18ZN.

Note to
s. 18ZH(1)
amended by
No. 43/2020
s. 20(1).

(2) The Drug Court may do so on its own initiative or on the application of—

(a) the offender; or

(b) the informant, the police prosecutor, or the prosecution (as the case requires); or

S. 18ZH(2)(b)
substituted by
No. 43/2020
s. 20(2).

(c) a prescribed person or a person in a prescribed class of persons.

- (3) The treatment and supervision part of the order may be varied by—
- (a) adding or removing program conditions; or
 - (b) varying one or more core conditions, other than the condition referred to in section 18ZF(1)(a), or program conditions, for example to vary—
 - (i) the frequency of treatment; or
 - (ii) the degree of supervision; or
 - (iii) the frequency of drug or alcohol testing; or
 - (iv) the type or frequency of vocational, educational, employment or other programs that the offender must attend.

S. 18ZI
inserted by
No. 2/2002
s. 5.

18ZI Case conferences

S. 18ZI(1)
amended by
No. 43/2020
s. 21(1)(2).

- (1) For the purpose of being informed from time to time about the progress being made by an offender subject to a drug and alcohol treatment order, the judicial officer constituting the Drug Court may convene a case conference.

S. 18ZI(2)
amended by
Nos 18/2005
s. 18(Sch. 1
item 97.2),
43/2020
s. 21(2).

- (2) A case conference may be attended by a lawyer, a prosecutor, a health service provider, a community corrections officer or anyone else whom the judicial officer thinks should attend.

S. 18ZI(3)
amended by
Nos 65/2016
s. 7, 43/2020
s. 21(1).

- (3) For the purposes of section 104ZY of the **Corrections Act 1986**, a relevant person referred to in that section who discloses at a case conference information about an offender subject to a drug and alcohol treatment order is taken to be performing his or her official duties.

- (4) No objection can be taken to a judicial officer subsequently constituting the Drug Court in a proceeding on the ground that he or she had previously convened a case conference in relation to the proceeding.

S. 18Z(4)
amended by
No. 43/2020
s. 21(2).

- (5) In this section—

judicial officer means—

S. 18Z(5)
inserted by
No. 43/2020
s. 21(3).

- (a) for the Drug Court Division of the Magistrates' Court, a magistrate; or
- (b) for the Drug Court Division of the County Court, a judicial registrar, associate judge, or judge of the County Court.

18ZJ Rewards for complying with conditions

S. 18ZJ
inserted by
No. 2/2002
s. 5.

- (1) The Drug Court may, on its own initiative, confer a reward from time to time on an offender who is or has been fully or substantially complying with the conditions attached to a drug and alcohol treatment order by doing one or more of the following—

S. 18ZJ(1)
amended by
No. 43/2020
s. 22.

- (a) varying the treatment and supervision part of the order under subsection (2);
- (b) varying or cancelling an order under section 18ZL(1)(c), (d) or (e);
- (c) making an order that some or all of a period for which the custodial part of the drug and alcohol treatment order is activated under section 18ZL(1)(f), but which the offender is yet to serve in a secure custody facility, is no longer activated;
- (d) conferring on the offender any other reward that the Drug Court considers appropriate.

S. 18ZJ(1)(c)
amended by
No. 43/2020
s. 22.

- (2) The treatment and supervision part of the order may be varied by—
- (a) adding or removing program conditions; or
 - (b) varying one or more core conditions, other than the condition referred to in section 18ZF(1)(a), or program conditions, for example to reduce—
 - (i) the frequency of treatment; or
 - (ii) the degree of supervision; or
 - (iii) the frequency of drug or alcohol testing.

S. 18ZK
inserted by
No. 2/2002
s. 5.

18ZK Cancellation as a reward

S. 18ZK(1)
amended by
No. 43/2020
s. 23(1)(3).

- (1) Subject to subsection (1A), the Drug Court may, on its own initiative, as a reward cancel the treatment and supervision part and custodial part of a drug and alcohol treatment order if it considers that—
- (a) the offender has to date fully or substantially complied with the conditions attached to the order; and
 - (b) the continuation of the order is no longer necessary to meet the purposes for which it was made.

S. 18ZK(1A)
inserted by
No. 43/2020
s. 23(2).

- (1A) The Drug Court Division of the County Court must not as a reward cancel the treatment and supervision part and custodial part of a drug and alcohol treatment order after the program conditions have ceased to operate.

- (2) To avoid doubt, if the Drug Court cancels the treatment and supervision part and custodial part of a drug and alcohol treatment order under this section any earlier orders activating the custodial part of the order cease to have effect.

S. 18ZK(2)
amended by
No. 43/2020
s. 23(3).

18ZL Failure to comply with conditions

S. 18ZL
inserted by
No. 2/2002
s. 5.

- (1) If the Drug Court is satisfied on the balance of probabilities that an offender has, without reasonable excuse, failed to comply with a condition attached to a drug and alcohol treatment order (other than by committing an offence punishable on conviction by imprisonment for more than 12 months) the Drug Court must take one of the following actions—
- (a) confirm the treatment and supervision part of the order;
 - (b) vary that part of the order under subsection (3);
 - (c) order that a curfew, requiring the offender to remain at a specified place between specified hours, applies to the offender for a specified period;
 - (d) order that the offender perform up to 20 hours of unpaid community work as directed by the Regional Manager of the region in which the community corrections centre specified in the order is located;
 - (e) order that the offender remain at a specified place, other than a secure custody facility, for a specified period of up to 14 days;

S. 18ZL(1)
amended by
No. 43/2020
s. 24(1).

S. 18ZL(1)(f)
amended by
No. 43/2020
s. 24(1).

- (f) subject to section 18ZM, order that the custodial part of the drug and alcohol treatment order is activated for a specified period of between one and 7 days to be served in a secure custody facility.

Notes to
s. 18ZL(1)
amended by
No. 43/2020
s. 24(1).

Notes

- 1 If the offender commits an offence punishable on conviction by imprisonment for more than 12 months, see section 18ZN.
 - 2 Section 18ZE sets out how much of the custodial part of a drug and alcohol treatment order can be activated.
 - 3 For *secure custody facility* see section 3(1).
- (2) In deciding which action to take under subsection (1), the Drug Court must consider each of the actions in the order in which they appear and must only take the first action that the Court considers to be appropriate in the circumstances.
- (3) The treatment and supervision part of the order may be varied by—
- (a) adding or removing program conditions; or
 - (b) varying one or more core conditions, other than the condition referred to in section 18ZF(1)(a), or program conditions, for example to increase—
 - (i) the frequency of treatment; or
 - (ii) the degree of supervision; or
 - (iii) the frequency of drug or alcohol testing.
- (4) If the Drug Court is satisfied on the balance of probabilities that an offender who is subject to an order under subsection (1)(c), (d) or (e) has failed to comply with the order, the Drug Court must take one of the following actions—
- (a) confirm or vary that order;

- (b) cancel that order and take any action under subsection (1), including making another order of the same kind, as though the offender had failed to comply with a condition attached to the drug and alcohol treatment order.

S. 18ZL(4)(b)
amended by
No. 43/2020
s. 24(1).

Note

In addition, the Drug Court may cancel the treatment and supervision part of the drug and alcohol treatment order and may also cancel the custodial part of that order (see section 18ZP).

Note to
s. 18ZL(4)(b)
amended by
No. 43/2020
s. 24(1).

- (5) The Drug Court may take an action under subsection (1) or (4) on its own initiative or on an application by—

- (a) the informant, the police prosecutor, or the prosecution (as the case requires); or

S. 18ZL(5)(a)
substituted by
No. 43/2020
s. 24(2).

- (b) a prescribed person or a person in a prescribed class of persons.

18ZM Service in a secure custody facility

S. 18ZM
inserted by
No. 2/2002
s. 5.

- (1) The Drug Court may only make an order under section 18ZL(1)(f) if it is satisfied beyond reasonable doubt that the offender has failed to comply with the condition attached to the drug and alcohol treatment order.

S. 18ZM(1)
amended by
No. 43/2020
s. 25(1).

- (2) If the Drug Court makes an order under that section, it—

- (a) must specify in the order the kind of secure custody facility in which the period is to be served; and

S. 18ZM(2)(b)
amended by
No. 48/2006
s. 42(Sch.
item 32.3).

(b) must only specify a youth justice centre if the offender is a young offender and the Drug Court considers it appropriate to do so.

(3) An offender can only be required to serve a period in a secure custody facility in accordance with an order under section 18ZL(1)(f) when—

- (a) the period under the order under section 18ZL(1)(f); or
- (b) the total of the periods for which the custodial part is activated under 2 or more such orders and which the offender has not yet served—

is at least 7 days, not including so much of the period or periods as is no longer activated because of an order under section 18ZJ(1)(c).

Note to
s. 18ZM(3)
amended by
No. 43/2020
s. 25(1).

Note

An order may be made under section 18ZJ(1)(c) as a reward for complying with the conditions attached to a drug and alcohol treatment order.

(4) Before the Drug Court makes an order under section 18ZL(1)(f), notice of the hearing concerning the making of the order must be given to—

- (a) the offender; and
- (b) the informant, the police prosecutor, or the prosecution (as the case requires); and
- (c) the prescribed person or the person in the prescribed class of persons—

and the Drug Court may order that a warrant to arrest be issued against the offender if he or she does not attend for the hearing.

S. 18ZM(4)(b)
substituted by
No. 43/2020
s. 25(2).

(5) If the Drug Court makes an order under section 18ZL(1)(f) the Drug Court may, for the purposes of giving effect to that order, issue a warrant to imprison the offender under section 68 of the **Magistrates' Court Act 1989**.

(6) The Drug Court Division of the County Court may exercise any power conferred under the **Magistrates' Court Act 1989** with respect to the issue, recall or cancellation of a warrant issued under subsection (5), or a duplicate copy of such a warrant.

S. 18ZM(6)
inserted by
No. 43/2020
s. 25(3).

18ZN Commission of certain offences

S. 18ZN
inserted by
No. 2/2002
s. 5.

(1) If the Drug Court is satisfied beyond reasonable doubt that an offender has failed to comply with a condition attached to a drug and alcohol treatment order, by committing an offence punishable on conviction by imprisonment for more than 12 months, the Drug Court must—

S. 18ZN(1)
amended by
No. 43/2020
s. 26(1).

(a) take any of the actions under section 18ZL(1) as though the offender had failed to comply with any other condition attached to the order; or

S. 18ZN(1)(a)
amended by
No. 35/2002
s. 28(Sch.
item 5.1).

(b) cancel the treatment and supervision part of the order and, after taking into account the extent to which the offender complied with that part of the order—

(i) make an order activating some or all of the custodial part of the drug and alcohol treatment order; or

S. 18ZN
(1)(b)(i)
amended by
No. 43/2020
s. 26(1).

S. 18ZN
(1)(b)(ii)
amended by
No. 43/2020
s. 26(1).

- (ii) cancel the custodial part of the drug and alcohol treatment order and deal with the offender for each offence in respect of which the drug and alcohol treatment order was made in any way in which the Drug Court could deal with the offender if it had just convicted him or her of each offence, other than by making an order under section 7(1)(a).

Notes to
s. 18ZN(1)
amended by
No. 43/2020
s. 26(1).

Notes

- 1 Section 18ZE sets out how much of the custodial part of a drug and alcohol treatment order can be activated.
 - 2 The Drug Court may be required to take an action under paragraph (b) because of section 18ZO(3).
- (2) The Drug Court may take an action under subsection (1) on its own initiative or on an application by—
- (a) the informant, the police prosecutor, or the prosecution (as the case requires); or

S. 18ZN(2)(a)
substituted by
No. 43/2020
s. 26(2).

- (b) a prescribed person or a person in a prescribed class of persons.

S. 18ZN(3)
amended by
No. 43/2020
s. 26(1).

- (3) Before the Drug Court cancels the treatment and supervision part of a drug and alcohol treatment order under subsection (1) (whether or not it also cancels the custodial part), notice of the hearing concerning the cancellation must be given to—

S. 18ZN(3)(b)
substituted by
No. 43/2020
s. 26(3).

- (a) the offender; and
- (b) the informant, the police prosecutor, or the prosecution (as the case requires); and

(c) the prescribed person or the person in the prescribed class of persons—

and the Drug Court may order that a warrant to arrest be issued against the offender if he or she does not attend for the hearing.

(3A) If notice of the hearing concerning the cancellation of the treatment and supervision part of a drug and alcohol treatment order—

S. 18ZN(3A)
inserted by
No. 30/2005
s. 8(1),
amended by
No. 43/2020
s. 26(1).

(a) has been given to the offender or has been, to the satisfaction of the Drug Court, attempted to be given to the offender but the attempt is not successful; and

(b) the offender does not attend for the hearing—

then the treatment and supervision part of the drug and alcohol treatment order is suspended and the period between the failure to attend the hearing and the day on which the offender does attend the Drug Court for the hearing does not count in calculating the period for which that part of the order operates.

(4) To avoid doubt, if the Drug Court cancels the treatment and supervision part or custodial part of a drug and alcohol treatment order under this section, any earlier orders activating the custodial part of the order cease to have effect.

S. 18ZN(4)
amended by
No. 43/2020
s. 26(1).

18ZO Drug Court may hear and determine certain offences

S. 18ZO
inserted by
No. 2/2002
s. 5.

(1) If an offender who is subject to a drug and alcohol treatment order made by the Drug Court Division of the Magistrates' Court is charged with an offence that is within the jurisdiction of the Magistrates' Court—

S. 18ZO(1)
substituted by
No. 43/2020
s. 27(1).

- (a) the Drug Court Division of the Magistrates' Court may hear and determine the offence; and
- (b) for the purposes of the **Magistrates' Court Act 1989**, the Drug Court Division of the Magistrates' Court is taken to be the proper venue in relation to the proceeding for that offence.

S. 18ZO(1A)
inserted by
No. 43/2020
s. 27(1).

- (1A) If an offender who is subject to a drug and alcohol treatment order made by the Drug Court Division of the County Court is charged with, and pleads guilty to, an offence that is within the jurisdiction of the Magistrates' Court—
 - (a) the Magistrates' Court must order that the proceeding in respect of the charge is transferred to the Drug Court Division of the County Court; and
 - (b) the Drug Court Division of the County Court may deal with the offender for that offence.

S. 18ZO(1B)
inserted by
No. 43/2020
s. 27(1).

- (1B) If an offender who is subject to a drug and alcohol treatment order made by the Drug Court Division of the County Court is charged with an offence that is within the jurisdiction of the County Court, the Drug Court Division of the County Court may hear and determine the offence.

S. 18ZO(1C)
inserted by
No. 43/2020
s. 27(1).

- (1C) For the purposes of subsections (1), (1A) and (1B), it does not matter whether the offence with which the offender is charged is alleged to have been committed before or after the drug and alcohol treatment order was made.

S. 18ZO(1D)
inserted by
No. 43/2020
s. 27(1),
amended by
No. 12/2024
s. 64.

- (1D) Subsections (1A) and (1B) do not apply after the fifth anniversary of the commencement of section 3 of the **Justice Legislation Amendment (Drug Court and Other Matters) Act 2020**.

- (2) If—
- (a) the Drug Court convicts the offender of the offence and imposes a sentence of imprisonment on the offender in respect of the offence; and S. 18ZO(2) amended by No. 43/2020 s. 27(2).
 - (b) the Drug Court does not suspend the sentence in whole or in part; and S. 18ZO(2)(b) substituted by No. 65/2011 s. 14(1).
 - (c) the length of the sentence imposed is not more than the remaining length of the custodial part of the drug and alcohol treatment order (as calculated in accordance with section 18ZE(2)(a)); and S. 18ZO(2)(c) amended by No. 43/2020 s. 27(2).
 - (d) the offence is a kind of offence in respect of which the Drug Court could make a drug and alcohol treatment order if the offender were not already subject to one— S. 18ZO(2)(d) amended by No. 43/2020 s. 27(2).
- in imposing the sentence, the Drug Court may order that the sentence is subsumed within the custodial part of the drug and alcohol treatment order.
- (3) If—
- (a) the Drug Court convicts the offender of the offence and imposes a sentence of imprisonment on the offender in respect of the offence; and S. 18ZO(3) amended by No. 43/2020 s. 27(2).
 - (b) the Drug Court does not suspend the sentence in whole or in part; and S. 18ZO(3)(b) substituted by No. 65/2011 s. 14(2).
 - (c) the Drug Court does not order under subsection (2) that the sentence is subsumed within the custodial part of the drug and alcohol treatment order— S. 18ZO(3)(c) amended by No. 43/2020 s. 27(2).

the Drug Court must cancel the treatment and supervision part of the drug and alcohol treatment order under section 18ZN(1)(b) and take an action under subparagraph (i) or (ii) of that section.

S. 18ZP
inserted by
No. 2/2002
s. 5.

18ZP Cancellation

S. 18ZP(1)
amended by
No. 43/2020
s. 28(1).

(1) The Drug Court may cancel the treatment and supervision part of a drug and alcohol treatment order if it is satisfied on the balance of probabilities that—

S. 18ZP(1)(a)
amended by
No. 43/2020
s. 28(1).

- (a) before the order was made, the offender's circumstances were not accurately presented to either the Drug Court or the author of the drug and alcohol treatment order assessment report on the offender; or
- (b) the offender will not be able to comply with a condition attached to the order because the circumstances of the offender have materially changed since the order was made; or
- (c) the offender is no longer willing to comply with one or more conditions attached to the order; or
- (d) the continuation of the treatment and supervision part of the order is not likely to achieve one or more of the purposes for which the order was made; or
- (e) the offender has breached an order under subsection 18ZL(1)(c), (d) or (e).

Note

The Drug Court may also cancel the treatment and supervision part of the order under section 18ZK or 18ZN.

(2) When cancelling the treatment and supervision part of the order under subsection (1), the Drug Court must, after taking into account the extent to which the offender complied with that part of the order, take one of the following actions—

(a) make an order activating some or all of the custodial part of the drug and alcohol treatment order;

S. 18ZP(2)(a)
amended by
No. 43/2020
s. 28(1).

(b) cancel the custodial part of the drug and alcohol treatment order and deal with the offender for each offence in respect of which the drug and alcohol treatment order was made in any way in which the Drug Court could deal with the offender if it had just convicted him or her of each offence, other than by making an order under section 7(1)(a).

S. 18ZP(2)(b)
amended by
No. 43/2020
s. 28(1).

Note

Section 18ZE sets out how much of the custodial part of a drug and alcohol treatment order can be activated.

Note to
s. 18ZP(2)(b)
amended by
No. 43/2020
s. 28(1).

(3) The Drug Court may take an action under subsection (1) or (2) on its own initiative or on the application of—

(a) the offender; or

(b) the informant, the police prosecutor, or the prosecution (as the case requires); or

S. 18ZP(3)(b)
substituted by
No. 43/2020
s. 28(2).

(c) a prescribed person or a person in a prescribed class of persons.

(4) Before the Drug Court cancels the treatment and supervision part of a drug and alcohol treatment order (whether or not it also cancels the custodial part), notice of the hearing concerning the cancellation must be given to—

S. 18ZP(4)
amended by
No. 43/2020
s. 28(1).

S. 18ZP(4)(b)
substituted by
No. 43/2020
s. 28(3).

- (a) the offender; and
- (b) the informant, the police prosecutor, or the prosecution (as the case requires); and

- (c) the prescribed person or the person in the prescribed class of persons—

and the Drug Court may order that a warrant to arrest be issued against the offender if he or she does not attend for the hearing.

S. 18ZP(4A)
inserted by
No. 30/2005
s. 8(2),
amended by
No. 43/2020
s. 28(1).

- (4A) If notice of the hearing concerning the cancellation of the treatment and supervision part of a drug and alcohol treatment order—

- (a) has been given to the offender or has been, to the satisfaction of the Drug Court, attempted to be given to the offender but the attempt is not successful; and
 - (b) the offender does not attend for the hearing—

then the treatment and supervision part of the drug and alcohol treatment order is suspended and the period between the failure to attend the hearing and the day on which the offender does attend the Drug Court for the hearing does not count in calculating the period for which that part of the order operates.

S. 18ZP(5)
amended by
No. 43/2020
s. 28(1).

- (5) To avoid doubt, if the Drug Court cancels the treatment and supervision part or custodial part of a drug and alcohol treatment order under this section, any earlier orders activating the custodial part of the order cease to have effect.

18ZQ Drug and alcohol treatment order assessment reports

S. 18ZQ
(Heading)
amended by
No. 43/2020
s. 29(1).

S. 18ZQ
inserted by
No. 2/2002
s. 5.

(1) If the Drug Court is considering making a drug and alcohol treatment order at any stage after an accused has indicated an intention to plead guilty to an offence, or has pleaded guilty to an offence, it must—

S. 18ZQ(1)
amended by
Nos 68/2009
s. 97(Sch.
item 110.20
(a)), 43/2020
s. 29(2).

(a) order a drug and alcohol treatment order assessment report on the accused; and

S. 18ZQ(1)(a)
amended by
Nos 68/2009
s. 97(Sch.
item 110.20
(b)), 43/2020
s. 29(2).

(b) adjourn the proceeding to enable the report to be prepared by a specified Drug Court officer.

(2) The purpose of a drug and alcohol treatment order assessment report is—

S. 18ZQ(2)
amended by
No. 43/2020
s. 29(2).

(a) to establish whether the accused is a suitable person to be subject to a drug and alcohol treatment order; and

S. 18ZQ(2)(a)
amended by
Nos 68/2009
s. 97(Sch.
item 110.21),
43/2020
s. 29(2).

(b) if so—

(i) to prepare a case management plan for the accused; and

S. 18ZQ
(2)(b)(i)
amended by
No. 68/2009
s. 97(Sch.
item 110.21).

S. 18ZQ
(2)(b)(iii)
amended by
Nos 68/2009
s. 97(Sch.
item 110.21),
43/2020
s. 29(2).

S. 18ZQ(3)
amended by
No. 68/2009
s. 97(Sch.
item 110.22).

S. 18ZQ(4)
substituted by
No. 68/2009
s. 97(Sch.
item 110.23),
amended by
No. 43/2020
s. 29(2).

- (ii) to establish whether the facilities necessary to implement that plan exist and, if so, to identify those facilities; and
 - (iii) to make recommendations to the Drug Court on the program conditions that should be attached to a drug and alcohol treatment order in respect of the accused.
- (3) If the Drug Court grants an accused bail on an adjournment under subsection (1) it must, for the purpose of facilitating the preparation of the report, impose a condition of bail requiring the accused to—
- (a) report to the specified Drug Court officer, or other specified person or body, within a specified period; and
 - (b) comply with any further reporting requirements imposed by that officer, person or body.
- (4) A drug and alcohol treatment order assessment report may set out all or any of the following matters which, on investigation, appear to the specified Drug Court officer to be relevant to the assessment of the accused and are readily ascertainable by the officer—
- (a) the age of the accused;
 - (b) the social history and background of the accused;
 - (c) the medical and psychiatric history of the accused, including details of any treatment the accused has undergone for drug or alcohol dependency;
 - (d) the educational background of the accused;
 - (e) the employment history of the accused;

- (f) the circumstances of any other offences of which the accused has been found guilty;
 - (g) the extent to which the accused—
 - (i) has complied with any sentence that is no longer in force in respect of the accused; and
 - (ii) is complying with any sentence currently in force in respect of the accused;
 - (h) the financial circumstances of the accused;
 - (i) the housing history and needs of the accused;
 - (j) any special needs of the accused;
 - (k) any course, program, treatment, therapy or other assistance that could be available to the offender and from which he or she may benefit.
- (5) The specified Drug Court officer must include in the report any other matter relevant to the accused which the Drug Court has directed to be set out in the report. S. 18ZQ(5)
amended by
No. 68/2009
s. 97(Sch.
item 110.24).
- (6) The report must be filed with the Drug Court no later than the time directed by the Court.
- (7) Within a reasonable time after the report is filed and before a drug and alcohol treatment order is made, the specified Drug Court officer must provide a copy of the report to—S. 18ZQ(7)
amended by
No. 43/2020
s. 29(2).
- (a) the prosecutor; and
 - (b) the legal practitioner of the accused; and S. 18ZQ(7)(b)
amended by
No. 68/2009
s. 97(Sch.
item 110.25).

S. 18ZQ(7)(c)
amended by
No. 68/2009
s. 97(Sch.
item 110.26).

(c) if the Drug Court directs the officer to do so,
the accused.

S. 18ZQ(8)
amended by
No. 43/2020
s. 29(2).

(8) The prosecution or defence may file with the Drug Court a notice of intention to dispute all or any part of a drug and alcohol treatment order assessment report.

S. 18ZQ(9)
amended by
No. 43/2020
s. 29(2).

(9) If a notice is filed before a drug and alcohol treatment order is made, the Drug Court must not take the disputed report or disputed part of the report into consideration when making the order unless the party that filed the notice has been given the opportunity—

- (a) to lead evidence on the disputed matters; and
- (b) to cross-examine the specified Drug Court officer on its contents.

S. 18ZQ(10)
amended by
Nos 68/2009
s. 97(Sch.
item 110.27),
65/2016 s. 8,
43/2020
s. 29(2).

(10) For the purposes of section 104ZY of the **Corrections Act 1986**, a relevant person referred to in that section who discloses to the specified Drug Court officer information about the accused for the purposes of the preparation of a drug and alcohol treatment order assessment report is taken to be performing his or her official duties.

S. 18ZR
(Heading)
amended by
No. 43/2020
s. 30(1).

18ZR Appeals from Magistrates' Court

S. 18ZR
inserted by
No. 2/2002
s. 5.

S. 18ZR(1)
amended by
Nos 68/2009
s. 97(Sch.
item 110.28),
43/2020
s. 30(2)(11).

(1) On the hearing of an appeal under section 254 or 257 of the **Criminal Procedure Act 2009** against a sentence imposed by the Magistrates' Court (including the Drug Court Division of the

Magistrates' Court), the County Court cannot itself make a drug and alcohol treatment order, despite anything to the contrary in section 256(2) or 259(2) (as the case requires) of that Act.

- (2) Part 6.1 of Chapter 6 of the **Criminal Procedure Act 2009** applies with respect to appeals to the County Court against any sentence imposed by the Drug Court Division of the Magistrates' Court with the following modifications—
- (a) an appeal does not lie against—
- (i) a refusal of the Drug Court to make a drug and alcohol treatment order; or S. 18ZR(2) amended by Nos 68/2009 s. 97(Sch. item 110.29), 43/2020 s. 30(3).
 - (ii) a finding that an offender has failed to comply with a condition attached to a drug and alcohol treatment order; or S. 18ZR(2)(a)(ii) amended by No. 43/2020 s. 30(11).
 - (iii) the variation of the treatment and supervision part of a drug and alcohol treatment order; or S. 18ZR(2)(a)(iii) amended by No. 43/2020 s. 30(11).
 - (iv) the cancellation of the treatment and supervision part, or the custodial part, of a drug and alcohol treatment order; S. 18ZR(2)(a)(iv) amended by No. 43/2020 s. 30(11).
- (b) if the appeal is against the custodial part of the drug and alcohol treatment order and not against the treatment and supervision part of the order, the appeal does not operate as a stay of the drug and alcohol treatment order, unless the County Court so orders. S. 18ZR(2)(b) amended by No. 43/2020 s. 30(11).

S. 18ZR(3)
amended by
Nos 68/2009
s. 97(Sch.
item 110.30),
43/2020
s. 30(4)(11).

- (3) For the purposes of Part 6.1 of Chapter 6 of the **Criminal Procedure Act 2009** an order under this Subdivision activating some or all of the custodial part of a drug and alcohol treatment order is taken to be a sentence imposed by the Drug Court Division of the Magistrates' Court.

S. 18ZR(4)
amended by
Nos 68/2009
s. 97(Sch.
item 110.31
(a)), 43/2020
s. 30(5)(11).

- (4) Despite subsection (1), on the hearing of an appeal under section 254 or 257 of the **Criminal Procedure Act 2009** against a drug and alcohol treatment order made by the Drug Court Division of the Magistrates' Court, the County Court may—

S. 18ZR(4)(a)
amended by
Nos 68/2009
s. 97(Sch.
item 110.31
(b)), 43/2020
s. 30(11).

- (a) re-instate the drug and alcohol treatment order set aside by it under section 256(2)(a) or section 259(2)(a) of that Act (as the case requires); or

S. 18ZR(4)(b)
amended by
Nos 68/2009
s. 97(Sch.
item 110.31
(b)), 43/2020
s. 30(11).

- (b) if the appeal is against the custodial part of the drug and alcohol treatment order, re-instate that part set aside by it under section 256(2)(a) or section 259(2)(a) of that Act (as the case requires) or vary the drug and alcohol treatment order by increasing or reducing the length of the sentence of imprisonment.

S. 18ZR(5)
amended by
Nos 68/2009
s. 97(Sch.
item 110.32),
43/2020
s. 30(6)(11).

- (5) On the hearing of an appeal under section 254 or 257 of the **Criminal Procedure Act 2009** against a sentence imposed by the Magistrates' Court (other than the Drug Court Division of the Magistrates' Court) at a particular venue of that Court, if the County Court considers that the making of a drug and alcohol treatment order may be appropriate, it may refer the matter to the at Drug Court Division of the Magistrates' Court that or another venue for consideration of the making of such an order, with or without any direction in law.

- (6) However, if the offender has a usual place of residence, the County Court may only refer a matter under subsection (5) to the Drug Court Division of the Magistrates' Court at a venue if the offender's usual place of residence is within a postcode area specified, in relation to that venue, by the Minister by notice published in the Government Gazette.
- (7) Despite anything to the contrary in the **Magistrates' Court Act 1989**, a venue of the Magistrates' Court to which a matter is referred under subsection (5) is the proper venue of that Court in relation to that matter for the purposes of that Act.
- (8) If a matter is referred to the Drug Court Division of the Magistrates' Court under subsection (5) but the Drug Court Division of the Magistrates' Court determines not to make a drug and alcohol treatment order, the Drug Court Division of the Magistrates' Court must remit the matter to the County Court for the making of any order under section 256(2)(a) or section 259(2)(a) of the **Criminal Procedure Act 2009** (as the case requires) which the County Court can make.
- (9) If a matter is referred to the Drug Court Division of the Magistrates' Court under subsection (5) and the Drug Court Division of the Magistrates' Court makes a drug and alcohol treatment order, the order has effect for the purposes of Part 6.1 of Chapter 6 of the **Criminal Procedure Act 2009** as if it were a sentence imposed by the County Court on the hearing of the appeal but for all other purposes has effect as an order of the Drug Court Division of the Magistrates' Court.
- S. 18ZR(6)
amended by
No. 43/2020
s. 30(7).
- S. 18ZR(8)
amended by
Nos 68/2009
s. 97(Sch.
item 110.33),
43/2020
s. 30(8)(11).
- S. 18ZR(9)
amended by
Nos 68/2009
s. 97(Sch.
item 110.34),
45/2020
s. 30(9)(11).

S. 18ZR(10)
inserted by
No. 3/2016
s. 57,
amended by
Nos 43/2020
s. 30(10),
1/2022 s. 81.

- (10) In this section, a reference to the County Court is to be construed as a reference to the Court of Appeal if the appeal is from the Magistrates' Court or the Drug Court Division of the Magistrates' Court constituted by the Chief Magistrate who is a dual commission holder.

S. 18ZS
inserted by
No. 2/2002
s. 5.

18ZS Immunity from prosecution for certain offences

- (1) A person is not liable to prosecution for any offence comprising the unlawful possession or use of drugs of addiction—

S. 18ZS(1)(a)
amended by
No. 43/2020
s. 31(1).

- (a) as a result of any admission made in connection with any assessment of the eligibility of the person for the making of a drug and alcohol treatment order; or

S. 18ZS(1)(b)
amended by
No. 43/2020
s. 31(1)(2).

- (b) as a result of any admission made in connection with the assessment by the Drug Court, or at a case conference convened under section 18ZI(1) by the judicial officer constituting the Drug Court, of the person's progress under a drug and alcohol treatment order.

- (2) Subsection (1) does not prevent a prosecution for any offence comprising the unlawful possession or use of drugs of addiction if there is evidence, other than the admission or evidence obtained as a result of the admission, to support a charge.
- (3) The admission, and any evidence obtained as a result of the admission, is not admissible against the person in a prosecution referred to in subsection (2).

S. 18ZS(4)
inserted by
No. 43/2020
s. 31(3).

- (4) In this section—

judicial officer means—

- (a) for the Drug Court Division of the Magistrates' Court, a magistrate; or

- (b) for the Drug Court Division of the County Court, a judicial registrar, an associate judge or a judge of the County Court.

18ZT Order made by Court of Appeal

For the purposes of any proceeding under this Subdivision—

- (a) a drug and alcohol treatment order made by the Court of Appeal on an appeal must be taken to have been made by the court from whose decision the appeal was brought; and
- (b) the provisions about proceedings under this Subdivision apply as if the court from which the appeal was made were the sentencing court.

*

*

*

*

*

New s. 18ZT
inserted by
No. 26/2012
s. 29.

S. 18ZT(a)
amended by
No. 43/2020
s. 32.

Pt 3 Div. 2
Subdiv. (1D)
(Heading and
ss 18ZT–
18ZZR)
inserted by
No. 53/2003
s. 5,
amended by
Nos 97/2005
s. 182(Sch. 4
item 45.1),
52/2008 s. 265,
68/2008 s. 82,
13/2010
s. 51(Sch.
item 49.1),
repealed by
No. 30/2010
s. 11.

Sentencing Act 1991
No. 49 of 1991
Part 3—Sentences

Pt 3 Div. 2
Subdiv. (2)
(Heading and
ss 19–26)
amended by
Nos 41/1993
s. 10(1)(2),
45/1996
s. 18(Sch. 2
items 11.5–
11.8),
48/1997 ss 13,
28(2),
10/1999 s. 30,
19/1999 s. 7,
68/2009
s. 97(Sch.
items 110.35–
110.38),
30/2010 s. 12,
48/2011 s. 18,
repealed by
No. 65/2011
s. 15.

* * * *

Pt 3 Div. 2
Subdiv. (2A)
(Heading and
ss 26L–26ZR)
inserted by
No. 30/2010
s. 14,
amended by
No. 53/2010
s. 221(Sch.
items 10.2–
10.5),
repealed by
No. 48/2011
s. 19.

* * * *

Sentencing Act 1991
No. 49 of 1991
Part 3—Sentences

*

*

*

*

*

Pt 3 Div. 2
Subdiv. (3)
(Heading and
ss 27–31)
amended by
Nos 23/1994
s. 118(Sch. 1
item 51),
48/1997
ss 14(2)–(7),
15, 10/1999
s. 30, 82/2006
ss 4–6,
68/2009
s. 97(Sch.
items 110.39–
110.43),
30/2010 ss 15,
16, 77/2010
s. 12 (as
amended by
No. 9/2011
s. 4), 48/2011
s. 20, 65/2011
ss 16–18,
26/2012 s. 30,
32/2013
ss 4, 6,
repealed by
No. 32/2013
s. 11.

Pt 3 Div. 2
Subdiv. (4)
(Heading)
amended by
Nos 48/1997
s. 17(2),
48/2006
s. 42(Sch.
item 32.4).

Subdivision (4)—Youth justice centre orders and youth residential centre orders

S. 32
(Heading)
inserted by
No. 48/2006
s. 42(Sch.
item 32.5).

32 Youth justice centre or youth residential centre order¹⁴

S. 32(1)
amended by
Nos 48/1997
ss 16(2), 17(3),
48/2006
s. 42(Sch.
item 32.6),
43/2017
s. 21(1),
48/2018
s. 84(2).

- (1) Subject to subsections (2A), (2B), (2C) and (2D), if a sentence involving confinement is justified in respect of a young offender a court may make a youth justice centre order or a youth residential centre order if it has received a pre-sentence report and—
- (a) it believes that there are reasonable prospects for the rehabilitation of the young offender;
or
 - (b) it believes that the young offender is particularly impressionable, immature or likely to be subjected to undesirable influences in an adult prison.

S. 32(2)
amended by
Nos 48/1997
s. 17(3),
48/2006
s. 42(Sch.
item 32.6),
48/2018
s. 84(3).

- (2) In determining whether to make a youth justice centre order or a youth residential centre order, a court must have regard to—
- (a) the nature of the offence; and

S. 32(2)(b)
amended by
No. 48/1997
s. 16(1).

- (b) the age, character and past history of the young offender.

- (2A) A court must not make a youth justice centre order in respect of a young offender who at the time of being sentenced is under the age of 15 years. S. 32(2A)
inserted by
No. 48/1997
s. 16(3),
amended by
No. 48/2006
s. 42(Sch.
item 32.6).
- (2B) A court must not make a youth residential centre order in respect of a young offender who at the time of being sentenced is aged 15 years or more. S. 32(2B)
inserted by
No. 48/1997
s. 17(4),
amended by
No. 45/2019
s. 50(3).
- (2C) If a young offender is to be sentenced for a category A serious youth offence, a court must not make a youth justice centre order or a youth residential centre order in respect of the young offender unless the court is satisfied that exceptional circumstances exist. S. 32(2C)
inserted by
No. 43/2017
s. 21(2).
- (2D) If— S. 32(2D)
inserted by
No. 43/2017
s. 21(2).
- (a) a young offender is to be sentenced for a category B serious youth offence; and
- (b) the young offender has previously been convicted of another offence that is a category A serious youth offence or a category B serious youth offence—
- a court must not make a youth justice centre order or a youth residential centre order in respect of the young offender unless the court is satisfied that exceptional circumstances exist.
- (3) The maximum period for which a court may direct that a young offender be detained in a youth justice centre or youth residential centre is— S. 32(3)
amended by
Nos 48/1997
ss 16(4), 17(5),
48/2006
s. 42(Sch.
item 32.7).

S. 32(3)(a)
amended by
No. 48/1997
s. 16(5)(a).

(a) if the court is the Magistrates' Court—
2 years; and

S. 32(3)(b)
amended by
Nos 48/1997
s. 16(5)(b),
43/2017 s. 58.

(b) if the court is the County Court or the
Supreme Court—4 years.

S. 32(4)
amended by
No. 48/1997
s. 16(1).

(4) Subsection (3) applies irrespective of how many
offences the young offender is convicted of in the
same proceeding.

S. 32(5)
amended by
No. 48/1997
ss 16(6), 17(6).

(5) If—

S. 32(5)(a)
amended by
No. 48/1997
ss 16(4), 17(6).

(a) a sentence of detention is imposed on a
young offender already under such a
sentence; and

(b) the subsequent sentence is cumulative on the
prior sentence; and

(c) the aggregate of the periods of the unexpired
portion of the prior sentence and the
subsequent sentence exceeds the relevant
maximum period set out in subsection (3)—

the subsequent sentence must be taken to be a
sentence that the young offender be detained after
the completion of the prior sentence for the period
then remaining until that maximum period is
reached.

S. 32A
inserted by
No. 43/2017
s. 8.

32A Aggregate sentence of detention

(1) This section applies if a young offender is
convicted by a court of 2 or more offences
which—

(a) are founded on the same facts; or

- (b) form, or are part of, a series of offences of the same or a similar character.
- (2) The court may impose an aggregate sentence of detention in respect of those offences in place of a separate sentence of detention in respect of all or any 2 or more of them.
- (3) The term of the aggregate sentence of detention must not exceed the total effective period of detention that could have been imposed in respect of the offences in accordance with this Act if the court had imposed a separate sentence of detention in respect of each of them.
- (4) If the court proposes to impose an aggregate sentence of detention it must, before doing so, announce in open court, in language likely to be readily understood by the young offender—
 - (a) the decision to impose an aggregate sentence and the reasons for doing so; and
 - (b) the effect of the proposed aggregate sentence.
- (5) If the court imposes an aggregate sentence of detention in respect of 2 or more offences, the court—
 - (a) is not required to identify separate events giving rise to specific charges; and
 - (b) is not required to announce—
 - (i) the sentences that would have been imposed for each offence, had separate sentences been imposed; or
 - (ii) whether those sentences would have been imposed concurrently or cumulatively.

- (6) To avoid doubt, an aggregate sentence of detention may be imposed in respect of convictions for offences that are the subject of a rolled-up charge or a representative charge.

Note

A representative charge is a charge in an indictment for an offence that is representative of a number of offences of the same type alleged to have been committed by the accused. A rolled-up charge is a charge in an indictment that alleges that the accused has committed more than one offence of the same type between specified dates.

- (7) Nothing in this section affects the requirements of section 6AAA (sentence discount for guilty plea).

33 Sentences to be concurrent unless otherwise directed¹⁵

S. 33(1)
amended by
Nos 48/1997
ss 16(7)(8),
17(7), 43/2017
s. 51(1).

- (1) Subject to subsection (1A), every term of detention imposed on a young offender by a court (except one imposed in default of payment of a fine or sum of money) must, unless otherwise directed by the court, be served concurrently with any uncompleted sentence or sentences of detention or imprisonment imposed on the young offender, whether before or at the same time as that term.

S. 33(1A)
inserted by
No. 43/2017
s. 51(2),
amended by
No. 3/2018
s. 29.

- (1A) If one or more of the offences referred to in subsection (1) is—
- (a) an offence of escape from a remand centre, a youth residential centre or a youth justice centre; or
 - (b) an offence involving property damage to a remand centre, a youth residential centre or a youth justice centre—

any period of detention imposed on the young offender for that offence or those offences must be served cumulatively with any uncompleted sentence or sentences of detention in a youth

justice centre imposed on the young offender, unless the Court, at the time of sentencing, states that the sentences are concurrent and gives reasons for its decision.

- (2) Every term of detention imposed on a young offender by a court in default of payment of a fine or sum of money must, unless otherwise directed by the court, be served—
- (a) cumulatively on any uncompleted sentence or sentences of detention or imprisonment imposed on the young offender in default of payment of a fine or sum of money; but
- (b) concurrently with any other uncompleted sentence or sentences of detention or imprisonment imposed on the young offender—

S. 33(2)
amended by
No. 48/1997
ss 16(7), 17(7).

S. 33(2)(a)
amended by
No. 48/1997
s. 16(8).

S. 33(2)(b)
amended by
No. 48/1997
s. 16(8).

whether that other sentence was, or those other sentences were, imposed before or at the same time as that term.

- (3) A sentence of detention imposed on a young offender which is to be served concurrently with a sentence of imprisonment must be served as imprisonment in a prison until the young offender has served the sentence of imprisonment.
- (4) This section has effect despite anything to the contrary in any Act.

S. 33(3)
amended by
No. 48/1997
ss 16(7)(9),
17(7).

34 Commencement of sentences¹⁶

- (1) Subject to sections 33 and 35, a sentence of detention commences—
- (a) if the young offender is immediately detained in custody under the sentence—on the day that it is imposed; or

S. 34(1)
amended by
No. 48/1997
s. 17(7).

S. 34(1)(a)
amended by
No. 48/1997
s. 16(1).

S. 34(1)(b)
amended by
No. 48/1997
s. 16(1).

(b) if the young offender is serving a sentence of imprisonment which is cumulative on the sentence of detention—on the day the sentence of imprisonment is completed; or

S. 34(1)(c)
amended by
Nos 48/1997
ss 16(1), 17(8),
48/2006
s. 42(Sch.
item 32.6.

(c) in any other case—on the day the young offender is apprehended under a warrant to detain in a youth justice centre or a youth residential centre issued in respect of the sentence.

S. 34(2)
amended by
No. 48/1997
ss 16(4), 17(7).

(2) If a young offender sentenced to a term of detention is allowed to be or to go at large for any reason, the period between then and the day on which he or she is taken into custody to undergo the sentence does not count in calculating the term to be served and service of the sentence is suspended during that period.

S. 34(3)
amended by
No. 48/1997
ss 16(4), 17(7).

(3) If a young offender lawfully detained under a sentence escapes or fails to return after an authorised absence, the period between then and the day on which he or she surrenders or is apprehended does not count in calculating the term to be served and service of the sentence is suspended during that period.

S. 34(4)
amended by
No. 48/1997
s. 17(7).

(4) Despite anything to the contrary in this or any other Act or in any rule of law or practice, a sentence of detention must be calculated exclusive of any time during which service of it is suspended under subsection (2) or (3).

S. 34(5)
amended by
No. 48/1997
ss 16(4), 17(7).

(5) If a young offender to whom subsection (3) applies is in the period during which service of the sentence is suspended under that subsection detained or imprisoned under another sentence, the unexpired portion of the suspended sentence takes effect—

- (a) if it is to be served cumulatively on the sentence or sentences he or she is then undergoing—on the day that sentence is, or those sentences are, completed; or
 - (b) in any other case—at the end of the period of suspension.
- (6) If a young offender sentenced to a term of detention and allowed to be or to go at large pending an appeal or the consideration of any question of law reserved or case stated is detained or imprisoned under another sentence at the time when the appeal, question of law or case stated is finally determined, the first-mentioned sentence or the unexpired portion of it takes effect—
 - (a) if it is to be served cumulatively on the sentence or sentences he or she is then undergoing—on the day that sentence is, or those sentences are, completed; or
 - (b) in any other case—on the day on which the appeal, question of law or case stated is finally determined.
- (7) Subsection (6) applies unless the sentencing court or the court determining the appeal, question of law or case stated otherwise directs.

S. 34(6)
amended by
No. 48/1997
ss 16(4), 17(7).

35 Time held in custody before trial etc. to be deducted from sentence^{17, 18}

- (1) If a young offender is sentenced to a term of detention in respect of an offence, any period during which he or she was held in custody in relation to—
 - (a) proceedings for the offence; or

S. 35(1)
amended by
No. 48/1997
ss 11(4), 16(4),
17(7),
substituted by
No. 82/2006
s. 3(3),
amended by
Nos 82/2006
s. 7(2),
65/2011 s. 19,
substituted by
No. 32/2013
s. 12.

- (b) proceedings arising from those proceedings including any period pending the determination of an appeal—

must be reckoned as a period of detention already served under the sentence unless the sentencing court or the court making the order otherwise orders.

- (2) Subsection (1) does not apply—

- (a) to a period of custody of less than one day;
or

- (b) to a sentence of detention of less than one day; or

S. 35(2)(b)
amended by
No. 48/1997
s. 11(5).

- (c) to a period of custody previously declared under this section or section 18 as reckoned to be a period of detention or imprisonment already served under another sentence of detention or imprisonment or Court Secure Treatment Order imposed on the offender.

S. 35(2)(c)
inserted by
No. 48/1997
s. 11(5),
amended by
Nos 69/1997
s. 6(4),
82/2006
s. 3(4),
26/2014 s. 434.

- (3) If a young offender was held in custody in circumstances to which subsection (1) applies, then—

- (a) the informant or person who arrested the young offender must, if present before the court, inform it, whether from his or her own knowledge or from inquiries made by him or her, of the length of the period of custody; or

- (b) if that person is not present before the court, it may take and receive other evidence (whether oral or written and whether on oath or by affirmation or otherwise) of the length of the period of custody.

S. 35(3)
amended by
No. 48/1997
s. 16(4).

S. 35(3)(a)
amended by
No. 48/1997
s. 16(6).

S. 35(3)(b)
amended by
No. 6/2018
s. 68(Sch. 2
item 115.2).

- (4) If a young offender was held in custody in circumstances to which subsection (1) applies, then the court must declare the period to be reckoned as already served under the sentence and cause to be noted in the records of the court the fact that the declaration was made and its details. S. 35(4) amended by No. 48/1997 ss 11(6), 16(4).
- (5) The person with custody of the record referred to in subsection (4) must indorse on the warrant or other authority for the detention of the young offender particulars of the matters referred to in that subsection. S. 35(5) amended by No. 48/1997 s. 16(1).
- (6) If a young offender charged with a series of offences committed on different occasions has been in custody continuously since arrest, the period of custody for the purposes of subsection (1) must be reckoned from the time of his or her arrest even if he or she is not convicted of the offence with respect to which he or she was first arrested or of other offences in the series. S. 35(6) amended by No. 48/1997 s. 16(7).
- (7) If on an application under this subsection the sentencing court is satisfied that the period declared under subsection (4) was not correct it may declare the correct period and amend the sentence accordingly.
- (8) An application under subsection (7) may be made by—
- (a) the young offender; or S. 35(8)(a) amended by No. 48/1997 s. 16(1).
 - (b) the Director of Public Prosecutions, if the sentencing court was the Supreme Court or the County Court; or
 - (c) the informant or police prosecutor, if the sentencing court was the Magistrates' Court.

Sentencing Act 1991
No. 49 of 1991
Part 3—Sentences

Pt 3 Div. 3
(Heading)
repealed by
No. 65/2011
s. 20.

*

*

*

*

*

Part 3A—Sentences—community correction orders

Pt 3A
(Heading)
inserted by
No. 65/2011
s. 21.

Division 1—Preliminary

Pt 3A Div. 1
(Heading)
inserted by
No. 65/2011
s. 21.

36 Purpose of an order

- (1) The purpose of a community correction order is to provide a community based sentence that may be used for a wide range of offending behaviours while having regard to and addressing the circumstances of the offender.

S. 36
amended by
No. 48/1997
ss 18, 19(1),
28(1),
substituted by
No. 65/2011
s. 21,
amended by
No. 69/2014
s. 17 (ILA
s. 39B(1)).

- (2) Without limiting when a community correction order may be imposed, it may be an appropriate sentence where, before the ability of the court to impose a suspended sentence was abolished, the court may have imposed a sentence of imprisonment and then suspended in whole that sentence of imprisonment.

S. 36(2)
inserted by
No. 69/2014
s. 17.

Division 2—General

Pt 3A Div. 2
(Heading)
inserted by
No. 65/2011
s. 21.

37 Community correction order

Subject to any specific provision relating to the offence, a court may make a community correction order in respect of an offender if—

- (a) the offender has been convicted or found guilty of an offence punishable by more than 5 penalty units; and

S. 37
amended by
No. 19/1999
s. 8(1),
substituted by
No. 65/2011
s. 21,
amended by
No. 65/2016
s. 9.

- (b) the court has received a pre-sentence report (if required) and has had regard to any recommendations, information or matters identified in the report; and
- (c) the offender consents to the order.

S. 38
amended by
No. 48/1997
s. 28(2),
substituted by
No. 65/2011
s. 21.

38 Period and commencement of a community correction order

- (1) The period of a community correction order is the period determined by the court which must not exceed—

S. 38(1)(a)
substituted by
No. 79/2014
s. 55.

- (a) in the case of an order made by the Magistrates' Court—
 - (i) in respect of one offence, 2 years; or
 - (ii) in respect of 2 offences, 4 years; or
 - (iii) in respect of 3 or more offences, 5 years; or

S. 38(1)(b)
substituted by
No. 65/2016
s. 10.

- (b) in the case of an order made by the County Court or the Supreme Court in respect of one, or more than one, offence, 5 years.

S. 38(2)
substituted by
No. 45/2012
s. 7.

- (2) Unless section 44(3) applies, a community correction order must commence on a date specified by the court that is not later than 3 months after the making of the order.

S. 39
amended by
No. 41/1993
s. 11,
substituted by
No. 65/2011
s. 21.

39 Intensive compliance period

- (1) If the court is making a community correction order for a period of 6 months or longer, the court may fix a period (being part of the period for which the order is in force) as the intensive compliance period.

Example

Where a court is making a community correction order that has a period of, for example, 2 years, the intensive compliance period fixed by the court may be for a lesser period of, for example, 8 months.

(2) A court that fixes an intensive compliance period under subsection (1) must determine that one or more conditions attached to a community correction order are to be completed within the intensive compliance period.

(3) If—

- (a) a court is sentencing an offender in respect of two or more offences in the same proceeding; and
- (b) the court makes separate community correction orders in respect of any two or more of the offences, the periods of which are cumulative; and
- (c) the court fixes intensive compliance periods for the orders that are cumulative—

the intensive compliance periods are to run cumulatively from the commencement of the first order and then the balance of the periods of the orders are to run cumulatively.

40 Community correction order may cover multiple offences

S. 40
substituted by
No. 65/2011
s. 21.

- (1) If an offender is convicted or found guilty by a court of two or more offences, which are founded on the same facts or form or are part of a series of offences of the same or a similar character, the court may make one community correction order in respect of those offences in place of separate orders in respect of all or any two or more of them.
- (2) A community correction order that is being made in respect of more than one offence must not exceed the maximum period for which a community correction order may be made under section 38.

S. 41
substituted by
No. 65/2011
s. 21.

41 Presumption of concurrency

- (1) If a court makes separate community correction orders in respect of two or more offences committed by an offender, the conditions of those orders are concurrent unless the court otherwise directs.
- (2) The conditions of a community correction order made in respect of an offender are, unless the court otherwise directs, concurrent with those of any other community correction order in force in respect of that offender.

S. 41A
inserted by
No. 30/2010
s. 17,
repealed by
No. 48/2011
s. 21,
new s. 41A
inserted by
No. 79/2014
s. 56,
substituted by
No. 65/2016
s. 11.

41A Maximum cumulative community correction orders

A court must not impose on an offender in respect of 2 or more offences separate community correction orders with cumulative periods that are to take effect in succession for a period that exceeds in the whole 5 years.

S. 42
substituted by
Nos 65/2011
s. 21, 26/2012
s. 31.

42 Concurrent unpaid community work where there are several orders

- (1) The number of hours of unpaid community work required to be performed under a fines order must, unless otherwise directed by the court, be performed concurrently with any hours of unpaid community work required to be performed under any community correction order that is in force in respect of the offender whether the community correction order is made before or at the same time as the fines order.
- (2) In this section, ***fines order*** means a fine conversion order or fine default unpaid community work order.

43 Fine and a community correction order

A court may impose on an offender a fine authorised by law in addition to making a community correction order.

S. 43
substituted by
No. 65/2011
s. 21.

44 Imprisonment and a community correction order

S. 44
amended by
No. 45/1996
s. 18(Sch. 2
item 11.9),
substituted by
Nos 65/2011
s. 21, 45/2012
s. 8.

(1) Subject to any specific provision relating to the offence, when sentencing an offender in respect of one, or more than one, offence (other than an offence to which clause 5 of Schedule 1 applies), a court may make a community correction order in addition to imposing a sentence of imprisonment only if the sum of all the terms of imprisonment to be served (after deduction of any period of custody that under section 18 is reckoned to be a period of imprisonment or detention already served) is one year or less.

S. 44(1)
amended by
No. 32/2013
s. 13(1),
substituted by
No. 69/2014
s. 18(1),
amended by
No. 65/2016
s. 12(1).

(1A) Subject to any specific provision relating to the offence, when sentencing an offender in respect of one, or more than one, offence to which clause 5 of Schedule 1 applies, a court may make a community correction order in addition to imposing any sentence of imprisonment.

S. 44(1A)
inserted by
No. 69/2014
s. 18(1),
amended by
No. 65/2016
s. 12(2).

(1B) In sentencing an offender in accordance with subsection (1) or (1A) in respect of 2 or more offences, the Magistrates' Court must not impose a sentence that exceeds in the whole 5 years.

S. 44(1B)
inserted by
No. 79/2014
s. 57,
substituted by
No. 65/2016
s. 12(3).

* * * * *

S. 44(2)
repealed by
No. 32/2013
s. 13(2).

S. 44(3)
amended by
Nos 69/2014
s. 18(2),
65/2016
s. 12(4).

- (3) If a court makes a community correction order in respect of an offender in addition to imposing a sentence of imprisonment in accordance with this section, the community correction order commences on the release of the offender from imprisonment.

S. 44(4)
inserted by
No. 69/2014
s. 18(3).

- (4) A reference in this section to a sentence of imprisonment does not include a sentence that has been suspended.

S. 44A
inserted by
No. 48/2018
s. 80.

44A Mandatory treatment and monitoring order

- (1) If a court is sentencing an offender in respect of an offence referred to in section 5(2GA) and the court is satisfied under that subsection that an order under this section is appropriate, the court must make a community correction order with the following mandatory conditions attached—
- (a) a judicial monitoring condition;
 - (b) either—
 - (i) a treatment and rehabilitation condition;
 - or
 - (ii) a justice plan condition.
- (2) This section does not limit the conditions which a court may attach to a community correction order made under this section.
- (3) Despite any other provision of this Part, a condition referred to in subsection (1)(a) or (b) must not be—
- (a) varied unless the condition as varied is as onerous as, or more onerous than, the previous condition; or
 - (b) cancelled.

- (4) Section 43 does not apply to a community correction order made under this section.
- (5) This section does not limit section 44.

Division 3—Making a community correction order

Pt 3A Div. 3
(Heading)
inserted by
No. 65/2011
s. 21.

45 Terms of a community correction order

S. 45
amended by
No. 45/1996
s. 18(Sch. 2
item 11.10),
substituted by
No. 65/2011
s. 21.

- (1) The following terms are attached to each community correction order—
 - (a) the offender must not commit, whether in or outside Victoria, during the period of the order, an offence punishable by imprisonment;
 - (ab) the offender must comply with any obligation or requirement prescribed by the regulations;
 - (b) the offender must report to, and receive visits from the Secretary during the period of the order;
 - (c) the offender must report to the community corrections centre specified in the order within 2 clear working days after the order coming into force;
 - (d) the offender must notify the Secretary of any change of address or employment within 2 clear working days after the change;
 - (e) the offender must not leave Victoria except with the permission, either generally or in relation to a particular case, of the Secretary;
 - (f) the offender must comply with any direction given by the Secretary that is necessary for the Secretary to give to ensure that the offender complies with the order.

S. 45(1)(ab)
inserted by
No. 26/2012
s. 32.

- (2) A direction may be given by the Secretary under subsection (1)(f) either orally or in writing.

S. 46
amended by
No. 19/1999
s. 8(2),
substituted by
No. 65/2011
s. 21.

46 Power of the Secretary to give written directions

There is attached to each community correction order the term that the offender must comply with any written direction given by the Secretary for or with respect to the following—

- (a) reporting to the Secretary; or
- (b) receiving visits from the Secretary; or
- (c) notifying the Secretary in writing of any change of address or employment; or
- (d) obtaining permission from the Secretary before leaving Victoria; or
- (e) if the order is subject to an unpaid community work condition, performing unpaid community work, including any written direction as to the place, date or time at which the work is to be performed; or
- (f) if the order is subject to a treatment and rehabilitation condition, participating in a treatment or rehabilitation program, including any written direction as to the place, date or time of the participation; or
- (g) if the order is subject to a treatment and rehabilitation condition, undergoing any drug or alcohol assessment or treatment, including any written direction as to—
 - (i) undergoing residential treatment or assessment; or
 - (ii) the place, date or time that the assessment or treatment must be undergone; or

- (h) if the order is subject to a treatment and rehabilitation condition, undergo any drug or alcohol testing, including any written direction as to the place, date or time that the test must be undergone; or
- (i) if the order is subject to a treatment and rehabilitation condition, undergoing any medical assessment or mental health assessment, including any written direction as to the place, date or time that the test must be undergone.

Note

It is an offence under section 83AF for an offender to contravene a written direction given by the Secretary.

47 Court may attach conditions

- (1) A court that is making a community correction order must attach at least one condition in accordance with subsection (2).
- (2) A court that is making a community correction order may—
 - (a) attach one or more conditions under Division 4; or
 - (b) attach a condition under Division 2 of Part 3BA.

S. 47
amended by
Nos 41/1993
s. 10(3)(4),
45/1996
s. 18(Sch. 2
item 11.11),
48/1997
s. 19(2)(3),
10/1999 s. 30,
10/2004
s. 15(Sch. 1
item 27.1),
68/2009
s. 97(Sch.
items 110.44–
110.48),
substituted by
No. 65/2011
s. 21.

S. 47(2)(b)
amended by
No. 26/2012
s. 33.

48 Residual condition

- (1) A court that is making a community correction order may attach in addition to a condition attached in accordance with section 47 any other condition to the order that the court thinks fit,

S. 48
substituted by
No. 65/2011
s. 21.

other than a condition about making restitution or the payment of compensation, costs or damages.

S. 48(2)
amended by
No. 26/2012
s. 34.

- (2) A condition attached under subsection (1) to a community correction order must not be about the subject matter of a condition under Division 4 or Division 2 of Part 3BA.

S. 48A
inserted by
No. 65/2011
s. 21.

48A Matters to be considered when attaching conditions

The court must attach conditions to a community correction order in accordance with—

- (a) the principle of proportionality; and
- (b) the purposes for which a sentence may be imposed as set out in section 5; and
- (c) the purpose of a community correction order set out in section 36.

Pt 3A Div. 4
(Heading)
inserted by
No. 65/2011
s. 21.

Division 4—Conditions

S. 48B
(Heading)
substituted by
No. 32/2013
s. 27(1).

48B Definitions

In this Division—

S. 48B
inserted by
No. 65/2011
s. 21.

S. 48B def. of
child protection order
inserted by
No. 32/2013
s. 27(2),
substituted by
No. 61/2014
s. 170(2).

child protection order means any of the following orders under the **Children, Youth and Families Act 2005**—

- (a) an interim accommodation order;
- (b) a family preservation order;

family violence has the same meaning as in the **Family Violence Protection Act 2008**;

safety means safety from family violence,
physical or mental harm.

48C Unpaid community work condition

S. 48C
inserted by
No. 65/2011
s. 21.

- (1) A court which is making a community correction order may attach a condition requiring an offender to perform unpaid community work.
- (2) The purpose for attaching an unpaid community work condition is to adequately punish the offender in the community.
- (3) Subject to section 48CA, the offender must perform the number of hours of unpaid community work specified by the court under an unpaid community work condition.
- (3A) If the Secretary gives a direction under section 83AU the offender must perform the number of hours of unpaid community work specified by the Secretary.
- (4) The total number of hours for which an offender may be required to perform unpaid community work under an unpaid community work condition must be determined by the court and must not exceed 600 hours.
- (5) The total number of hours of unpaid community work that the offender must perform in any 7 day period must not exceed 20.
- (6) An offender may perform unpaid community work for up to 40 hours in a period of 7 days if he or she requests to do so and signs a written consent to performing the extra number of hours.
- (7) If a court attaches an unpaid community work condition as the sole condition under this Division of a community correction order for up to a maximum of 300 hours, the order expires on the satisfactory completion of those hours of work.

S. 48C(3)
amended by
No. 32/2013
s. 28.

S. 48C(3A)
inserted by
No. 65/2011
s. 56.

S. 48C(6)
amended by
No. 26/2012
s. 35.

- (8) If an offender is or will be subject to more than one community correction order the court must not make a direction under this Act that causes the time limits that apply under all unpaid community work conditions under the orders to exceed the maximum time limits for the orders under section 38.
- (9) When attaching an unpaid community work condition the court may specify that the condition applies for the period of the order or for any lesser period specified in the order.

S. 48CA
inserted by
No. 32/2013
s. 29.

48CA Order with conditions under sections 48C and 48D

- (1) This section applies if a court when making a community correction order attaches both an unpaid community work condition and a treatment and rehabilitation condition to the order.
- (2) The court may determine that some or all of the hours satisfactorily undertaken for treatment and rehabilitation are to be counted as hours of unpaid community work for the purposes of the unpaid community work condition.
- (3) If a court makes a determination under subsection (2) but does not specify the number of hours undertaken for treatment and rehabilitation that are to be counted as hours of unpaid community work for the purposes of the unpaid community work condition then all of the hours satisfactorily undertaken for treatment and rehabilitation are to be so counted as hours of unpaid community work.

48D Treatment and rehabilitation condition

S. 48D
inserted by
No. 65/2011
s. 21.

- (1) A court which is making a community correction order may attach a condition to the order that requires the offender to undergo treatment and rehabilitation specified by the court and directed by the Secretary unless otherwise directed by the court.
- (2) When attaching a treatment and rehabilitation condition the court must—
 - (a) have regard to the need to address the underlying causes of the offending;
 - (b) have regard to the recommendations, information and matters identified in the pre-sentence report in relation to the treatment and rehabilitation of the offender.
- (3) The treatment and rehabilitation that must be specified by the court in a treatment and rehabilitation condition must be any one or more of the following—
 - (a) any assessment and treatment (including testing) for drug abuse or dependency;
 - (b) any assessment and treatment (including testing) for alcohol abuse or dependency;
 - (c) any assessment and treatment (including testing) at a residential facility for—
 - (i) withdrawal from or rehabilitation for alcohol abuse or dependency; or
 - (ii) withdrawal from or rehabilitation for drug abuse or dependency;
 - (d) any medical assessment and treatment that may include general or specialist medical treatment or treatment in a hospital or residential facility;

- (e) any mental health assessment and treatment that may include psychological, neuropsychological, psychiatric or treatment in a hospital or residential facility;
 - (f) any program that addresses factors related to his or her offending behaviour;
 - (g) any other treatment and rehabilitation that the court considers necessary and that is specified in the order that may include employment, educational, cultural and personal development programs that are consistent with the purpose of the treatment and rehabilitation condition.
- (4) For the purposes of subsection (1) the Secretary may give a direction to the offender—
- (a) to undergo the treatment and rehabilitation or kind of treatment and rehabilitation specified by the Secretary in the direction; and
 - (b) in relation to any aspect of the treatment and rehabilitation that the Secretary has specified, a direction—
 - (i) requiring the attendance of the offender at a specified location; and
 - (ii) requiring the participation of the offender in particular kinds of treatment or rehabilitation.

S. 48E
inserted by
No. 65/2011
s. 21.

48E Supervision condition

- (1) A court which is making a community correction order may attach a condition to the order that the offender be supervised, monitored and managed as directed by the Secretary.
- (2) The court may attach a supervision condition for the purpose of addressing the need to ensure the compliance of the offender with the order.

- (3) When attaching a supervision condition the court must have regard to the information, matters and recommendations made in the pre-sentence report.
- (4) When attaching a supervision condition the court may specify that the condition applies for the period of the order or for any lesser period specified in the order.

48F Non-association condition

S. 48F
inserted by
No. 65/2011
s. 21.

- (1) A court which is making a community correction order may attach a condition to the order directing that—
 - (a) the offender must not contact or associate with a person specified in the order; or

Example

An example of a direction that may be made under a condition attached under paragraph (a) is that the offender must not contact or associate with a co-offender or co-offenders.

- (b) the offender must not contact or associate with a class of person specified in the order.

Example

An example of a direction that may be made under a condition attached under paragraph (b) is that the offender must not contact or associate with a member of a specified club or association.

- (2) When attaching a non-association condition the court may have regard to any effect the attaching of the condition may have on any employment of the offender.
- (3) When attaching a non-association condition the court may specify that the condition applies for the period of the order or for any lesser period specified in the order.

S. 48G
inserted by
No. 65/2011
s. 21.

48G Residence restriction or exclusion condition

- (1) A court which is making a community correction order may attach a condition to the order, directing that the offender must—

- (a) reside at a place specified in the order; or

Example

An example of a direction that may be made under a condition attached under paragraph (a) is that the offender must reside at his or her current residential address.

- (b) not reside at a place specified in the order.

Example

An example of a direction that may be made under a condition attached under paragraph (b) is that the offender must not reside at the residence of a co-offender.

- (2) When attaching a residence restriction or exclusion condition the court may—

- (a) have regard to the risk the condition poses to the safety of any person, including a child, who is likely to reside with the offender under the order; and

- (b) have regard to any effect the attaching of the condition may have on any employment of the offender.

- (3) When attaching a residence restriction or exclusion condition the court may specify that the condition applies for the period of the order or for any lesser period specified in the order.

S. 48G(2)(a)
amended by
No. 32/2013
s. 30(1).

- (4) An offender to whom a residence restriction or exclusion condition applies must not change his or her place of residence unless the community correction order to which the condition is attached has been varied under section 48M(2)(d) to specify the new place at which the offender must or must not reside.
- (5) The court must not attach a residence restriction or exclusion condition that is inconsistent with a child protection order, a family violence intervention order or a personal safety intervention order.

S. 48G(5)
amended by
No. 32/2013
s. 30(2).

48H Place or area exclusion condition

S. 48H
inserted by
No. 65/2011
s. 21.

- (1) A court which is making a community correction order may attach a condition to the order, directing that the offender must not enter or remain in a specified place or area.

Example

The following are examples of directions that may be made under a condition attached under subsection (1)—

- (a) that the offender must not enter or remain in a specified sporting venue in Victoria;
- (b) that the offender must not enter or remain in the central business district of Melbourne.

Note

Exclusion from a place or area that is a licensed premises may be a condition of an order under section 48J, alcohol exclusion condition.

- (2) When attaching a place or area exclusion condition the court may have regard to any effect the attaching of the condition may have on any employment of the offender.
- (3) When attaching a place or area exclusion condition the court may specify that the condition applies for the period of the order or for any lesser period specified in the order.

S. 48H(4)
amended by
No. 32/2013
s. 31.

- (4) The court must not attach a place or area exclusion condition that is inconsistent with a child protection order, a family violence intervention order or a personal safety intervention order.

S. 48I
inserted by
No. 65/2011
s. 21.

48I Curfew condition

- (1) A court which is making a community correction order may attach a condition to the order, directing that the offender must remain at the place specified in the order between specified hours of each day for the period specified in the order.

Example

An example of a direction that may be made under a condition attached under subsection (1) is a direction that the offender must remain at home between 9pm and 6am each day.

- (2) When attaching a curfew condition the court may—

S. 48(2)(a)
amended by
No. 32/2013
s. 32(1).

- (a) have regard to the risk the condition poses to the safety of any person, including a child, who is likely to reside with the offender under the order;
- (b) have regard to any effect the attaching of the condition may have on any employment of the offender.
- (3) The offender must remain at a place specified by the court under a curfew condition for—
- (a) not less than 2 hours of each day; and
- (b) not more than 12 hours of each day—
- for the period specified in the order which must not be more than 6 months.

(3A) If the Secretary gives a direction under section 83AV the offender must remain at the place specified by the court for the increased hours or period that is specified by the Secretary.

S. 48I(3A)
inserted by
No. 65/2011
s. 57.

(4) The court must not attach a curfew condition that is inconsistent with a child protection order, a family violence intervention order or a personal safety intervention order.

S. 48I(4)
amended by
No. 32/2013
s. 32(2).

48J Alcohol exclusion condition

S. 48J
inserted by
No. 65/2011
s. 21.

(1) A court which is making a community correction order may attach a condition directing that the offender comply with the restrictions in subsection (2).

(2) For the purpose of subsection (1) and subject to subsection (3) the restrictions are as follows—

(a) the offender must not enter or remain in any licensed premises characterised as a nightclub, bar, restaurant, cafe, reception centre or function centre; and

(b) the offender must not enter or remain in the location of any major event; and

(c) the offender must not enter or remain in a bar area of any licensed premises to which paragraph (a) or (b) does not apply; and

(d) the offender must not consume liquor in any licensed premises to which paragraph (a) or (b) does not apply.

(3) When attaching an alcohol exclusion condition a court may specify a licensed premises to which the restrictions under subsection (2)(a), (b) or (c) do not apply.

(4) The court may attach an alcohol exclusion condition to address the role of alcohol in the offending behaviour.

- (5) When attaching an alcohol exclusion condition the court may have regard to any effect the attaching of the condition may have on any employment of the offender.
- (6) When attaching an alcohol exclusion condition the court may specify whether the condition applies to the offender for a period of hours of each day or at all times.
- (7) When attaching an alcohol exclusion condition the court may specify that the condition applies for the period of the order or for any lesser period specified in the order.
- (8) In this section—

bar area means an area within a licensed premises that is set aside for the service of liquor for consumption on that premises;

licensed premises has the same meaning as in the **Liquor Control Reform Act 1998**;

liquor has the same meaning as in the **Liquor Control Reform Act 1998**;

major event has the same meaning as in the **Liquor Control Reform Act 1998**.

S. 48JA
inserted by
No. 65/2011
s. 58 (as
amended by
No. 26/2012
s. 71).

48JA Bond condition

- (1) A court which is making a community correction order may attach a condition requiring an offender to pay an amount of money as a bond, the whole or part of which is subject to forfeiture if the offender fails to comply with the order.
- (2) The court may attach a bond condition for the purpose of ensuring the compliance of the offender with the order.

- (3) When attaching a bond condition the court must—
 - (a) have regard to adequacy of the financial circumstances of the offender as contained in the pre-sentence report to support the payment of the bond; and
 - (b) fix a time period for the payment of the bond by the offender.
- (4) Any money paid by an offender under subsection (1)—
 - (a) must be paid to the court making the order; and
 - (b) despite any provision to the contrary in the **Supreme Court Act 1986**, the **County Court Act 1958** or the **Magistrates' Court Act 1989**, must be held on trust by the Crown in a trust account established by the Minister under section 23 of the **Financial Management Act 1994** until the money is required to be repaid or forfeited under this Act.
- (5) If any interest is received from the investment of any money paid by an offender under subsection (1) the interest must be credited to the Consolidated Fund, whether or not any of the money is repaid to the offender under this section.
- (6) If money paid under subsection (1) is to be repaid to an offender as a result of the making of an order to cancel or vary or otherwise deal with a community correction order or bond condition under section 48M(2) or 83AS(1), the Crown must repay the money to the offender within 7 days after the order is made, unless the court orders a longer period.

- (7) The Crown must repay to the offender any money paid under subsection (1), that is not liable for forfeiture under section 83AS(4) and that subsection (6) does not apply to—
- (a) 3 months after the expiry of the order; or
 - (b) if no later than 3 months after the expiry of the order, the offender is charged with an offence punishable by imprisonment that was committed during the period of the order, 7 days after the proceeding is finalised—
- whichever is the later.
- (8) For the purposes of this section a proceeding is finalised—
- (a) after the final determination of the charge by a court; or
 - (b) when the charge is withdrawn; or
 - (c) when the prosecution of the charge is discontinued.
- (9) All money forfeited to the Crown under section 83AS(4) must be paid into the Consolidated Fund.

S. 48K
inserted by
No. 65/2011
s. 21.

48K Judicial monitoring condition

- (1) A court which is making a community correction order may attach a condition to the order directing that the offender be monitored by the court, if the court is satisfied that it is necessary for the court to review (during the course of the order) the compliance of the offender with the order.
- (2) The court may make a direction for the following matters in a judicial monitoring condition—
- (a) a time or times at which the offender must re-appear before the court for a review under section 48L of the compliance of the offender with the order; and

- (b) any information, report or test that must or may be provided in the course of a review under section 48L.
- (3) A direction in a judicial monitoring condition made by the court under subsection (2)(a) or (b) is not to be taken to empower the medical testing of the offender or the making of a medical report as to the offender without the consent of the offender.
- (4) A judicial monitoring condition attached to an order remains in force for the period specified by the court in the order, or, if no period is specified in the order, for the period of the order.
- (5) Any proceeding where an offender re-appears before the court for review in accordance with a judicial monitoring condition may be conducted by the court constituted by the judicial officer who made the order or by the court constituted by another judicial officer.

48L Power of court on review under a judicial monitoring condition

S. 48L
inserted by
No. 65/2011
s. 21.

- (1) In any proceeding where an offender re-appears before a court for review of the offender's compliance with the order under a judicial monitoring condition—
 - (a) the court may require the offender, or may invite the offender to answer questions or produce information (including reports or the results of medical examinations or medical tests);
 - (b) the court may invite the offender's medical practitioner or any medical practitioner who has examined the offender to produce any medical report about the offender or the results of any medical test about the offender to the court;

- (c) the court may require or invite any of the following persons to provide information to the court either verbally or in any written form—
 - (i) the Secretary;
 - (ii) the person or body who prosecuted the offender for the offence;
 - (iii) any other person the court considers appropriate.
- (2) In any proceeding where an offender re-appears before a court for review in accordance with the terms of a judicial monitoring condition the court—
 - (a) may—
 - (i) cancel the condition; or
 - (ii) vary the condition, including shortening or extending the condition; or
 - (iii) take no further action in relation to the condition; or
 - (b) may give further directions as to—
 - (i) the time or times at which the offender must re-appear before the court for other reviews under this section of the compliance of the offender with the order; and
 - (ii) any information, report or test that must or may be provided in the course of another review under this section.
- (3) If an offender fails to re-appear before a court for review in accordance with the terms of a judicial monitoring condition, the court may issue a warrant to arrest the offender.

S. 48L(3)
inserted by
No. 32/2013
s. 33.

48LA Electronic monitoring of offender

S. 48LA
inserted by
No. 32/2013
s. 25.

- (1) A court which attaches a monitored condition to a community correction order may attach to that condition a requirement that the offender is to be electronically monitored.
- (2) The purpose of attaching an electronic monitoring requirement is to monitor the compliance of the offender with the monitored condition.
- (3) When deciding whether to attach an electronic monitoring requirement, the court must have regard to the recommendations, information and matters identified in the pre-sentence report in relation to the electronic monitoring of the offender.
- (4) A court may only attach an electronic monitoring requirement to a monitored condition if—
- (a) the pre-sentence report in respect of the offender includes a positive statement that—
 - (i) having had regard to the circumstances of the offender's residence, the offender is a suitable person to be electronically monitored; and
 - (ii) appropriate resources or facilities are available to enable the offender to be electronically monitored; and
 - (b) the court is satisfied that—
 - (i) the offender is a suitable person to be electronically monitored; and
 - (ii) it is appropriate in all of the circumstances that the offender be electronically monitored; and

S. 48LA(1)
amended by
No. 11/2021
s. 107.

- (iii) appropriate resources or facilities are available to enable the offender to be electronically monitored.
- (5) A court, in attaching an electronic monitoring requirement to a monitored condition, must specify the period that the offender is to be electronically monitored that is the same or a lesser period than the period that has been specified in respect of the monitored condition.

Example

An example of a specification that may be made under subsection (5) is that the offender is to be electronically monitored for 4 months in respect of a place and area exclusion condition that the court specified applies to the order for a period of 6 months.

- (6) If a court does not specify a period under subsection (5) the period of an electronic monitoring requirement is taken to be the same as the period specified in respect of the monitored condition.
- (7) If the Secretary gives a direction under section 83AV and the offender is subject to an electronic monitoring requirement that is attached to a curfew condition, the offender must be monitored for the increased period in addition to any period specified under subsection (5) or period that applies under subsection (6), that does not exceed the requirements under section 48I(3).
- (8) If an electronic monitoring requirement is attached to a monitored condition the following terms are attached to the community correction order—
 - (a) the offender must comply with any direction given by the Secretary, that is necessary for the Secretary to give, to ensure that the offender is electronically monitored in accordance with the requirement; and

- (b) the offender must for 24 hours of each day be electronically monitored and wear an electronic monitoring device fitted to him or her at the direction of the Secretary for the specified period of the requirement; and
- (c) the offender must not, without reasonable excuse, tamper with, damage, disable or remove any electronic monitoring device or equipment used for the electronic monitoring; and
- (d) the offender must accept any visit by the Secretary to the place where the offender resides, at any time that it is reasonably necessary, for any purpose including to install, repair, fit or remove any electronic monitoring device or equipment used for the electronic monitoring; and
- (e) the offender must comply with any direction given by the Secretary under section 83AV(3) in respect of the electronic monitoring requirement of a curfew condition.

S. 48LA(8)(c)
amended by
No. 52/2015
s. 46.

Note

It is an offence under section 83AD for an offender to contravene a community correction order.

48LB Confidentiality of personal information

S. 48LB
inserted by
No. 32/2013
s. 25.

- (1) A person must not use or disclose any personal or confidential information obtained as a result of the electronic monitoring of an offender carried out under an electronic monitoring requirement attached to a monitored condition subject to a community correction order, unless that use or disclosure is authorised under this section.

Penalty: 120 penalty units.

- (2) A person may use or disclose personal or confidential information obtained as a result of the electronic monitoring of an offender carried out under an electronic monitoring requirement attached to a monitored condition subject to a community correction order, in the following circumstances—
- (a) if the use or disclosure is reasonably necessary for the person to perform his or her duties, functions or powers in relation to a community correction order;
 - (b) if the use or disclosure is reasonably necessary for the preparation for, conduct of or participation in, proceedings in any court in relation to a community correction order;
 - (c) if the use or disclosure is for the purpose of the administration or enforcement of an order of a court under this Act;
 - (d) with the authorisation, or at the request, of the person to whom the information relates;
 - (e) if the use or disclosure is authorised by the Minister or the Minister administering the **Corrections Act 1986**;
 - (f) if the disclosure is to the Secretary;
 - (g) if the disclosure is to an Ombudsman officer within the meaning of the **Ombudsman Act 1973**;
 - (ga) if the use or disclosure is by an information sharing entity and is authorised under Part 5A of the **Family Violence Protection Act 2008**;
 - (gb) if the use or disclosure is by an information sharing entity or a restricted information sharing entity within the meaning of the

S. 48LB(2)(ga)
inserted by
No. 23/2017
s. 43.

S. 48LB(2)(gb)
inserted by
No. 11/2018
s. 39.

Child Wellbeing and Safety Act 2005 and is authorised under Part 6A of that Act;

- (h) if the use or disclosure is to a lawyer for the purpose of obtaining legal advice or representation in relation to the administration or operation of this Act;
 - (i) if the information is already in the public domain;
 - (j) to the extent reasonably necessary for any other law enforcement purposes including the detection, investigation or prosecution or prevention of contraventions of the law;
 - (k) if the use or disclosure is specifically authorised or required by or under this or any other Act.
- (3) In this section, ***personal or confidential information*** includes the following—
- (a) information relating to the personal affairs of a person who has been or is an offender;
 - (b) information—
 - (i) that identifies any person or discloses his or her address or location or a journey made by the person; or
 - (ii) from which any person's identity, address or location can reasonably be determined;
 - (c) information contained in a report given to a court that is not disclosed in a decision of the court or in any reasons given by the court for a decision of the court;
 - (d) information concerning the investigation of a contravention or possible contravention of the law by the offender.

Pt 3A Div. 5
(Heading)
inserted by
No. 65/2011
s. 21.

Division 5—Variation etc. of order

S. 48M
inserted by
No. 65/2011
s. 21.

48M Variation etc. of community correction order

- (1) On an application under section 48N, the court which made a community correction order may decide to deal with the order under subsection (2), if the court is satisfied that—
 - (a) the circumstances of the offender have materially altered since the order was made and as a result the offender will not be able to comply with any condition of the order; or
 - (b) the circumstances of the offender were wrongly stated or were not accurately presented to the court or to the author of a pre-sentence report or drug and alcohol report before the order was made; or
 - (c) the offender no longer consents to the order; or
 - (d) the rehabilitation and reintegration of the offender would be advanced by the making of the decision to deal with the order; or
 - (e) the continuation of the sentence is no longer necessary in the interests of the community or the offender.
- (2) If satisfied of a matter set out in subsection (1), the court may decide to deal with the order in one or more of the following ways—
 - (a) by confirming the order or a part of the order; or
 - (b) by cancelling the order and dealing with the offender for the offence or offences with respect to which the order was made in any manner in which the court could deal with

the offender if it had just found him or her guilty of that offence or those offences; or

- (c) by cancelling the order and making no further order in respect of the offence or offences with respect to which the order was originally made; or
- (d) by varying the order; or
- (e) in relation to a condition of the order, by cancelling, suspending, varying or reducing the condition; or

Example

An example of a variation of a condition of the order that may be made under paragraph (e) is a reduction of the number of hours specified under an unpaid community work condition.

- (f) by attaching a new condition on the order; or
 - (fa) in relation to a monitoring condition attached to the order, by attaching to that condition a requirement that the offender is to be electronically monitored; or
 - (g) in relation to a program that must be undertaken under the order, by cancelling, suspending, varying or reducing the program; or
 - (h) by imposing a new program that must be undertaken under the order.
- (3) The court must make a decision under subsection (2) on the basis of its assessment of the extent to which the offender has complied with the order.
 - (4) The Secretary must disclose any direction he or she has given under Division 3 of Part 3C to a court making an assessment under subsection (3).

S. 48M(2)(fa)
inserted by
No. 11/2021
s. 108(1).

S. 48M(5)
inserted by
No. 11/2021
s. 108(2).

- (5) The Magistrates' Court may deal with a community correction order in accordance with subsection (2)(fa) irrespective of when the order that attached the monitoring condition was first made.

S. 48N
inserted by
No. 65/2011
s. 21.

48N Application for variation etc. of a community correction order

- (1) An application for the court to deal with a community correction order under section 48M may be made at any time while the order is in force by—
- (a) a prescribed person or a member of a prescribed class of person; or
 - (b) the informant or police prosecutor (if the sentencing court was the Magistrates' Court); or
 - (c) the Director of Public Prosecutions; or
 - (d) the offender; or
 - (e) the Secretary.
- (2) Notice of an application under subsection (1) must be given—
- (a) to the offender, if the application is not made by the offender; and
 - (b) if the sentencing court was—
 - (i) the Magistrates' Court, to the informant or police prosecutor; or
 - (ii) the Supreme Court or the County Court, to the Director of Public Prosecutions; and

S. 48N(2)(b)
substituted by
No. 26/2012
s. 36(1).

S. 48N(2)(c)
repealed by
No. 26/2012
s. 36(2).

* * * * *

- (d) any prescribed person or a member of any prescribed class of person; and
 - (e) the Secretary.
- (3) The court may order that a warrant to arrest be issued against the offender if he or she does not attend before the court on the hearing of the application.

48O Suspension by Secretary

S. 48O
inserted by
No. 65/2011
s. 21.

- (1) The Secretary may—
- (a) if the offender is ill; or
 - (b) in other exceptional circumstances—
- suspend for a period the operation of a community correction order or any condition of the order.
- (2) If the Secretary suspends the operation of an order or a condition of an order under subsection (1), the period of the suspension does not count in calculating the period for which the order is to remain in force or a condition is to be complied with.

Division 6—Miscellaneous matters

Pt 3A Div. 6
(Heading)
inserted by
No. 65/2011
s. 21.

48P Secretary may direct offender to report at another place

S. 48P
inserted by
No. 65/2011
s. 21.

- (1) If, because an offender has changed his or her place of residence or for any other reason it is not convenient that the offender should report at a place or to a person specified in a community correction order, the Secretary may direct the offender to report at another place or to another person.

- (2) An offender must report as directed under subsection (1) as if that place or person had been specified in the order.

S. 48Q
inserted by
No. 65/2011
s. 21,
substituted by
No. 26/2012
s. 37.

48Q Order made by Court of Appeal

For the purposes of any proceeding under this Part or Division 2 of Part 3C—

- (a) a community correction order made by the Court of Appeal on an appeal must be taken to have been made by the court from whose decision the appeal was brought; and
- (b) the provisions about proceedings under this Part or Division 2 of Part 3C apply as if the court from which the appeal was made were the sentencing court.

Part 3B—Sentences—fines

Division 1—Fines

Pt 3B
(Heading and
ss 49–69)
amended by
Nos 41/1993
ss 12–15,
69/1997
ss 7–9,
108/1997
s. 156(e),
10/1999
s. 31(4)(a),
10/2004
s. 15(Sch. 1
items 27.2–
27.7), 19/2005
s. 11(2),
32/2006
ss 92(2)(3), 93,
30/2010 s. 19,
65/2011
ss 21–27,
26/2012
ss 38–53,
48/2012 s. 45,
substituted as
Pt 3B
(Heading and
ss 49–69ZG)
by
No. 32/2013
s. 47 (as
amended by
No. 77/2013
ss 45, 48).

49 Power to fine

If a person is found guilty of an offence the court may, subject to any specific provision relating to the offence, fine the offender in addition to or instead of any other sentence to which the offender may be liable.

S. 49
substituted by
No. 32/2013
s. 47 (as
amended by
No. 77/2013
ss 45, 48).

S. 50
substituted by
No. 32/2013
s. 47 (as
amended by
No. 77/2013
ss 45, 48).

50 Maximum fine

- (1) The maximum fine that a court may impose under section 49 is—
 - (a) the appropriate maximum specified in the specific provision; or
 - (b) if no maximum is specified there, then that specified in subsection (2).
- (2) If a person is found guilty of an offence and the court has power to fine the offender but the amount of the fine is not prescribed anywhere, then the maximum fine that may be imposed is that set out in section 109(2) or (3) (as the case requires) according to the level of the offence or of the term of imprisonment that may be imposed in respect of the offence.
- (3) In this section ***fine*** does not include costs.

S. 51
substituted by
No. 32/2013
s. 47 (as
amended by
No. 77/2013
ss 45, 48).

51 Aggregate fines

- (1) If a person is found guilty of 2 or more offences which are founded on the same facts, or form, or are part of, a series of offences of the same or a similar character, the court may impose one fine in respect of those offences that does not exceed the sum of the maximum fines that could be imposed in respect of each of those offences.
- (1A) Despite subsection (1), a court must not impose one fine in respect of 2 or more offences if at least one of them is a standard sentence offence.

S. 51(1A)
inserted by
No. 52/2014
s. 9,
repealed by
No. 34/2017
s. 10, new
s. 51(1A)
inserted by
No. 34/2017
s. 23.

- (2) If a court imposes an aggregate fine in respect of 2 or more offences, the court—
- (a) is not required to identify separate events giving rise to specific charges; and
 - (b) is not required to announce—
 - (i) the sentences that would have been imposed for each offence had separate sentences been imposed; or
 - (ii) whether those sentences would have been imposed concurrently or cumulatively.
- (3) For the avoidance of doubt, an aggregate fine may be imposed in respect of convictions for offences that are the subject of a rolled-up charge or a representative charge.

Note

A representative charge is a charge in an indictment for an offence that is representative of a number of offences of the same type alleged to have been committed by the accused. A rolled-up charge is a charge in an indictment that alleges that the accused has committed more than one offence of the same type between specified dates.

- (4) Subsection (2) does not affect the requirements of section 6AAA.

52 Financial circumstances of offender

- (1) If a court decides to fine an offender it must in determining the amount and method of payment of the fine take into account, as far as practicable, the financial circumstances of the offender and the nature of the burden that its payment will impose.
- (2) A court is not prevented from fining an offender only because it has been unable to find out the financial circumstances of the offender.

S. 52
substituted by
No. 32/2013
s. 47 (as
amended by
No. 77/2013
ss 45, 48).

S. 53
substituted by
No. 32/2013
s. 47 (as
amended by
No. 77/2013
ss 45, 48).

53 Court to take forfeiture, compensation and restitution orders into account

- (1) In considering the financial circumstances of the offender, the court must take into account any other order that it or any other court has made or that it proposes to make—
 - (a) providing for the forfeiture of the offender's property or the automatic forfeiture of the offender's property by operation of law; or
 - (b) requiring the offender to make restitution or pay compensation.
- (2) The court must give preference to imposing an order on the offender to make restitution or pay compensation, though it may impose a fine as well on the offender, if the court considers—
 - (a) that the offender has insufficient means to pay both a fine and a restitution or compensation order; and
 - (b) that it would be appropriate both to impose a fine and to make a restitution or compensation order.

S. 54
substituted by
No. 32/2013
s. 47 (as
amended by
No. 77/2013
ss 45, 48).

54 Other matters court may have regard to in fixing amount of fine

A court in fixing the amount of a fine may have regard to (among other things)—

- (a) any loss or destruction of, or damage to, property suffered by a person as a result of the offence; and
- (b) the value of any benefit derived by the offender as a result of the offence.

55 Liability of director if body corporate unable to pay fine

S. 55
substituted by
No. 32/2013
s. 47 (as
amended by
No. 77/2013
ss 45, 48).

- (1) If the offender is a body corporate and the court is satisfied—
- (a) that the body will not be able to pay an appropriate fine; and
 - (b) that immediately before the commission of the offence there were reasonable grounds to believe that the body would not be able to meet any liabilities that it incurred at that time—

the court may, on the application of the informant or police prosecutor, declare that any person who was a director of the body corporate at the time of the commission of the offence is jointly and severally liable for the payment of the fine.

- (2) The court must not make a declaration under subsection (1) in respect of a director who satisfies it, on the hearing of the application, that—
- (a) at the time of the commission of the offence he or she had reasonable grounds for believing and did believe that the body corporate would be able to meet any liabilities that it incurred at that time; and
 - (b) he or she had taken all reasonable steps in carrying on the business of the body corporate to ensure that it would be able to meet its liabilities as and when they became due.

Division 2—Instalment orders and time to pay orders

S. 56
substituted by
No. 32/2013
s. 47 (as
amended by
No. 77/2013
ss 45, 48).

56 Instalment order

If a court decides to fine an offender it may order that the fine be paid by instalments.

S. 57
substituted by
No. 32/2013
s. 47 (as
amended by
No. 77/2013
ss 45, 48).

57 Application for instalment order

- (1) An offender who has been fined by a court may apply to the proper officer of that court in the manner prescribed by rules of that court (if any) for an order that the fine be paid by instalments.
- (2) An application must be made before the commencement of a hearing under section 69D in respect of the fine.

S. 58
substituted by
No. 32/2013
s. 47 (as
amended by
No. 77/2013
ss 45, 48).

58 Order to pay operates subject to instalment order

While an instalment order is in force and is being complied with, the order requiring the fine to be paid operates subject to it.

S. 59
substituted by
No. 32/2013
s. 47 (as
amended by
No. 77/2013
ss 45, 48).

59 Time to pay order

If a court does not make an instalment order it may, at the time of imposing the fine, order that the offender be allowed time to pay it.

S. 60
substituted by
No. 32/2013
s. 47 (as
amended by
No. 77/2013
ss 45, 48).

60 Application for time to pay order

- (1) An offender who has been fined by a court may apply to the proper officer of that court in the manner prescribed by rules of that court (if any) for an order that time be allowed for the payment of the fine.

- (2) An application must be made before the commencement of a hearing under section 69D in respect of the fine.

61 Application for variation or cancellation of order

S. 61
substituted by
No. 32/2013
s. 47 (as
amended by
No. 77/2013
ss 45, 48).

- (1) Any of the following persons may apply to the court which made an instalment order or time to pay order for the variation or cancellation of the order—
- (a) the offender; or
 - (b) a prescribed person, or a member of a prescribed class of persons; or
 - (c) the Director of Public Prosecutions.
- (2) An offender who has been fined by a court may apply to the proper officer of that court, in the manner prescribed by the rules of that court (if any), for a variation of the terms of an instalment order or a time to pay order.
- (3) Subject to subsection (4), an application under subsection (1) or (2) may be made at any time while the order is in force.
- (4) An application must be made before the commencement of a hearing under section 69D in respect of the fine.

62 Notice of application

S. 62
substituted by
No. 32/2013
s. 47 (as
amended by
No. 77/2013
ss 45, 48).

Notice of an application under section 61 must be given—

- (a) to the offender; and
- (b) to the Director of Public Prosecutions (if the sentencing court was the Supreme Court or the County Court) or to the informant or police prosecutor (if the sentencing court was the Magistrates' Court).

S. 63
substituted by
No. 32/2013
s. 47 (as
amended by
No. 77/2013
ss 45, 48).

63 Variation or cancellation of order

- (1) On an application under section 61, the court may vary the order or cancel it if the court is satisfied—
 - (a) that the circumstances of the offender have materially altered since the order was made and as a result the offender is unable to comply with the order; or
 - (b) that the circumstances of the offender were wrongly stated or were not accurately presented to the court or the author of a pre-sentence report before the order was made; or
 - (c) that the offender is no longer willing to comply with the order.
- (2) If the court cancels the order, it may, subject to subsection (3), deal with the offender for the offence or offences with respect to which it was made in any manner in which the court could deal with the offender if it had just found the offender guilty of that offence or those offences.
- (3) In determining how to deal with an offender following the cancellation by it of an order, a court must take into account the extent to which the offender had complied with the order before its cancellation.
- (4) The court may order that a warrant to arrest be issued against the offender if he or she does not attend before the court on the hearing of the application.

Division 3—Fine conversion order

64 Fine conversion order

- (1) If a court decides to fine an offender it may, on the application of the offender, order him or her to perform unpaid community work as directed by the Secretary for a number of hours fixed in accordance with section 69O.
- (2) An order can only be made under this section if—
- (a) the amount of the fine is not more than an amount equivalent to the value of 100 penalty units; or
 - (b) the amount of the fine exceeds an amount equivalent to the value of 100 penalty units and the application is made for a part of it up to an amount equivalent to the value of 100 penalty units.

S. 64
substituted by
No. 32/2013
s. 47 (as
amended by
No. 77/2013
ss 45, 48).

* * * * *

S. 64(3)
repealed by
No. 59/2017
s. 128.

65 Application for order under section 64

- (1) An offender who has been fined by a court may apply to the proper officer of that court in the manner prescribed by rules of that court for an order under section 64.
- (2) An application must be made before the commencement of a hearing under section 69D in respect of the fine.

S. 65
substituted by
No. 32/2013
s. 47 (as
amended by
No. 77/2013
ss 45, 48).

* * * * *

S. 66
substituted by
No. 32/2013
s. 47 (as
amended by
No. 77/2013
ss 45, 48),
repealed by
No. 47/2014
s. 306.

S. 67
substituted by
No. 32/2013
s. 47 (as
amended by
No. 77/2013
ss 45, 48).

67 Variation etc. of fine conversion order

- (1) On an application under section 68, the court which made a fine conversion order may decide to deal with the order under subsection (2), if the court is satisfied that—
 - (a) the circumstances of the offender have materially altered since the order was made and as a result the offender is unable to comply with the order; or
 - (b) the circumstances of the offender were wrongly stated or were not accurately presented to the court before the order was made; or
 - (c) the offender no longer consents to the order.
- (2) If satisfied of a matter set out in subsection (1), the court may decide to deal with the order in one or more of the following ways—
 - (a) by confirming the order or a part of the order; or
 - (b) by cancelling the order and dealing with the offender for the offence or offences with respect to which the order was made in any manner in which the court could deal with the offender if it had just found him or her guilty of that offence or those offences; or
 - (c) by cancelling the order and making no further order in respect of the offence or offences with respect to which the order was originally made; or
 - (d) by varying the order.
- (3) The court must make a decision under subsection (2) on the basis of its assessment of the extent to which the offender has complied with the order.

68 Application for variation etc. of a fine conversion order

S. 68
substituted by
No. 32/2013
s. 47 (as
amended by
No. 77/2013
ss 45, 48).

- (1) An application for the court to deal with a fine conversion order under section 67 may be made at any time while the order is in force by—
- (a) a prescribed person or a member of a prescribed class of person; or
 - (b) the informant or police prosecutor (if the sentencing court was the Magistrates' Court); or
 - (c) the Director of Public Prosecutions; or
 - (d) the offender; or
 - (e) the Secretary.
- (2) Notice of an application under subsection (1) must be given—
- (a) to the offender, if the application is not made by the offender; and
 - (b) if the sentencing court was—
 - (i) the Magistrates' Court, to the informant or police prosecutor; or
 - (ii) the Supreme Court or the County Court, to the Director of Public Prosecutions; and
 - (c) to any prescribed person or a member of any prescribed class of person; and
 - (d) to the Secretary.
- (3) The court may order that a warrant to arrest be issued against the offender if he or she does not attend before the court on the hearing of the application.

Division 4—Fine default by natural person— warrant to arrest

69 Issue of warrant to arrest person in default

S. 69
substituted by
No. 32/2013
s. 47 (as
amended by
No. 77/2013
ss 45, 48).

- (1) If a natural person defaults in the payment of a fine or of any instalment under an instalment order, the sentencing court or the proper officer may issue a warrant to arrest the person.
- (2) The court or proper officer must not issue a warrant under subsection (1) if an order has been made by the sentencing court under section 64.
- (2A) The court or proper officer must not issue a warrant under subsection (1) in respect of a registered court fine within the meaning of the **Fines Reform Act 2014**.
- (3) A warrant to arrest issued under subsection (1) may be directed to the sheriff.
- (4) For the purposes of this section, a person defaults in the payment of a fine or instalment if the payment is not made by the end of 28 days after the due date for payment.

S. 69(2A)
inserted by
No. 17/2022
s. 83.

S. 69(5)
repealed by
No. 47/2014
s. 307.

* * * *

S. 69A
inserted by
No. 32/2013
s. 47 (as
amended by
No. 77/2013
ss 45, 48).

69A Warrant to arrest may be issued other than in paper form

- (1) A warrant to arrest under section 69 to be directed to the sheriff may be issued, not in paper form, but by the proper officer—
 - (a) signing a document containing the particulars set out in subsection (2) in relation to any person against whom a warrant is to be issued under section 69; and

- (b) causing those particulars to be transferred electronically to the Sheriff in accordance with the regulations (if any).
- (2) For the purposes of subsection (1), the particulars are—
 - (a) the name of the person in default;
 - (b) the type of warrant;
 - (c) the amount of the fine or instalment remaining unpaid;
 - (d) the date of issue of the warrant;
 - (e) the name of the proper officer signing the document;
 - (f) any other prescribed particulars.
- (3) A warrant issued in accordance with subsection (1)—
 - (a) directs and authorises the sheriff to do all things that he or she would have been directed and authorised to do if a warrant containing the particulars referred to in subsection (2) and directed to the sheriff had been issued in paper form under section 69 by the proper officer;
 - (b) must not be amended, altered or varied after its issue, unless the amendment, alteration or variation is authorised by or under this Act or any other Act.

69B Who may execute warrant?

- (1) The sheriff may direct that a warrant to arrest issued under section 69 is to be executed by—
 - (a) a named person who is a bailiff for the purposes of the **Supreme Court Act 1986**;or

S. 69B
inserted by
No. 32/2013
s. 47 (as
amended by
No. 77/2013
ss 45, 48).

- | | |
|---|---|
| <p>S. 69B(1)(c)
amended by
No. 37/2014
s. 10(Sch.
item
151.2(a)(i)).</p> | <p>(b) generally all persons who are bailiffs for the purposes of the Supreme Court Act 1986;
or</p> <p>(c) a named police officer; or</p> |
| <p>S. 69B(1)(d)
amended by
No. 37/2014
s. 10(Sch.
item
151.2(a)(ii)).</p> | <p>(d) generally all police officers.</p> |
| <p>S. 69B(1A)
inserted by
No. 17/2022
s. 84.</p> | <p>(1A) A direction may be given by the sheriff under subsection (1) by—</p> <p style="padding-left: 40px;">(a) attaching the direction to the execution copy of the warrant; or</p> <p style="padding-left: 40px;">(b) issuing a warrant to the same effect as the warrant to arrest but directed in accordance with subsection (1).</p> |
| <p>S. 69B(2)
substituted by
No. 17/2022
s. 84.</p> | <p>(2) A warrant attaching a direction of the sheriff or issued by the sheriff in accordance with subsection (1A) authorises the person that is the subject of the direction to do all things that the person would have been directed and authorised to do if the warrant to arrest had been directed to the person.</p> |
| <p>S. 69B(3)
amended by
No. 37/2014
s. 10(Sch.
item 151.2(b)).</p> | <p>(3) A warrant to arrest directed to a named bailiff or police officer may be executed by any bailiff or police officer, as the case requires.</p> |

69C When may warrant be executed?

- (1) A warrant under section 69 must not be executed if, within 7 days after a demand is made on the person in default by a person authorised to execute the warrant—
- (a) the fine or instalment and all warrant costs are paid; or
 - (b) the person in default has obtained an instalment order or time to pay order; or
 - (c) an order has been made by the sentencing court under section 69D.
- (2) In making an order in accordance with subsection (1)(b) or (c), the court or the proper officer may include any warrant costs in the amount of the fine.
- (3) The person making the demand under subsection (1) must deliver to the person in default a statement in writing in the prescribed form setting out a summary of the provisions of this Part relating to the enforcement of fines against natural persons.

* * * * *

S. 69C
inserted by
No. 32/2013
s. 47 (as
amended by
No. 77/2013
ss 45, 48).

S. 69C(4)
repealed by
No. 47/2014
s. 308.

**Division 5—Fine default by natural person—
orders of court**

**69D Court may make fine default unpaid community
work order on application**

- (1) This section applies if—
- (a) a natural person defaults in the payment of a fine or of any instalment under an instalment order; and

S. 69D
inserted by
No. 32/2013
s. 47 (as
amended by
No. 77/2013
ss 45, 48).

- (b) the amount of the fine or instalment remaining unpaid is not more than an amount equivalent to the value of 100 penalty units.
- (2) The sentencing court may make an order requiring the person to perform unpaid community work, as directed by the Secretary, for the community corrections centre specified in the order, for a number of hours fixed in accordance with section 69O.
- (3) An order under subsection (2) may be made on the application of the person in default.
- (4) For the purposes of this section, a person defaults in the payment of a fine or instalment if the payment is not made by the end of 28 days after the due date for payment.

S. 69E
inserted by
No. 32/2013
s. 47 (as
amended by
No. 77/2013
ss 45, 48).

69E Orders of court in relation to fine default on arrest

- (1) Subject to section 69F, the court which sentenced a natural person may make an order under section 69G or 69H, as applicable, in relation to the person if—
 - (a) the person is arrested on a warrant under Division 4 and brought before the court; and
 - (b) the court is satisfied by—
 - (i) evidence on oath or by affirmation or by affidavit; or
 - (ii) by the admission of the offender; or
 - (iii) from an examination of the records of the court or of a certificate purporting to contain an extract of those records and purporting to be signed by the officer of the court with custody of those records—

S. 69E(1)(b)(i)
amended by
No. 6/2018
s. 68(Sch. 2
item 115.2).

that the offender has defaulted in the payment of a fine or of any instalment under an instalment order.

- (2) For the purposes of this section, a person defaults in the payment of a fine or instalment if the payment is not made by the end of 28 days after the due date for payment.

69F Order of court in absence of offender

S. 69F
inserted by
No. 32/2013
s. 47 (as
amended by
No. 77/2013
ss 45, 48.

- (1) If a person who was arrested on a warrant under Division 4 and released on bail (either in accordance with the endorsement on the warrant or in accordance with the **Bail Act 1977**) fails to attend before the court in accordance with his or her bail, the court may proceed to hear and determine the matter under section 69E in the offender's absence and make any order under section 69G or 69H, as applicable, without prejudice to any right of action arising out of the breach of the bail undertaking.
- (2) If a warrant to arrest issued under Division 4 against an offender has not been executed within a reasonable period after it was issued or no warrant to arrest was issued against an offender under Division 4, the court may proceed to hear and determine the matter under section 69E in the offender's absence and make any order under section 69G or 69H, as applicable, if it is satisfied that the warrant has not been executed or was not issued only because the offender is not in Victoria.

S. 69F(1)
amended by
No. 26/2017
s. 25.

S. 69FA
inserted by
No. 47/2014
s. 309.

69FA Orders of court in relation to fine defaulter on arrest—Fines Reform Act 2014

Subject to section 69FB, the court which sentenced a natural person, may make an order under section 69G or 69H as applicable, in relation to the person if—

- (a) the person—
 - (i) is a fine defaulter within the meaning of the **Fines Reform Act 2014**; and
 - (ii) was arrested on an enforcement warrant issued under the **Fines Reform Act 2014** in respect of a fine imposed by the court; and
- (b) the court is satisfied by—

S. 69FA(b)
amended by
No. 22/2020
s. 26(1).

S. 69FA(b)(i)
amended by
No. 6/2018
s. 68(Sch. 2
item 115.3).

- (i) evidence on oath or by affirmation or affidavit; or
- (ii) by the admission of the offender; or
- (iii) from an examination of the records of the court or of a certificate purporting to contain an extract of those records and purporting to be signed by the officer of the court with the custody of those records—

that the fine imposed on the offender by the court was registered for enforcement under section 15 or 15E of the **Fines Reform Act 2014**.

69FB Order of court in absence of fine defaulter—Fines Reform Act 2014

S. 69FB
inserted by
No. 47/2014
s. 309.

- (1) If a person who was arrested on an enforcement warrant issued under the **Fines Reform Act 2014** and released on bail (either in accordance with the endorsement on the enforcement warrant or under section 10 of the **Bail Act 1977**) fails to attend before the court in accordance with that bail, the court may proceed to hear and determine the matter under section 69FA in the offender's absence and make any order under section 69G or 69H, as applicable, without prejudice to any right of action arising out of the breach of the bail undertaking.
- (2) If an enforcement warrant endorsed with a power of arrest that was issued under the **Fines Reform Act 2014** against the offender has not been executed within a reasonable period after it was issued or no enforcement warrant was issued against an offender under the **Fines Reform Act 2014**, the court may proceed to hear and determine the matter under section 69FA in the offender's absence and make any order under section 69G or 69H, as applicable, if it is satisfied that the warrant has not been executed or was not issued only because the offender is not in Victoria.

69G Order of court if material change in circumstances of offender

S. 69G
inserted by
No. 32/2013
s. 47 (as
amended by
No. 77/2013
ss 45, 48).

- (1) The court hearing a matter under section 69E or 69FA may make an order under subsection (2) if it is satisfied—
 - (a) that the circumstances of the offender have materially altered since the order imposing the fine was made and as a result the

S. 69G(1)
amended by
No. 47/2014
s. 310.

offender is unable to comply with the order;
or

- (b) that the circumstances of the offender were wrongly stated or were not accurately presented to the court before the order imposing the fine was made.

(2) The court may do one or more of the following—

- (a) discharge the outstanding fine or fines in full; or
(b) discharge in part the outstanding fine or fines; or

S. 69G(2)(b)
amended by
No. 59/2017
s. 129.

- (c) discharge in part the outstanding fine or fines and order that the offender be imprisoned for a period of one day in respect of each penalty unit, or part of a penalty unit, to which the remaining undischarged amount of the outstanding fine or fines is an equivalent amount; or
(d) adjourn the further hearing of the matter for a period of up to 6 months.

S. 69G(2)(c)
amended by
No. 59/2017
s. 129.

(3) If the court has made an order under subsection (2)(b) or (c), the court may make an order that the outstanding fines be paid by instalments or an order that the offender be allowed time to pay the outstanding fines.

S. 69G(4)
inserted by
No. 17/2022
s. 85.

(4) In this section and sections 69FA and 69H—

fine, in relation to any amount of the fine that remains outstanding or unpaid, includes any additional fees and costs that have been added to the fine under the **Fines Reform Act 2014** and the **Infringements Act 2006**.

69H Other orders of court

S. 69H
inserted by
No. 32/2013
s. 47 (as
amended by
No. 77/2013
ss 45, 48).

(1) The court hearing a matter under section 69E or 69FA may make an order under subsection (2) if an order is not made under section 69G.

S. 69H(1)
amended by
No. 47/2014
s. 311.

(2) The court may do one or more of the following—

(a) with the consent of the offender, make an order requiring the offender to perform unpaid community work, as directed by the Secretary, for the community corrections centre specified in the order, for a number of hours fixed in accordance with section 69O;
or

(b) order that the offender be imprisoned for a term fixed in accordance with section 69N;
or

(c) order that the amount of the fine then unpaid be levied under a warrant to seize property;
or

(ca) order that the amount of the fine then unpaid be paid by instalments; or

S. 69H(2)(ca)
inserted by
No. 59/2017
s. 130.
S. 69H(2)(cb)
inserted by
No. 59/2017
s. 130.

(cb) order that the offender be allowed time to pay the amount of the fine then unpaid; or

(d) vary the order that the fine be paid by instalments or that the offender be allowed time to pay, if that was the sentence; or

(e) adjourn the hearing or further hearing of the matter for up to 6 months on any terms that it thinks fit.

- (3) A court must not make an order under subsection (2)(b) if the offender satisfies the court that he or she did not have the capacity to pay the fine or the instalment or had another reasonable excuse for the non-payment.
- (4) A court must not make an order under subsection (2)(b) unless it is satisfied that no other order under that subsection is appropriate in all the circumstances of the case.

S. 69I
inserted by
No. 32/2013
s. 47 (as
amended by
No. 77/2013
ss 45, 48).

69I Variation etc. of fine default unpaid community work order

- (1) On an application under section 69J, the court which made a fine default unpaid community work order may decide to deal with the order under subsection (2), if the court is satisfied that—
 - (a) the circumstances of the offender have materially altered since the order was made and as a result the offender is unable to comply with the order; or
 - (b) the circumstances of the offender were wrongly stated or were not accurately presented to the court before the order was made; or
 - (c) the offender no longer consents to the order.
- (2) If satisfied of a matter set out in subsection (1), the court may deal with the order in one or more of the following ways—
 - (a) by confirming the order or a part of the order; or
 - (b) by cancelling the order and dealing with the offender for the offence or offences with respect to which the order was made in any manner in which the court could deal with the offender if it had just found him or her guilty of that offence or those offences; or

- (c) by cancelling the order and making no further order in respect of the offence or offences with respect to which the order was originally made; or
- (d) by varying the order.
- (3) The court must make a decision under subsection (2) on the basis of its assessment of the extent to which the offender has complied with the order.

69J Application for variation etc. of a fine default unpaid community work order

S. 69J
inserted by
No. 32/2013
s. 47 (as
amended by
No. 77/2013
ss 45, 48).

- (1) An application for the court to deal with a fine default unpaid community work order under section 69I may be made at any time while the order is in force by—
 - (a) a prescribed person or a member of a prescribed class of person; or
 - (b) the informant or police prosecutor (if the sentencing court was the Magistrates' Court); or
 - (c) the Director of Public Prosecutions; or
 - (d) the offender; or
 - (e) the Secretary.
- (2) Notice of an application under subsection (1) must be given—
 - (a) to the offender, if the application is not made by the offender; and
 - (b) if the sentencing court was—
 - (i) the Magistrates' Court, to the informant or police prosecutor; or
 - (ii) the Supreme Court or the County Court, to the Director of Public Prosecutions; and

- (c) any prescribed person or a member of any prescribed class of person; and
- (d) the Secretary.

- (3) The court may order that a warrant to arrest be issued against the offender if he or she does not attend before the court on the hearing of the application.

S. 69K
inserted by
No. 32/2013
s. 47 (as
amended by
No. 77/2013
ss 45, 48).

69K Limit on fine for which unpaid community work can be ordered

A court cannot make an order under this Division in respect of a fine that would result in an offender performing unpaid community work in respect of more than an amount equivalent to the value of 100 penalty units of the amount of the fine.

S. 69L
inserted by
No. 32/2013
s. 47 (as
amended by
No. 77/2013
ss 45, 48).

69L Costs

- (1) If a court makes an order under section 69H, it may make any order relating to costs that it thinks fit.
- (2) A court in fixing a term of imprisonment or hours of unpaid community work in default of payment of a fine or an instalment under an instalment order in accordance with section 69H(2)(a) or (b) may order that those costs then unpaid be levied under a warrant to seize property.

S. 69M
inserted by
No. 32/2013
s. 47 (as
amended by
No. 77/2013
ss 45, 48).

69M Warrant to seize property returned unsatisfied

- (1) If the person executing a warrant to seize property issued under section 69H(2)(c) or 69L(2) returns that he or she cannot find sufficient personal property of the offender on which to levy the sums named in the warrant together with all lawful costs of execution, the court may issue a summons requiring the offender to attend before it on a specified date and at a specified place.

- (2) If an offender fails to attend as required by a summons issued under subsection (1), the court may issue a warrant to arrest against him or her.
- (3) On an offender attending before it under this section, or in his or her absence if the court is satisfied that the summons has been served, the court may order that he or she be imprisoned for a term fixed in accordance with section 69N.
- (4) Instead of fixing a term of imprisonment under subsection (3) the court may, if satisfied that in all the circumstances of the case it is appropriate to do so, make a fine default unpaid community work order requiring the offender to perform unpaid community work for a number of hours fixed in accordance with section 69O.
- (5) In applying section 69N or 69O for the purposes of this section, the costs of execution must not be taken into account.

Division 6—Calculation of period of imprisonment or unpaid community work

69N Term of imprisonment

The term for which a person in default of payment of a fine or an instalment under an instalment order may be imprisoned under Division 5 is 1 day for each penalty unit or part of a penalty unit then remaining unpaid with a maximum of 24 months.

S. 69N
inserted by
No. 32/2013
s. 47 (as
amended by
No. 77/2013
ss 45, 48).

69O Term of unpaid community work

- (1) The number of hours for which a person in default of payment of a fine or an instalment under an instalment order may be required to perform unpaid community work is 1 hour for each 0·2 penalty unit or part of 0·2 penalty unit then remaining unpaid up to an amount equivalent to

S. 69O
inserted by
No. 32/2013
s. 47 (as
amended by
No. 77/2013
ss 45, 48).

the value of 100 penalty units with a minimum of 8 and a maximum of 500 hours.

- (2) The minimum and maximum number of hours set out in subsection (1) apply, if the person is in default of more than one fine or instalment, to the aggregate number of hours for which he or she may be required to perform unpaid community work in respect of the amounts then remaining unpaid of all the fines or instalments of which he or she is then in default and to which the proceeding under section 69D or 69E relates.

S. 69P
inserted by
No. 32/2013
s. 47 (as
amended by
No. 77/2013
ss 45, 48).

69P Determining amount of unpaid fine or instalment

In determining for the purposes of section 69N or 69O the amount of a fine or instalment remaining unpaid—

- (a) an amount equivalent to the value of 1 penalty unit must be taken as having already been paid if the person in default was held in custody under a warrant issued under section 69 and for no other reason for a period of not less than one day; and
- (b) another amount equivalent to the value of 1 penalty unit must be taken as having already been paid for each day or part of a day in excess of one day during which he or she was so held up to a maximum of the amount of the fine or instalment remaining unpaid immediately before the execution of the warrant.

S. 69Q
inserted by
No. 32/2013
s. 47 (as
amended by
No. 77/2013
ss 45, 48).

69Q Period of unpaid community work to be performed

- (1) The number of hours ordered by the court that an offender must perform unpaid community work as specified in an item in column 1 of the Table to this subsection may be performed over a period that is equal to or less than the period specified

opposite the number of hours in the item in column 2 of the Table.

TABLE

<i>Item</i>	<i>Column 1</i>	<i>Column 2</i>
	<i>Hours of unpaid community work</i>	<i>Maximum period of order</i>
1	376 to 500	24 months
2	251 to 375	18 months
3	126 to 250	12 months
4	51 to 125	6 months
5	50 or less	3 months

- (2) The period over which unpaid community work must be performed, that a court specifies in a fines work order, must not be such a period as would require an offender to perform more than 20 hours of unpaid community work in any 7 day period.
- (3) Despite subsection (2) an offender may perform unpaid community work for up to 40 hours in a period of 7 days if he or she requests to do so and signs a written consent to performing the extra number of hours.

69R Cumulative unpaid community work if there are several orders

- (1) The number of hours of unpaid community work required to be performed by an offender under a fines work order must, unless otherwise directed by a court, be performed cumulatively on any hours of unpaid community work required to be performed under another fines work order that is in force in respect of the offender, whether the other fines work order is made before or at the same time as the first mentioned order.
- (2) A court must not give a direction under this section that is not consistent with section 69Q.

S. 69R
inserted by
No. 32/2013
s. 47 (as
amended by
No. 77/2013
ss 45, 48).

Division 7—Terms and operation of fines work orders

S. 69S
inserted by
No. 32/2013
s. 47 (as
amended by
No. 77/2013
ss 45, 48).

69S Period of a fines work order

- (1) The period of a fines work order is the period determined by the court in accordance with section 69Q.
- (2) Subject to subsection (3), the court must fix the date on which a fines work order commences, which must not be more than 3 months after the order is made.
- (3) If, under section 69R, the hours of unpaid community work required to be performed by an offender under a fines work order are to be performed cumulatively on any hours of unpaid community work required to be performed under another fines work order, the later fines work order commences on the completion of the earlier order.

S. 69T
inserted by
No. 32/2013
s. 47 (as
amended by
No. 77/2013
ss 45, 48).

69T When does a fines work order expire?

A fines work order expires on the satisfactory completion of the hours of work that the court ordered that the offender must perform.

S. 69U
inserted by
No. 32/2013
s. 47 (as
amended by
No. 77/2013
ss 45, 48).

69U Part payment of fine to reduce unpaid community work

- (1) This section applies if at any time while a fines work order is in force part of the amount then remaining unpaid is paid as required in subsection (3).
- (2) The number of hours of work which the person is required to perform must be reduced by the number of hours bearing as nearly as possible the same proportion to the total number of hours as

the amount paid bears to the whole amount in respect of which the order was made.

- (3) An amount being paid as referred to in subsection (1) must be paid, in accordance with the regulations, to the Secretary by or on behalf of the person required to perform unpaid community work.

69V Terms of a fines work order

- (1) The following terms are attached to each fines work order—
- (a) the offender must not commit (whether in or outside Victoria) during the period of the order, an offence punishable by imprisonment;
 - (b) the offender must comply with any obligation or requirement prescribed by the regulations;
 - (c) the offender must report to, and receive visits from, the Secretary during the period of the order;
 - (d) the offender must report to the community corrections centre specified in the order within 2 clear working days after the order comes into force;
 - (e) the offender must notify the Secretary of any change of address or employment within 2 clear working days after the change;
 - (f) the offender must not leave Victoria except with the permission, either generally or in relation to a particular case, of the Secretary;
 - (g) the offender must comply with any direction given by the Secretary that is necessary for the Secretary to give to ensure that the offender complies with the order.

S. 69V
inserted by
No. 32/2013
s. 47 (as
amended by
No. 77/2013
ss 45, 48).

- (2) A direction may be given by the Secretary under subsection (1)(g) either orally or in writing.

S. 69W
inserted by
No. 32/2013
s. 47 (as
amended by
No. 77/2013
ss 45, 48).

69W Suspension by Secretary

- (1) The Secretary may suspend the operation of a fines work order or any condition of that order for a period.
- (2) The Secretary may suspend an order or any condition of the order under subsection (1)—
- (a) if the offender is ill; or
 - (b) in other exceptional circumstances.
- (3) If the Secretary suspends the operation of an order or a condition of an order under subsection (1), the period of the suspension does not count in calculating the period for which the order is to remain in force.

S. 69X
inserted by
No. 32/2013
s. 47 (as
amended by
No. 77/2013
ss 45, 48).

69X Secretary may direct offender to report at another place or to another person

- (1) If, because an offender has changed his or her place of residence or for any other reason it is not convenient that the offender should report at a place or to a person specified in a fines work order, the Secretary may direct the offender to report at another place or to another person.
- (2) An offender must report as directed under subsection (1) as if that place or person had been specified in the order.

Division 8—Enforcement of fines against bodies corporate

S. 69Y
inserted by
No. 32/2013
s. 47 (as
amended by
No. 77/2013
ss 45, 48).

69Y Enforcement of fines against bodies corporate

- (1) If a body corporate defaults in respect of a fine or of any instalment under an instalment order by not making payment by the end of 28 days after the due date for payment the court or the proper

officer may issue a warrant to seize property against it.

- (2) The court or proper officer must not issue a warrant under subsection (1) in respect of a registered court fine within the meaning of the **Fines Reform Act 2014**.

S. 69Y(2)
substituted by
No. 17/2022
s. 86.

* * * * *

S. 69Y(3)
repealed by
No. 17/2022
s. 86.

Division 9—General

69Z Notice of orders to be given

An order under this Part is not binding on an offender if the offender has not been given notice of it in the manner required by or under this Part.

S. 69Z
inserted by
No. 32/2013
s. 47 (as
amended by
No. 77/2013
ss 45, 48).

69ZA Oath or affirmation

A court, or a proper officer of a court, may administer an oath or affirmation for the purposes of proceedings under this Part.

S. 69ZA
inserted by
No. 32/2013
s. 47 (as
amended by
No. 77/2013
ss 45, 48).

69ZB Application of fines etc.

The whole or any part of a fine, penalty or sum of money which by or under any Act is authorised or directed to be imposed on a person forms part of, and must be paid into, the Consolidated Fund if no other way of appropriating or applying it is prescribed by law.

S. 69ZB
inserted by
No. 32/2013
s. 47 (as
amended by
No. 77/2013
ss 45, 48).

69ZC Penalty payable to body corporate

A forfeiture or penalty payable to a party aggrieved under an Act relating to an offence (whether indictable or summary) is payable to a body corporate if it is the party aggrieved.

S. 69ZC
inserted by
No. 32/2013
s. 47 (as
amended by
No. 77/2013
ss 45, 48).

S. 69ZD
inserted by
No. 32/2013
s. 47 (as
amended by
No. 77/2013
ss 45, 48).

69ZD Recovery of penalties

If an Act or a subordinate instrument—

- (a) provides for a penalty to be recovered from any person—
 - (i) summarily; or
 - (ii) on summary conviction; or
 - (iii) before the Magistrates' Court; or
- (b) uses any other words that imply that a penalty is to be recovered before the Magistrates' Court; or
- (c) does not provide a form or mode of procedure for the recovery of a penalty—

then, unless the contrary intention appears, the penalty must be recovered only before the Magistrates' Court.

S. 69ZE
inserted by
No. 32/2013
s. 47 (as
amended by
No. 77/2013
ss 45, 48).

69ZE Order made by Court of Appeal

For the purposes of any proceeding under this Part or Division 2 of Part 3C—

- (a) a fine or a time to pay order or an instalment order or a fines work order made by the Court of Appeal on an appeal must be taken to have been made by the court from whose decision the appeal was brought; and
- (b) the provisions about proceedings under this Part or Division 2 of Part 3C apply as if the court from which the appeal was made were the sentencing court.

S. 69ZF
inserted by
No. 32/2013
s. 47 (as
amended by
No. 77/2013
ss 45, 48).

69ZF Rules of court

The power to make rules under the **Supreme Court Act 1986**, the **County Court Act 1958** and the **Magistrates' Court Act 1989** extends to and applies in relation to the making of rules for or with respect to—

- (a) the matters to be specified in applications or orders made or notices given under this Part; or
- (b) the manner of making applications under section 65; or
- (c) court procedure and the procedure of the proper officer under this Part; or
- (d) securing the attendance of an offender before the court and the production of documents by an offender to the court if the offender defaults in the payment of a fine or of an instalment under an instalment order and empowering the issue of a summons or warrant to arrest or the making of an order for that purpose; or
- (e) the issue and execution under this Part of summonses, warrants to arrest, warrants of execution and warrants to imprison; or
- (f) the functions of the proper officer of the court under this Part; or
- (g) the costs of proceedings if an order is made under section 69L; or
- (h) the forms for the purposes of this Part; or
- (i) the manner of service or filing of any documents under this Part; or
- (j) any other matter or thing required or permitted by this Part or necessary to give effect to this Part.

S. 69ZG
inserted by
No. 32/2013
s. 47 (as
amended by
No. 77/2013
ss 45, 48),
amended by
No. 47/2014
s. 312.

69ZG Application to infringement enforcement procedure

This Part does not apply to the use of the procedures for the enforcement of infringement penalties under the **Fines Reform Act 2014**.

Part 3BA—Sentences—other orders

Pt 3BA
(Heading)
inserted by
No. 26/2012
s. 54.

Division 1—Dismissals, discharges and adjournments

Pt 3 Div. 5
(Heading)
substituted as
Pt 3B Div. 2
(Heading) by
No. 65/2011
s. 28,
renumbered
as Pt 3BA
Div. 1 by
No. 26/2012
s. 55.

Subdivision (1)—General

70 Purpose of orders under this Division

S. 70
amended by
No. 48/1997
s. 20(1).

(1) An order may be made under this Division—

- (a) to provide for the rehabilitation of an offender by allowing the sentence to be served in the community unsupervised;
- (b) to take account of the trivial, technical or minor nature of the offence committed;
- (ba) to allow for the offender to demonstrate his or her remorse in a manner agreed to by the court;
- (c) to allow for circumstances in which it is inappropriate to record a conviction;
- (d) to allow for circumstances in which it is inappropriate to inflict any punishment other than a nominal punishment;
- (e) to allow for the existence of other extenuating or exceptional circumstances that justify the court showing mercy to an offender.

S. 70(1)(ba)
inserted by
No. 31/2013
s. 9(1).

S. 70(2)
inserted by
No. 48/1997
s. 20(2).

- (2) For the purpose of any proceedings under Subdivision (4), an order made under this Division on appeal by the Court of Appeal must be taken to have been made by the court from whose decision the appeal was brought.

71 Abolition of common law bonds

A court does not have jurisdiction to release a convicted offender on a recognisance or bond to be of good behaviour and to appear for sentence when called on.

S. 71A
inserted by
No. 65/2016
s. 13.

71A Limitation on making of orders under this Division

The power of a court to make an order under this Division in respect of an offence is subject to any specific provision relating to the offence.

Subdivision (2)—Release on conviction

72 Release on adjournment following conviction

S. 72(1)
amended by
No. 48/1997
s. 28(3).

- (1) A court, on convicting a person of an offence, may adjourn the proceeding for a period of up to 5 years and release the offender on the offender giving an undertaking with conditions attached.
- (2) An undertaking under subsection (1) must have as conditions—

S. 72(2)(a)
amended by
No. 68/2009
s. 97(Sch.
item 110.49).

- (a) that the offender attends before the court if called on to do so during the period of the adjournment and, if the court so specifies, at the time to which the further hearing is adjourned; and

- (b) that the offender is of good behaviour during the period of the adjournment; and

S. 72(2)(c)
amended by
Nos 65/2011
s. 29(1),
31/2013
s. 9(2).

- (c) that the offender observes any conditions attached by the court and may include a condition requiring the offender to make a payment to an organisation that provides a

charitable or community service or to the court for payment to such an organisation.

- (3) Subject to Division 2 of Part 3BA, a court may attach a justice plan condition that the offender participate in the services specified in a justice plan for a period of up to 2 years specified by the court or the period of the adjournment, whichever is the shorter.
- (4) An offender who has given an undertaking under subsection (1) may be called on to attend before the court—
- (a) by order of the court; or
 - (b) by notice issued by the proper officer of the court.
- (5) An order or notice under subsection (4) must be served on the offender not less than 4 days before the time specified in it for the attendance.
- (6) If at the time to which the further hearing of a proceeding is adjourned the court is satisfied that the offender has observed the conditions of the undertaking, it must discharge the offender without any further hearing of the proceeding.

S. 72(3)
amended by
Nos 48/1997
s. 28(1),
65/2011
s. 29(2),
26/2012 s. 56.

S. 72(4)
amended by
No. 68/2009
s. 97(Sch.
item 110.50).

S. 72(5)
amended by
No. 68/2009
s. 97(Sch.
item 110.51).

73 Unconditional discharge

A court may discharge a person whom it has convicted of an offence.

74 Compensation or restitution

A court may make an order for compensation or restitution in addition to making an order under this Subdivision.

Subdivision (3)—Release without conviction

75 Release on adjournment without conviction

(1) A court, on being satisfied that a person is guilty of an offence, may (without recording a conviction) adjourn the proceeding for a period of up to 60 months and release the offender on the offender giving an undertaking with conditions attached.

(2) An undertaking under subsection (1) must have as conditions—

S. 75(2)(a)
amended by
No. 68/2009
s. 97(Sch.
item 110.52).

(a) that the offender attends before the court if called on to do so during the period of the adjournment and, if the court so specifies, at the time to which the further hearing is adjourned; and

(b) that the offender is of good behaviour during the period of the adjournment; and

S. 75(2)(c)
amended by
No. 31/2013
s. 9(3).

(c) that the offender observes any special conditions imposed by the court and may include a condition requiring the offender to make a payment to an organisation that provides a charitable or community service or to the court for payment to such an organisation.

S. 75(3)
amended by
Nos 48/1997
s. 28(1),
65/2011 s. 30,
26/2012 s. 57.

(3) Subject to Division 2 of Part 3BA, a court may attach a justice plan condition that the offender participate in the services specified in a justice plan for a period of up to 2 years specified by the court or the period of the adjournment, whichever is the shorter.

- (4) An offender who has given an undertaking under subsection (1) may be called on to attend before the court—

S. 75(4)
amended by
No. 68/2009
s. 97(Sch.
item 110.53).

(a) by order of the court; or

(b) by notice issued by the proper officer of the court.

- (5) An order or notice under subsection (4) must be served on the offender not less than 4 days before the time specified in it for the attendance.

S. 75(5)
amended by
No. 68/2009
s. 97(Sch.
item 110.54).

- (6) If at the time to which the further hearing of a proceeding is adjourned the court is satisfied that the offender has observed the conditions of the undertaking, it must dismiss the charge without any further hearing of the proceeding.

76 Unconditional dismissal

A court, on being satisfied that a person is guilty of an offence, may (without recording a conviction) dismiss the charge.

77 Compensation or restitution

A court may make an order for compensation or restitution in addition to making an order under this Subdivision.

Subdivision (4)—Variation of orders for release on adjournment

Pt 3B Div. 2
Subdiv. (4)
(Heading)
amended by
No. 65/2011
s. 31.

78 Variation of order for release on adjournment

- (1) A court which has under Subdivision (2) or (3) made an order for the release of an offender on an adjournment (with or without recording a conviction) may, on application under this subsection, if satisfied—

- (a) that the circumstances of the offender have materially altered since the order was made and as a result the offender will not be able to comply with any condition of the undertaking; or
- (b) that the circumstances of the offender were wrongly stated or were not accurately presented to the court or the author of a pre-sentence report before the order was made; or
- (c) that the offender is no longer willing to comply with the conditions of the undertaking—

vary the order or cancel it and, subject to subsection (2), deal with the offender for the offence or offences with respect to which it was made in any manner in which the court could deal with the offender if it had just found the offender guilty of that offence or those offences.

S. 78(2)
substituted by
No. 65/2011
s. 32.

- (2) A court, in determining how to deal with an offender under subsection (1) must take into account the extent to which the offender has complied with the order.
- (3) An application under subsection (1) may be made at any time while the order is in force by—
 - (a) the offender; or
 - (b) a prescribed person, or a member of a prescribed class of persons; or
 - (c) the Director of Public Prosecutions.
- (4) Notice of an application under subsection (1) must be given—
 - (a) to the offender; and

- (b) to the Director of Public Prosecutions (if the sentencing court was the Supreme Court or the County Court) or to the informant or police prosecutor (if the sentencing court was the Magistrates' Court).
- (5) The court may order that a warrant to arrest be issued against the offender if he or she does not attend before the court on the hearing of the application.

* * * * *

S. 79
amended by
Nos 48/1997
s. 21,
10/1999 s. 30,
68/2009
s. 97(Sch.
items 110.55–
110.58),
repealed by
No. 65/2011
s. 33.

Division 2—Intellectually disabled offenders

Pt 3 Div. 6
(Heading)
substituted as
Pt 3B Div. 3
(Heading) by
No. 65/2011
s. 34,
renumbered
as Pt 3BA
Div. 2 by
No. 26/2012
s. 58.

80 Justice plan condition

- (1) A court that is considering—
- (a) making a community correction order; or
- (b) releasing an offender on adjournment with or without recording a conviction—
- may attach a condition to the order directing that the offender participate in the services specified in the plan prepared under subsection (3)(c).

S. 80
amended by
Nos 48/1997
ss 14(8), 28(1),
46/1998
s. 7(Sch. 1),
23/2006 s. 227,
substituted by
No. 65/2011
s. 35.

- (2) In attaching a condition under subsection (1) the court must—
- (a) consider the plan and the other information requested under subsection (3); and
 - (b) have regard to those objectives and principles specified in Part 2 of the **Disability Act 2006**.
- (3) A court which is considering making an order attaching a justice plan condition may request—
- (a) a pre-sentence report under Division 1A of Part 3; and
 - (b) a statement from the Secretary to the Department of Health and Human Services that the person has an intellectual disability within the meaning of the **Disability Act 2006**; and
 - (c) a plan of available services designed to reduce the likelihood of the offender committing further offences and that is in accordance with the objectives and principles of Part 2 of the **Disability Act 2006**.
- (4) When attaching a justice plan condition, the condition may apply for a period of up to 2 years, as specified by the court or the period of the sentence (whichever is the shorter).
- (5) If a court attaches a justice plan condition it must cause a copy of the order to be supplied to the Secretary to the Department of Health and Human Services.

S. 80(3)(b)
amended by
No. 19/2019
s. 269(1).

S. 80(5)
amended by
No. 19/2019
s. 269(1).

81 Review of justice plan by Secretary

- | | |
|---|--|
| (1) The Secretary to the Department of Human Services must review a justice plan— | S. 81(1)
amended by
Nos 46/1998
s. 7(Sch. 1),
65/2011
s. 36(1)(2). |
| (a) not later than one year after the imposing of the order to which the justice plan condition is attached under section 80 and thereafter at intervals not exceeding one year; or | S. 81(1)(a)
amended by
Nos 48/1997
s. 28(2),
65/2011
s. 36(3). |
| (b) as directed by the court at the time of sentencing— | |
| until the condition of the sentence ceases to have effect. | |
| (2) The Secretary to the Department of Human Services may review a justice plan if an application is made to him or her to do so by— | S. 81(2)
amended by
Nos 46/1998
s. 7(Sch. 1),
65/2011
s. 36(4). |
| (a) the offender; or | |
| (b) if the sentence is a community correction order, the Secretary; or | S. 81(2)(b)
amended by
No. 45/1996
s. 18(Sch. 2
item 11.12),
substituted by
No. 65/2011
s. 36(5). |
| (c) if the sentence is a an order under Subdivision (2) or (3) of Division 2, a prescribed person or a member of a prescribed class of persons. | S. 81(2)(c)
amended by
Nos 48/1997
s. 14(9),
65/2011
s. 36(6). |

82 Review of justice plan condition by sentencing court

S. 82
(Heading)
inserted by
No. 65/2011
s. 37.

S. 82(1)
amended by
Nos 23/2006
s. 228(1),
65/2011
s. 38(1)(2)(a).

- (1) If on an application under this subsection the court which attached a justice plan condition to an order under section 80(1) is satisfied—

S. 82(1)(a)
amended by
No. 65/2011
s. 38(2)(a).

- (a) that the offender is no longer willing to comply with the condition; or

S. 82(1)(b)
amended by
No. 65/2011
s. 38(2)(a).

- (b) that the needs of the offender are not being met by the condition; or

S. 82(1)(c)
amended by
No. 65/2011
s. 38(2)(a).

- (c) that the offender has failed without reasonable excuse to comply with the condition; or

S. 82(1)(d)
amended by
No. 65/2011
s. 38(2)(b).

- (d) that the condition is no longer appropriate—

it may confirm, vary or cancel the condition.

S. 82(2)
amended by
No. 65/2011
s. 38(3).

- (2) An application under subsection (1) may be made at any time while the justice plan condition is in force by—

S. 82(2)(b)
amended by
Nos 45/1996
s. 18(Sch. 2
item 11.13),
65/2011
s. 38(4)(a).

- (a) the offender; or
(b) if the sentence is a community correction order, the Secretary; or

- | | |
|--|--|
| (c) if the sentence is an order under Subdivision (2) or (3) of Division 2, a prescribed person or a member of a prescribed class of persons; or | S. 82(2)(c) amended by Nos 48/1997 s. 14(9), 65/2011 s. 38(4)(b). |
| (d) the Secretary to the Department of Human Services. | S. 82(2)(d) amended by No. 46/1998 s. 7(Sch. 1), substituted by No. 23/2006 s. 228(2), amended by No. 65/2011 s. 38(4)(c). |
- (3) Notice of an application under subsection (1) must be given—
- (a) to the offender; and
 - (b) to the Director of Public Prosecutions (if the sentencing court was the Supreme Court or the County Court) or to the informant or police prosecutor (if the sentencing court was the Magistrates' Court).
- (4) The court may order that a warrant to arrest be issued against the offender if he or she does not attend before the court on the hearing of the application.
- | | |
|---|---|
| (5) If the court cancels the justice plan condition, it may cancel the sentence and, subject to subsection (6), deal with the offender for the offence or offences with respect to which the sentence was imposed in any manner in which the court could deal with the offender if it had just found the offender guilty of that offence or those offences. | S. 82(5) amended by No. 65/2011 s. 38(5). |
|---|---|
- (6) In determining how to deal with an offender following the cancellation by it of a sentence, a court must take into account the extent to which

the offender had complied with the sentence before its cancellation.

S. 82AA
inserted by
No. 65/2011
s. 39.

82AA Residential treatment order

(1) A court may make an order directing that the offender be detained for a period of up to 5 years in a specified residential treatment facility to receive specified treatment if—

S. 82AA(1)(a)
amended by
No. 26/2012
s. 59.

(a) the offender has been found guilty of a serious offence within the meaning of the definition of ***serious offence*** in section 3(1);
or

S. 82AA(1)(b)
substituted by
No. 74/2014
s. 19(2).

(b) the offender has been found guilty of an offence against section 40(1) (sexual assault), or section 41(1) (sexual assault by compelling sexual touching), of the **Crimes Act 1958**.

(2) If a court is considering making a residential treatment order the court may request—

S. 82AA(2)(b)
amended by
No. 19/2019
s. 269(2).

(a) a pre-sentence report in accordance with Division 1A of Part 3; and

(b) a statement from the Secretary to the Department of Health and Human Services that the person has an intellectual disability within the meaning of the **Disability Act 2006**; and

(c) a plan of available services.

S. 82AA(3)
amended by
No. 19/2019
s. 269(2).

(3) A court may only make a residential treatment order if the Secretary to the Department of Health and Human Services has specified—

(a) that the person is suitable for admission to a residential treatment facility; and

(b) in the plan of available services, that services are available in a residential treatment facility.

- (4) If a court makes a residential treatment order it must cause a copy of the order to be supplied to the Secretary to the Department of Health and Human Services.

S. 82AA(4)
amended by
No. 19/2019
s. 269(2).

82A Review of residential treatment order by sentencing court

S. 82A
inserted by
No. 23/2006
s. 229.

- (1) If on an application under this subsection the court which imposed a residential treatment order under section 82AA is satisfied—

S. 82A(1)
amended by
No. 65/2011
s. 40(1).

- (a) that the offender is not complying with the residential treatment order; or
(b) that the needs of the offender are not being met by the residential treatment order; or
(c) that the residential treatment order is no longer appropriate—

it may confirm, vary or cancel the residential treatment order.

- (2) An application under subsection (1) may be made at any time while the residential treatment order is in force by—

- (a) the offender; or
(b) the Secretary; or

S. 82A(2)(b)
substituted by
No. 65/2011
s. 40(2).

- (c) the Secretary to the Department of Human Services.

S. 82A(2)(c)
substituted by
No. 65/2011
s. 40(3).

- (3) Notice of an application under subsection (1) must be given—

- (a) to the offender; and

- (b) to the Director of Public Prosecutions (if the sentencing court was the Supreme Court or the County Court) or to the informant or police prosecutor (if the sentencing court was the Magistrates' Court).
- (4) The court may order that a warrant to arrest be issued against the offender if he or she does not attend before the court on the hearing of the application.
- (5) If the court cancels the residential treatment order, it may cancel the sentence and, subject to subsection (6), deal with the offender for the offence or offences with respect to which the sentence was imposed in any manner in which the court could deal with the offender if it had just found the offender guilty of that offence or those offences.
- (6) In determining how to deal with an offender following the cancellation by it of a sentence, a court must take into account the extent to which the offender had complied with the sentence before its cancellation.

S. 83
amended by
No. 23/2006
s. 230.

83 Notice of application

Notice of an application under section 82(1) or 82A(1) must be given to an offender by—

- (a) not less than 14 days before the date of hearing of the application posting a true copy of the application addressed to the offender at his or her last known place of residence or business; or
- (b) not less than 5 days before the date of hearing of the application—
 - (i) delivering to the offender personally a true copy of the application; or

- (ii) leaving a true copy of the application for the offender at his or her last known place of residence or business with a person who apparently resides or works there and who apparently is not less than 16 years old.

Division 3—Deferral of sentencing in the Magistrates' Court or County Court

Pt 3 Div. 7
(Heading)
substituted as
Pt 3B Div. 4
(Heading) by
No. 65/2011
s. 41,
renumbered
as Pt 3BA
Div. 3 by
No. 26/2012
s. 60.

Pt 3 Div. 7
(Heading and
s. 83A)
inserted by
No. 19/1999
s. 9.

83A Deferral of sentencing

S. 83A
inserted by
No. 19/1999
s. 9.

- (1) If the Magistrates' Court or County Court finds a person guilty of an offence and—

S. 83A(1)
amended by
No. 77/2010
s. 21(1)
(a)(d)(e).

* * * * *

S. 83A(1)(a)
amended by
No. 72/2004
s. 39,
repealed by
No. 77/2010
s. 21(1)(b).

- (b) the court is of the opinion that sentencing should, in the interests of the offender, be deferred; and

S. 83A(1)(b)
amended by
No. 77/2010
s. 21(1)(c).

(c) the offender agrees to a deferral of sentencing—

the court may defer sentencing the offender for a period not exceeding 12 months.

S. 83A(1A)
inserted by
No. 77/2010
s. 21(2).

(1A) The court may defer sentencing the offender under subsection (1) for any one or more of the following purposes—

- (a) to allow the offender's capacity for and prospects of rehabilitation to be assessed;
- (b) to allow the offender to demonstrate that rehabilitation has taken place;
- (c) to allow the offender to participate in a program or programs aimed at addressing the underlying causes of the offending;
- (d) to allow the offender to participate in a program or programs aimed at addressing the impact of the offending on the victim;
- (e) for any other purpose that the court considers appropriate having regard to the offender and the circumstances of the case.

S. 83A(1B)
inserted by
No. 77/2010
s. 21(2).

(1B) In making an order deferring a sentence under subsection (1), the court may determine the date at which the offender must re-appear before the court for a review of the order.

S. 83A(1C)
inserted by
No. 77/2010
s. 21(2).

(1C) Dates fixed under subsection (1B) must be between the date on which the order deferring the sentence is made and the date to which the proceeding has been adjourned.

S. 83A(1D)
inserted by
No. 77/2010
s. 21(2).

(1D) On the review of an order deferring a sentence under this section, the court may—
(a) take no further action; or

- (b) cancel the order deferring the sentence and proceed to sentence the offender, as if the matter were an adjourned hearing to which subsection (3) applies.
- (1E) In making an order deferring a sentence under subsection (1), the court may order that any review of the order under subsection (1B) be dealt with by the court constituted by the person who made the order deferring the sentence. S. 83A(1E)
inserted by
No. 77/2010
s. 21(2).
- (2) If the Magistrates' Court or County Court defers sentencing an offender, it— S. 83A(2)
amended by
No. 77/2010
s. 21(3)(a).
- (a) must adjourn the proceeding for a period of up to 12 months; and S. 83A(2)(a)
amended by
No. 77/2010
s. 21(3)(b).
- (b) may release the offender on his or her undertaking to attend before the court on the date fixed for sentence or release the offender on bail or extend his or her bail to that date; and S. 83A(2)(b)
amended by
Nos. 68/2009
s. 97(Sch.
item 110.59),
77/2010
s. 21(3)(c).
- (c) may order a pre-sentence report in respect of the offender.
- (3) On the adjourned hearing, the court must, in determining the appropriate sentence for an offender, have regard to— S. 83A(3)
amended by
No. 77/2010
s. 21(4).
- (a) the offender's behaviour during the period of deferral; and
- (b) subject to section 8D, any pre-sentence report ordered under subsection (2)(c); and S. 83A(3)(b)
amended by
No. 65/2011
s. 42.
- (c) any other relevant matter.

S. 83A(4)
amended by
No. 77/2010
s. 21(5).

(4) If an offender is found guilty of an offence during a period of deferral under this section, the court may—

(a) re-list the adjourned proceeding on a day earlier than the day to which it was adjourned under subsection (2)(a); and

S. 83A(4)(b)
amended by
No. 77/2010
s. 21(5).

(b) on the adjourned hearing make any order that the court could have made if it had not deferred sentencing.

S. 83A(5)
amended by
No. 77/2010
s. 21(6).

(5) The court may order that a warrant to arrest be issued against the offender if he or she does not attend before the court on the adjourned hearing.

S. 83A(6)
amended by
No. 77/2010
s. 21(7).

(6) Nothing in this section removes any requirement imposed on the Magistrates' Court or County Court by or under this or any other Act to impose any disqualification on, or make any other order in respect of, a person found guilty or convicted of an offence, including an order cancelling or suspending a driver licence or permit or disqualifying the offender from obtaining one for any period.

Part 3C—Sentences—contravention of sentence

Division 1—Offences

* * * * *

Pt 3C
(Heading and
ss 83AB–
83AT)
inserted by
No. 65/2011
s. 43.

S. 83AB
inserted by
No. 65/2011
s. 43,
repealed by
No. 32/2013
s. 14.

83AC Contravention of order for release on adjournment

An offender who is subject to an order under section 72 or 75 for release on the adjournment of the proceeding must not contravene that order, unless the offender has a reasonable excuse.

Penalty: Level 10 fine.

S. 83AC
inserted by
No. 65/2011
s. 43.

83AD Contravention of community correction order

- (1) An offender who is subject to a community correction order must not contravene that order, unless the offender has a reasonable excuse.

Penalty: 3 months imprisonment.

- (2) A proceeding is not able to be brought against a person for an offence under subsection (1) in relation to conduct of that person in respect of which that person has been acquitted, convicted or found guilty of an offence under section 83AE or 83AF.

S. 83AD
inserted by
No. 65/2011
s. 43.

83ADA Contravention of fine conversion order

An offender who is subject to a fine conversion order must not contravene that order unless the offender has a reasonable excuse.

Penalty: Level 10 fine.

S. 83ADA
inserted by
No. 32/2013
s. 48.

S. 83ADB
inserted by
No. 32/2013
s. 48.

83ADB Contravention of fine default unpaid community work order

An offender who is subject to a fine default unpaid community work order must not contravene that order unless the offender has a reasonable excuse.

Penalty: Level 10 fine.

S. 83AE
inserted by
No. 65/2011
s. 43.

83AE Particular contraventions of directions of Secretary

- (1) An offender who is subject to a community correction order and who is attending at a place under a direction given by the Secretary in compliance with section 45(1)(f), must not leave that place unless—
 - (a) the offender has first obtained the permission of the Secretary; or
 - (b) the offender has a reasonable excuse.
- (2) An offender who is subject to a community correction order and who is required to attend at a place under a direction given by the Secretary in compliance with section 45(1)(f), must, unless the offender has a reasonable excuse, notify the Secretary if he or she is unable to attend as required—
 - (a) at least 24 hours before the offender is due to attend the location if the offender has at least 24 hours notice of that inability; or
 - (b) immediately on becoming unable to attend if the offender did not have at least 24 hours notice of his or her inability to attend at the location.

Penalty: Level 11 fine.

(3) An offender who is subject to a community correction order and who is required to attend at a place under a direction given by the Secretary in compliance with section 45(1)(f), must attend at the place on the required day and time unless—

- (a) the offender has obtained the permission of the Secretary not to attend; or
- (b) the offender has a reasonable excuse.

Penalty: Level 11 fine.

(4) An offender who is subject to a community correction order and who is required to attend at a place under a direction given by the Secretary in compliance with section 45(1)(f) must produce a medical certificate, as soon as is practicable, if the offender has not attended because of illness.

Penalty: Level 11 fine.

(5) An offender who is subject to a community correction order who is required to attend at a community corrections centre under the order must not enter an unauthorised area of the community corrections centre without the permission of the Secretary.

Penalty: Level 11 fine.

(6) In this section—

unauthorised area means an area designated by the Secretary to be an unauthorised area.

(7) A proceeding is not able to be brought against a person for an offence under this section in relation to conduct of that person in respect of which that person has been acquitted, convicted or found guilty of an offence under section 83AD or 83AF.

S. 83AF
inserted by
No. 65/2011
s. 43.

83AF Offence to fail to obey a written direction of Secretary

- (1) An offender who is subject to a community correction order must not contravene a written direction of the Secretary that is given under section 46 unless that person has a reasonable excuse.

Penalty: Level 11 fine.

- (2) A proceeding is not able to be brought against a person for an offence under subsection (1) in relation to conduct of that person in respect of which that person has been acquitted, convicted or found guilty of an offence under section 83AD or 83AE.

Pt 3C Div. 2
(Heading)
substituted by
No. 26/2012
s. 61.

Division 2—Procedure for contravention offence

S. 83AG
inserted by
No. 65/2011
s. 43,
substituted by
No. 26/2012
s. 62.

83AG Commencement of a proceeding

S. 83AG(1)
amended by
No. 32/2013
ss 15, 49(1).

- (1) A proceeding for an offence under section 83AC, 83AD, 83ADA, 83ADB, 83AE or 83AF is commenced by filing a charge-sheet in the Magistrates' Court.
- (2) A charge-sheet must be filed under subsection (1) by—
 - (a) the Director of Public Prosecutions; or
 - (b) a crown prosecutor within the meaning of the **Criminal Procedure Act 2009**; or

- | | |
|---|--|
| (c) a member of staff of the Office of Public Prosecutions who is a lawyer; or | S. 83AG(2)(c) amended by No. 32/2013 s. 34(1). |
| (d) a police officer; or | S. 83AG(2)(d) amended by No. 37/2014 s. 10(Sch. item 151.3). |
| (da) an informant in the proceeding for which the sentencing order was made that is the subject of the charge; or | S. 83AG(2)(da) inserted by No. 32/2013 s. 34(2). |
| (e) a prescribed person; or | |
| (f) a member of a prescribed class of person; or | |
| (g) the Secretary— | |
- as the case requires.
- (3) Subject to this Act, a proceeding commenced under this Division is to be in accordance with the provisions of and regulations and rules made under—
- (a) the **Criminal Procedure Act 2009**;
 - (b) the **Bail Act 1977**;
 - (c) the **Magistrates' Court Act 1989**—
- with any necessary modifications, and in particular with the modification that a reference to a person accused of an offence or an accused person, is taken to be a reference to the offender.
- (4) In particular, without limiting subsection (3), section 12 of the **Criminal Procedure Act 2009** applies to a proceeding commenced under this section with the modification that a reference to section 6 is taken to be a reference to section 83AG of this Act.

S. 83AH
inserted by
No. 65/2011
s. 43,
substituted by
No. 26/2012
s. 62.

83AH Time for commencing a proceeding

S. 83AH(1)
amended by
Nos 32/2013
s. 16(1),
77/2013
s. 46(1).

- (1) A proceeding for an offence under section 83AC, 83AD, 83ADA or 83ADB must be commenced—
- (a) if the contravention is constituted by the offender committing another offence punishable by imprisonment while the order is in force, within 6 months after the person is convicted or found guilty of the later offence, subject to subsection (2); or
 - (b) if the contravention is not constituted by the offender committing another offence punishable by imprisonment while the order is in force, within 1 year after the order ceases to be in force.

S. 83AH(2)
amended by
Nos 32/2013
s. 16(2),
77/2013
s. 46(2).

- (2) A proceeding for an offence under section 83AC, 83AD, 83ADA or 83ADB to which subsection (1)(a) applies must not be commenced more than 2 years after the order ceases to be in force.

Note

The time limit for the commencement of a proceeding for a summary offence under section 7 of the **Criminal Procedure Act 2009** applies to an offence against section 83AE or 83AF.

S. 83AI
inserted by
No. 65/2011
s. 43,
substituted by
No. 26/2012
s. 62.

83AI Issue of summons or warrant to arrest

S. 83AI(1)
amended by
No. 32/2013
ss 17(1), 49(2).

- (1) A summons issued for the purposes of a proceeding commenced under section 83AG for an offence under section 83AC, 83AD, 83ADA

or 83ADB must direct the offender to attend to answer to the charge—

- (a) at the proper venue of the Magistrates' Court, if the order that is the subject of the offence was made by the Magistrates' Court; or
 - (b) at the Supreme Court or the County Court, if the order that is the subject of the offence was made by either court.
- (2) A warrant to arrest issued for the purposes of a proceeding commenced under section 83AG for an offence under section 83AC, 83AD, 83ADA or 83ADB must—
- (a) be issued in accordance with Part 4 of the **Magistrates' Court Act 1989**; and
 - (b) authorise the person to whom it is directed to bring the offender when arrested before a bail justice or the sentencing court to be dealt with according to law.

S. 83A(2)
amended by
No. 32/2013
ss 17(2), 49(2).

83AJ Transfer of a proceeding

S. 83AJ
inserted by
No. 65/2011
s. 43,
substituted by
No. 26/2012
s. 62.

- (1) If a proceeding is commenced under section 83AG for an offence under section 83AC, 83AD, 83ADA or 83ADB, and the Magistrates' Court did not make the order that is the subject of the offence, the Magistrates' Court must order that the proceeding be transferred to the appropriate venue of the sentencing court.

S. 83AJ(1)
amended by
No. 32/2013
ss 18, 49(2).

- (2) An order made under subsection (1) that transfers a proceeding takes effect—
 - (a) if a summons has been issued under section 83AI(1) on the filing of the evidence of service of the summons in the sentencing court; or
 - (b) if a warrant to arrest has been issued under section 83AI(2) on the execution of the warrant against the offender.
- (3) The Magistrates' Court under subsection (1) may be constituted by a proper officer of the court.
- (4) If a proceeding is transferred to the Supreme Court or the County Court under subsection (1) it may be heard and determined without a jury and in accordance with Chapter 3 of the **Criminal Procedure Act 2009** subject to any modifications as set out in the rules of the court.

S. 83AK
inserted by
No. 65/2011
s. 43,
substituted by
No. 26/2012
s. 62.

83AK Issue of warrant to arrest on failure to comply with bail or summons

If a proceeding is transferred under section 83AJ and an offender does not attend before the sentencing court—

- (a) in accordance with his or her undertaking of bail; or
- (b) in answer to a summons which has been served—

the sentencing court may issue a warrant to arrest the offender.

83AL Process where offender before higher court, orders of that court

S. 83AL
inserted by
No. 65/2011
s. 43,
substituted by
No. 26/2012
s. 62.

- (1) If in a proceeding before the Supreme Court or the County Court (the *relevant sentencing court*)—

S. 83AL(1)
amended by
No. 32/2013
ss 19(1), 49(2).

- (a) an offender is before the relevant sentencing court and is convicted or found guilty of the offence that is the subject of the proceeding; and
- (b) the conviction or finding of guilt constitutes a contravention of an order (the *original order*) under this Act applying to the offender, in respect of which a charge-sheet may be filed for an offence under section 83AC, 83AD, 83ADA or 83ADB; and
- (c) the original order was made by the relevant sentencing court—

S. 83AL(1)(b)
amended by
No. 32/2013
ss 19(1), 49(2).

despite anything to the contrary in this Division, the proceeding for the offence under section 83AC, 83AD, 83ADA or 83ADB may be commenced by filing a charge-sheet in the relevant sentencing court.

- (2) If a charge-sheet is filed in the relevant sentencing court under subsection (1) it must be filed by—
- (a) the Director of Public Prosecutions; or
 - (b) a crown prosecutor within the meaning of the **Criminal Procedure Act 2009**; or
 - (c) a member of staff of the Office of Public Prosecutions who is a lawyer; or

S. 83AL(2)(c)
amended by
No. 32/2013
s. 35(1).

S. 83AL(2)(d)
amended by
No. 37/2014
s. 10(Sch.
item 151.3).

(d) a police officer; or

S. 83AL(2)(da)
inserted by
No. 32/2013
s. 35(2).

(da) an informant in the proceeding for which the original order was made that is the subject of the charge; or

(e) a prescribed person; or

(f) a member of a prescribed class of person; or

(g) the Secretary—

as the case requires.

S. 83AL(3)
amended by
No. 32/2013
ss 19(2), 49(2).

(3) The relevant sentencing court may hear and determine the charge for the offence under section 83AC, 83AD, 83ADA or 83ADB without a jury and in accordance with Chapter 3 of the **Criminal Procedure Act 2009**, subject to any modifications as set out in the rules of the relevant sentencing court.

S. 83AM
inserted by
No. 65/2011
s. 43,
substituted by
No. 26/2012
s. 62.

83AM Process where offender before higher court, orders of Magistrates' Court

S. 83AM(1)
amended by
No. 32/2013
ss 20(1), 49(2).

(1) If in a proceeding before the Supreme Court or the County Court (the **relevant sentencing court**)—

(a) an offender is before the relevant sentencing court and is convicted or found guilty of the offence that is the subject of the proceeding; and

S. 83AM(1)(b)
amended by
No. 32/2013
ss 20(1), 49(2).

(b) the conviction or finding of guilt constitutes a contravention of an order (the **original order**) under this Act applying to the offender, in respect of which a charge-sheet may be filed for an offence under

section 83AC, 83AD, 83ADA or 83ADB;
and

- (c) the original order was made by the
Magistrates' Court—

despite anything to the contrary in this Division,
the relevant sentencing court may proceed to hear
and determine the proceeding for the offence
under section 83AC, 83AD, 83ADA or 83ADB as
if it were an unrelated summary offence within the
meaning of section 243 of the **Criminal
Procedure Act 2009**.

- (2) Section 243 of the **Criminal Procedure Act 2009**
applies to the proceeding for the offence under
section 83AC, 83AD, 83ADA or 83ADB—

S. 83AM(2)
amended by
No. 32/2013
ss 20(2), 49(2).

- (a) subject to any modifications as set out in the
rules of the relevant sentencing court; and
(b) with any other necessary modifications.

* * * * *

S. 83AN–
83AQ
inserted by
No. 65/2011
s. 43,
repealed by
No. 26/2012
s. 62.

* * * * *

S. 83AR
inserted by
No. 65/2011
s. 43,
amended by
26/2012 s. 63,
repealed by
No. 32/2013
s. 21.

S. 83AS
inserted by
No. 65/2011
s. 43.

**83AS Powers of the court on finding of guilt for
contravention of community correction order**

S. 83AS(1)
amended by
No. 48/2018
s. 81(1).

(1) Subject to subsection (1A), if a court finds a person guilty of an offence under section 83AD (in addition to sentencing the offender for the offence) the court must—

S. 83AS(1)(a)
amended by
No. 32/2013
s. 36.

(a) vary the order in any manner set out in section 48M(2)(d), (e), (f), (g) or (h); or

(b) confirm the order originally made; or

(c) cancel the order (if it is still in force) and, whether or not it is still in force, subject to subsection (2), deal with the offender for the offence with respect to which the order was made in any manner in which the court could deal with the offender as if it had just found him or her guilty of that offence; or

(d) cancel the order and make no further order with respect to the offence with respect to which the order was originally made.

S. 83AS(1A)
inserted by
No. 48/2018
s. 81(2).

(1A) If an offence under section 83AD is constituted by a contravention of a mandatory treatment and monitoring order—

(a) subsection (1)(d) does not apply; and

(b) if the court varies the mandatory treatment and monitoring order, the order as varied must be as onerous as, or more onerous than, the order previously made; and

(c) if the court cancels the mandatory treatment and monitoring order, the court may impose only—

(i) a sentence of imprisonment; or

- (ii) a mandatory treatment and monitoring order that is as onerous as, or more onerous than, the order previously made; or
 - (iii) an order under subparagraph (ii) in addition to a term of imprisonment in accordance with section 44; or
 - (iv) a residential treatment order; or
 - (v) a Court Secure Treatment Order.
- (2) A court, in determining how to deal with an offender under subsection (1), must take into account the extent to which the offender has complied with the order.
- (3) The Secretary must disclose any direction he or she has given under Division 3 of Part 3C to a court making an assessment under subsection (2).
- (4) If the court finds a person guilty of an offence under section 83AD in respect of a community correction order and the person has paid a bond under a bond condition of the community correction order—
- (a) if the court makes an order under subsection (1)(a) or (b), the court may order that all or a part of the bond is forfeited to the Crown; or
 - (b) if the court makes an order under subsection (1)(c), the court must order that all or part of the bond is forfeited to the Crown.

S. 83AS(4)
inserted by
No. 65/2011
s. 59.

83ASA Powers of court on finding of guilt for contravention of fines work order

S. 83ASA
inserted by
No. 32/2013
s. 50 (as
amended by
No. 77/2013
s. 49).

- (1) Subject to this section, if a court finds a person guilty of an offence under section 83ADA or 83ADB in relation to a fines work order, (in addition to sentencing the offender for the offence) the court must—

- (a) if the circumstances set out in subsection (2) apply, make one or more of the orders set out in subsection (3); or
 - (b) confirm the order or a part of the order; or
 - (c) vary the order; or
 - (d) cancel the order and deal with the offender for the offence or offences with respect to which the order was made in any manner in which the court could deal with the offender if it had just found him or her guilty of that offence or those offences; or
 - (e) cancel the order and make no further order with respect to the offence or offences with respect to which the order was originally made.
- (2) Subsection (3) applies if the court is satisfied that—
- (a) the circumstances of the offender have materially altered since the fines work order was made and as a result the offender is unable to comply with the order; or
 - (b) the circumstances of the offender were wrongly stated or were not accurately presented to the court before the fines work order was made.
- (3) The court may make one or more of the following orders—
- (a) discharge the outstanding fine or fines in full; or
 - (b) discharge up to two thirds of the outstanding fine or fines; or

- (c) discharge up to two thirds of the outstanding fine or fines and order that the offender be imprisoned for a period of one day in respect of each penalty unit, or part of a penalty unit, to which the remaining undischarged amount of the outstanding fine or fines is an equivalent amount; or
 - (d) adjourn the further hearing of the matter for a period of up to 6 months.
- (4) If the court has made an order under subsection (3)(b) or (c), the court may make an order that the outstanding fines be paid by instalments or an order that the offender be allowed time to pay the outstanding fines.
- (5) Part 3B applies to an order under subsection (4) as if it were an instalment order or a time to pay order (as the case requires) made under that Part.
- (6) The court, in determining how to deal with an offender under subsection (1) or (2), must take into account the extent to which the offender has complied with the order.
- (7) If the court considers that the orders that it may make under subsection (1) or (3) are not adequate because—
- (a) of the nature of the offence; and
 - (b) of the characteristics of the offender; and
 - (c) the offender has intentionally refused to pay the fine or instalment and to perform unpaid community work—

the court may impose a sentence of imprisonment of 1 day for each penalty unit or part of a penalty unit then remaining unpaid up to a maximum of 24 months.

S. 83AT
inserted by
No. 65/2011
s. 43.

83AT Powers of the court on finding of guilt for contravention of order for release on adjournment

- (1) If in a proceeding for an offence under section 83AC, the court finds the person guilty of the offence the court must (in addition to sentencing the offender for the offence)—
 - (a) deal with the order under section 78, as if an application had been made under that section; or
 - (b) confirm the order originally made; or
 - (c) cancel the order (if it is still in force), and, whether or not it is still in force, deal with the offender for the offence with respect to which the order was made in any manner in which the court could deal with the offender if it had just found him or her guilty of that offence; or
 - (d) make no further order with respect to the offence in respect of which the original order was made.
- (2) A court, in determining how to deal with an offender under subsection (1), must take into account the extent to which the offender has complied with the order.

Pt 3C Div. 3
(Heading and
ss 83AU–
83AZ)
inserted by
No. 65/2011
s. 60.

Division 3—Direction of certain conditions on failure to comply

S. 83AU
inserted by
No. 65/2011
s. 60.

83AU Direction of unpaid community work condition on failure to comply

- (1) If an offender fails to comply, without reasonable excuse, with a community correction order that has an unpaid community work condition attached, the Secretary may direct the offender to

perform up to a maximum of 16 hours of unpaid community work in a 12 month period in addition to that imposed by the court that made the order.

- (2) The Secretary must not give a direction under subsection (1) unless the Secretary is satisfied that—
- (a) the failure to comply with the order is sufficiently serious to give the direction; and
 - (b) the failure to comply with the order is not sufficiently serious to file a charge for the offence under section 83AD; and
 - (c) the unpaid community work condition has not been completed; and
 - (d) the number of hours of unpaid community work that the offender is directed to perform by the Secretary together with the number of hours of unpaid community work that the offender has been ordered to perform by the court attaching the condition will not exceed the maximum number of hours permitted under section 48C(4).

83AV Direction of curfew condition on failure to comply

- (1) If an offender fails to comply, without reasonable excuse, with a community correction order that has a curfew condition attached, the Secretary may direct that the specified hours of each day that the offender must remain at the place under the condition be increased by up to 2 hours or that the period that the condition applies to the order be increased by up to 14 days in addition to that imposed by the court that made the order.
- (2) The Secretary must not give a direction under subsection (1) unless the Secretary is satisfied that—

S. 83AV
inserted by
No. 65/2011
s. 60.

S. 83AV(2)(e)
amended by
No. 77/2013
s. 50.

S. 83AV(3)
inserted by
No. 32/2013
s. 26.

S. 83AV(4)
inserted by
No. 32/2013
s. 26.

- (a) the failure to comply with the order is sufficiently serious to give the direction; and
 - (b) the failure to comply with the order is not sufficiently serious to file a charge for the offence under section 83AD; and
 - (c) the curfew condition has not expired; and
 - (d) the number of hours of each day that the offender must remain at the place as directed by the Secretary together with the number of hours that the offender has been ordered to remain at the place by the court attaching the condition will not exceed the maximum number of hours permitted under section 48I(3); and
 - (e) the period that the offender must remain at the place under the curfew condition as directed by the Secretary under subsection (1) will not exceed the maximum period under section 48I(3).
- (3) If the Secretary gives a direction under subsection (1) and the offender is subject to an electronic monitoring requirement attached to a curfew condition under section 48LA the Secretary must, if satisfied of the matters under subsection (4), direct that the period that applies to the requirement under section 48LA(5) or (6) is increased by the same period specified in the direction given under subsection (1).
- (4) The Secretary must not give a direction under subsection (3) unless the Secretary is satisfied that—
- (a) the electronic monitoring requirement that the offender is subject to under section 48LA has not expired; and

- (b) appropriate resources or facilities are available to enable the offender to be electronically monitored for the increased period; and
- (c) the offender is a suitable person to be electronically monitored for the increased period; and
- (d) the increased period that the offender is to be electronically monitored in respect of a curfew condition does not exceed the requirements of section 48I(3) for that condition.

83AW Reasonable excuse for a failure to comply

S. 83AW
inserted by
No. 65/2011
s. 60.

For the purposes of section 83AU or 83AV it is a reasonable excuse for an offender to fail to comply with a community correction order if—

- (a) there exists an application to vary the order under section 48N relating to or resulting from the failure to comply; or
- (b) the court varied the order under section 48M in relation to or as a result of the failure to comply.

83AX Notice of direction to be given in writing

S. 83AX
inserted by
No. 65/2011
s. 60.

- (1) The Secretary must serve on an offender, by ordinary service or personal service, notice in writing of a decision under section 83AU or 83AV.
- (2) In a notice under subsection (1) the Secretary must include his or her reasons for making the decision and the right of an offender to make an application for review on the merits of the Secretary's decision under section 83AY.

S. 83AX(1)
amended by
No. 32/2013
s. 37(1).

S. 83AX(4)
inserted by
No. 32/2013
s. 37(2).

(3) A decision of the Secretary under section 83AU or 83AV does not take effect until the notice is served under subsection (1) or any later date specified in the notice.

(4) In this section—

ordinary service has the same meaning as in the
Criminal Procedure Act 2009;

personal service has the same meaning as in the
Criminal Procedure Act 2009.

S. 83AY
inserted by
No. 65/2011
s. 60.

83AY Review by the sentencing court

- (1) The court may review the decision of the Secretary on application by the offender.
- (2) If the Secretary has given a direction in terms of an unpaid community work condition or a curfew condition under section 83AU or 83AV, the offender may apply to the court that imposed the condition for a review on the merits of the Secretary's decision.
- (3) An application under subsection (2) must be made within 28 days after the day on which the decision was made.
- (4) The court may, on application of an offender, extend the period within which an application must be made under subsection (3).
- (5) A review under this section is a hearing de novo.

S. 83AZ
inserted by
No. 65/2011
s. 60.

83AZ Powers of a sentencing court on review

- (1) In a review under section 83AY the court has the same powers and duties that the Secretary has to make the decision under this Division.
- (2) The Secretary must produce to the court the notice served on the offender in accordance with section 83AX.

- (3) In a review under section 83AY the court may, by order—
 - (a) confirm the decision under review; or
 - (b) vary the decision under review; or
 - (c) revoke the decision under review.
- (4) A decision of a court on a review is taken to have effect from the time at which the court makes the decision, unless the court orders otherwise.

Pt 3A
(Heading)
renumbered
as Pt 3D
(Heading) by
No. 65/2011
s. 44.

Pt 3A
(Heading and
ss 83B–83K)
inserted by
No. 65/2004
s. 3.

S. 83B
inserted by
No. 65/2004
s. 3.

S. 83C
inserted by
No. 65/2004
s. 3.

S. 83C(3)
amended by
No. 32/2013
s. 57.

S. 83D
inserted by
No. 65/2004
s. 3.

Part 3D—Superannuation orders

83B Purpose of Part

The purpose of this Part is to enable a court to make a superannuation order as a new sentencing option where a person who is or has been a public sector employee is convicted of an indictable offence involving abuse of office, corruption or perversion of the course of justice.

83C Application of Part

- (1) This Part applies in respect of an offender who is convicted of a relevant offence on or after 3 June 2004 irrespective of whether the relevant offence was committed before, on or after that date.
- (2) A court may make a superannuation order in addition to, or instead of, any other sentence that may be imposed under this or any other Act.
- (3) Despite sections 52, 53 and 55, the making of a superannuation order under this Part is not to be taken into account by a court in determining whether to impose a fine on the offender under section 49.

83D Definitions

- (1) In this Part—

administrators means the person or persons responsible for the administration of a relevant superannuation scheme;

authorised person means—

- (a) the Director of Public Prosecutions; or
- (b) if the relevant offence is an indictable offence heard and determined summarily, the Chief Commissioner of Police;

S. 83D(1)
def. of
authorised person
amended by
No. 68/2009
s. 97(Sch.
item 110.60).

dependant, in relation to an offender, means—

- (a) a child of the offender; or
- (b) any other person who in the opinion of the court is dependent on the offender or has a legal right to look to the offender for financial support;

domestic partner of an offender means—

- (a) a person who is in a registered relationship with the offender; or
- (b) a person to whom the offender is not married but with whom, in the opinion of the court, the offender is living as a couple on a genuine domestic basis (irrespective of gender);

S. 83D(1)
def. of
domestic partner
substituted by
No. 12/2008
s. 73(1)(Sch. 1
item 56.1).

excluded public body means—

- (a) a Council within the meaning of section 3(1) of the **Local Government Act 2020**;
- (b) a university within the meaning of the **Education and Training Reform Act 2006** that is a body politic and is governed by a council, some of the members of which are appointed by the Governor in Council or a Minister;

S. 83D(1)
def. of
excluded public body
amended by
Nos 24/2006
s. 6.1.2(Sch. 7
item 35(a)),
amended by
No. 9/2020
s. 390(Sch. 1
item 90.2).

member contributions by way of salary sacrifice
does not include employer contributions for which the employer is or has been liable under the Superannuation Guarantee

(Administration) Act 1992 of the Commonwealth, under an industrial award or agreement or under the provisions of the governing instrument of the relevant superannuation scheme and which are included in the total remuneration package of a public sector employee;

member financed component means the amount of the superannuation benefit or superannuation benefits financed by member contributions (including member contributions by way of salary sacrifice, child contributions, spouse contributions or Government co-contributions) as at the relevant date as determined by the administrators of the relevant superannuation scheme after, where appropriate, obtaining advice from an actuary appointed by the administrators;

offender means a person who has been convicted of a relevant offence;

public body means—

- (a) a body, whether corporate or unincorporate, that is established by or under an Act for a public purpose;
- (b) a body whose members, or a majority of whose members, are appointed by the Governor in Council or a Minister;
- (c) a company all the shares or a majority of the shares in which are held by the State or another public body;
- (d) a TAFE institute within the meaning of the **Education and Training Reform Act 2006**;
- (e) a public hospital within the meaning of the **Health Services Act 1988**;

S. 83D(1)
def. of
public body
amended by
No. 24/2006
s. 6.1.2(Sch. 7
item 35(b)).

- (f) a State funded residential care service within the meaning of the **Health Services Act 1988**;
- (g) a contractor, or a sub-contractor, within the meaning of Part 3A of the **Health Services Act 1988**, but only in its capacity as a provider of health services to public hospital patients in accordance with an agreement under section 69B(1) of that Act—

but does not include an excluded public body;

public sector employee means a person who is, or was, at the time that he or she committed the relevant offence—

- (a) employed under Part 3 of the **Public Administration Act 2004** or a person to whom a provision of that Act applied in accordance with Part 7 of that Act;
- (b) a Ministerial officer within the meaning of section 98 of the **Public Administration Act 2004**;
- (c) a Parliamentary adviser within the meaning of section 99 of the **Public Administration Act 2004**;
- (d) a judicial employee within the meaning of section 101 of the **Public Administration Act 2004**;
- (e) a Parliamentary officer within the meaning of the **Parliamentary Administration Act 2005**;
- (f) an electorate officer employed under Part 4 of the **Parliamentary Administration Act 2005**;

S. 83D(1)
def. of
*public sector
employee*
amended by
Nos 108/2004
s. 117(1)
(Sch. 3
item 181.2),
20/2005
s. 52(3),
24/2006
s. 6.1.2(Sch. 7
item 35(c)),
37/2014
s. 10(Sch.
item 151.4).

- (g) a member of the teaching service within the meaning of the **Education and Training Reform Act 2006**;
- (h) employed under the **Education and Training Reform Act 2006**;
- (i) a police officer or a police recruit within the meaning of the **Victoria Police Act 2013**;
- (j) a police reservist within the meaning of the **Victoria Police Act 2013**;
- (k) a protective services officer appointed under section 38 of the **Victoria Police Act 2013**;
- (l) a member of the Parliament;
- (m) employed by a public body;
- (n) the holder of an office established by or under an Act to which the right to appoint is vested in the Governor in Council or a Minister;

relevant date means—

- (a) if the offender is a member of a relevant superannuation scheme as at the date on which the offender is convicted of the relevant offence, the date in relation to that relevant superannuation scheme on which the offender is convicted of the relevant offence;
- (b) if the offender has ceased to be a member of a relevant superannuation scheme before the date on which the offender is convicted of the relevant offence, the date in relation to that relevant superannuation scheme on which the offender ceased to be a

member of the relevant superannuation scheme;

relevant interest amount means, where the relevant date is not the same as the date of conviction for the relevant offence, the amount of interest for the period commencing on the relevant date and ending on the date of conviction on the amount calculated under paragraph (a) of the definition of **residual employer financed component** using the Treasury bond rate for the last working day of the previous financial year;

relevant offence means an indictable offence committed by a person at the time when the person was a public sector employee;

relevant superannuation scheme means any superannuation scheme of which an offender—

- (a) is a member at the date of the conviction for the relevant offence; or
- (b) has been a member at any time before that date;

residual employer financed component means the total sum, as determined by the administrators of the relevant superannuation scheme after, where appropriate, obtaining advice from an actuary appointed by the administrators, of—

- (a) the value of the total superannuation benefit as at the relevant date after deducting—
 - (i) the member financed component; and
 - (ii) the SG component; and

- (iii) the amount of any adjustment to that superannuation benefit in respect of any surcharge recoverable under the governing instrument of the relevant superannuation scheme; and
- (iv) the amount (if any) of the superannuation benefit financed by an employer and attributable to service by the member otherwise than as a public sector employee; and

(b) any relevant interest amount;

SG component means the amount determined by the administrators of a relevant superannuation scheme after, where appropriate, obtaining the advice of an actuary appointed by the administrators to be the amount that would have been the minimum employer financed amount necessary to avoid a superannuation guarantee shortfall within the meaning of the Superannuation Guarantee (Administration) Act 1992 of the Commonwealth in respect of the period during which the offender was a public sector employee which falls within the period commencing on 1 July 1992 and ending on the relevant date;

superannuation order means an order made under section 83F;

superannuation scheme means a scheme one of the purposes of which is to provide superannuation benefits or pensions;

Treasury bond rate means the Treasury bond rate for the last working day of a financial year for bonds with a 10 year term being—

- (a) if any Treasury bonds with that term were issued on that day, the annual yield on those Treasury bonds; or
- (b) in any other case, the annual yield on Treasury bonds with that term as published by the Reserve Bank of Australia for that day;

value of the total superannuation benefit as at the relevant date means—

- (a) if the offender is a member of a relevant superannuation scheme as at the date on which the offender is convicted of the relevant offence, the value of the superannuation benefit or superannuation benefits as at the date of the conviction for the relevant offence as if the offender had resigned or retired as at the date of conviction as determined by the administrators of the relevant superannuation scheme after, where appropriate, obtaining advice from an actuary appointed by the administrators;
- (b) if the offender has ceased to be a member of a relevant superannuation scheme before the date on which the offender is convicted of the relevant offence, the value of the superannuation benefit or superannuation benefits as at the date the offender ceased to be a member of the relevant superannuation scheme as determined by the administrators of the relevant superannuation scheme after, where

appropriate, obtaining advice from an actuary appointed by the administrators.

- (2) For the purposes of the definition of **public body** in subsection (1), a reference to a public body specified in that definition includes a reference to a public body merged, associated or affiliated with, amalgamated into, succeeding or succeeded by that public body.
- (3) For the purposes of the definitions of **public body** and **public sector employee** in subsection (1), a reference to an Act specified in those definitions includes a reference to any corresponding previous enactment and to any corresponding subsequent enactment.
- (4) For the purposes of the definition of **domestic partner** in subsection (1)—
- (a) **registered relationship** has the same meaning as in the **Relationships Act 2008**; and
 - (b) in determining whether persons who are not in a registered relationship are domestic partners of each other, all the circumstances of their relationship are to be taken into account, including any one or more of the matters referred to in section 35(2) of the **Relationships Act 2008** as may be relevant in a particular case.

S. 83D(4)
inserted by
No. 12/2008
s. 73(1)(Sch. 1
item 56.2).

S. 83E
inserted by
No. 65/2004
s. 3.

83E Application for a superannuation order

- (1) If the authorised person is of the opinion that the relevant offence for which a court has convicted an offender—
- (a) involved an abuse by the person of his or her office as a public sector employee; or

- (b) having regard to the powers and duties of his or her office as a public sector employee was committed for a purpose that involved corruption; or
- (c) was committed for the purpose of perverting, or attempting to pervert, the course of justice—

the authorised person may apply to the court for the court to make a superannuation order.

- (2) An application must be supported by a certificate given by the administrators of each relevant superannuation scheme specifying—
 - (a) the value of the total superannuation benefit as at the relevant date;
 - (b) the residual employer financed component as at the relevant date;
 - (c) the assumptions made and factors taken into account in determining the amounts referred to in paragraphs (a) and (b);
 - (d) whether or not the information provided is based on actuarial advice;
 - (e) whether the administrators of the superannuation scheme have been served with—
 - (i) a superannuation agreement which provides for a payment split; or
 - (ii) a flag lifting agreement which provides for a payment split; or
 - (iii) a splitting order—

under Part VIIIB of the Family Law Act 1975 of the Commonwealth and the non-member spouse's entitlements in respect of the superannuation interest in the

superannuation benefit of the offender have not been satisfied as at the relevant date.

- (3) A certificate referred to in subsection (2) is for the purposes of this Part to be taken to be evidence of the information provided in the certificate.

S. 83F
inserted by
No. 65/2004
s. 3.

83F Court may make a superannuation order

- (1) If a court receives an application under section 83E and is satisfied that section 83E(1)(a), 83E(1)(b) or 83E(1)(c) applies in respect of the relevant offence, the court may make a superannuation order if the court considers that having regard, as far as is practicable, to the matters specified in subsection (2) it is appropriate to do so.
- (2) The matters are—
- (a) the financial circumstances of the offender, including any other order that the court or any other court has made or proposes to make—
 - (i) providing for the forfeiture of the offender's property or the automatic forfeiture of the offender's property by operation of law; or
 - (ii) requiring the offender to make restitution or pay compensation;
 - (b) the nature of the burden that the making of the superannuation order will impose and the degree of hardship likely to result from the making of the superannuation order on the offender or his or her spouse, domestic partner or dependants;

- (c) whether the administrators of a relevant superannuation scheme have been served with—
 - (i) a superannuation agreement which provides for a payment split; or
 - (ii) a flag lifting agreement which provides for a payment split; or
 - (iii) a splitting order—
under Part VIIIB of the Family Law Act 1975 of the Commonwealth and the non-member spouse's entitlements in respect of the superannuation interest in the superannuation benefit of the offender have not been satisfied as at the relevant date;
 - (d) the length of the period of service by the offender as a public sector employee before the offender committed the relevant offence;
 - (e) the length of any period of membership of a relevant superannuation scheme during which the offender was not a public sector employee;
 - (f) the nature and gravity of the relevant offence.
- (3) If the court imposes a superannuation order, the court in determining the amount to be paid by the offender under the superannuation order—
- (a) must have regard to the matters referred to in subsection (2); and
 - (b) must not determine an amount which exceeds the total of the residual employer financed components of the superannuation benefits under the relevant superannuation schemes.

S. 83G
inserted by
No. 65/2004
s. 3.

83G Effect of superannuation order

- (1) A superannuation order takes effect—
 - (a) at the end of the appeal period in respect of the conviction for the relevant offence or the sentence; or
 - (b) if the offender appeals against the conviction or sentence, subject to subsection (2), upon the determination of the appeal.
- (2) If the conviction is set aside on appeal, the superannuation order has no effect.
- (3) If as the result of the determination of an appeal, the court determining the appeal considers that the superannuation order requires variation, the court may vary the superannuation order.
- (4) A superannuation order varied under subsection (3) takes effect as if it had been made under section 83F.

S. 83G(2)
amended by
No. 68/2009
s. 97(Sch.
item 110.61).

S. 83H
inserted by
No. 65/2004
s. 3,
amended by
Nos 26/2012
s. 64, 32/2013
s. 58, 59/2017
s. 131.

83H Provisions applying to a superannuation order

Sections 56, 57, 58, 59, 60, 61, 64, 65, 69, 69A, 69B, 69C, 69E, 69F, 69H, 69K, 69L, 69M, 69N, 69O, 69P and 69ZB apply to and in respect of a superannuation order as if the amount specified in the superannuation order were a fine imposed under section 49.

S. 83I
inserted by
No. 65/2004
s. 3.

83I Powers of an authorised person to require information

- (1) If the authorised person proposes to make an application in respect of an offender under section 83E, the authorised person may request the administrators of the relevant superannuation scheme to provide any information that the authorised person considers is necessary for the purposes of making the application and which is

information the administrators have or ought to have access to.

- (2) The administrators of the relevant superannuation scheme must comply with a request under subsection (1).

Penalty: 10 penalty units.

- (3) It is sufficient compliance with a request under subsection (1) if the administrators of the relevant superannuation scheme provide information in response to the request and certify in writing that they have used their best endeavours to provide that information or are relying on the advice of, or information provided by, a specified third party.

83J Protection of administrators providing information

S. 83J
inserted by
No. 65/2004
s. 3.

The administrators of a relevant superannuation scheme are not to be taken to be in breach of trust or to have failed to comply with any provision of the governing instrument of the superannuation scheme only by virtue of complying with section 83I.

83K Disclosure of information

S. 83K
inserted by
No. 65/2004
s. 3.

Except to the extent necessary to comply with section 83E, an authorised person or any person employed or engaged by an authorised person must not make any use of, or disclose to any person, any information obtained under section 83I.

Penalty: 5 penalty units.

Part 4—Orders in addition to sentence

Division 1—Restitution

84 Restitution order

- (1) If goods have been stolen and a person is found guilty or convicted of an offence connected with the theft (whether or not stealing is the gist of the offence), the court may make—
 - (a) an order that the person who has possession or control of the stolen goods restore them to the person entitled to them;
 - (b) an order that the offender deliver or transfer to another person goods that directly or indirectly represent the stolen goods (that is, goods that are the proceeds of any disposal or realisation of the whole or part of the stolen goods or of goods so representing them);
 - (c) an order that a sum not exceeding the value of the stolen goods be paid to another person out of money taken from the offender's possession on his or her arrest.
- (2) An order under paragraph (b) or (c) of subsection (1) may only be made in favour of a person who, if the stolen goods were in the offender's possession, would be entitled to recover them from him or her.
- (3) The court may make an order under both paragraphs (b) and (c) of subsection (1) provided that the person in whose favour the order is made does not thereby recover more than the value of the stolen goods.

(4) If the court makes an order under paragraph (a) of subsection (1) against a person and it appears to the court that that person in good faith bought the stolen goods from, or loaned money on the security of the stolen goods to, the offender, the court may, on the application of the purchaser or lender, order that a sum not exceeding the purchase price or the amount loaned (as the case requires) be paid to the applicant out of money taken from the offender's possession on his or her arrest.

(4A) If a person is found guilty or convicted of an offence against section 6(1), 7(1) or 8(1) of the **Wage Theft Act 2020**, the court may make either or both of the following orders—

S. 84(4A)
inserted by
No. 21/2020
s. 82.

(a) an order that the person pay or attribute to the affected employee the employee entitlements withheld due to the commission of the offence;

(b) an order that the person pay to the affected employee a sum not exceeding the value of the employee entitlements so withheld.

(4B) If a person is found guilty or convicted of an offence against section 6(7), 7(2) or 8(2) of the **Wage Theft Act 2020**, the court may make an order that the person pay to the affected employee a sum not exceeding the value of the employee entitlements withheld due to the commission of the offence.

S. 84(4B)
inserted by
No. 21/2020
s. 82.

(4C) In subsections (4A) and (4B), **employee entitlement** and **withheld** have the same meaning as in the **Wage Theft Act 2020**.

S. 84(4C)
inserted by
No. 21/2020
s. 82.

(5) An order under this section—

(a) may be made on an application made as soon as practicable after the offender is found guilty, or convicted, of the offence; and

- (b) may be made in favour of a person on an application made—
 - (i) by that person; or
 - (ii) on that person's behalf by the Director of Public Prosecutions (if the sentencing court was the Supreme Court or the County Court) or the informant or police prosecutor (if the sentencing court was the Magistrates' Court).
- (6) Nothing in subsection (5)(b)(ii) requires the Director of Public Prosecutions or the informant or police prosecutor (as the case requires) to make an application on behalf of a person.
- (7) A court must not exercise the powers conferred by this section unless in the opinion of the court the relevant facts sufficiently appear from evidence given at the hearing of the charge or from the available documents, together with admissions made by or on behalf of any person in connection with the proposed exercise of the powers.
- (8) In subsection (7) ***the available documents*** means—
 - (a) any written statements or admissions which were made for use, and would have been admissible, as evidence on the hearing of the charge; or
 - (b) the depositions in the committal proceeding.

S. 84(8)(b)
substituted by
No. 68/2009
s. 97(Sch.
item 110.62).

S. 84(8)(c)
repealed by
No. 68/2009
s. 97(Sch.
item 110.62).

* * * * *

- (9) References in this section to—
- (a) stealing must be construed in accordance with subsections (1) and (4) of section 90 of the **Crimes Act 1958**; and
 - (b) goods include references to a motor vehicle.

85 Enforcement of restitution order

- (1) Subject to section 30 or section 36ZA of the **Confiscation Act 1997**, an order made under subsection (1)(c), (4), (4A) or (4B) of section 84 must be taken to be a judgment debt due by the offender to the person in whose favour the order is made and payment of any amount remaining unpaid under the order may be enforced in the court by which it was made.
- (2) An order made under section 84, other than an order referred to in subsection (1), may be enforced in the court by which it was made by any means available to that court of enforcing an order made by it in a civil proceeding.

S. 85(1)
amended by
Nos 108/1997
s. 156(f),
68/2010
s. 70(1),
21/2020 s. 83.

Division 2—Compensation

Subdivision (1)—Compensation for pain and suffering etc.

Pt 4 Div. 2
Subdiv. (1)
(Heading and
ss 85A–85M)
inserted by
No. 54/2000
s. 21.

85A Definitions

- (1) In this Subdivision—
- compensation order*** means an order under section 85B(1);
- injury*** means—
- (a) actual physical bodily harm; or

S. 85A
inserted by
No. 54/2000
s. 21.

- (b) mental illness or disorder or an exacerbation of a mental illness or disorder, whether or not flowing from nervous shock; or
- (c) pregnancy; or
- (d) grief, distress or trauma or other significant adverse effect; or
- (e) any combination of matters referred to in paragraphs (a), (b), (c) and (d) arising from an offence—

but does not include injury arising from loss of or damage to property;

S. 85A(1) def.
of *medical expenses*
amended by
No. 47/2016
s. 41(2)(a).

medical expenses includes dental, optometry, physiotherapy, psychology treatment, hospital and ambulance expenses.

S. 85A(1) def.
of *sexual offence*
repealed by
No. 47/2016
s. 41(2)(b).

* * * * *

- (2) References in this Subdivision to the victim of an offence must be construed having regard to the definition of ***injury*** in subsection (1).

S. 85B
inserted by
No. 54/2000
s. 21.

85B Compensation order

- (1) If a court—

- (a) finds a person guilty of an offence; or
- (b) convicts a person of an offence—

it may, on the application of a person who has suffered any injury as a direct result of the offence, order the offender to pay compensation of such amount as the court thinks fit for any

matter referred to in paragraphs (a) to (d) of subsection (2).

- (2) A compensation order may be made up of amounts—
- (a) for pain and suffering experienced by the victim as a direct result of the offence;
 - (b) for some or all of any expenses actually incurred, or reasonably likely to be incurred, by the victim for reasonable counselling services as a direct result of the offence;
 - (c) for some or all of any medical expenses actually and reasonably incurred, or reasonably likely to be incurred, by the victim as a direct result of the offence;
 - (d) for some or all of any other expenses actually and reasonably incurred, or reasonably likely to be incurred, by the victim as a direct result of the offence, not including any expense arising from loss of or damage to property.
- (3) In subsection (2) **offence** includes, in relation to a person who has been found guilty or convicted of an offence that was treated by the court as a representative or sample charge, any other occurrence of the same offence involved in the course of conduct of which the charge was representative or a sample.
- (4) In making a compensation order the court may direct that the compensation be paid by instalments and that in default of payment of any one instalment the whole of the compensation remaining unpaid shall become due and payable.

S. 85B(3)
amended by
No. 68/2009
s. 97(Sch.
item 110.63).

S. 85C
inserted by
No. 54/2000
s. 21.

85C Application for compensation order

- (1) An application for a compensation order—
 - (a) must be made within 12 months after the offender is found guilty, or convicted, of the offence; and
 - (b) may be made—
 - (i) by the victim; or
 - (ii) on the victim's behalf by any person other than the offender if the victim is a child or is incapable of making the application by reason of injury, disease, senility, illness or physical or mental impairment; or
 - (iii) on the victim's behalf—
 - (A) if the sentencing court was a court other than the Magistrates' Court, by the Director of Public Prosecutions; or
 - (B) if the sentencing court was the Magistrates' Court, by the Director of Public Prosecutions, the informant or police prosecutor.
- (2) Nothing in subsection (1)(b)(iii) requires the Director of Public Prosecutions or the informant or police prosecutor (as the case requires) to make an application on behalf of a victim.

S. 85D
inserted by
No. 54/2000
s. 21.

85D Extension of time for making application

- (1) A court may, on the application of a person who wishes to apply for a compensation order, extend the time within which an application for a compensation order may be made if it is of the opinion that it is in the interests of justice to do so.

- (2) A court may extend time under subsection (1) before or after the time expires and whether or not an application for an extension is made before the time expires.
- (3) A court must not extend time under subsection (1) without giving the offender a reasonable opportunity to be heard on the matter.

85E Proceeding on an application

S. 85E
inserted by
No. 54/2000
s. 21.

- (1) In a proceeding on an application for a compensation order a party—
 - (a) may appear personally; or
 - (b) may be represented by—
 - (i) a legal practitioner; or
 - (ii) with the leave of the court, by any other person.
- (2) A proceeding in a court on an application for a compensation order made by or on behalf of a child or other incapable person must be taken to be a civil proceeding for the purpose of any provision of an Act or rule of court relating to—
 - (a) the appointment or removal, and the power or authority, of a litigation guardian in a civil proceeding in that court; or
 - (b) the administration of money ordered to be paid to a child or such an incapable person—and any such provision applies in relation to a proceeding on an application for a compensation order with any necessary modifications.

S. 85F
inserted by
No. 54/2000
s. 21.

**85F Court must not refuse to hear and determine
application except in certain circumstances**

(1) A court must not refuse to hear and determine an application for a compensation order unless, in its opinion, the relevant facts do not sufficiently appear from—

(a) evidence given at the hearing of the charge;
or

S. 85F(1)(b)
amended by
No. 68/2009
s. 97(Sch.
item 110.64).

(b) any statement of the material facts relevant to the charge given to a court in a proceeding for the offence by the prosecution and not disputed by or on behalf of the accused; or

(c) the available documents—

together with admissions made by or on behalf of any person in connection with the application.

(2) In subsection (1)(c) *the available documents* means—

(a) any written statements or admissions which were made for use, and would have been admissible, as evidence on the hearing of the charge; or

S. 85F(2)(b)
substituted by
No. 68/2009
s. 97(Sch.
item 110.65).

(b) the depositions in the committal proceeding;
or

S. 85F(2)(c)
repealed by
No. 68/2009
s. 97(Sch.
item 110.65).

* * * * *

(d) any victim impact statement made to the court for the purpose of assisting it in determining sentence, including any medical report attached to it.

85G Evidence

S. 85G
inserted by
No. 54/2000
s. 21.

- (1) On an application for a compensation order—
 - (a) the victim or the offender may give evidence or may call another person to give evidence in relation to the application; and
 - (b) the victim, offender or other person who gives evidence may be cross-examined and re-examined; and
 - (c) a finding of any fact made by a court in a proceeding for the offence is evidence and, in the absence of evidence to the contrary, proof of that fact; and
 - (d) the finding may be proved by production of a document under the seal of the court from which the finding appears; and
 - (e) the court may have regard to any evidence or statement referred to in section 85F(1) and, with the consent of the parties to the application, to any available documents or admissions referred to in that section.
- (2) A court must not make a compensation order without giving the offender a reasonable opportunity to be heard on the application for the order.

85H Court may take financial circumstances of offender into account

S. 85H
inserted by
No. 54/2000
s. 21.

- (1) If a court decides to make a compensation order, it may, in determining the amount and method of payment of the compensation, take into account, as far as practicable, the financial circumstances of the offender and the nature of the burden that its payment will impose.

- (2) A court is not prevented from making a compensation order only because it has been unable to find out the financial circumstances of the offender.

S. 85I
inserted by
No. 54/2000
s. 21,
substituted by
No. 21/2022
s. 77.

85I Court must reduce compensation by amount of assistance under victims of crime legislation

If a court decides to make a compensation order, it must reduce the amount of the compensation by the amount of—

- (a) any award made to the victim under the **Victims of Crime Assistance Act 1996**; or
- (b) any assistance paid to the victim under the **Victims of Crime (Financial Assistance Scheme) Act 2022**—

for the expense or other matter for which compensation is being sought under this Subdivision.

S. 85J
inserted by
No. 54/2000
s. 21.

85J Court to give reasons for its decision

- (1) On deciding to grant or refuse an application for a compensation order or to refuse to hear and determine such an application, the court must—
 - (a) state in writing the reasons for its decision; and
 - (b) cause those reasons to be entered in the records of the court.
- (2) The failure of a court to comply with subsection (1) does not invalidate the decision made by it on the application.

S. 85K
inserted by
No. 54/2000
s. 21.

85K Costs of proceeding

Despite any rule of law or practice to the contrary or any provision to the contrary made by or under any other Act, each party to a proceeding under this Subdivision must bear their own costs of the proceeding unless the court otherwise determines.

85L Right to bring civil proceedings unaffected

Nothing in this Subdivision takes away from, or affects, the right of any person to recover damages for any expense or other matter so far as it is not satisfied by payment or recovery of compensation under this Subdivision.

S. 85L
inserted by
No. 54/2000
s. 21.

85M Enforcement of order

Subject to section 30 or section 36ZA of the **Confiscation Act 1997**, a compensation order, including costs ordered to be paid by the offender on the proceeding for that order, must be taken to be a judgment debt due by the offender to the person in whose favour the order is made and payment of any amount remaining unpaid under the order may be enforced in the court by which it was made.

S. 85M
inserted by
No. 54/2000
s. 21,
amended by
No. 68/2010
s. 70(2).

Subdivision (2)—Compensation for property loss

Pt 4 Div. 2
Subdiv. (2)
(Heading)
inserted by
No. 54/2000
s. 21,
amended by
No. 38/2017
s. 93.

86AA Court to ask if application for compensation order will be made

- (1) If a court finds a person guilty of, or convicts a person of, an offence and evidence is presented in a proceeding for the offence that loss or destruction of, or damage to, property has occurred as a result of the offence, the court must ask the prosecution whether an application will be made for a compensation order under section 86 in respect of the loss, destruction or damage.

S. 86AA
inserted by
No. 49/2012
s. 6.

- (2) To avoid doubt, a person is not prevented from making an application for a compensation order under section 86 merely because the court has not taken the action referred to in subsection (1).

86 Compensation order

S. 86(1)
amended by
Nos 81/1996
s. 74(1)(a)(i)(ii),
54/2000
s. 22(2)(a)(i)(ii),
substituted by
No. 49/2012
s. 7(1).

- (1) If a court finds a person guilty of, or convicts a person of, an offence it may order the offender to pay to a person who has suffered loss or destruction of, or damage to, property as a result of the offence any compensation (not exceeding the value of the property lost, destroyed or damaged) that the court thinks fit.

S. 86(1A)
inserted by
No. 49/2012
s. 7(1).

- (1A) An order under subsection (1) may be made—
- (a) on the application of a person suffering loss or destruction of, or damage to, property as a result of the offence; or
 - (b) subject to subsection (1B)—on the court's own motion.

S. 86(1B)
inserted by
No. 49/2012
s. 7(1).

- (1B) A court may only make an order under subsection (1) on its own motion if—
- (a) the person in whose favour the order is to be made does not oppose the order being made; and
 - (b) the court has given the offender the opportunity to be heard in respect of the order.
- (2) If a court decides to make an order under subsection (1) it may in determining the amount and method of payment of the compensation take into account, as far as practicable, the financial circumstances of the offender and the nature of the burden that its payment will impose.

- (3) A court is not prevented from making an order under subsection (1) only because it has been unable to find out the financial circumstances of the offender.
- (4) In making an order under subsection (1) the court may direct that the compensation be paid by instalments and that in default of payment of any one instalment the whole of the compensation remaining unpaid shall become due and payable.
- (5) An application under subsection (1A)(a)—
- S. 86(5)
amended by
No. 49/2012
s. 7(2)(a).
- (a) must be made as soon as practicable after the offender is found guilty, or convicted, of the offence; and
- S. 86(5)(a)
amended by
Nos 81/1996
s. 74(1)(b),
54/2000
s. 22(2)(b),
49/2012
s. 7(2)(b).
- (b) may be made—
- S. 86(5)(b)
amended by
No. 49/2012
s. 7(2)(c)(i).
- (i) by the person seeking compensation; or
- S. 86(5)(b)(i)
amended by
No. 49/2012
s. 7(2)(c)(ii).
- (ii) on that person's behalf by the Director of Public Prosecutions or (if the sentencing court was the Magistrates' Court) the informant or police prosecutor.
- S. 86(5)(b)(ii)
amended by
No. 69/1997
s. 10(a)–(c).
- (6) Nothing in subsection (5)(b)(ii) requires the Director of Public Prosecutions or the informant or police prosecutor (as the case requires) to make an application on behalf of a person.

Sentencing Act 1991
No. 49 of 1991
Part 4—Orders in addition to sentence

S. 86(6A)
inserted by
No. 19/1999
s. 10,
repealed by
No. 54/2000
s. 22(2)(c).

S. 86(7)
amended by
No. 49/2012
s. 7(3).

-
- * * * * *
- (7) In determining whether or not an order under subsection (1) should be made and, if so, the amount payable under the order—
- (a) a finding of any fact made by a court in a proceeding for the offence is evidence and, in the absence of evidence to the contrary, proof of that fact; and
 - (b) the finding may be proved by production of a document under the seal of the court from which the finding appears.
- (8) A court must not exercise the powers conferred by this section unless in the opinion of the court the relevant facts sufficiently appear from evidence given at the hearing of the charge or from the available documents, together with admissions made by or on behalf of any person in connection with the proposed exercise of the powers.
- (9) In subsection (8) ***the available documents*** means—
- (a) any written statements or admissions which were made for use, and would have been admissible, as evidence on the hearing of the charge; or
 - (b) the depositions in the committal proceeding;
or

S. 86(9)(b)
substituted by
No. 68/2009
s. 97(Sch.
item 110.66).

*

(d) any victim impact statement made to the court for the purpose of assisting it in determining sentence; or

S. 86(9)(d)
inserted by
No. 19/1999
s. 11,
amended by
Nos 54/2000
s. 22(2)(d),
49/2012
s. 7(4)(a).

(e) any other documentary evidence acceptable to the court of—

S. 86(9)(e)
inserted by
No. 49/2012
s. 7(4)(b).

(i) loss or destruction of, or damage to, property suffered by a person as a result of the offence; or

(ii) the amount of the loss suffered or the expense incurred as a result of that destruction or damage.

*

S. 86(9A)–(9C)
inserted by
No. 81/1996
s. 74(2),
repealed by
No. 54/2000
s. 22(2)(e).

(9D) Despite any rule of law or practice to the contrary or any provision to the contrary made by or under any other Act, each party to a proceeding under this section must bear their own costs of the proceeding unless the court otherwise determines.

S. 86(9D)
inserted by
No. 19/1999
s. 12(2).

(10) Nothing in this section takes away from, or affects the right of, any person to recover damages for, or to be indemnified against, any loss, destruction or damage so far as it is not satisfied by payment or recovery of compensation under this section.

S. 86(10)
amended by
Nos 81/1996
s. 74(3),
54/2000
s. 22(2)(f).

- (11) References in this section to property include references to a motor vehicle.

S. 87
amended by
Nos 108/1997
s. 156(g),
19/1999
s. 12(3),
68/2010
s. 70(3).

87 Enforcement of compensation order

Subject to section 30 or section 36ZA of the **Confiscation Act 1997**, an order under section 86(1), including costs ordered to be paid by the offender on the proceeding for that order, must be taken to be a judgment debt due by the offender to the person in whose favour the order is made and payment of any amount remaining unpaid under the order may be enforced in the court by which it was made.

Pt 4 Div. 2A
(Heading)
substituted by
No. 21/2022
s. 78.

Division 2A—Recovery of assistance paid under victims of crime legislation

Pt 4 Div. 2A
(Heading and
ss 87A, 87B)
inserted by
No. 81/1996
s. 75.

87A Recovery of assistance paid under Victims of Crime Assistance Act 1996

S. 87A
inserted by
No. 81/1996
s. 75.

(1) If—

(a) a court finds a person guilty of, or convicts a person of, a relevant offence within the meaning of the **Victims of Crime Assistance Act 1996**; and

S. 87A(1)(b)
amended by
No. 54/2000
s. 23(1)(a)(b).

(b) an award of assistance was made or varied under that Act in respect of an injury (including a significant adverse effect within the meaning of that Act that in accordance with that Act is required to be regarded as an injury) or death that directly resulted from that offence—

the court may, on the application of the State, order the offender to pay to the State an amount equal to the whole or any specified part of the assistance awarded together with the whole or any specified part of any costs awarded in respect of the application for assistance.

- (2) An application may only be made under subsection (1) within the period of 6 months after—
- (a) the day on which the person was found guilty or convicted of the relevant offence; or
 - (b) the day on which the award of assistance was made or varied under the **Victims of Crime Assistance Act 1996**—
- whichever is the later.
- (3) A court may require an amount payable under subsection (1) to be paid—
- (a) wholly as a lump sum; or
 - (b) partly as a lump sum and partly by instalments; or
 - (c) wholly by instalments.
- (4) A court must not make an order under subsection (1) without giving the offender a reasonable opportunity to be heard on the application for the order and without having regard to—
- (a) his or her financial resources (including earning capacity) and financial needs; and
 - (b) any obligations owed by him or her to any other person; and
 - (c) any other circumstances that the court considers relevant.

S. 87A(2)
substituted by
No. 54/2000
s. 23(2).

S. 87A(6)
amended by
No. 18/2005
s. 18(Sch. 1
item 97.2).

- (5) A court is not prevented from making an order under subsection (1) only because it has been unable to find out the financial circumstances of the offender.
- (6) An offender may appear on the hearing of an application under subsection (1) personally or by a lawyer or, with the leave of the court, by any other representative.
- (7) The court may at any time, on the application of the State or of the offender, vary an order made under subsection (1) (including an order that has been previously varied) in any manner that the court thinks fit.

S. 87A(8)
repealed by
No. 54/2000
s. 23(3).

S. 87AB
inserted by
No. 21/2022
s. 79.

* * * * *

87AB Recovery of assistance paid under Victims of Crime (Financial Assistance Scheme) Act 2022

- (1) If—
 - (a) a court finds a person guilty of, or convicts a person of, a relevant offence within the meaning of the **Victims of Crime (Financial Assistance Scheme) Act 2022**; and
 - (b) assistance was paid or varied under that Act in respect of an injury (including a significant adverse effect within the meaning of that Act that, in accordance with that Act, is required to be regarded as an injury) or death that directly resulted from that offence—

the court may, on the application of the State, order the offender to pay to the State an amount equal to the whole or any specified part of the assistance paid together with the whole or any specified part of any costs paid in respect of the application for assistance.

- (2) An application may only be made under subsection (1) within the period of 6 months after the later of—
 - (a) the day on which the person was found guilty or convicted of the relevant offence; or
 - (b) the day on which the assistance was paid or varied under the **Victims of Crime (Financial Assistance Scheme) Act 2022**.
- (3) A court may require an amount payable under subsection (1) to be paid—
 - (a) wholly as a lump sum; or
 - (b) partly as a lump sum and partly by instalments; or
 - (c) wholly by instalments.
- (4) A court must not make an order under subsection (1) without giving the offender a reasonable opportunity to be heard on the application for the order and without having regard to—
 - (a) the offender's financial resources (including earning capacity) and financial needs; and
 - (b) any obligations owed by the offender to any other person; and
 - (c) any other circumstances that the court considers relevant.
- (5) A court is not prevented from making an order under subsection (1) only because it has been unable to find out the financial circumstances of the offender.
- (6) An offender may appear on the hearing of an application under subsection (1) personally or by a lawyer or, with the leave of the court, by any other representative.

- (7) The court may at any time, on the application of the State or of the offender, vary an order made under subsection (1) (including an order that has been previously varied) in any manner that the court thinks fit.

S. 87B
(Heading)
amended by
No. 21/2022
s. 80(1).

87B Enforcement of order under section 87A or 87AB

S. 87B
inserted by
No. 81/1996
s. 75.

- (1) An order under section 87A(1) or 87AB(1) must be taken to be a judgment debt due by the offender to the State and payment of any amount remaining unpaid under the order may be enforced in the court by which it was made.
- (2) All money paid to, or recovered by, the State under this Division must be paid into the Consolidated Fund.

S. 87B(1)
amended by
No. 21/2022
s. 80(2).

Pt 4 Div. 2B
(Heading and
ss 87C–87N)
inserted by
No. 80/2001
s. 4.

Division 2B—Recovery of costs incurred by emergency service agencies

S. 87C
inserted by
No. 80/2001
s. 4.

87C Definitions

In this Division—

cost recovery order means an order under section 87D(1);

emergency includes an apparent emergency;

emergency service agency means—

- (a) Victoria Police; or
- (b) Fire Rescue Victoria established under the **Fire Rescue Victoria Act 1958**; or
- (c) the Country Fire Authority appointed under the **Country Fire Authority Act 1958**; or
- (d) the Victoria State Emergency Service Authority established under the **Victoria State Emergency Service Act 2005**; or
- (e) Ambulance Service—Victoria within the meaning of the **Ambulance Services Act 1986**; or
- (f) a public hospital, private hospital, denominational hospital or privately-operated hospital within the meaning of the **Health Services Act 1988**; or
- (g) any other person who, or body that, employs or engages an emergency service worker;

S. 87C def. of *emergency service agency* amended by Nos 51/2005 s. 58(7), 37/2014 s. 10(Sch. item 151.5(a)), 20/2019 s. 188(1).

emergency service worker means—

- (a) a police officer; or
- (b) a police reservist within the meaning of the **Victoria Police Act 2013**; or
- (c) a protective services officer appointed under section 38 of the **Victoria Police Act 2013**; or
- (d) a person employed by Fire Rescue Victoria under the **Fire Rescue Victoria Act 1958** or a member of a fire or emergency service unit established under that Act; or

S. 87C def. of *emergency service worker* amended by Nos 51/2005 s. 58(8), 37/2014 s. 10(Sch. item 151.5(b)), 20/2019 s. 188(2).

- (e) an officer or employee of the Country Fire Authority under the **Country Fire Authority Act 1958**; or
- (f) an officer or member of a brigade under the **Country Fire Authority Act 1958**, whether a part-time officer or member, a permanent officer or member or a volunteer officer or member within the meaning of that Act; or
- (g) a casual fire-fighter within the meaning of Part V of the **Country Fire Authority Act 1958**; or
- (h) a volunteer auxiliary worker appointed under section 17A of the **Country Fire Authority Act 1958**; or
- (i) a person employed in the Department of Natural Resources and Environment with emergency response duties; or
- (j) a registered member or probationary member within the meaning of the **Victoria State Emergency Service Act 2005** or an employee in the Victoria State Emergency Service; or
- (k) a volunteer emergency worker within the meaning of the **Emergency Management Act 1986**; or
- (l) an employee of Ambulance Service—Victoria within the meaning of the **Ambulance Services Act 1986**; or
- (m) a person employed, or engaged to provide services or perform work, by a public hospital, private hospital, denominational hospital or privately-operated hospital within the meaning of the **Health Services Act 1988**; or

(n) any other person or body—

- (i) required or permitted under the terms of their employment by, or contract for services with, the Crown or a government agency to respond to an emergency; or
- (ii) engaged by the Crown or a government agency to provide services or perform work in relation to a particular emergency;

government agency has the same meaning as in the **Victoria State Emergency Service Act 2005**;

S. 87C def. of *government agency* amended by No. 51/2005 s. 58(8).

statement of costs means a statement referred to in section 87H(2)(d).

87D Cost recovery order

S. 87D inserted by No. 80/2001 s. 4.

- (1) If a court finds a person guilty, or convicts a person, of an offence against—

- (a) Division 4 of Part I of the **Crimes Act 1958** (contamination of goods); or
- (b) section 317A(1) or (2) of the **Crimes Act 1958** (bomb hoaxes)—

it may, on application, order the offender to pay to the State such amount as the court thinks fit for costs reasonably incurred by any emergency service agency in providing an immediate response to an emergency arising out of the commission of the offence.

- (2) A cost recovery order may include amounts in respect of remuneration (including long service leave entitlements, holiday pay, superannuation contributions and any other employment benefits) payable to an emergency service worker involved

in the provision of the immediate response referred to in subsection (1).

- (3) In making a cost recovery order the court may direct that the costs covered by the order be paid by instalments and that, in default of payment of any one instalment, the whole of those costs remaining unpaid shall become due and payable.

S. 87E
inserted by
No. 80/2001
s. 4.

87E Application for cost recovery order

An application for a cost recovery order—

- (a) may only be made by the Director of Public Prosecutions or, in the case of the Magistrates' Court, by the Director of Public Prosecutions or the informant or police prosecutor; and
- (b) must be made within 12 months after the offender is found guilty, or convicted, of the offence.

S. 87F
inserted by
No. 80/2001
s. 4.

87F Extension of time for making application

- (1) A court may, on the application of a person who wishes to apply for a cost recovery order, extend the time within which an application for a cost recovery order may be made if it is of the opinion that it is in the interests of justice to do so.
- (2) A court may extend time under subsection (1) before or after the time expires and whether or not an application for an extension is made before the time expires.
- (3) A court must not extend time under subsection (1) without giving the offender a reasonable opportunity to be heard on the matter.

S. 87G
inserted by
No. 80/2001
s. 4.

87G How offender may appear on an application

In a proceeding on an application for a cost recovery order the offender—

- (a) may appear personally; or

(b) may be represented—

(i) by a lawyer; or

S. 87G(b)(i)
amended by
No. 18/2005
s. 18(Sch. 1
item 97.2).

(ii) with the leave of the court, by any other
person.

87H Court may have regard to relevant facts

S. 87H
inserted by
No. 80/2001
s. 4.

(1) In hearing and determining an application for a
cost recovery order, a court may have regard to
any relevant facts appearing from—

(a) evidence given at the hearing of the charge;
or

(b) any statement of the material facts relevant
to the charge given to a court in a proceeding
for the offence by the prosecution and not
disputed by or on behalf of the accused; or

S. 87H(1)(b)
amended by
No. 68/2009
s. 97(Sch.
item 110.67).

(c) the available documents—

together with admissions made by or on behalf of
any person in connection with the application.

(2) In subsection (1)(c) *the available documents*
means—

(a) any written statements or admissions which
were made for use, and would have been
admissible, as evidence on the hearing of the
charge; or

(b) the depositions in the committal proceeding;
or

S. 87H(2)(b)
substituted by
No. 68/2009
s. 97(Sch.
item 110.68).

* * * * *

S. 87H(2)(c)
repealed by
No. 68/2009
s. 97(Sch.
item 110.68).

- (d) a written statement made by or on behalf of an emergency service agency detailing costs reasonably incurred by it in providing an immediate response to an emergency arising out of the commission of the offence.

S. 87I
inserted by
No. 80/2001
s. 4.

87I Evidence

On an application for a cost recovery order—

- (a) the court must give the offender a reasonable opportunity to be heard; and
- (b) the applicant may give evidence or may call another person to give evidence in relation to the application, including in support of a statement of costs; and
- (c) the offender may give evidence or may call another person to give evidence in relation to the application, including in relation to any matter contained in a statement of costs; and
- (d) the court may, at the request of the offender or the applicant, call a person who has made a statement of costs to give evidence; and
- (e) a person who gives evidence may be cross-examined and re-examined; and
- (f) a finding of any fact made by a court in a proceeding for the offence is evidence and, in the absence of evidence to the contrary, proof of that fact; and
- (g) the finding may be proved by production of a document under the seal of the court from which the finding appears; and
- (h) the court may have regard to any evidence or statement referred to in section 87H(1) and, with the consent of the parties, to any available documents or admissions referred to in that section.

87J Court may take financial circumstances of offender into account

S. 87J
inserted by
No. 80/2001
s. 4.

- (1) If a court decides to make a cost recovery order, it may, in determining the amount and method of payment of the costs covered by the order, take into account, as far as practicable, the financial circumstances of the offender and the nature of the burden that payment of the costs will impose.
- (2) A court is not prevented from making a cost recovery order only because it has been unable to find out the financial circumstances of the offender.
- (3) If the court considers—
 - (a) that it would be appropriate, in addition to making a cost recovery order, to impose a fine or make a compensation order under Division 2 or both impose a fine and make such a compensation order; but
 - (b) that the offender has insufficient means to pay them all—

the court must give first preference to any compensation order, second preference to a cost recovery order and third preference to a fine.

87K Court to give reasons for its decision

S. 87K
inserted by
No. 80/2001
s. 4.

- (1) On deciding to grant or refuse an application for a cost recovery order, the court must—
 - (a) state in writing the reasons for its decision; and
 - (b) cause those reasons to be entered in the records of the court.
- (2) The failure of a court to comply with subsection (1) does not invalidate the decision made by it on the application.

S. 87L
inserted by
No. 80/2001
s. 4.

87L Costs of proceeding

Despite any rule of law or practice to the contrary or any provision to the contrary made by or under any other Act, each party to a proceeding under this Division must bear their own costs of the proceeding unless the court otherwise determines.

S. 87M
inserted by
No. 80/2001
s. 4.

87M Right to bring civil proceedings unaffected

Nothing in this Division takes away from, or affects, the right of an emergency service agency to recover any costs so far as not recovered under this Division.

S. 87N
inserted by
No. 80/2001
s. 4.

87N Enforcement of order

A cost recovery order, including costs ordered to be paid by the offender on the proceeding for that order, must be taken to be a judgment debt due by the offender to the State and payment of any amount remaining unpaid under the order may be enforced in the court by which it was made.

**Division 3—Driver licences and learner permits—
suspension, cancellation and driver disqualification**

Pt 4 Div. 3
(Heading and
ss 87P–89D)
amended by
Nos 57/1998
s. 26(1)(2),
1/2002 ss 11–
13, 49/2004
ss 43, 44,
59/2004 s. 9,
110/2004 s. 45,
81/2006 s. 7,
68/2009
s. 97(Sch.
item 110.69),
69/2009
s. 54(Sch. Pt 1
items 51.3,
51.4), 93/2009
s. 49(1),
83/2012
s. 33(1)–(3),
substituted as
Pt 4 Div. 3
(Heading
and ss 87P–
89DB) by
No. 56/2013
s. 32.

87P Definition

S. 87P
substituted by
No. 56/2013
s. 32.

In this Division—

serious motor vehicle offence means—

S. 87P def. of
*serious
motor vehicle
offence*
amended by
No. 65/2017
s. 18.

- (a) manslaughter arising out of the driving
of a motor vehicle; or
- (b) an offence under section 24 of the
Crimes Act 1958 in respect of serious
injury arising out of the driving of a
motor vehicle; or
- (ba) an offence under section 317AC,
317AD, 317AE or 317AF of the
Crimes Act 1958 arising out of the
driving of a motor vehicle; or

S. 87P(d)
amended by
No. 6/2020
s. 10(a).

S. 87P(e)
inserted by
No. 6/2020
s. 10(b).

S. 87P(f)
inserted by
No. 6/2020
s. 10(b).

- (c) an offence under section 318 of the **Crimes Act 1958** arising out of the driving of a motor vehicle (other than the operating of a vessel); or
- (d) an offence under section 319 of the **Crimes Act 1958** arising out of the driving of a motor vehicle (other than the operating of a vessel); or
- (e) murder or attempted murder arising out of the driving of a motor vehicle; or
- (f) any of the following offences, if arising out of the driving of a motor vehicle while under the influence of alcohol or alcohol and a drug—
 - (i) an offence under section 15A or 15B of the **Crimes Act 1958**;
 - (ii) an offence under section 16, 17 or 18 of the **Crimes Act 1958**;
 - (iii) an offence under section 22 or 23 of the **Crimes Act 1958**;
 - (iv) an offence under section 63A of the **Crimes Act 1958**;
 - (v) the common law offence of kidnapping;
 - (vi) an offence under section 79 of the **Crimes Act 1958**;
 - (vii) an offence under section 79A of the **Crimes Act 1958**.

87Q Matters to be sent to the Secretary to the Department of Transport

A court that makes an order under section 89 or 89A or a finding under section 89C(1) must cause particulars of the order or finding (including the offence or offences of which the person was found guilty or convicted) to be sent immediately to the Secretary to the Department of Transport.

S. 87Q
(Heading)
amended by
No. 49/2019
s. 186(Sch. 4
item 37.2).

S. 87Q
inserted by
No. 56/2013
s. 32,
amended by
No. 49/2019
s. 186(Sch. 4
item 37.3).

88 Application of Evidence Act 2008

To avoid doubt, a proceeding under this Division is a proceeding that relates to sentencing for the purposes of section 4(2) of the **Evidence Act 2008**.

S. 88
substituted by
No. 56/2013
s. 32.

89 Suspension or cancellation of driver licence or learner permit and driver disqualification—certain motor vehicle offences

S. 89
substituted by
No. 56/2013
s. 32.

- (1) If a person is found guilty or convicted of a serious motor vehicle offence, the court must—
 - (a) if the person is the holder of a driver licence or learner permit, cancel that licence or permit and disqualify him or her from obtaining a further one for the period of time that the court specifies; or
 - (b) if the person is not the holder of a driver licence or learner permit but is the holder of an equivalent licence or permit issued in another State or a Territory of the Commonwealth or another country, disqualify him or her from driving a motor vehicle on a road in Victoria for the period for which he or she would have been disqualified from obtaining a driver licence or learner permit, had he or she held one; or

- (c) in any other case where the person is not the holder of a driver licence or learner permit, disqualify him or her from obtaining one for the period of time that the court specifies.
- (2) The court must not specify a period of disqualification under subsection (1) that is—
 - (a) for an offence to which paragraph (d) of the definition of ***serious motor vehicle offence*** in section 87P applies, less than 18 months; or
 - (b) for an offence to which paragraph (a), (b), (ba), (c), (e) or (f)(vii) of the definition of ***serious motor vehicle offence*** in section 87P applies, less than 24 months; or
 - (c) for an offence to which paragraph (f)(i), (ii), (iii), (iv), (v) or (vi) of the definition of ***serious motor vehicle offence*** in section 87P applies, less than 12 months.
- (3) If a person is found guilty or convicted of an offence under section 319AA of the **Crimes Act 1958**, the court must—
 - (a) if the person is the holder of a driver licence or learner permit, cancel that licence or permit and disqualify him or her from obtaining a further one for the period of time that the court specifies, being not less than 12 months; or
 - (b) if the person is not the holder of a driver licence or learner permit but is the holder of an equivalent licence or permit issued in another State or a Territory of the Commonwealth or another country, disqualify him or her from driving a motor vehicle on a road in Victoria for the period for which he or she would have been

S. 89(2)(b)
substituted by
No. 6/2020
s. 11(1).

S. 89(2)(c)
inserted by
No. 6/2020
s. 11(1).

- disqualified from obtaining a driver licence or learner permit, had he or she held one; or
- (c) in any other case where the person is not the holder of a driver licence or learner permit, disqualify him or her from obtaining one for the period of time that the court specifies, being not less than 12 months.
- (4) If a person is found guilty or convicted of stealing or attempting to steal a motor vehicle, the court may (in the case of a finding of guilt) and must (in the case of a conviction)—
- (a) if the person is the holder of a driver licence or learner permit—
- (i) suspend that licence or permit for the period of time that the court specifies; or
- (ii) cancel that licence or permit and disqualify him or her from obtaining a further one for the period of time that the court specifies; or
- (b) if the person is not the holder of a driver licence or learner permit but is the holder of an equivalent licence or permit issued in another State or a Territory of the Commonwealth or another country, disqualify him or her from driving a motor vehicle on a road in Victoria for the period for which he or she would have been disqualified from obtaining a driver licence or learner permit, had he or she held one; or
- (c) in any other case where the person is not the holder of a driver licence or learner permit, disqualify him or her from obtaining one for the period of time that the court specifies.

- (5) If a period of suspension or disqualification is not specified by the court on making an order under subsection (4)(a), (b) or (c), the period is 3 months.

Notes

**Note 1 to s. 89
amended by
No. 34/2023
s. 128.**

- 1 A person who is disqualified from obtaining a driver licence or learner permit under this section must apply to the Magistrates' Court under Part 3 of the **Road Safety Act 1986** for a licence eligibility order if he or she wishes to be granted a driver licence or learner permit under that Act.

On the making of a licence eligibility order the Magistrates' Court may give an alcohol interlock condition direction under Part 5 of the **Road Safety Act 1986** if a finding was made under section 89C(1) that the disqualifying offence was committed while the person was under the influence of alcohol, or both alcohol and a drug, which contributed to the offence.

A person disqualified under this section who is granted a driver licence or learner permit must have zero concentration of alcohol present in their blood or breath while driving or in charge of a motor vehicle during the first 3 years of that licence or permit or any longer period during which the licence or permit is subject to an alcohol interlock condition. The person must also have zero concentration of alcohol in their blood or breath while driving or in charge of a motor vehicle for the period of 3 years from the day on which an alcohol interlock condition imposed on their licence or permit is removed or, if the person is granted an exemption from the imposition of an alcohol interlock condition, for the period of 3 years from the day on which that exemption is granted. See section 52(1B), (1BBB) and (1BBC) of the **Road Safety Act 1986**.

A person who is disqualified from obtaining a driver licence or learner permit or whose driver licence or learner permit is cancelled under this section by order of the Magistrates' Court or Children's Court may appeal to the County Court. See section 29 of the **Road Safety Act 1986**.

See sections 3AD and 3AE of the **Road Safety Act 1986** for circumstances in which a person is to be taken to be disqualified from obtaining a driver licence or learner permit or from driving a motor vehicle on a road in Victoria.

-
- | | | |
|---|--|--|
| 2 | Particulars of any order made by a court under this section must be sent immediately to the Secretary to the Department of Transport—see section 87Q. | Note 2 to s. 89 amended by No. 49/2019 s. 186(Sch. 4 item 37.4). |
| 3 | See section 85P of the Road Safety Act 1986 for the requirement to take into account any period of suspension under Part 6B of that Act when fixing a period of disqualification or suspension. | Note 3 to s. 89 inserted by No. 6/2020 s. 11(2). |
| 4 | See section 85ZN of the Road Safety Act 1986 for the requirement to take into account any period of disqualification under Part 6C of that Act when fixing a period of disqualification. | Note 4 to s. 89 inserted by No. 30/2021 s. 95. |
- 89A Suspension or cancellation of driver licence or learner permit and driver disqualification—any offence**
- S. 89A substituted by No. 56/2013 s. 32.
- (1) If a person is found guilty or convicted of any offence the court may—
- (a) if the person is the holder of a driver licence or learner permit—
 - (i) suspend that licence or permit for the period of time that the court specifies; or
 - (ii) cancel that licence or permit and disqualify him or her from obtaining a further one for the period of time that the court specifies; or
 - (b) if the person is not the holder of a driver licence or learner permit but is the holder of an equivalent licence or permit issued in another State or a Territory of the Commonwealth or another country, disqualify him or her from driving a motor vehicle on a road in Victoria for the period for which he or she would have been disqualified from obtaining a driver licence or learner permit, had he or she held one; or

- (c) in any other case where the person is not the holder of a driver licence or learner permit, disqualify him or her from obtaining one for the period of time that the court specifies.
- (2) If a period of suspension or disqualification is not specified by the court on making an order under subsection (1)(a), (b) or (c), the period is 3 months.
- (3) A court that makes an order under subsection (1) must, at the time of doing so, cause to be entered in the records of the court the fact that it is an order made under this section and the offence or offences of which the person was found guilty or convicted.
- (4) Subsection (1) does not apply to an offender found guilty or convicted of—
 - (a) a serious motor vehicle offence or an offence referred to in section 89(3) or (4); or
 - (b) an offence under the **Road Safety Act 1986** or regulations made under that Act or rules made under section 95D of that Act.

Notes to
s. 89A
substituted by
No. 7/2019
s. 29.

Notes

- 1 A person who is disqualified from obtaining a driver licence or learner permit or whose driver licence or learner permit is cancelled under this section by order of the Magistrates' Court or Children's Court may appeal to the County Court. See section 29 of the **Road Safety Act 1986**.

See sections 3AD and 3AE of the **Road Safety Act 1986** for circumstances in which a person is to be taken to be disqualified from obtaining a driver licence or learner permit or from driving a motor vehicle on a road in Victoria.

- 2 Particulars of any order made by a court under this section must be sent immediately to the Secretary to the Department of Transport—see section 87Q.

Note 2 to
s. 89A
amended by
No. 49/2019
s. 186(Sch. 4
item 37.5).

- 3 See section 85P of the **Road Safety Act 1986** for the requirement to take into account any period of suspension under Part 6B of that Act when fixing a period of disqualification or suspension.

Note 3 to
s. 89A
inserted by
No. 6/2020
s. 12.

- 4 See section 85ZN of the **Road Safety Act 1986** for the requirement to take into account any period of disqualification under Part 6C of that Act when fixing a period of disqualification.

Note 4 to
s. 89A
inserted by
No. 30/2021
s. 96.

89B Commencement of period of disqualification

A period of disqualification under section 89(1), (3) or (4) or section 89A(1) commences on the day that the order imposing it is made or on any later day that the court specifies in the order.

S. 89B
substituted by
No. 56/2013
s. 32.

89C Finding on cancellation of driver licence or learner permit or driver disqualification

S. 89C
substituted by
No. 56/2013
s. 32.

- (1) Subject to subsection (2), a court, in addition to making an order under section 89(1), (3) or (4), may make a finding that the offence was committed while the offender was under the influence of alcohol or a drug, or both alcohol and a drug, which contributed to the offence.
- (2) If a person is found guilty or convicted of an offence under section 318(1) of the **Crimes Act 1958** in respect of which the culpable driving is constituted by behaviour referred to in paragraph (c) or (d) or in both paragraphs (c) and (d) of section 318(2) of that Act, in addition to making an order under section 89(1) the court must make a finding that the offence was committed while the offender was under the influence of alcohol or a drug, or both alcohol and a drug, (as the case requires) which contributed to the offence.

S. 89C(1)
amended by
No. 7/2019
s. 30.

- (3) If a finding of a kind referred to in subsection (2) is not made in the circumstances to which that subsection applies, the relevant finding must be taken to have been made.

Note to s. 89C
amended by
No. 49/2019
s. 186(Sch. 4
item 37.6).

Note

Particulars of any finding made by a court under this section must be sent immediately to the Secretary to the Department of Transport—see section 87Q.

S. 89D
substituted by
No. 56/2013
s. 32.

89D Presumption in favour of concurrency

- (1) If the driver licence or learner permit of an offender is suspended under section 89(4) or 89A(1) (**later suspension**) and the driver licence or learner permit of the offender has previously been suspended under—
- (a) either of those sections; or
 - (b) the **Road Safety Act 1986**; or
 - (c) regulations made under the **Road Safety Act 1986** or rules made under section 95D of that Act—
- the later suspension is presumed to operate concurrently with the earlier suspension, unless the court orders otherwise.
- (2) If a person is disqualified under section 89(1), (3) or (4) or 89A(1) from obtaining a driver licence or learner permit or from driving (**later disqualification**) and the offender has previously been disqualified from obtaining a driver licence or learner permit or from driving under—
- (a) any of those sections; or
 - (b) the **Road Safety Act 1986**; or

- (c) regulations made under the **Road Safety Act 1986** or rules made under section 95D of that Act—

the later disqualification is presumed to operate concurrently with the earlier disqualification, unless the court orders otherwise.

- (3) The presumption—

- (a) under subsection (1) does not apply if the **Road Safety Act 1986** or regulations made under that Act or rules made under section 95D of that Act require the suspension to be consecutive;
- (b) under subsection (2) does not apply if the **Road Safety Act 1986** or regulations made under that Act or rules made under section 95D of that Act require the disqualification to be consecutive.

89DA Cancellation on disqualification

If under this Division a court disqualifies a person from obtaining a driver licence or learner permit for any time without expressly cancelling any driver licence or learner permit held by that person, any driver licence or learner permit held by that person is, unless the order specifies otherwise, to be taken to have been cancelled by that order.

S. 89DA
inserted by
No. 56/2013
s. 32.

89DB Effect of cancellation

A driver licence or learner permit cancelled by a court under this Act is of no effect.

S. 89DB
inserted by
No. 56/2013
s. 32.

Division 4—Alcohol exclusion orders

Pt 4 Div. 4
(Heading and
ss 89DC–
89DH)
inserted by
No. 15/2014
s. 7.

S. 89DC
inserted by
No. 15/2014
s. 7.

89DC Definitions

In this Division—

alcohol exclusion order means an order under section 89DE;

bar area means an area within a licensed premises that is set aside for the service of liquor for consumption on those premises;

intoxicated, in relation to a person, means the person's speech, balance, co-ordination or behaviour is noticeably affected as a result of the consumption of liquor;

licensed premises has the same meaning as in the **Liquor Control Reform Act 1998**;

liquor has the same meaning as in the **Liquor Control Reform Act 1998**;

major event has the same meaning as in the **Liquor Control Reform Act 1998**;

offender means a person referred to in section 89DE(1);

relevant offence means any of the following offences—

- (a) murder;
- (b) manslaughter;
- (ba) homicide by firearm;

S. 89DC def.
of *relevant
offence*
amended by
Nos 42/2015
s. 26(1),
47/2016
s. 41(3),
16/2020 s. 24.

- (c) an offence against any of the following provisions of the **Crimes Act 1958**—
- (i) section 15A(1) (Causing serious injury intentionally in circumstances of gross violence);
 - (ii) section 15B(1) (Causing serious injury recklessly in circumstances of gross violence);
 - (iii) section 16 (Causing serious injury intentionally);
 - (iv) section 17 (Causing serious injury recklessly);
 - (v) section 18 (Causing injury intentionally or recklessly);
 - (vi) section 19(1) (Offence to administer certain substances);
 - (vii) section 20 (Threats to kill);
 - (viii) section 22 (Conduct endangering life);
 - (ix) section 23 (Conduct endangering persons);
 - (x) section 24 (Negligently causing serious injury);
 - (xi) section 29(1) (Using firearm to resist arrest etc.);
 - (xii) section 30 (Threatening injury to prevent arrest);
 - (xiii) section 31(1) (Assaults);
 - (xiv) section 31A(1) (Use of firearms in the commission of offences);
 - (xv) section 38(1) (Rape);

- (xvi) section 39(1) (rape by compelling sexual penetration);
- (xvii) section 40(1) (sexual assault);
- (xviiia) section 41(1) (sexual assault by compelling sexual touching);
- (xviii) section 42(1) (assault with intent to commit a sexual offence);
- (xviiia) section 43(1) (threat to commit a sexual offence);
- (xviiib) section 46(1) (administration of an intoxicating substance for a sexual purpose);
- (xix) section 49A(1) (sexual penetration of a child under the age of 12);
- (xixa) section 49B(1) (sexual penetration of a child under the age of 16);
- (xx) section 49D(1) (sexual assault of a child under the age of 16);
- (xxa) section 49F(1) (sexual activity in the presence of a child under the age of 16);
- (xxb) section 49H(1) (causing a child under the age of 16 to be present during sexual activity);
- (xxi) section 49C(1) (sexual penetration of a child aged 16 or 17 under care, supervision or authority);
- (xxii) section 49E(1) (sexual assault of a child aged 16 or 17 under care, supervision or authority);

- (xxiia) section 49G(1) (sexual activity in the presence of a child aged 16 or 17 under care, supervision or authority);
- (xxiib) section 49I(1) (causing a child aged 16 or 17 under care, supervision or authority to be present during sexual activity);
- (xxv) section 44(1) (procuring sexual act by threat);
- (xxvi) section 45(1) (procuring sexual act by fraud);
- (xxvii) section 49K(1) (encouraging a child under the age of 16 to engage in, or be involved in, sexual activity);
- (xxviii) section 49L(1) (encouraging a child aged 16 or 17 under care, supervision or authority to engage in, or be involved in, sexual activity);
- (xxxi) section 63A (kidnapping);
- (xxxii) section 51C(1) (producing child abuse material);
- (xxxia) section 51E(1) (administering a website used to deal with child abuse material);
- (xxxiib) section 51F(1) (encouraging use of a website to deal with child abuse material);
- (xxxiic) section 51I(1) (assisting a person to avoid apprehension);

(xxxiii) section 49Q(1) (causing or allowing a sexual performance involving a child);

(xxxiiia) section 49R(1) (inviting or offering a sexual performance involving a child).

S. 89DD
inserted by
No. 15/2014
s. 7,
amended by
No. 37/2014
s. 10(Sch.
item 151.6).

89DD Alcohol exclusion order

- (1) If a person has been charged with a relevant offence, the Director of Public Prosecutions or a police officer may make an application for an alcohol exclusion order.
- (2) An application for an alcohol exclusion order under this section must be filed and served on the accused who is the subject of the application—
 - (a) in the case of a proceeding listed for a summary hearing in the Magistrates' Court, before the first mention hearing, or later with the leave of the court; or
 - (b) in the case of a committal proceeding, before the committal mention hearing, or later with the leave of the court; or
 - (c) in any other case, before the first directions hearing, or later with the leave of the court.
- (3) An application for an alcohol exclusion order may be withdrawn by the Director of Public Prosecutions or a police officer at any time before it is determined.
- (4) A court may also make an alcohol exclusion order in respect of an offender on the court's own motion if it is satisfied that the circumstances set out in section 89DE(1) apply to the offender.
- (5) When making an alcohol exclusion order, the Supreme Court may direct that any application for the variation of that order is to be made to the Magistrates' Court for determination.

S. 89DD(3)
amended by
No. 21/2015
s. 3(Sch. 1
item 47.2).

S. 89DD(5)
inserted by
No. 55/2014
s. 169(1).

89DE When an alcohol exclusion order must be made

S. 89DE
inserted by
No. 15/2014
s. 7.

- (1) A court must make an alcohol exclusion order in respect of an offender if—
 - (a) the court records a conviction against the offender for a relevant offence; and
 - (b) the court is satisfied on the balance of probabilities that—
 - (i) at the time of the relevant offence the offender was intoxicated; and
 - (ii) the offender's intoxication significantly contributed to the commission of the relevant offence; and
 - (c) the offender is not, or has not been, the subject of a previous alcohol exclusion order in relation to the circumstances that gave rise to the relevant offence.
- (2) The court is not required to call further evidence for the purposes of satisfying itself of the matters set out in subsection (1)(b).
- (3) The duration of an alcohol exclusion order is 2 years.
- (4) Subject to subsection (5), an alcohol exclusion order prohibits an offender from—
 - (a) entering or remaining in any licensed premises characterised as a nightclub, bar, restaurant, cafe, reception centre or function centre; and
 - (b) entering or remaining in the location of any major event; and
 - (c) entering or remaining in a bar area of any licensed premises to which paragraph (a) or (b) does not apply; and

- (d) consuming or attempting to consume any liquor in any licensed premises to which paragraph (a) or (b) does not apply.
- (5) An alcohol exclusion order may be subject to exemptions that allow a person to enter or remain in a specified place for a specified purpose during the period of the order if—
 - (a) the Court considers that there is a good reason why the person should be allowed to enter or remain in the place; and
 - (b) the Court considers that it is appropriate in all the circumstances.
- (6) An alcohol exclusion order takes effect—
 - (a) if the offender is not serving a custodial sentence for another offence and the order has not been made in combination with a custodial sentence, at the time the order is made; or
 - (b) if the offender is serving a custodial sentence for another offence at the time the order is made or the order has been made in combination with a custodial sentence, on the offender's release from prison.
- (7) An alcohol exclusion order must state—
 - (a) the name of the offender; and
 - (b) the grounds on which the order is made; and
 - (c) the conduct that is prohibited by the order; and
 - (d) any exemptions imposed under subsection (5); and
 - (e) when the order takes effect in accordance with subsection (6); and
 - (f) the duration of the order.

- (8) If a court makes an alcohol exclusion order in respect of a person, it must not, for the duration of the order, in respect of that person—
- (a) make an exclusion order under Part 8A of the **Liquor Control Reform Act 1998** (except an order under section 148I(2)(a) of that Act); or
 - (b) attach an alcohol exclusion condition as a condition of a community corrections order.

89DF Offences for contravening alcohol exclusion order

S. 89DF
inserted by
No. 15/2014
s. 7.

- (1) A person in respect of whom an alcohol exclusion order is in effect must not, in contravention of the order, enter, remain or attempt to enter or remain in any place that the person knows or is reckless as to whether the place is—
- (a) a licensed premises characterised as a nightclub, bar, restaurant, cafe, reception centre or function centre; or
 - (b) the location of a major event; or
 - (c) a bar area of any licensed premises to which paragraph (a) or (b) does not apply—

knowing that the order is in effect, or being reckless as to whether the order is in effect.

Penalty: Level 7 imprisonment.

- (2) A person in respect of whom an alcohol exclusion order is in effect must not, in contravention of the order, consume or attempt to consume liquor in any place that the person knows or is reckless as to whether the place is a licensed premises, knowing that the order is in effect, or being reckless as to whether the order is in effect.

Penalty: Level 7 imprisonment.

- (3) It is not a contravention of subsection (1) if the conduct contravening the order was caused by circumstances beyond the control of the accused and the accused had taken reasonable precautions to avoid committing an offence against subsection (1).
- (4) In proceedings for an offence against subsection (1) or (2), proof of the person the subject of the alcohol exclusion order being present in court when the order is made, or proof of service of the alcohol exclusion order on the person is admissible in evidence for the purpose of establishing that the person knows that an alcohol exclusion order is in effect and, in the absence of evidence to the contrary, is proof of that fact.

S. 89DG
inserted by
No. 15/2014
s. 7.

89DG Variation of alcohol exclusion order

- (1) Any of the following may apply for variation of an alcohol exclusion order—
 - (a) the person to whom the order applies;
 - (b) a police officer.

S. 89DG(1)(b)
amended by
No. 21/2015
s. 3(Sch. 1
item 47.3).

- (2) An application under subsection (1) must be made to the Magistrates' Court if—
 - (a) the order was made by the County Court or the Magistrates' Court; or
 - (b) the order was made by the Supreme Court and the Supreme Court has given a direction under section 89DD(5).

S. 89DG(2)
substituted by
No. 55/2014
s. 169(2).

S. 89DG(2)(b)
amended by
No. 21/2015
s. 3(Sch. 1
item 47.4).

- (2A) For the purposes of subsection (2), the order made by the Supreme Court or County Court must be taken to have been made by the Magistrates' Court. **S. 89DG(2A) inserted by No. 55/2014 s. 169(2).**
- (2B) An application under subsection (1) must be made to the Supreme Court if— **S. 89DG(2B) inserted by No. 55/2014 s. 169(2).**
- (a) the order was made by the Supreme Court; and
 - (b) the Supreme Court has not given a direction under section 89DD(5).
- (3) On an application under subsection (1), the court may vary an alcohol exclusion order, if the court—
- (a) is satisfied that new facts or circumstances have arisen since the making or last variation of the order that make it appropriate for the order to be varied; and
 - (b) is satisfied that there is a good reason why the person to whom the order applies should, or should not, be allowed to enter specified licensed premises; and
 - (c) considers that it is appropriate in all the circumstances to do so.
- (4) If the court varies an exclusion order under this section, it may only make any of the following variations—
- (a) imposing a new exemption on an alcohol exclusion order;
 - (b) varying or removing an existing exemption on an alcohol exclusion order.
- (5) The court must specify the date on which the alcohol exclusion order as varied takes effect.

S. 89DG(6)
inserted by
No. 55/2014
s. 169(3).

- (6) An order of the Supreme Court or County Court that is varied by the Magistrates' Court under this section is taken for the purposes of enforcement to be an order of the Magistrates' Court.

S. 89DH
inserted by
No. 15/2014
s. 7.

89DH Chief Commissioner to report on alcohol exclusion orders

- (1) The Chief Commissioner of Police must provide to the Minister for inclusion in the annual report of operations under Part 7 of the **Financial Management Act 1994** a report containing—
- (a) the number of applications made for alcohol exclusion orders during that financial year; and
 - (b) the number of applications for alcohol exclusion orders that were withdrawn during that year; and
 - (c) the number of applications for alcohol exclusion orders that were dismissed during that year; and
 - (d) the number of alcohol exclusion orders made during that year; and
 - (e) the number of persons charged with an offence against section 89DF(1) or (2) during that year; and
 - (f) the number of charges for an offence under section 89DF(1) or (2) that resulted in a finding of guilt in that year; and
 - (g) the number of contraventions of an alcohol exclusion order that were recorded by members of the police force during that year in respect of which no charge sheet was filed; and
 - (h) a comparison with the immediately preceding 3 financial years of the information required under this subsection.

- (2) As soon as is practicable after the end of each financial year, the Director of Public Prosecutions must provide the Chief Commissioner of Police with the following information for the purposes of preparing a report under this section—
- (a) the number of applications made by the Director of Public Prosecutions for alcohol exclusion orders during that financial year; and
 - (b) the number of applications for alcohol exclusion orders that were withdrawn during that year; and
 - (c) the number of applications for alcohol exclusion orders that were dismissed during that year.

Division 5—Serious drug offender

Pt 4 Div. 5
(Heading and
s. 89DI)
inserted by
No. 55/2014
s. 49.

89DI Declaration by court that person is serious drug offender

S. 89DI
inserted by
No. 55/2014
s. 49.

- (1) On the conviction of a person by a court for a serious drug offence, the court must make an order declaring the person to be a serious drug offender.
- (2) In this section—

serious drug offence has the same meaning as in section 3(1) of the **Confiscation Act 1997**.

Pt 4A
(Heading and
ss 89E–89H)
inserted by
No. 22/2009
s. 6.

Part 4A—Identity crime certificates

S. 89E
inserted by
No. 22/2009
s. 6.

89E Definitions

In this Part—

identification information has the same meaning as in section 192A of the **Crimes Act 1958**;

identity crime offence means an offence a necessary element of which consists of the use of identification information (that is not identification information that relates to the offender);

victim, in relation to an identity crime offence, means a person whose identification information has been used, without that person's consent, in connection with the commission of the offence.

S. 89F
inserted by
No. 22/2009
s. 6.

89F Court may issue certificate to victim of identity crime

- (1) If a court finds a person guilty of an identity crime offence the court may issue a certificate to a person who is a victim of the offence setting out that the person is a victim of the offence.
- (2) The court may issue a certificate under subsection (1) on its own motion or on application—
 - (a) by the victim; or
 - (b) on the victim's behalf, by any person other than the offender, if the victim is a child or is incapable of making the application by reason of injury, disease, senility, illness or physical or mental impairment; or

- (c) by the person who prosecuted the identity crime offence, or another person on that person's behalf.

89G Contents of certificate

S. 89G
inserted by
No. 22/2009
s. 6.

A certificate issued under section 89F—

- (a) must set out—
 - (i) the identity crime offence to which the certificate relates; and
 - (ii) the name of the victim; and
- (b) may set out any other matter the court considers relevant.

89H Process for dealing with application

S. 89H
inserted by
No. 22/2009
s. 6.

- (1) In any proceeding dealing with an application for a certificate under this Part, the court—
 - (a) is not required to have regard to the rules of evidence; and
 - (b) may inform itself in any way that it thinks fit.
- (2) In any proceeding dealing with an application for a certificate under this Part, the court may direct that notice be given to the person who prosecuted the identity crime offence to appear at the hearing of the application to provide assistance to the court in relation to the application.
- (3) A person to whom notice is given under subsection (2) may appoint another person to appear on that person's behalf at the hearing.

Pt 5 (Heading and ss 90–94) amended by Nos 98/1995 s. 64(2)–(6), 26/1997 s. 54, 48/1997 s. 22, 69/1997 s. 11, 69/2005 ss 3(3)(b), 4, 5, 68/2009 s. 97(Sch. items 110.70, 110.71), 30/2010 ss 26, 27, 37/2014 s. 10(Sch. item 151.7), substituted as Pt 5 (Heading and ss 90–94) by No. 26/2014 s. 435.

Part 5—Mentally ill offenders

Division 1—Court Assessment Orders

S. 90 substituted by No. 26/2014 s. 435.

90 What is a Court Assessment Order?

- (1) A Court Assessment Order is an Order made by the court that enables a person who is subject to the Court Assessment Order to be compulsorily—
 - (a) examined by an authorised psychiatrist to determine whether—
 - (i) the person should be made subject to a Temporary Treatment Order; and
 - (ii) the criteria specified in section 94B(1)(c) in relation to making a Court Secure Treatment Order apply to the person; or
 - (b) taken to, and detained at, a designated mental health service and examined there by an authorised psychiatrist to determine whether—
 - (i) the person should be made subject to a Temporary Treatment Order; and

- (ii) the criteria specified in section 94B(1)(c) in relation to making a Court Secure Treatment Order apply to the person.
- (2) A Court Assessment Order referred to in subsection (1)(a) is a ***Community Court Assessment Order***.
- (3) A Court Assessment Order referred to in subsection (1)(b) is an ***Inpatient Court Assessment Order***.

91 When may the court make a Court Assessment Order?

S. 91
substituted by
No. 26/2014
s. 435.

- (1) Subject to subsection (2), the court may make a Court Assessment Order in relation to a person if—
 - (a) on the trial or hearing of the person for an offence the person is found guilty or pleads guilty to an offence; and
 - (b) the person is not in custody pending sentencing; and
 - (c) the criteria set out in subsection (2) apply to the person; and
 - (d) the court has received a report from the authorised psychiatrist for the designated mental health service where it is proposed to assess the person stating that there are facilities or services available at that designated mental health service for the assessment of the person; and
 - (e) in the case of an Inpatient Court Assessment Order, the assessment cannot occur in the community.

- (2) For the purposes of subsection (1), the criteria are—
- (a) the person appears to have mental illness; and
 - (b) because the person appears to have mental illness, the person appears to need immediate treatment to prevent—
 - (i) serious deterioration in the person's mental or physical health; or
 - (ii) serious harm to the person or to another person; and
 - (c) if the person is made subject to a Court Assessment Order, the person can be assessed; and
 - (d) there is no less restrictive means reasonably available to enable the person to be assessed.

S. 92
substituted by
No. 26/2014
s. 435.

92 Contents of a Court Assessment Order and notification requirements

- (1) A Court Assessment Order must—
- (a) state whether the Order is a Community Court Assessment Order or an Inpatient Court Assessment Order; and
 - (b) include any prescribed information.
- (2) As soon as practicable after making a Court Assessment Order, the court must—
- (a) notify the authorised psychiatrist that the Order has been made; and
 - (b) give the authorised psychiatrist a copy of the Order.

93 Effect and duration of Court Assessment Order

S. 93
substituted by
No. 26/2014
s. 435.

- (1) As soon as practicable after an Inpatient Court Assessment Order is made, the person who is subject to the Order must be taken to a designated mental health service in accordance with any direction made by the court under section 94D.
- (2) A Court Assessment Order comes into force when the Order is made and remains in force for a period of—
 - (a) in the case of a Community Court Assessment Order, 7 days; and
 - (b) the case of an Inpatient Court Assessment Order, 7 days after the day on which the person who is subject to the Order is received at the designated mental health service.

94 Court powers following Court Assessment Order

S. 94
substituted by
No. 26/2014
s. 435.

- (1) If the court has considered a report made by an authorised psychiatrist after examining a person subject to a Court Assessment Order, the court may—
 - (a) make a Court Secure Treatment Order in relation to the person in accordance with section 94B; or
 - (b) impose sentence on the person according to law.

Note

Section 177 of the **Mental Health and Wellbeing Act 2022** provides that an authorised psychiatrist must give a report to the court after assessing a person subject to a Court Assessment Order.

Note to
s. 94(1)
amended by
No. 39/2022
s. 863.

- (2) The court must deduct from the duration of the Court Secure Treatment Order or the sentence, the period of time that the person was detained under the Court Assessment Order.

Division 2—Court Secure Treatment Orders

S. 94A
inserted by
No. 26/2014
s. 435.

94A What is a Court Secure Treatment Order?

A Court Secure Treatment Order is an Order made by the court that enables a person who is subject to the Court Secure Treatment Order to be compulsorily taken to, and detained and treated, at a designated mental health service.

S. 94B
inserted by
No. 26/2014
s. 435.

94B When may the court make a Court Secure Treatment Order?

- (1) The court may make a Court Secure Treatment Order by way of sentence in relation to a person who is found guilty of an offence or who pleads guilty to an offence if—
 - (a) but for the person having mental illness, the court would have sentenced the person to a term of imprisonment; and
 - (b) the court has considered the person's current mental condition, his or her medical, mental health and forensic history and his or her social circumstances; and
 - (c) the person has been examined by a psychiatrist and the court is satisfied by production of the psychiatrist's report and any other evidence that the following criteria apply to the person—
 - (i) the person has mental illness; and
 - (ii) because the person has mental illness, the person needs treatment to prevent—
 - (A) serious deterioration in the person's mental or physical health;
or
 - (B) serious harm to the person or to another person; and

- (iii) the treatment referred to in subparagraph (ii) will be provided to the person if the person is made subject to a Court Treatment Order; and
- (iv) there is no less restrictive means reasonably available to enable the person to receive the treatment; and
- (d) the court has received a report from the authorised psychiatrist of the designated mental health service in which it is proposed that the person be detained and treated—
 - (i) recommending the making of the Order; and
 - (ii) stating that there are facilities or services available at the designated mental health service for the detention and treatment of the person.
- (2) As soon as practicable after making a Court Secure Treatment Order, the court must—
 - (a) notify the authorised psychiatrist that the Order has been made; and
 - (b) give the authorised psychiatrist a copy of the Order.

94C Effect and duration of Court Secure Treatment Order

S. 94C
inserted by
No. 26/2014
s. 435.

- (1) As soon as practicable after a Court Secure Treatment Order is made, the person who is subject to the Order must be taken to the designated mental health service referred to in section 94B(1)(d) in accordance with any directions made by the court under section 94D.
- (2) A person who is subject to a Court Secure Treatment Order becomes a security patient when he or she is received at the designated mental health service.

S. 94C(5)
amended by
No. 39/2022
s. 864.

- (3) A Court Secure Treatment Order must specify the duration of the Order which must not exceed the period of imprisonment to which the person would have been sentenced had the Order not been made.
- (4) A court, when making a Court Secure Treatment Order, must fix a non-parole period in accordance with section 11 as if the Order were a term of imprisonment.
- (5) If, at any time before the end of the period specified in a Court Secure Treatment Order, a person is discharged as a security patient under section 544 of the **Mental Health and Wellbeing Act 2022**, the Court Secure Treatment Order has effect as a sentence of imprisonment and that unexpired portion must be served in a prison or other place of confinement unless the person is released on parole.

Division 3—Taking persons subject to Court Assessment Order or Court Secure Treatment Order

S. 94D
inserted by
No. 26/2014
s. 435.

94D Custody of persons subject to Court Assessment Order or Court Secure Treatment Order

A court, when making a Court Assessment Order or Court Secure Treatment Order, may include in the Order the names of a person or persons who shall be responsible for taking the person subject to the Order—

- (a) to the designated mental health service named in the Order; or
- (b) from the designated mental health service to the court in connection with the exercise by the court of its powers under section 94.

Division 4—Transitional provisions

94E Definition

In this Division—

2014 Act means the **Mental Health Act 2014**.

S. 94E
inserted by
No. 26/2014
s. 435.

94F Assessment order and diagnosis, assessment and treatment order

S. 94F
inserted by
No. 26/2014
s. 435.

- (1) On and after 1 July 2014, a person is taken to be subject to an Inpatient Court Assessment Order under the 2014 Act if, immediately before 1 July 2014, the person is subject to—
 - (a) an assessment order under section 90 of this Act as in force immediately before 1 July 2014; or
 - (b) a diagnosis, assessment and treatment order under section 91 of this Act as in force immediately before 1 July 2014.
- (2) An Inpatient Court Assessment Order referred to in subsection (1) is taken to come into force on 1 July 2014 and to remain in force for a period of 7 days.

94G Hospital security order

S. 94G
inserted by
No. 26/2014
s. 435.

- (1) On and after 1 July 2014, a person is taken to be subject to a Court Secure Treatment Order under this Act (as in force on that day) if, immediately before that day, the person is subject to a hospital security order under section 93A(1) of this Act (as in force immediately before 1 July 2014) or under section 16A(1) of the **Mental Health Act 1986** (as in force immediately before 1 July 2014).

- (2) Subject to subsection (4), the Mental Health Tribunal must conduct a hearing under section 273 of the 2014 Act in relation to the Court Secure Treatment Order referred to in subsection (1) to which a person detained in a designated mental health service is subject within 28 days after 1 July 2014 to determine whether the criteria set out in section 94B(1)(c) of this Act (as in force on that day) apply to the person.
- (3) For the purposes of section 273(1)(b) of the 2014 Act, a hearing referred to in subsection (2) is taken to be an initial review.
- (4) A Court Secure Treatment Order referred to in subsection (1) is taken to expire on the date that the hospital security order would have expired but for the commencement of the 2014 Act.

S. 94H
inserted by
No. 26/2014
s. 435.

94H Restricted involuntary treatment order

- (1) On and after 1 July 2014, a person is taken to be subject to a Inpatient Treatment Order under the 2014 Act if, immediately before that day, the person is subject to a restricted involuntary treatment order under section 93(1)(a) of this Act (as in force immediately before 1 July 2014).
- (2) An Inpatient Treatment Order referred to in subsection (1) is taken to come into force on 1 July 2014 and to remain in force, unless the Order is revoked or expires in accordance with section 55, 61 or 62 of the 2014 Act, for a period of—
 - (a) 6 months, in the case of a person who is of or over the age of 18 years; or
 - (b) 3 months, in the case of a person who is under the age of 18 years.

94I Proceedings in relation to orders

If, immediately before 1 July 2014, a proceeding in relation to an order made under Part 5 of this Act (as in force immediately before 1 July 2014) is part heard or is adjourned, the proceeding is to be determined by the court in accordance with the relevant provisions of the 2014 Act and Part 5 of this Act (as in force on and after 1 July 2014) in relation to the Order under the 2014 Act or Part 5 of this Act (as in force on and after 1 July 2014) that is taken to be the Order under the **Sentencing Act 1991** (as in force immediately before 1 July 2014).

S. 94I
inserted by
No. 26/2014
s. 435.

Part 6—Making of sentencing and other orders

Division 1—Explanation of orders

95 Explanation of orders

If a court proposes to make an order which has attached to it conditions to which a person is required to consent or which requires a person to give an undertaking, it must before making the order explain, or cause to be explained, to the person in language likely to be readily understood by him or her—

- (a) the purpose and effect of the proposed order; and
- (b) the consequences that may follow if he or she fails without reasonable excuse to comply with the proposed order; and
- (c) the manner in which the proposed order may be varied.

Sentencing Act 1991
No. 49 of 1991
Part 6—Making of sentencing and other orders

*	*	*	*	*	Pt 6 Div. 1A (Heading and ss 95A–95E) inserted by No. 24/1994 s. 7, amended by Nos 19/1999 ss 13, 14, 26/1999 s. 107 (Sch. item 8) (as amended by No. 27/2000 s. 40(c)), 41/2000 s. 102(Sch. item 6), 15/2005 ss 4, 5, 97/2005 s. 182(Sch. 4 item 45.2), 13/2010 s. 51(Sch. item 49.2), 18/2010 ss 7–9, repealed by No. 65/2011 s. 45.
*	*	*	*	*	Pt 6 Div. 2 (Heading and ss 96–99) amended by Nos 45/1996 s. 18(Sch. 2 item 11.14), 48/1997 ss 14(10), 17(9)(10), 23, 46/1998 s. 7(Sch. 1), 48/2006 s. 42(Sch. item 32.8), repealed by No. 65/2011 s. 46.

Sentencing Act 1991
No. 49 of 1991
Part 6—Making of sentencing and other orders

Pt 6 Div. 2A
(Heading and
ss 99A–99E)
inserted by
No. 48/1997
s. 24,
amended by
Nos 29/2010
s. 71(3),
43/2010
s. 48(2),
repealed by
No. 65/2011
s. 47.

* * * * *

Pt 6 Div. 2B
(Heading and
ss 99F–99J)
inserted by
No. 53/2003
s. 6,
amended by
Nos 52/2008
s. 266,
68/2008 s. 83,
30/2010 s. 28,
43/2010
s. 48(2),
53/2010
ss 221(Sch.
item 10.6),
224,
repealed by
No. 48/2011
s. 22.

* * * * *

Division 3—Taking other charges into account

100 Disposal of other pending charges

(1) If a court convicts a person of an offence or offences, not being or including treason or murder, and the court is satisfied that—

S. 100(1)(a)
amended by
Nos 48/1997
s. 25(2),
68/2009
s. 97(Sch.
item 110.72).

(a) there has been filed in court a document in the form of Schedule 2 showing on the back in the form prescribed by Part C of that Schedule a list of other offences, whether indictable or summary, not being or including treason or murder, in respect of

which the offender has been charged or indicted; and

(b) a copy of that document has been provided to the offender; and

(c) in all the circumstances it is proper to do so—

the court may, with the consent of the prosecution, before passing sentence ask the offender whether the offender admits having committed all or any of the listed offences and wishes them to be taken into account by the court when passing sentence for the offence or offences of which the offender has been convicted.

(2) A document referred to in subsection (1) must be signed by—

(a) a police officer or the Director of Public Prosecutions or a Crown Prosecutor or Associate Crown Prosecutor; and

S. 100(2)(a)
amended by
Nos 43/1994
s. 56(Sch.
item 6.1),
36/1995
s. 13(1),
37/2014
s. 10(Sch.
item 15L.7).

(b) the offender.

(3) If the offender admits having committed all or any of the listed offences and wishes them to be taken into account, the court may, if it thinks fit, do so but must not impose a sentence in respect of an offence of which the offender has been convicted in excess of the maximum sentence that might have been imposed if no listed offence had been taken into account.

- (4) If an offence is taken into account under this section, the court may make any order that it would have been empowered to make under Part 4 if the offender had been convicted before the court of the offence but must not otherwise impose any separate punishment for the offence.
- (5) An order made under subsection (4) in respect of an offence taken into account may be appealed against as if it had been made on the conviction of the offender for that offence.
- (6) Despite anything in subsection (3), a court must not take into account any charge of an indictable offence which it would not have jurisdiction to try even with the consent of the person charged with it.
- (7) The court must certify in the form prescribed by Part B of Schedule 2 on the document filed in court any listed offences that have been so taken into account and the convictions in respect of which this has been done.
- (8) Proceedings shall not be taken or continued in respect of any listed offence certified under subsection (7) unless each conviction in respect of which it has been taken into account has been set aside.
- (9) An admission made under and for the purposes of this section is not admissible in evidence in any proceeding taken or continued in respect of the offence to which it relates.
- (10) A person must not for any purpose be taken to have been convicted of an offence taken into account under and in accordance with this section only because it was so taken into account.

S. 100(7)
amended by
No. 48/1997
s. 25(2).

S. 100(8)
amended by
No. 68/2009
s. 97(Sch.
item 110.73).

- (11) Whenever, in or in relation to any criminal proceeding, reference may lawfully be made to, or evidence may lawfully be given of, the fact that a person was convicted of an indictable offence, reference may likewise be made to, or evidence may likewise be given of, the taking into account under this section of any other offence or offences when sentence was imposed in respect of that conviction.
- (12) The fact that an offence was taken into account under this section may be proved in the same manner as the conviction or convictions in respect of which it was taken into account may be proved.

Division 4—Passing of sentence

101 Time and place of sentence

- (1) The sentence for an offence may be imposed in open court at any time and at any place in Victoria.
- (2) The judge or magistrate presiding at the trial or hearing of an offence or receiving a plea of guilty to an offence or any other judge or magistrate empowered to impose sentence may, when he or she thinks it desirable in the interests of justice so to do and from time to time if necessary—
- (a) fix, or indicate by reference to a fact or event, the time; and
 - (b) fix the place—
- at which the sentence is to be imposed.
- (3) The judge or magistrate who is to impose sentence for an offence may—
- (a) release the person to be sentenced on the person giving an undertaking conditioned for that person's attendance at the proper time and place; or

S. 101(2)
amended by
No. 68/2009
s. 97(Sch.
item 110.74).

S. 101(3)(a)
amended by
No. 68/2009
s. 97(Sch.
item 110.75).

(b) make an order or orders for the removal in custody of that person from one place in Victoria to another.

S. 101(4)
amended by
No. 45/1996
s. 18(Sch. 2
item 11.15),
repealed by
No. 45/2001
s. 45.

* * * * *

(5) This section does not take away from any power possessed by a judge or magistrate under statute or at common law.

102 Sentence by another judge or magistrate

S. 102(1)
amended by
No. 68/2009
s. 97(Sch.
item 110.76).

(1) Subsection (2) applies where on the trial or hearing of an offence—

S. 102(1)(a)
amended by
No. 30/2010
s. 25(a).

(a) a verdict of guilty has been found or a plea of guilty has been received but no judgment or sentence has been given or imposed on it; and

S. 102(1)(b)
amended by
Nos 68/2009
s. 97(Sch.
item 110.76),
30/2010
s. 25(b).

(b) the judge or magistrate who presided at the trial or hearing or received the plea (as the case requires) goes out of office or it appears to be probable that because of incapacitating illness or other serious cause he or she will be unable to give judgment or impose sentence within a reasonable time.

S. 102(2)
amended by
No. 30/2010
s. 25(b)(c).

(2) If this subsection applies any other judge of the Supreme Court or the County Court or magistrate (as the case requires) may in open court take (if necessary) all steps preliminary to the giving of judgment or the imposing of sentence and may give judgment or impose sentence.

- (3) In all cases where it is possible so to do the judge or magistrate referred to in subsection (1)(b) must be consulted before judgment is given or sentence is imposed under subsection (2). S. 102(3)
amended by
No. 30/2010
s. 25(a).
- (4) Non-compliance with subsection (3) does not affect the validity of the judgment or sentence.
- (5) The question whether it appears probable that a judge or magistrate will be unable for the reasons mentioned in subsection (1)(b) to give judgment or impose sentence within a reasonable time must be decided by the Chief Justice of the Supreme Court or the Chief Judge of the County Court or the Chief Magistrate (as the case requires) and his or her decision is not liable to be challenged on any ground whatsoever. S. 102(5)
amended by
No. 30/2010
s. 25(b).
- (6) If on the trial or hearing of an offence—
- (a) a verdict of guilty has been found or a plea of guilty has been received; and S. 102(6)
amended by
Nos 68/2009
s. 97(Sch.
item 110.76),
30/2011
s. 25(b).
- (b) all steps preliminary to the giving of judgment or the imposing of sentence have been taken but no judgment or sentence has been given or imposed— S. 102(6)(b)
amended by
No. 30/2010
s. 25(a)(c).
- any other judge of the Supreme Court or the County Court or magistrate (as the case requires) may give the judgment or impose the sentence determined by the judge or magistrate who presided at the trial or hearing or received the plea (as the case requires).
- (7) If at any time before the commencement of the trial of an indictable offence (including one heard summarily) the accused person pleads guilty, any judge of the Supreme Court or the County Court or magistrate (as the case requires) other than the one receiving the plea may take (if necessary) all steps preliminary to the giving of judgment or S. 102(7)
amended by
No. 68/2009
s. 97(Sch.
item 110.77).

S. 102(8)
amended by
Nos 68/2009
s. 97(Sch.
item 110.78),
30/2010
s. 25(a).

imposing of sentence and may give judgment or impose sentence.

- (8) A judgment given or sentence imposed under subsection (2), (6) or (7) has for all purposes the same effects and consequences as if it had been given or imposed by the judge or magistrate who presided at the trial or hearing or received the plea (as the case requires).
- (9) This section does not take away from any power possessed by a judge or magistrate under statute or at common law.

103 Sentences not invalidated by failure to comply with procedural requirements

- (1) The failure of a court to give reasons or to comply with any other procedural requirement contained in this Act in sentencing an offender does not invalidate any sentence imposed by it.
- (2) Nothing in subsection (1) prevents a court on an appeal against sentence from reviewing a sentence imposed by a court in circumstances where there has been a failure that is referred to in that subsection.

Part 7—Correction of errors

Pt 7 (Heading)
substituted by
No. 19/2015
s. 4.

104 Correction of sentences by Supreme Court on judicial review

S. 104
(Heading)
inserted by
No. 19/2015
s. 5(1).

(1) If—

S. 104(1)
amended by
No. 68/2009
s. 97(Sch.
item 110.79).

(a) a person has been sentenced (whether at first instance or on appeal) by the County Court or the Magistrates' Court for an offence; and

S. 104(1)(a)
amended by
No. 19/2015
s. 5(2)(a).

(b) an application is made to the Supreme Court for relief or remedy in the nature of certiorari to remove the proceeding into the Supreme Court; and

S. 104(1)(b)
amended by
No. 19/2015
s. 5(2)(b).

(c) the Supreme Court determines that the sentence imposed was beyond the power of the sentencing court—

S. 104(1)(c)
amended by
No. 19/2015
s. 5(2)(c).

the Supreme Court may, instead of setting aside the conviction, amend the conviction by substituting for the sentence imposed a sentence which the sentencing court had power to impose.

(2) Unless the Supreme Court otherwise directs, a sentence of imprisonment imposed by it under subsection (1) commences on the day on which the sentence imposed in the earlier proceeding purported to take effect but in calculating the term to be served under the sentence any time during which the offender was at large (whether on bail or otherwise) must be disregarded.

- (3) Subsections (1) and (2) extend and apply, with any necessary modifications, with respect to any order made on, but not forming part of, the conviction of an offender as if any reference in those subsections to a conviction or sentence included a reference to such an order.

S. 104A
inserted by
No. 48/1997
s. 26.

104A Power to correct clerical mistakes, etc.

- (1) The judge or magistrate who gave judgment or passed sentence, or purported to give judgment or pass sentence, on the trial or hearing of an offence may, on his or her own initiative or on an application made on behalf of the defence or the prosecution, amend the judgment or sentence or purported judgment or sentence if satisfied—
- (a) that it contains—
 - (i) a clerical mistake; or
 - (ii) an error arising from an accidental slip or omission; or
 - (iii) a material miscalculation of figures or a material mistake in the description of any person, thing or matter; or
 - (iv) a defect of form; or
 - (b) that it fails to deal with a matter that it would have undoubtedly dealt with in accordance with the amendment if the attention of the judge or magistrate had been drawn to it.
- (2) The power conferred by subsection (1) on a judge or magistrate may be exercised at any time.

S. 104A(2)
amended by
No. 19/2015
s. 6(1).

- (3) The power conferred by subsection (1) on a judge or magistrate may be exercised by any other judge of the Supreme Court or the County Court or magistrate (as the case requires) if the first-mentioned judge or magistrate is unable for any reason to do so within a reasonable time.
- (4) It is not necessary for a proceeding under this section to be conducted in open court, or for a judge or magistrate considering the exercise of the power conferred by subsection (1) to hear or invite written submissions from any other party, unless the judge or magistrate considers that it is desirable or necessary to do so in the interests of justice in the particular case.
- (5) This section applies, with any necessary modifications, in relation to any judgment given or sentence passed, or purportedly given or passed, by the Court of Appeal.
- (5A) In determining an application for leave to appeal against a judgment or sentence or in determining the appeal, the Court of Appeal may direct the amendment of the judgment or sentence to which the application or appeal relates if satisfied of the matters referred to in subsection (1)(a) or (b), whether the application is granted or refused or the appeal is allowed or dismissed.
- (6) This section does not take away from—
 - (a) any power possessed by a judge or magistrate under statute or at common law; or
 - (b) any right to appeal against, or to seek leave to appeal against or a review of, a judgment or sentence that any party to a criminal proceeding otherwise has.

**S. 104A(5A)
inserted by
No. 19/2015
s. 6(2).**

S. 104B
inserted by
No. 19/2015
s. 7.

104B Court may reopen proceeding to correct penalties imposed contrary to law

- (1) This section applies to a criminal proceeding (including an appeal) in which a court has—
 - (a) imposed a penalty that is contrary to law; or
 - (b) failed to impose a penalty that is required to be imposed by law.
- (2) The court may, at any time, reopen the proceeding on its own motion or on application by a party and, after giving the parties an opportunity to be heard—
 - (a) may impose a penalty that is in accordance with the law; and
 - (b) if necessary, may amend any conviction or order.
- (3) In determining whether to reopen a proceeding under this section, the court must have regard to the time that has elapsed since the imposition of, or failure to impose, the original penalty.
- (4) In determining a new penalty on a reopening of a proceeding in which a court has imposed a penalty, the court must take into account the extent to which the person to whom the proceeding relates has served, paid, complied with or otherwise suffered the consequences of the original penalty.
- (5) For the purposes of this section, the court may require the attendance of the person to whom the proceeding relates and, if the person fails to attend, may issue a warrant to arrest the person if the court is satisfied that the person has had reasonable notice of the requirement to attend.

(6) For the purposes of this section, a penalty is not contrary to law only because the decision to impose it was reached by a process of erroneous reasoning or factual error.

(7) In this section—

attend, in relation to a person, means—

- (a) be physically present in court; or
- (b) if authorised or required to do so under Division 3 of Part IIA of the **Evidence (Miscellaneous Provisions) Act 1958**, appear or be brought before the court by audio visual link or audio link;

S. 104B(7)
def. of *attend*
substituted by
No. 38/2016
s. 11,
amended by
No. 11/2021
s. 109.

impose a penalty includes—

- (a) impose a sentence of imprisonment or a fine; and
- (b) make any of the following orders under this Act—
 - (i) an order under section 11 fixing a non-parole period;
 - (ii) a Court Secure Treatment Order;
 - (iii) a drug and alcohol treatment order;
 - (iv) a residential treatment order;
 - (v) a youth justice centre order;
 - (vi) a youth residential centre order;and
- (c) make a community correction order or attach a condition to a community correction order; and
- (d) adjourn a proceeding under section 72 or 75; and

S. 104B(7)
def. of *impose a penalty*
amended by
No. 43/2020
s. 33.

- (e) make a supervision order under the **Crimes (Mental Impairment and Unfitness to be Tried) Act 1997**; and
- (f) make an order or direction with respect to restitution, compensation, costs, forfeiture, destruction, disqualification or loss, suspension or variation of a licence or privilege.

S. 104C
inserted by
No. 19/2015
s. 7.

104C Effect of reopening a proceeding under section 104B

- (1) Except as provided in subsection (2), a penalty imposed on the reopening of a proceeding under section 104B is taken to have been imposed at the time the court imposed the original penalty or failed to impose the penalty (as the case requires), unless the court orders otherwise.
- (2) The time within which an appeal may be commenced, or leave to appeal sought, against a penalty imposed on the reopening of a proceeding under section 104B, or a review of such a penalty may be sought, commences on the day on which the penalty is so imposed.
- (3) Nothing in section 104B or this section takes away from any right to appeal against, or to seek leave to appeal against or a review of, a sentence that any party to a criminal proceeding otherwise has.

S. 104D
inserted by
No. 19/2015
s. 7.

104D When proceedings are finally disposed of

The possibility that a proceeding could be reopened under section 104B is not to be taken into account in establishing, for the purposes of an enactment, whether a proceeding has finally been disposed of.

Part 8—Historical homosexual convictions

Pt 8
(Headings
and ss 105–
108)
inserted by
No. 81/2014
s. 3.

105 Definitions

S. 105
inserted by
No. 81/2014
s. 3.

(1) In this Part—

agreement includes arrangement;

applicant means—

S. 105(1) def.
of *applicant*
amended by
Nos 20/2015
s. 55, 13/2019
s. 221(Sch. 1
item 46).

- (a) a person referred to in section 105B(1) who may make an application under that subsection; or
- (b) if a person referred to in section 105B(1) is unable to make an application under that subsection because of a disability within the meaning of the **Equal Opportunity Act 2010**, the person's litigation guardian or guardian within the meaning of the **Guardianship and Administration Act 2019**; or
- (c) a person referred to in section 105B(2) who may make an application under that subsection in respect of an entitled person who is deceased;

application means application under section 105B;

appropriate representative, of a person who was convicted of a historical homosexual offence and is deceased, means—

- (a) if the person, immediately before death had a spouse or domestic partner—the spouse or domestic partner of the person; or

- (b) if the person immediately before death did not have a spouse or domestic partner or if the spouse or domestic partner is not available—a son or daughter of the person of or over the age of 18 years; or
- (c) if a spouse, domestic partner, son or daughter is not available—a parent of the person; or
- (d) if a spouse, domestic partner, son, daughter or parent is not available—a sibling of the person of or over the age of 18 years; or
- (e) if a spouse, domestic partner, son, daughter, parent or sibling is not available—a person named in the will of the person as an executor; or
- (f) if a spouse, domestic partner, son, daughter, parent, sibling or executor is not available—a person who, immediately before the death, was a personal representative of the person; or
- (g) if a spouse, domestic partner, son, daughter, parent, sibling, executor or personal representative is not available—a person determined to be the appropriate representative under subsection (3);

S. 105(1) def.
of *Australian
Crime
Commission*
inserted by
No. 54/2016
s. 34(a).

Australian Crime Commission means
the Australian Crime Commission
(by whatever name described) established by
the Australian Crime Commission Act 2002
of the Commonwealth;

conviction includes a finding of guilt made by a court, whether or not a conviction is recorded;

* * * * *

S. 105(1) def. of *Crimtrac* repealed by No. 54/2016 s. 34(b).

data controller, in relation to official records held by—

S. 105(1) def. of *data controller* amended by No. 65/2016 s. 14.

- (a) the Supreme Court, means the prothonotary of the Supreme Court; or
- (ab) the County Court, means the registrar of the County Court; or
- (ac) the Magistrates' Court, means the principal registrar of the Magistrates' Court; or
- (ad) the Children's Court, means the principal registrar of the Children's Court; or
- (b) VCAT, means the principal registrar of VCAT; or
- (c) Victoria Police, means the Chief Commissioner of Police; or
- (d) the Office of Public Prosecutions, means the Solicitor for Public Prosecutions appointed under section 42 of the **Public Prosecutions Act 1994**;

domestic partner, of an entitled person who is deceased, means—

- (a) a person who was at the date of death of the entitled person in a registered domestic relationship with the entitled person; or

- (b) an adult person to whom the entitled person was not married but with whom the entitled person was in a relationship as a couple where one or each of them provided personal or financial commitment and support of a domestic nature for the material benefit of the other, irrespective of their genders and whether or not they were living under the same roof, but does not include a person who provided domestic support and personal care to the entitled person—
 - (i) for fee or reward; or
 - (ii) on behalf of another person or an organisation (including a government or government agency, a body corporate or a charitable or benevolent organisation);

entitled person means—

- (a) a person referred to in section 105B(1); or
- (b) a person who was convicted of a historical homosexual offence and is deceased;

expunged conviction means a conviction that has become an expunged conviction by force of section 105I;

historical homosexual offence means—

- (a) a sexual offence or a public morality offence; or
- (b) an offence of attempting to commit a sexual offence or a public morality offence; or

- (c) an offence of being involved (within the meaning given by section 323(1)(a) or (b) of the **Crimes Act 1958**) in the commission of a sexual offence or a public morality offence; or
- (d) an offence of inciting or conspiring to commit a sexual offence or a public morality offence;

legal proceeding has the same meaning as in the **Evidence (Miscellaneous Proceedings) Act 1958**;

official records means records containing information about convictions held by any court, VCAT, Victoria Police or the Office of Public Prosecutions;

public morality offence means an offence, other than a sexual offence, as in force at any time—

- (a) the essence of which is the maintenance of public decency or morality; and
- (b) by which homosexual behaviour could be punished;

Example

Behaving in an indecent or offensive manner contrary to section 17(1)(d) of the **Summary Offences Act 1966**.

registered medical practitioner means a person registered under the Health Practitioner Regulation National Law to practise in the medical profession (other than as a student);

relevant authorisation, in relation to an Act, means a licence, permit, approval, consent, accreditation, exemption or other authorisation under that Act;

secondary record means an official record that is a copy, duplicate or reproduction of, or extract from, another existing official record, irrespective of whether those records are held by the same entity or by different entities;

sexual offence means an offence as in force at any time by which any form of homosexual conduct, whether consensual or non-consensual or penetrative or non penetrative, could be punished, whether or not heterosexual conduct could also be punished by the offence;

Example

Buggery contrary to section 68(2) of the **Crimes Act 1958** (as in force immediately before the commencement of the **Crimes (Sexual Offences) Act 1980**) or indecent assault on a male person contrary to section 65(3) of the **Crimes Act 1928**.

Victoria Police has the same meaning as in the **Victoria Police Act 2013**.

- (2) For the purposes of the definition of ***domestic partner*** in subsection (1)—
- (a) *registered domestic relationship* has the same meaning as in the **Relationships Act 2008**; and
 - (b) in determining whether persons who were not in a registered domestic relationship were domestic partners of each other, all the circumstances of their relationship are to be taken into account, including any one or more of the matters referred to in section 35(2) of the **Relationships Act 2008** as may be relevant in a particular case; and

- (c) a person was not a domestic partner of another person only because they were co-tenants.
- (3) For the purposes of paragraph (g) of the definition of **appropriate representative**, a person is the appropriate representative if the Secretary determines that the person should be taken to be the appropriate representative of the deceased person because of the closeness of the person's relationship with the deceased person immediately before the deceased person's death.
- (4) In this Part, a reference to an expunged conviction includes a reference to—
 - (a) the charge to which the expunged conviction relates; and
 - (b) any investigation or legal process associated with that charge or the conviction.

S. 105(3)
amended by
No. 20/2015
s. 46.

105AA Application of this Part

S. 105AA
inserted by
No. 65/2016
s. 15.

Despite section 4, this Part applies to a conviction for a historical homosexual offence made at any time by any court including (without limiting the generality of this section)—

- (a) the several Magistrates' Courts that existed immediately before the commencement of Part 2 of the **Magistrates' Court Act 1989** including any such court when it was called and known as a court of petty sessions; and
- (b) the several children's courts that existed immediately before the commencement of section 8 of the **Children and Young Persons Act 1989**; and
- (c) a court of general sessions that existed before the commencement of the **County Court (Jurisdiction) Act 1968**.

S. 105A
inserted by
No. 81/2014
s. 3.

105A Part to bind the Crown

- (1) This Part binds the Crown, not only in right of the State of Victoria, but also, so far as the legislative power of the Parliament permits, the Crown in all its other capacities.
- (2) Nothing in this section affects any other provision of this Act.

S. 105B
inserted by
No. 81/2014
s. 3.

105B Application to Secretary for convictions for historical homosexual offences to be expunged

- (1) A person who has been convicted of a historical homosexual offence is entitled to apply to the Secretary for the conviction to be expunged.
- (2) In addition, an appropriate representative of a person who was convicted of a historical homosexual offence and is deceased may apply to the Secretary for the person's conviction to be expunged.
- (3) An application must—
 - (a) be in the form approved by the Secretary;
and
 - (b) be—
 - (i) signed by the applicant; or
 - (ii) if the applicant is an entitled person who is not deceased but is not able to sign the application because of a disability within the meaning of the **Equal Opportunity Act 2010**, accompanied by a statement from a registered medical practitioner certifying—
 - (A) that the person suffers from such a disability; and

- (B) that the person is not able to sign the application because of that disability; and
- (c) include any identifying information of a kind approved by the Secretary.
- (4) The approved form must provide for the supplying of the following information—
 - (a) the full name of the entitled person and any other names by which the entitled person is or has been known; and
 - (b) the residential address and telephone number of the applicant; and
 - (c) the date and place of birth of the entitled person; and
 - (d) the gender of the entitled person; and
 - (e) an address to which notices or other documents addressed to the applicant may be sent, which may be a residential or business address, a post office box or an email address; and
 - (f) the residential address of the entitled person at the time of the offence and of the conviction; and
 - (g) in relation to the historical homosexual offence to which the application relates, so far as known to the applicant—
 - (i) the name and location of the court by which the entitled person was convicted; and
 - (ii) the date of the conviction; and
 - (iii) the name of the offence; and
 - (iv) details of the offence and the offending conduct.

- (5) The approved form must include provision for the applicant to—
 - (a) authorise the conduct of a police record check on the entitled person in relation to the conviction to which the application relates; and
 - (b) consent to the disclosure to the Secretary of any official records relating to that conviction created by a court, VCAT, Victoria Police or the Office of Public Prosecutions, whether held by that entity or by any other entity.
- (6) An application may include, or be accompanied by, statements by the applicant or written evidence given by any other person (including a person involved in the conduct constituting the offence) about the matters about which the Secretary must be satisfied under section 105G(1).
- (7) The Secretary, for the convenience of applicants, must publish on an internet site maintained by the Secretary—
 - (a) a blank application in the form approved by the Secretary; and
 - (b) a list of the kinds of identifying information that are approved by the Secretary as acceptable for the purpose of establishing the identity of an applicant.

S. 105C
inserted by
No. 81/2014
s. 3.

105C Submission of further information etc.

- (1) If the Secretary receives an application that does not include all the information required by section 105B, the Secretary may require the applicant to provide that information in the manner required by the Secretary within 28 days or any longer period that the Secretary determines.

- (2) The applicant may submit to the Secretary statements or evidence of a kind referred to in section 105B(6) at any time after making the application and before it has been determined by the Secretary.
- (3) Nothing in subsection (1) prevents the Secretary considering an application that does not include all the information required by section 105B if the Secretary chooses to do so.

105D Consideration of application

S. 105D
inserted by
No. 81/2014
s. 3.

- (1) In considering an application, the Secretary—
 - (a) must, in particular, consider—
 - (i) any available record of the investigation of the offence, and of any proceedings relating to it, that the Secretary considers to be relevant; and
 - (ii) any statements or written evidence of a kind referred to in section 105B(6) included in, or accompanying, the application or subsequently submitted by the applicant; and
 - (b) must have regard to any advice provided by any person to whom the Secretary has referred the application for advice; and

Note

See section 105F.

- (c) may make enquiries to, or request information on the application from, any person or body that the Secretary thinks fit, including any court and the Director of Public Prosecutions; and

- (d) may require the applicant to provide any further information that the Secretary thinks fit in the manner required by the Secretary within 28 days or any longer period that the Secretary determines; and
 - (e) must not hold an oral hearing for the purpose of determining the application.
- (2) Subsection (3) applies to a record of the investigation of an offence or of any proceedings relating to an offence which the Secretary has obtained because of a consent given by an applicant under section 105B(5)(b) or an enquiry or request made by the Secretary under subsection (1)(c) in relation to an application.
- (3) The Secretary, as soon as reasonably practical after obtaining the record—
 - (a) must give the applicant access to it, except so far as it contains information relating to the personal affairs of any person other than the applicant; and
 - (b) must give written notice to the applicant that the Secretary will not proceed to determine the application until at least 28 days, or any longer period that the Secretary determines and specifies in the notice, have passed from the day on which the applicant is given access to the record.

Note

The period provided for under paragraph (b) allows the applicant to determine whether to withdraw the application under section 105H or submit, under section 105C(2), statements or evidence of a kind referred to in section 105B(6).

(4) In subsection (3)—

information relating to the personal affairs of any person means information—

- (a) that identifies a person or discloses their address or location; or
- (b) from which a person's identity, address or location can reasonably be determined.

105E Response to enquiries or requests for information

S. 105E
inserted by
No. 81/2014
s. 3.

- (1) A person or body to whom an enquiry or request for information is made by the Secretary under section 105D(1)(c) must respond to the enquiry or request as promptly as possible.
- (2) Without limiting subsection (1), if a request under section 105D(1)(c) is for a data controller to provide to the Secretary a copy of an official record held by the data controller, the data controller must comply with that request as promptly as possible.
- (3) A person or body, in responding to an enquiry or request, is not bound by any duty of confidentiality imposed on the person or body by or under any Act (including the **Judicial Proceedings Reports Act 1958**) or agreement, despite anything to the contrary in that Act or agreement.

105F Appointment of advisors

S. 105F
inserted by
No. 81/2014
s. 3.

- (1) The Secretary may appoint one or more persons who are legal practitioners of at least 5 years standing to provide advice on any particular application or on such applications generally.
- (2) A person appointed under subsection (1) is entitled to be paid the fees and allowances (if any) that are fixed from time to time by the Secretary for that person.

S. 105G
inserted by
No. 81/2014
s. 3.

105G Mandatory tests

- (1) The Secretary must refuse an application unless satisfied—
 - (a) that the offence is a historical homosexual offence; and
 - (b) that, on the balance of probabilities, both of the following tests are satisfied in relation to the entitled person—
 - (i) the entitled person would not have been charged with the historical homosexual offence but for the fact that the entitled person was suspected of having engaged in the conduct constituting the offence for the purposes of, or in connection with, sexual activity of a homosexual nature;
 - (ii) that conduct, if engaged in by the entitled person at the time of the making of the application, would not constitute an offence under the law of Victoria.
- (2) In considering whether the test set out in subsection (1)(b)(ii) is satisfied, the Secretary must (where relevant) have regard to—
 - (a) whether any person involved in the conduct constituting the offence (including the entitled person) consented to the conduct; and
 - (b) the ages, or respective ages, of any such persons at the time of that conduct.
- (3) Subsection (4) applies if—
 - (a) consent of a person is a relevant issue in determining whether the test set out in subsection (1)(b)(ii) is satisfied; and

- (b) the Secretary is not satisfied, from the available official records, that consent had been given.
- (4) The Secretary may only be satisfied on the issue of consent by written evidence touching on that issue—
 - (a) from a person (other than the entitled person) who was involved in the conduct constituting the offence; or
 - (b) if no such person can be found after reasonable enquiries are made by the applicant, from a person (other than the applicant) with knowledge of the circumstances in which that conduct occurred.

105H Withdrawal of application

S. 105H
inserted by
No. 81/2014
s. 3.

- (1) An applicant may withdraw their application at any time before the Secretary determines it.
- (2) The Secretary may treat an application as having been withdrawn if the applicant does not, within the applicable period, provide any information required under section 105C(1) or further information required under section 105D(1)(d).
- (3) Despite an application being withdrawn or treated as being withdrawn under this section, the Secretary may reinstate the application if satisfied that the applicant wants to proceed with it and has provided any information required under section 105C(1) or further information required under section 105D(1)(d).

S. 105I
inserted by
No. 81/2014
s. 3.

105I Determination of application

- (1) The Secretary must determine an application as promptly as possible consistent with this Act and its proper determination.
- (2) The Secretary must give written notice of the determination to the applicant and each relevant data controller within 14 days after making it.
- (3) If an application is approved, the historical homosexual conviction is expunged by force of this section at the end of the prescribed period after the making of the determination.
- (4) If the determination is a refusal of the application, the written notice must—
 - (a) state the reasons for the determination; and
 - (b) inform the applicant that they may apply to VCAT to have the determination reviewed; and
 - (c) explain how an application may be made to VCAT.
- (5) If the determination is an approval of the application, the written notice must—
 - (a) state the reasons for the determination; and
 - (b) advise that any relevant data controller may apply to VCAT to have the determination reviewed; and
 - (c) explain how an application may be made to VCAT.

105J Effect of expungement of conviction

On and after a conviction of a person becoming an expunged conviction—

S. 105J
inserted by
No. 81/2014
s. 3.

- (a) a question about the person's criminal history (including one put in a legal proceeding and required to be answered under oath or by affirmation) is to be taken not to refer to the expunged conviction, but to refer only to any conviction that the person has that is not expunged; and
- (b) the person is not required to disclose to any other person for any purpose (including when giving evidence under oath or by affirmation in a legal proceeding) information concerning the expunged conviction; and
- (c) in the application to the person of an Act, subordinate instrument or agreement—
 - (i) a reference to a conviction, however expressed, is to be taken not to refer to the expunged conviction; and
 - (ii) a reference to the person's character or fitness, however expressed, is not to be taken as allowing or requiring account to be taken of the expunged conviction; and
- (d) the expunged conviction, or the non-disclosure of the expunged conviction, is not a proper ground for—
 - (i) refusing the person any appointment, post, status or privilege; or

S. 105J(a)
amended by
No. 6/2018
s. 68(Sch. 2
item 115.5).

S. 105J(b)
amended by
No. 6/2018
s. 68(Sch. 2
item 115.5).

- (ii) revoking any appointment, status or privilege held by the person, or dismissing the person from any post; and
- (e) the fact that a refusal, revocation or dismissal of a kind referred to in paragraph (d) occurred, solely on account of that conviction, before the conviction became an expunged conviction is not a proper ground for such a refusal, revocation or dismissal occurring after the expungement; and
- (f) the person may re-apply, without waiting out any minimum period between applications for the relevant authorisation provided for by or under an Act, for a relevant authorisation under an Act an application for which was refused, solely on account of that conviction, before it became an expunged conviction.

Note to
s. 105J
repealed by
No. 6/2018
s. 68(Sch. 2
item 115.4).

S. 105K
inserted by
No. 81/2014
s. 3.

* * * * *

105K Obligations in relation to official records

- (1) The Secretary, within the prescribed period after a conviction becomes an expunged conviction, must notify any relevant data controller in writing of that fact.
- (2) A data controller must take the action set out in subsection (3) in relation to any entry relating to the conviction contained in any official records under their management or control as soon as reasonably practical after receiving a notice under subsection (1) and, in any event, not later than the prescribed period after receiving it.

- (3) The action is—
- (a) except for records covered by paragraph (b), annotate the entry with a statement to the effect that it relates to an expunged conviction; or
 - (b) for records that are secondary records held in an electronic format by Victoria Police or the Office of Public Prosecutions, take any necessary steps to do one or more of the following—
 - (i) remove the entry;
 - (ii) make the entry incapable of being found;
 - (iii) de-identify the information contained in the entry and destroy any link between it and information that would identify the person to whom it referred.
- (4) As soon as reasonably practical after taking action in relation to an entry, the data controller must give notice of the action taken to the Secretary.
- (5) As soon as reasonably practical after the Secretary is satisfied that all necessary action has been taken in relation to entries in official records, the Secretary must give written notice of that fact to the person who has the expunged conviction.
- (6) A person who has access to any official records must not, directly or indirectly, disclose or communicate to any person the fact of a conviction, or of a charge related to a conviction, that the person knows, or ought reasonably to have known, is an expunged conviction.

Penalty: Level 8 fine (120 penalty units maximum).

- (7) Subsection (6) does not apply if—
- (a) the person who has the expunged conviction gives written consent to the disclosure or communication; or
 - (b) the disclosure or communication is otherwise authorised by law.
- (8) Subsection (6) does not prevent the Chief Commissioner of Police disclosing to the Australian Crime Commission, for incorporation into the police information sharing system known as the National Police Reference System, the fact that a specified conviction has become an expunged conviction.

S. 105K(8)
amended by
No. 54/2016
s. 35.

105L Jurisdiction of VCAT

- (1) An eligible person may apply to VCAT for review of the decision of the Secretary on the determination of an application.
- (2) For the purposes of this section an ***eligible person*** is—
- (a) for a decision to refuse an application, the applicant; and
 - (b) for a decision to approve an application, a data controller who has any official records relating to the conviction under their management or control.
- (3) An application for review under subsection (1) must be made within 28 days after the day on which the applicant or the data controller (as the case requires) is given notice of the decision of the Secretary.

S. 105L
inserted by
No. 81/2014
s. 3.

- (4) The applicant is entitled to be given notice of an application for review made under subsection (1) by a data controller.

Note

See section 72 of the **Victorian Civil and Administrative Tribunal Act 1998**.

105M Restriction on right to re-apply

S. 105M
inserted by
No. 81/2014
s. 3.

- (1) A person whose application in respect of a historical homosexual conviction has been refused by the Secretary is only entitled to have a further application in respect of that conviction considered by the Secretary in the circumstances set out in subsection (2).
- (2) The circumstances are that the Secretary is satisfied that necessary supporting information contained in the further application became available only after the earlier application was determined.

105N Delegation

S. 105N
inserted by
No. 81/2014
s. 3.

- (1) Subject to subsection (2), the Secretary, by instrument, may delegate any power conferred on the Secretary by or under this Part, other than this power of delegation, to any person or class of person employed under Part 3 of the **Public Administration Act 2004**.
- (2) A delegation of the power of the Secretary under section 105I to determine an application may only be delegated to a person or class of person employed as an executive under Part 3 of the **Public Administration Act 2004**.

S. 105O
inserted by
No. 81/2014
s. 3.

105O Confidentiality

- (1) A person must not, directly or indirectly, make a record of, or disclose or communicate to any person, any information relating to an application acquired by the person in performing a function or exercising a power under this Part.

Penalty: Level 8 fine (120 penalty units maximum).

- (2) Subsection (1) does not apply if—
- (a) it is necessary to make the record, or disclose or communicate the information, for the purposes of, or in connection with, the performance of a function or the exercise of a power under this Part; or
 - (b) the person to whom the information relates gives written consent to the making of the record or to the disclosure or communication.
- (3) Subsection (1) also does not apply to the disclosure or communication of information—
- (a) to a court or tribunal in the course of a legal proceeding; or
 - (b) under an order of a court or tribunal; or
 - (c) to a legal practitioner for the purpose of obtaining legal advice or representation; or
 - (d) as required or authorised by or under this Part or any other Act.

S. 105P
inserted by
No. 81/2014
s. 3.

105P Giving of notices

If by or under this Part a notice is required or permitted to be given by the Secretary to an applicant, the notice may be given to the applicant—

- (a) by delivering it personally to the applicant;
or
- (b) by sending it to the applicant at the address
given in the application for that purpose.

105Q Evidentiary provisions

S. 105Q
inserted by
No. 81/2014
s. 3.

- (1) This section applies to a document purporting to be given by the Secretary or a delegate of the Secretary certifying as to whether an application in respect of a specified historical homosexual conviction was approved or refused.
- (2) The document is admissible in evidence in any proceedings and, in the absence of evidence to the contrary, is proof of the matters stated in the document.
- (3) The document must be presumed in any proceedings, in the absence of evidence to the contrary, to have been given by the Secretary or a person who was, at that time, a delegate of the Secretary, as the case requires.

105R Immunity

S. 105R
inserted by
No. 81/2014
s. 3.

- (1) The Secretary, a delegate of the Secretary or an employee within the meaning of the **Public Administration Act 2004** is not personally liable for anything done or omitted to be done in good faith—
 - (a) in the carrying out of a function or the exercise of a power under this Part; or
 - (b) in the reasonable belief that the act or omission was in the carrying out of a function or the exercise of a power under this Part.

- (2) Any liability resulting from an act or omission that, but for subsection (1), would attach to the Secretary, a delegate of the Secretary or an employee within the meaning of the **Public Administration Act 2004** attaches instead to the State.

S. 105S
inserted by
No. 81/2014
s. 3.

105S No entitlement to compensation

- (1) A person who has an expunged conviction is not entitled to compensation of any kind, on account of that conviction becoming an expunged conviction, in respect of the fact that the person—
- (a) was charged with, or prosecuted for, the offence; or
 - (b) was convicted of, or sentenced for, the offence; or
 - (c) served a sentence for the offence; or
 - (d) was required to pay a fine or other money (including costs or any amount by way of restitution or compensation) on account of being convicted of, or sentenced for, the offence; or
 - (e) incurred any loss, or suffered any consequence (including, but not limited to, being sentenced as a serious offender in accordance with Part 2A), as a result of any circumstance referred to in paragraph (a), (b) or (c); or
 - (f) has an expunged conviction.
- (2) Nothing in subsection (1) prevents a person being entitled to compensation in respect of anything that occurred while the person was serving a sentence.

Example

The person is injured while serving a sentence in prison.

Sentencing Act 1991
No. 49 of 1991

*	*	*	*	*	Pt 8 (Heading) repealed by No. 68/2009 s. 97(Sch. item 110.80).
*	*	*	*	*	S. 105 repealed by No. 7/2009 s. 432 (as amended by No. 68/2009 s. 54(r)).

Part 9—Royal prerogative of mercy

S. 106
amended by
No. 25/2023
s. 7(Sch. 1
item 23.1).

106 Saving of royal prerogative of mercy

This Act does not affect in any manner His Majesty's royal prerogative of mercy.

S. 107(1)
amended by
No. 25/2023
s. 7(Sch. 1
item 23.2).

107 Release by Governor in exercise of royal prerogative of mercy

(1) The Governor may, in any case in which the Governor is authorised on behalf of His Majesty to extend mercy to any person under sentence of imprisonment, do so by directing that he or she be released, even before the end of a non-parole period—

(a) on giving an undertaking; or

S. 107(1)(b)
amended by
No. 48/2006
s. 42(Sch.
item 32.9).

(b) on parole under and subject to the **Corrections Act 1986** or the **Children, Youth and Families Act 2005**, as the case requires.

(2) An undertaking under subsection (1)(a)—

(a) must have as a condition that the person be of good behaviour; and

(b) may have as a condition that the person be under the supervision of a community corrections officer; and

(c) may have any other condition that the Governor considers to be in the interests of the person or the community.

(3) The period of an undertaking under subsection (1)(a) is the period fixed by the Governor, which must not be less than the unexpired term of the original sentence.

- (4) A person who gives an undertaking under subsection (1)(a) must be released from custody.
- (5) If at any time during the period of an undertaking under subsection (1)(a) the Magistrates' Court is satisfied by evidence on oath or by affirmation or affidavit or by the admission of the person who gave the undertaking that that person has failed without reasonable excuse to comply with any condition of the undertaking, it may impose a fine not exceeding level 12 and direct that the person be committed to prison for the unexpired term of the original sentence.
- (6) Except with the consent of the person who gave the undertaking, the Magistrates' Court must not deal with him or her under subsection (5) unless he or she has been served with a notice to attend on the hearing of the proceeding.
- (7) The Magistrates' Court may order that a warrant to arrest be issued against a person who gave an undertaking if he or she does not attend before the Court on the hearing of the proceeding under subsection (5).
- (8) A registrar of the Magistrates' Court may sign any warrant that may be necessary for the purpose of subsection (5) and the period of imprisonment after committal begins on the day of the committal, if the person is then before the court, and if not, on the day of his or her subsequent arrest.
- (9) A person who gives an undertaking under subsection (1)(a) is discharged from the original sentence at the end of the period of the undertaking if an order has not been made under subsection (5).

S. 107(5)
amended by
No. 6/2018
s. 68(Sch. 2
item 115.6).

- (10) If the Magistrates' Court recommitts a person to prison under this section, the **Corrections Act 1986** applies as if the person had just been convicted by that Court and sentenced to be imprisoned for a term equal to the unexpired term of the original sentence.
- (11) A fine imposed under this section must be taken for all purposes to be a fine payable on a conviction of an offence.

108 Penalties for offences may be remitted

The Governor may—

- (a) remit in whole or in part any sum of money which is imposed under any Act as a penalty or forfeiture; and
- (b) order the discharge from prison of any person who is imprisoned for non-payment of any sum of money so imposed—

although that sum is in whole or in part payable to a party other than the Crown.

Part 9A—Sentencing Advisory Council

Pt 9A
(Heading and
ss 108A–
108P)
inserted by
No. 13/2003
s. 6.

108A Definitions

S. 108A
inserted by
No. 13/2003
s. 6.

In this Part—

Board means board of directors of the Council;

chairperson means chairperson of the Board;

Council means Sentencing Advisory Council
established under section 108B;

director means chairperson or other director of the
Council;

guideline judgment has the same meaning as in
Part 2AA.

108B Establishment of Sentencing Advisory Council

S. 108B
inserted by
No. 13/2003
s. 6.

- (1) The Sentencing Advisory Council is established.
- (2) The Council—
 - (a) is a body corporate with perpetual succession;
 - (b) has an official seal;
 - (c) may sue and be sued in its corporate name;
 - (d) subject to section 108D, may acquire, hold and dispose of personal property;
 - (e) subject to section 108D, may do and suffer all acts and things that a body corporate may by law do and suffer.
- (3) All courts must take judicial notice of the official seal of the Council affixed to a document and, until the contrary is proved, must presume that it was duly affixed.

- (4) The official seal of the Council must be kept in such custody as the Council directs and must not be used except as authorised by it.

S. 108C
inserted by
No. 13/2003
s. 6.

108C Functions of the Council

- (1) The functions of the Council are—
- (a) to state in writing to the Court of Appeal its views in relation to the giving, or review, of a guideline judgment;
 - (b) to provide statistical information on sentencing, including information on current sentencing practices, to members of the judiciary and other interested persons;
 - (c) to conduct research, and disseminate information to members of the judiciary and other interested persons, on sentencing matters;
 - (d) to gauge public opinion on sentencing matters;
 - (e) to consult, on sentencing matters, with government departments and other interested persons and bodies as well as the general public;
 - (f) to advise the Attorney-General on sentencing matters.
- (2) The Council may perform its functions, and exercise its powers, within or outside Victoria.

S. 108D
inserted by
No. 13/2003
s. 6.

108D Powers of the Council

- (1) Subject to subsections (2) and (3), the Council has power to do all things necessary or convenient to be done for, or in connection with, performing its functions.
- (2) The Council does not have power to acquire, hold or dispose of real property.

- (3) The Council must not, without the prior written approval of the Attorney-General—
- (a) acquire any personal property, right or privilege for a consideration of more than \$50 000 or any higher amount prescribed for the purposes of this paragraph; or
 - (b) dispose of any personal property, right or privilege that has a value, or for a consideration, of more than \$50 000 or any higher amount prescribed for the purposes of this paragraph.

108E Delegation

S. 108E
inserted by
No. 13/2003
s. 6.

The Council, by instrument under its official seal, may delegate to—

- (a) a director; or
- (b) the chief executive officer of the Council; or
- (c) an employee referred to in section 108M(2)—

any function or power of the Council, other than the function under section 108C(1)(a) or this power of delegation.

108F Board of directors

S. 108F
inserted by
No. 13/2003
s. 6.

- (1) There shall be a board of directors of the Council consisting of not less than 11, and not more than 14, directors of whom—
- (a) two must be people who have, in the opinion of the Attorney-General, broad experience in community issues affecting courts;
 - (b) one must have experience as a senior member of the academic staff of a tertiary institution;

S. 108F(1)
amended by
No. 9/2011
s. 6(1).

S. 108F(1)(ca)
inserted by
No. 9/2011
s. 6(2).

(c) one must be a person who is a member of a victim of crime support or advocacy group;

(ca) one must be a person who is involved in the management of a victim of crime support group or advocacy group and who is a victim of crime or a representative of victims of crime;

S. 108F(1)(cb)
inserted by
No. 9/2011
s. 6(2),
amended by
No. 37/2014
s. 10(Sch.
item 151.7).

(cb) one must be a police officer who is actively engaged in criminal law enforcement duties and who is of the rank of senior sergeant or below;

(d) one must be a person who, in the opinion of the Attorney-General, is a highly experienced prosecution lawyer;

(e) one must be a person who, in the opinion of the Attorney-General, is a highly experienced defence lawyer;

(f) the remainder must have experience in the operation of the criminal justice system.

(2) Directors are appointed by the Governor in Council on the nomination of the Attorney-General.

(3) The Board—

(a) is responsible for the management of the affairs of the Council; and

(b) may exercise the powers of the Council.

108G Chairperson

- (1) The Governor in Council may, on the recommendation of the Attorney-General, appoint a director to be chairperson of the Board.
- (2) The chairperson may resign that office by notice in writing signed by the chairperson and delivered to the Attorney-General.

S. 108G
inserted by
No. 13/2003
s. 6.

108H Terms and conditions of office of directors

- (1) A director holds office—
 - (a) subject to section 108I, for the term (not exceeding 3 years) that is specified in his or her instrument of appointment, and is eligible for re-appointment; and
 - (b) on any other terms and conditions, not inconsistent with this Part, that are specified in his or her instrument of appointment.
- (2) The **Public Administration Act 2004** (other than Part 3 of that Act) applies to a director in respect of the office of director.

S. 108H
inserted by
No. 13/2003
s. 6.

S. 108H(2)
substituted by
Nos 108/2004
s. 117(1)
(Sch. 3
item 181.3),
80/2006
s. 26(Sch.
item 95).

108I Vacancies and removal of directors from office

- (1) A director's office becomes vacant—
 - (a) on the expiry of his or her term of office; or
 - (b) if he or she resigns from office under subsection (2); or
 - (c) if he or she is removed from office under subsection (3); or
 - (d) if he or she is convicted of an indictable offence or an offence that, if committed in Victoria, would be an indictable offence.

S. 108I
inserted by
No. 13/2003
s. 6.

- (2) A director may resign from office by notice in writing signed by him or her and delivered to the Attorney-General.
- (3) The Governor in Council may remove a director from office if of the opinion that the director has failed to comply with any term or condition of appointment.

S. 108J
inserted by
No. 13/2003
s. 6.

108J Travelling and other allowances

A director is entitled to be paid the travelling and other allowances that are fixed from time to time in respect of him or her by the Governor in Council.

S. 108K
inserted by
No. 13/2003
s. 6.

108K Validity of acts or decisions

An act or decision of the Board is not invalid merely because of—

- (a) a defect or irregularity in, or in connection with, the appointment of a director; or
- (b) a vacancy in the membership of the Board.

S. 108L
inserted by
No. 13/2003
s. 6.

108L Meetings of the Board

- (1) The chairperson must convene as many meetings of the Board as he or she considers necessary for the efficient conduct of its affairs.
- (2) The chairperson must preside at any meeting of the Board at which he or she is present.
- (3) If the chairperson is absent, a director elected by the directors present must preside.
- (4) The quorum for a meeting of the Board at any time is 3 less than the total appointed membership of the Board at that time.
- (5) A question arising at a meeting of the Board is determined by a majority of the votes of the members present and voting on the question.

- (6) The person presiding has a deliberative vote and, in the event of an equality of votes on any question, a second or casting vote.
- (7) Subject to this Part, the Board may regulate its own procedure.

108M Staff

S. 108M
inserted by
No. 13/2003
s. 6.

- (1) A chief executive officer of the Council must be employed under Part 3 of the **Public Administration Act 2004**.

S. 108M(1)
amended by
No. 108/2004
s. 117(1)
(Sch. 3
item 181.4).

- (2) Subject to the Council's budget, as many other employees as are necessary to enable the Council to perform its functions may be employed under Part 3 of the **Public Administration Act 2004**.

S. 108M(2)
amended by
No. 108/2004
s. 117(1)
(Sch. 3
item 181.4).

108N Appointment of consultants

- (1) The Council may engage persons with suitable qualifications and experience as consultants to the Council either in an honorary capacity or for remuneration.
- (2) The remuneration of consultants shall be determined by the Council having regard to its budget.

S. 108N
inserted by
No. 13/2003
s. 6.

108O Control on expenditure

Money must only be spent by the Council in defraying expenses incurred by it in performing its functions, including paying any remuneration, salaries or allowances payable to directors, staff or consultants.

S. 108O
inserted by
No. 13/2003
s. 6.

S. 108P
inserted by
No. 13/2003
s. 6.

108P Parliamentary requirement for information

- (1) The Council must comply with any information requirement lawfully made of it by a House of the Parliament or a Parliamentary Committee within the meaning of the **Parliamentary Committees Act 1968**.
- (2) In this section *information requirement* means a requirement to give information of a specified kind within a specified period relating to—
 - (a) the performance by the Council of its functions; or
 - (b) the exercise by the Council of its powers; or
 - (c) the Council's expenditure or proposed expenditure.

Part 10—Miscellaneous provisions

109 Penalty scale

- (1) An offence that is described in an Act, subordinate instrument or local law as being an offence of a level specified in column 1 of Table 1 or as being punishable by imprisonment of a level specified in that column is, unless the contrary intention appears, punishable by a term of imprisonment not exceeding that specified opposite it in column 2 of the Table.

TABLE 1		S. 109(1) Table 1 substituted by No. 48/1997 s. 27.
Column 1	Column 2	
Level	Maximum Term of Imprisonment	
1	Life	
2	25 years	
3	20 years	
4	15 years	
5	10 years	
6	5 years	
7	2 years	
8	1 year	
9	6 months	

- (2) An offence that is described in an Act, subordinate instrument or local law as being an offence of a level specified in column 1 of Table 2 or as being punishable by a fine of a level specified in that column is, unless the contrary intention appears, punishable by a fine not exceeding that specified opposite it in column 2 of the Table.

Sentencing Act 1991
No. 49 of 1991
Part 10—Miscellaneous provisions

S. 109(2)
Table 2
substituted by
No. 69/1997
s. 12.

TABLE 2	
<i>Column 1</i>	<i>Column 2</i>
<i>Level</i>	<i>Maximum Fine</i>
1	—
2	3000 penalty units
3	2400 penalty units
4	1800 penalty units
5	1200 penalty units
6	600 penalty units
7	240 penalty units
8	120 penalty units
9	60 penalty units
10	10 penalty units
11	5 penalty units
12	1 penalty unit.

S. 109(3)
amended by
Nos 48/1997
s. 28(4),
69/1997
ss 13(1),
14(1), 15,
substituted by
No. 65/2011
s. 48(1).

- (3) Subject to subsection (3A), an offence that is punishable by a term of imprisonment (other than life) is, unless the contrary intention appears, punishable (in addition to or instead of imprisonment) by a maximum fine of the number of penalty units that is 10 times more than the maximum number of months of imprisonment that may be imposed.

S. 109(3A)
inserted by
No. 69/1997
s. 14(2).

- (3A) An offence that is punishable by level 2 imprisonment is, unless the contrary intention appears, punishable (in addition to but not instead of imprisonment) by a level 2 fine if the offender is not a body corporate.

S. 109(4)
amended by
Nos 41/1993
s. 16, 48/1997
s. 28(5),
69/1997
ss 13(2),
14(3), 15,
repealed by
No. 65/2011
s. 48(2).

* * * * *

109A Operation of penalty provisions

S. 109A
inserted by
No. 48/1997
s. 29.

If an offence is described in a provision of an Act, subordinate instrument or local law as being an offence of a specified level or as being punishable by imprisonment or a fine of a specified level and there is included in that provision a description in years or months or both of the term of imprisonment, or in penalty units or dollars of the amount of the fine, by which that offence is punishable, that description—

- (a) is inserted for convenience of reference only and does not affect the operation of the penalty provision as expressed in terms of levels; and
- (b) must be disregarded if it is inconsistent with that penalty provision—

unless the contrary intention appears.

110 Meaning of penalty units

S. 110
substituted by
No. 10/2004
s. 13.

- (1) If in an Act or subordinate instrument there is a statement of a number (whether whole, decimal or fractional) of what are called **penalty units**, that statement must, unless the context otherwise requires, be construed as stating a number of dollars equal to the product obtained by multiplying the number of penalty units by the amount fixed from time to time by the Treasurer under section 5(3) of the **Monetary Units Act 2004**.

S. 110(1)
amended by
No. 9/2020
s. 390(Sch. 1
item 90.3).

* * * * *

S. 110(2)
repealed by
No. 9/2020
s. 390(Sch. 1
item 90.4).

S. 111
amended by
No. 48/1997
s. 30.

111 Location and effect of penalty provisions

A penalty set out at the foot of a provision of an Act, subordinate instrument or local law must, unless the context otherwise requires, be construed as indicating that a contravention (whether by act or omission) of the provision is an offence against the Act, subordinate instrument or local law punishable on a finding of guilt (with or without recording a conviction as required by section 7) by a penalty not exceeding that set out.

S. 112(1)
substituted by
No. 48/1997
s. 28(6),
amended by
No. 69/1997
s. 16.

112 Classification of offences as indictable or summary

- (1) An offence that is described in a provision of an Act (other than the **Crimes Act 1958** or the **Wrongs Act 1958**), subordinate instrument or local law as being level 1, 2, 3, 4, 5 or 6 or as being punishable by level 1, 2, 3, 4, 5 or 6 imprisonment or fine or both is, unless the contrary intention appears, an indictable offence.
- (2) Any other offence under an Act (other than the **Crimes Act 1958** or the **Wrongs Act 1958**), subordinate instrument or local law is, unless the contrary intention appears, a summary offence.
- (3) If an offence is described as being punishable in more than one way or in one of two or more ways, subsection (1) applies even if only one of those ways is referred to in that subsection.

S. 112A
inserted by
No. 7/2009
s. 433 (as
amended by
No. 68/2009
s. 54(s)).

112A Maximum fine for indictable offence heard and determined summarily

- (1) If a person is found guilty by the Magistrates' Court in a summary hearing of an indictable offence, the maximum fine that the Court may impose on the person is 500 penalty units.
- (2) Subsection (1) is subject to any contrary intention in any Act other than this Act.

113 Maximum term of imprisonment for indictable offence heard and determined summarily

- (1) If a person is convicted by the Magistrates' Court in a summary hearing of an indictable offence under section 28(1) of the **Criminal Procedure Act 2009**, the maximum term of imprisonment to which the Court may sentence the offender is 2 years.
- (2) Subsection (1) is subject to any contrary intention appearing in any Act other than this Act.

S. 113(1)
amended by
Nos 48/1997
s. 28(7),
68/2009
s. 97(Sch.
item 110.81).

113A Maximum term of imprisonment for summary offence

S. 113A
inserted by
No. 48/1997
s. 31.

- (1) If a person is convicted of a summary offence punishable, but for this section, by a term of imprisonment of more than 2 years, the maximum term of imprisonment to which a court may sentence the offender in respect of that offence is 2 years.
- (2) This section has effect despite anything to the contrary in any Act.

S. 113A(1)
amended by
No. 69/1997
s. 17.

113B Maximum cumulative term of imprisonment imposable by Magistrates' Court

The Magistrates' Court must not impose on any person in respect of several offences cumulative sentences of imprisonment to take effect in succession for a term exceeding in the whole 5 years unless that term is expressly provided by an Act.

S. 113B
inserted by
No. 48/1997
s. 31,
amended by
No. 65/2016
s. 16.

S. 113C
inserted by
No. 48/1997
s. 31.

113C Maximum term of imprisonment where none prescribed

If a person is convicted of an offence against an enactment punishable by imprisonment but the maximum term of imprisonment is not prescribed anywhere, the maximum term of imprisonment to which a court may sentence the offender in respect of that offence is 2 years.

S. 113D
inserted by
No. 69/1997
s. 18.

113D Increased maximum fine for body corporate

- (1) If a body corporate is found guilty of an offence against the **Crimes Act 1958** and the court has power to fine the body corporate, it may, unless the contrary intention appears, impose on the body corporate a fine not greater than 5 times the amount of the maximum fine that could be imposed by the court on a natural person found guilty of the same offence committed at the same time.

S. 113D(1A)
inserted by
No. 7/2009
s. 434 (as
amended by
No. 68/2009
s. 54(t)).

- (1A) Despite subsection (1), if a body corporate is found guilty by the Magistrates' Court in a summary hearing of an indictable offence, the maximum fine that the Court may impose on the body corporate is 2500 penalty units.

S. 113D(1B)
inserted by
No. 7/2009
s. 434 (as
amended by
No. 68/2009
s. 54(t)).

- (1B) Subsection (1A) is subject to any contrary intention in any Act other than this Act.
- (2) This section has effect despite anything to the contrary in this Act and despite the prescription of a maximum fine for the offence applicable to all offenders.

114 Effect of alterations in penalties¹⁹

- (1) If an Act (including this Act) or subordinate instrument increases the penalty or the maximum or minimum penalty for an offence, the increase applies only to offences committed after the commencement of the provision effecting the increase.
- (2) If an Act (including this Act) or subordinate instrument reduces the penalty or the maximum or minimum penalty for an offence, the reduction extends to offences committed before the commencement of the provision effecting the reduction for which no penalty had been imposed at that commencement.

115 Old offences relevant in determining previous convictions

- (1) A finding of guilt or conviction of an old offence counts as a finding of guilt or conviction of a new offence for the purpose of determining whether or not a person has previously been found guilty or convicted of the new offence.
- (2) For the purposes of this section—
 - (a) an old offence is an offence under a repealed statutory provision which is constituted by the same acts, omissions, matters, circumstances or things as an offence (the new offence) under an Act or subordinate instrument which substantially re-enacts (whether in the same language or not) the repealed statutory provision; and
 - (b) a repealed statutory provision is an Act or provision of an Act that has been repealed or a subordinate instrument or provision of a subordinate instrument that has been revoked.

- (3) This section applies—
- (a) even if the new offence differs from the old offence in—
 - (i) its penalty; or
 - (ii) the procedure applicable to its prosecution; or
 - (iii) its classification; or
 - (iv) its name;
 - (b) unless the contrary intention appears in the Act or subordinate instrument that creates the new offence.

S. 115A
inserted by
No. 65/2011
s. 49.

115A Effect where punishment suffered for indictable offence

- (1) If a person who has been convicted of an indictable offence has suffered the punishment imposed in respect of it, the punishment has the like effect and consequence as a pardon under the great seal.
- (2) Subsection (1) does not limit the operation of any enactment that expressly disqualifies a person who has been convicted of an indictable offence from holding any office.

S. 115B
inserted by
No. 65/2011
s. 68 (as
amended by
No. 43/2012
s. 3(Sch.
item 47.1)).

115B Delegation

- (1) The Secretary may, by instrument, delegate any power or duty of the Secretary under—
 - (a) Part 3A or Part 3B of this Act or the regulations except this power of delegation to—

S. 115B(1)(a)
amended by
No. 26/2012
s. 65.

- (i) any officer within the meaning of Part 5 or Part 9 of the **Corrections Act 1986**; or
 - (ii) the Commissioner, within the meaning of the **Corrections Act 1986**; or
 - (iii) a prescribed person or prescribed class of person; or
 - (b) Division 3 of Part 3C of this Act or the regulations except this power of delegation to a person employed in the Department of Justice under Part 3 of the **Public Administration Act 2004** at a level of Grade 6 or higher.
- (2) A delegation under subsection (1) may be to a person or class of persons.

Pt 11
(Heading)
substituted by
No. 65/2011
s. 50.

Part 11—Regulations and general matters

S. 115C
inserted by
No. 65/2011
s. 69 (as
amended by
No. 43/2012
s. 3(Sch.
item 47.2)).

115C Infringement penalties

The infringement penalty for an offence against section 83AE or 83AF is 1 penalty unit.

S. 115D
inserted by
No. 65/2011
s. 69 (as
amended by
No. 43/2012
s. 3(Sch.
item 47.2)).

115D Power to serve an infringement notice

- (1) If the authorised person has reason to believe that an offender has committed an offence referred to in subsection (3), the authorised person may serve an infringement notice on that person.
- (2) An offence referred to in subsection (3) for which an infringement notice may be served is an infringement offence within the meaning of the **Infringements Act 2006**.
- (3) An infringement notice may be served in respect of an offence against—
 - (a) section 83AE (offence to fail to obey a particular direction of the Secretary);
 - (b) section 83AF (offence to fail to obey written direction of the Secretary).

S. 115E
inserted by
No. 65/2011
s. 69 (as
amended by
No. 43/2012
s. 3(Sch.
item 47.2)).

115E Appointment of authorised person

- (1) The Secretary may by instrument, appoint a person as an authorised person.
- (2) The Secretary in appointing a person under subsection (1) must specify the nature and extent of the appointment.

115F Reports

- (1) The Director of Public Prosecutions and the Chief Commissioner of Police must each give to the Attorney-General a report on the operation of mandatory treatment and monitoring orders that includes the following information in respect of each financial year—
- (a) the number of mandatory treatment and monitoring orders made;
 - (b) the number of offences under section 83AD that were constituted by a contravention of a mandatory treatment and monitoring order and details of the orders made under section 83AS in respect of those contraventions.
- (2) The report must be given to the Attorney-General as soon as practicable but within 3 months after the end of each financial year.

S. 115F
inserted by
No. 48/2018
s. 82.

116 Regulations

- (1) The Governor in Council may make regulations for or with respect to—

* * * * *

S. 116(1)(a)
repealed by
No. 10/1999
s. 31(4)(b),
new
s. 116(1)(a)
inserted by
No. 53/2003
s. 7,
repealed by
No. 48/2011
s. 23.

* * * * *

S. 116(1)(b)
repealed by
No. 65/2011
s. 51(a).

- (c) the commencement of community correction orders, the matters to be specified in those orders, the supply of copies of those orders

S. 116(1)(c)
amended by
No. 65/2011
s. 51(b).

- to specified persons and the obligations of persons subject to those orders; and
- S. 116(1)(ca) inserted by No. 26/2012 s. 66.
- (ca) fine conversion orders or fine default unpaid community work orders, including but not limited to the commencement of those orders, the matters to be specified in those orders, the supply of copies of those orders to specified persons and the obligations of persons subject to those orders; and
- S. 116(1)(d) amended by No. 65/2011 s. 51(c).
- (d) the payment of fines by or on behalf of a person required to perform unpaid community work under a fine conversion order or fine default unpaid community work order; and
- S. 116(1)(e) repealed by No. 65/2011 s. 51(d).
- * * * * *
- S. 116(1)(f) amended by Nos 68/2009 s. 97(Sch. item 110.82), 30/2010 s. 29, substituted by No. 65/2011 s. 51(e).
- (f) contraventions of sentence and applications for variation of sentence; and
- S. 116(1)(fa) inserted by No. 65/2011 s. 51(e).
- (fa) proceedings for contravention of sentence; and
- S. 116(1)(fb) inserted by No. 65/2011 s. 51(e).
- (fb) any matter relating to reviews by the court of decisions of the Secretary under Division 3 of Part 3C; and
- (g) any other matter or thing required or permitted by this Act to be prescribed or necessary to be prescribed to give effect to this Act.

- (2) The regulations—
- (a) may be of general or limited application; and
 - (b) may confer a discretionary authority or impose a duty on a specified person or a specified class of person; and
 - (c) may impose a level 12 fine for a contravention of the regulations.

* * * * *

S. 116(3)(4)
repealed by
No. 10/1999
s. 31(4)(c).

**116A Review of amendments made by Sentencing
Amendment (Emergency Worker Harm) Act 2020**

- (1) The Minister must cause a review to be undertaken of the operation and effectiveness of the amendments made by the **Sentencing Amendment (Emergency Worker Harm) Act 2020** as soon as practicable after the period of 12 months after the day on which that Act came into operation.
- (2) The Minister must cause a report on the outcome of the review to be laid before each House of Parliament as soon as practicable after the review is completed.

S. 116A
inserted by
No. 65/2011
s. 52,
repealed by
No. 45/2012
s. 9, new
s. 116A
inserted by
No. 23/2020
s. 5A.

Pt 12
(Heading)
amended by
No. 48/1997
s. 32(2).

Part 12—Transitionals

117 Transitional provisions

- (1) This Act applies to any sentence imposed after the commencement of this section, irrespective of when the offence was committed.
- (2) A person in respect of whom a sentence is in force immediately before the commencement of this section continues to be subject to the requirements of that sentence in all respects as if this Act had not been passed but that sentence may be cancelled or varied and any failure to comply with it may be dealt with under this Act as if it were a sentence imposed after the commencement of this section.
- (3) The regulations may contain provisions of a transitional nature consequent on the enactment of this Act.
- (4) For the purposes of this section a sentence imposed by an appellate court after the commencement of this section on setting aside a sentencing order made before that commencement must be taken to have been imposed at the time the original sentencing order was made.

S. 117A
inserted by
No. 10/2005
s. 4(Sch. 2
item 2).

117A Transitional provisions—Sentencing (Amendment) Act 1993

- (1) The amendments made to this Act by any provision of section 4, 5, 6, 8, 9, 10(2) or 10(4) of the **Sentencing (Amendment) Act 1993** apply to a proceeding for an offence that is commenced after the commencement of that provision, irrespective of when the offence to which the proceeding relates is alleged to have been committed.

- (2) The amendments made to this Act by any provision of sections 10 (other than subsections (2) and (4)) to 16 of the **Sentencing (Amendment) Act 1993**, apply to any sentence, whether imposed before or after the commencement of that provision.
- (3) The re-enactment by this section of section 26 of the **Sentencing (Amendment) Act 1993** does not affect the operation of any Act enacted after the **Sentencing (Amendment) Act 1993**.

117B Transitional provisions—Miscellaneous Acts (Omnibus Amendments) Act 1996

S. 117B
inserted by
No. 10/2005
s. 4(Sch. 2
item 2).

- (1) This Act, as amended by section 20 of the **Miscellaneous Acts (Omnibus Amendments) Act 1996** applies to a proceeding for an offence that is commenced after the commencement of section 20 of the **Miscellaneous Acts (Omnibus Amendments) Act 1996**, irrespective of when the offence was committed.
- (2) In sentencing an offender in such a proceeding, the amendment made by section 20 of the **Miscellaneous Acts (Omnibus Amendments) Act 1996** applies for the purposes of the definition of *serious sexual offender* in section 3(1) of this Act (as in force on the commencement of section 20 of the **Miscellaneous Acts (Omnibus Amendments) Act 1996**) irrespective of when the conviction for an offence against section 47 of the **Crimes Act 1958** was recorded.
- (3) The re-enactment by this section of section 21 of the **Miscellaneous Acts (Omnibus Amendments) Act 1996** does not affect the operation of any Act enacted after the **Miscellaneous Acts (Omnibus Amendments) Act 1996**.

S. 118
substituted by
No. 48/1997
s. 33.

118 Transitional provisions (1997 amendments)

- (1) The amendments of this Act made by a provision of section 5, 9, 11, 12, 14, 16 to 18, 26, 30 or 31 of the **Sentencing and Other Acts (Amendment) Act 1997** apply to a sentence imposed, or judgment given, after the commencement of that provision, irrespective of when the offence was committed.
- (2) The amendments of this Act made by a provision of section 6 or 10 of the **Sentencing and Other Acts (Amendment) Act 1997** apply to a proceeding for an offence that is commenced after the commencement of that provision, irrespective of when the offence to which the proceeding relates is alleged to have been committed.
- (3) The amendments of this Act made by a provision of section 13, 15, 19 or 21 of the **Sentencing and Other Acts (Amendment) Act 1997** apply to a failure to comply with a sentencing order that is alleged to have occurred after the commencement of that provision, irrespective of when the sentencing order was made.

S. 118(3A)
inserted by
No. 69/1997
s. 19.

- (3A) The amendment of section 68 of the **Crimes Act 1958** made by item 45(a) of Schedule 1 to the **Sentencing and Other Acts (Amendment) Act 1997** effecting a change from summary to indictable in the nature of an offence against that section applies only to offences alleged to have been committed after the commencement of that Schedule.

S. 118(3B)
inserted by
No. 69/1997
s. 19.

- (3B) The amendment of section 70D(1) of the **Crimes Act 1958** made by item 51 of Schedule 1 to the **Sentencing and Other Acts (Amendment) Act 1997** effecting a change from indictable to indictable triable summarily in the nature of an offence against that section applies to a proceeding for an offence that is commenced after

the commencement of that Schedule, irrespective of when the offence to which the proceeding relates is alleged to have been committed.

- (3C) The amendments of sections 91 and 343 of the **Crimes Act 1958** made by items 67(a) and 99 of Schedule 1 to the **Sentencing and Other Acts (Amendment) Act 1997** effecting a change from indictable to summary in the nature of an offence against those sections apply to a proceeding for an offence that is commenced after the commencement of that Schedule, irrespective of when the offence to which the proceeding relates is alleged to have been committed.
- (3D) For the purposes of subsection (3A), if an offence is alleged to have been committed between two dates and Schedule 1 to the **Sentencing and Other Acts (Amendment) Act 1997** commences on a date between those two dates, the offence is alleged to have been committed before the commencement of that Schedule.
- (4) A person in respect of whom a suspended sentence imposed under section 28 is in force immediately before the commencement of section 14(5) continues to be subject to the requirements of that sentence in all respects as if the **Sentencing and Other Acts (Amendment) Act 1997** had not been passed and that sentence may be cancelled or varied and any failure to comply with it may be dealt with under this Act as in force immediately before that commencement despite anything to the contrary in this section.
- (5) A person referred to in subsection (4) may continue to be dealt with under the **Alcoholics and Drug-dependent Persons Act 1968** as in force immediately before the commencement of section 67 of the **Sentencing and Other Acts (Amendment) Act 1997**.

S. 118(3C)
inserted by
No. 69/1997
s. 19.

S. 118(3D)
inserted by
No. 69/1997
s. 19.

- (6) For the purposes of this section a sentence imposed by an appellate court on setting aside a sentencing order must be taken to have been imposed at the time the original sentencing order was made.

S. 119
repealed by
No. 48/1997
s. 33,
new s. 119
inserted by
No. 69/1997
s. 20.

119 Transitional provisions (Sentencing (Amendment) Act 1997)

- (1) An amendment of this Act made by a provision of section 4, 6, 7 or 8 of the **Sentencing (Amendment) Act 1997** applies to a sentence imposed after the commencement of that provision, irrespective of when the offence was committed and, for this purpose, a sentence imposed by an appellate court on setting aside a sentencing order must be taken to have been imposed at the time the original sentencing order was made.
- (2) An amendment of this Act made by a provision of section 14, 15 or 18 of the **Sentencing (Amendment) Act 1997** applies only to offences alleged to have been committed after the commencement of that provision.
- (3) For the purposes of subsection (2), if an offence is alleged to have been committed between two dates and the provision of the **Sentencing (Amendment) Act 1997** effecting the amendment commences on a date between those two dates, the offence is alleged to have been committed before the commencement of that provision.

S. 120
inserted by
No. 57/1998
s. 27.

120 Transitional provisions (1998 amendments)

The amendments of this Act made by a provision of section 26 of the **Road Safety (Amendment) Act 1998** do not apply to a person who applies for an order within 18 months after the commencement of that provision.

**121 Transitional provision—Courts and Tribunals
Legislation (Amendment) Act 2000**

The amendments of this Act made by section 8 of the **Courts and Tribunals Legislation (Amendment) Act 2000** apply in relation to any application for leave to appeal determined on or after the commencement of that section, whether notice of the application was given before or after that commencement.

S. 121
inserted by
No. 10/1999
s. 19,
substituted by
No. 1/2000
s. 9.

**122 Transitional provisions—Sentencing (Amendment)
Act 1999**

- (1) An amendment of this Act made by a provision of section 5, 6, 7 or 8 of the **Sentencing (Amendment) Act 1999** applies to a sentence imposed after the commencement of that provision, irrespective of when the offence was committed and, for this purpose, a sentence imposed by an appellate court on setting aside a sentencing order must be taken to have been imposed at the time the original sentencing order was made.
- (2) Section 83A applies to any finding of guilt made after the commencement of section 9 of the **Sentencing (Amendment) Act 1999**, irrespective of when the offence was committed.
- (3) The amendment of section 86 of this Act made by a provision of section 10 or 12(2) of the **Sentencing (Amendment) Act 1999** applies to an application made under that section of this Act after the commencement of that provision, irrespective of when the offence was committed or the finding of guilt made or conviction recorded.

S. 122
inserted by
No. 19/1999
s. 15.

- (4) The amendment of this Act made by section 11 of the **Sentencing (Amendment) Act 1999** applies to an application under section 86 of this Act heard or determined after the commencement of that section of that Act, irrespective of when the offence was committed or the finding of guilt made or conviction recorded or the application made.
- (5) The amendment of section 87 of this Act made by section 12(3) of the **Sentencing (Amendment) Act 1999** applies to an order made under section 86(1) of this Act after the commencement of that section of that Act.
- (6) Section 95BA and the amendments made to this Act by section 14 apply to a victim impact statement made to a court after the commencement of sections 13 and 14 of the **Sentencing (Amendment) Act 1999**.

S. 123
inserted by
No. 99/2000
s. 16.

123 Transitional provision—Magistrates' Court (Infringements) Act 2000

- (1) The amendment of section 16 of this Act made by section 15 of the **Magistrates' Court (Infringements) Act 2000** applies to any person who begins a term of imprisonment on or after the commencement of section 15 of the **Magistrates' Court (Infringements) Act 2000**, irrespective of when the term of imprisonment was imposed.
- (2) For the purposes of subsection (1), a person can only begin a term of imprisonment if, immediately before the term of imprisonment began, the person was not serving any other term of imprisonment imposed on him or her.

124 Transitional provisions—Victims of Crime Assistance (Amendment) Act 2000

S. 123
inserted by
No. 54/2000
s. 24,
re-numbered
as s. 124 by
No. 2/2002
s. 6.

- (1) The amendment of this Act made by a provision of section 21 or 22 of the **Victims of Crime Assistance (Amendment) Act 2000** applies to an application under section 86 of this Act for compensation for pain and suffering made before the commencement of that provision but heard or determined after that commencement, irrespective of when the offence was committed or the finding of guilt made or conviction recorded.
- (2) An application to which subsection (1) applies must be heard and determined as if it were an application made under Subdivision (1) of Division 2 of Part 4.
- (3) Subject to Subdivision (1) of Division 2 of Part 4, an application may be made under that Subdivision after the commencement of section 21 of the **Victims of Crime Assistance (Amendment) Act 2000**, irrespective of whether the offence was committed or the finding was made or the conviction was recorded before or after that commencement.
- (4) The amendment of this Act made by a provision of section 23 of the **Victims of Crime Assistance (Amendment) Act 2000** applies only to an application under section 87A(1) of this Act made after the commencement of that provision.

125 Transitional provisions—Sentencing (Emergency Service Costs) Act 2001

S. 125
inserted by
No. 80/2001
s. 5.

- (1) The amendment of this Act made by section 4 of the **Sentencing (Emergency Service Costs) Act 2001** applies only to offences alleged to have been committed on or after the commencement of that Act.

- (2) For the purposes of subsection (1), if an offence alleged to have been committed between two dates, one before and one after the commencement of the **Sentencing (Emergency Service Costs) Act 2001**, the offence is alleged to have been committed before that commencement.

S. 126
inserted by
No. 2/2002
s. 7.

126 Transitional provisions—Sentencing (Amendment) Act 2002

Subdivision (1C) of Division 2 of Part 3 applies to the sentencing of a person for an offence, irrespective of when the offence was committed.

S. 126B
inserted by
No. 1/2002
s. 14.

126B Application of amendment made by the Road Safety (Alcohol Interlocks) Act 2002

S. 126B(1)
substituted by
No. 49/2004
s. 45(1).

- (1) Subject to subsection (1A), on and from the commencement of Part 9 of the **Transport Legislation (Miscellaneous Amendments) Act 2004**, section 89A applies to offences, irrespective of when they were committed including (for the avoidance of doubt) whether they were committed before, on or after the commencement of section 14 of the **Road Safety (Alcohol Interlocks) Act 2002**.

S. 126B(1A)
inserted by
No. 49/2004
s. 45(2).

- (1A) The application of section 89A to an offence continues as provided by subsection (1), as in force immediately before the commencement of Part 9 of the **Transport Legislation (Miscellaneous Amendments) Act 2004** for the purposes of any application under section 89(2) for an order as to the issue of a driver licence made before that commencement.

S. 126B(1B)
inserted by
No. 49/2004
s. 45(2).

- (1B) The amendment of section 80B(3) made by section 44 of the **Transport Legislation (Miscellaneous Amendments) Act 2004** has effect only with respect to applications made for the removal of an alcohol interlock condition

more than 28 days after the commencement of Part 9 of that Act.

- (2) For the purposes of subsection (1), if an offence is alleged to have been committed between two dates, one before and one after the commencement, the offence is alleged to have been committed before that commencement.

127 Transitional provision—Crimes (Property Damage and Computer Offences) Act 2003

S. 127
inserted by
No. 10/2003
s. 14.

- (1) The amendment of this Act made by section 13 of the **Crimes (Property Damage and Computer Offences) Act 2003** applies only to offences alleged to have been committed on or after the commencement of that Act.
- (2) For the purposes of subsection (1), if an offence is alleged to have been committed between two dates, one before and one after the commencement of the **Crimes (Property Damage and Computer Offences) Act 2003**, the offence is alleged to have been committed before that commencement.

127A Transitional provisions—Corrections and Sentencing Acts (Home Detention) Act 2003

S. 127A
inserted by
No. 53/2003
s. 8.

- (1) An amendment of this Act made by a provision of sections 3, 4, 5, 6 and 7 of the **Corrections and Sentencing Acts (Home Detention) Act 2003** applies to a sentence imposed after the commencement of that provision, irrespective of when the offence was committed.
- (2) For the purposes of this section, a sentence imposed by an appellate court on setting aside a sentencing order must be taken to have been imposed at the time the original sentencing order was made.

S. 128
inserted by
No. 13/2003
s. 5.

128 Transitional provision—Sentencing (Amendment) Act 2003

Part 2AA applies in relation to appeals heard by the Court of Appeal on or after the commencement of section 4 of the **Sentencing (Amendment) Act 2003** irrespective of when—

- (a) the notice of appeal or notice of application for leave to appeal was given; or
- (b) the offence is alleged to have been committed.

S. 129
inserted by
No. 72/2004
s. 40.

129 Transitional provision—Children and Young Persons (Age Jurisdiction) Act 2004

An amendment made to this Act by a provision of the **Children and Young Persons (Age Jurisdiction) Act 2004** applies to a proceeding for an offence commenced on or after the commencement of that provision, regardless of when the offence is alleged to have been committed.

S. 130
inserted by
No. 15/2005
s. 6.

130 Transitional provision—Sentencing (Further Amendment) Act 2005

An amendment made to this Act by a provision of the **Sentencing (Further Amendment) Act 2005** applies to a proceeding for an offence commenced on or after the commencement of that provision, regardless of when the offence is alleged to have been committed.

S. 131
inserted by
No. 69/2005
s. 6.

131 Transitional provision—Sentencing and Mental Health Acts (Amendment) Act 2005

- (1) This Act, as in force immediately before the commencement day, continues to apply on and after that day to a person who, immediately before that day, was the subject of a hospital order made under section 93(1)(d) as in force before that day.

(2) Subsection (1) ceases to have effect 2 years after the commencement day and consequently the person ceases to be an involuntary patient at that time, unless he or she has been discharged from the hospital order earlier.

(3) A hospital security order in force under section 93(1)(e) immediately before the commencement day is taken, on and after that day, to be a hospital security order made under section 93A for the remainder of its duration.

(4) In this section—

commencement day means the day on which section 6 of the **Sentencing and Mental Health Acts (Amendment) Act 2005** comes into operation.

132 Transitional provision—Courts Legislation (Jurisdiction) Act 2006

S. 132
inserted by
No. 50/2006
s. 39.

The amendments made to this Act by section 38 of the **Courts Legislation (Jurisdiction) Act 2006** apply to the sentencing of a person for an offence on or after the commencement of that section, irrespective of when the offence was committed or the finding of guilt was made.

133 Transitional provisions—Sentencing (Suspended Sentences) Act 2006

S. 133
inserted by
No. 82/2006
s. 8.

(1) The amendments of this Act made by section 3, 5 or 6(1) of the **Sentencing (Suspended Sentences) Act 2006** apply to an order made under section 31 of this Act on or after the commencement of that section of that Act consequent on a finding of guilt of an offence made on or after that commencement, irrespective of when that offence was committed.

- (2) The amendments of this Act made by section 4(1) or 4(2) of the **Sentencing (Suspended Sentences) Act 2006** apply to a sentence imposed on or after the commencement of that section of that Act in respect of an offence alleged to have been committed on or after that commencement.
- (3) For the purposes of subsections (1) and (2), if an offence is alleged to have been committed between two dates, one before and one after the commencement of a provision of the **Sentencing (Suspended Sentences) Act 2006**, the offence is alleged to have been committed before that commencement.

S. 134
inserted by
No. 56/2007
s. 22.

134 Transitional provision—Working with Children Act 2005

- (1) The amendments made to this Act by the **Working with Children Act 2005** only apply to the sentencing of a person on or after the commencement of that Act in respect of an offence alleged to have been committed on or after that commencement.
- (2) For the purpose of subsection (1), if an offence is alleged to have been committed between two dates, one before and one after the commencement of the **Working with Children Act 2005**, the offence is alleged to have been committed before that commencement.

S. 135
inserted by
No. 8/2008
s. 18.

135 Transitional provision—Criminal Procedure Legislation Amendment Act 2008

Section 6AAA as inserted by section 3 of the **Criminal Procedure Legislation Amendment Act 2008** applies to a sentence imposed on or after the commencement of section 3 of that Act if the plea hearing commences on or after that commencement.

136 Transitional provision—Justice Legislation Amendment (Sex Offences Procedure) Act 2008

S. 136
inserted by
No. 18/2008
s. 16.

- (1) The amendment made to this Act by section 15 of the **Justice Legislation Amendment (Sex Offences Procedure) Act 2008** applies to a sentence imposed in respect of an offence alleged to have been committed on or after that commencement.
- (2) For the purposes of subsection (1), if an offence is alleged to have been committed between two dates, one before and one after the commencement of section 15 of the **Justice Legislation Amendment (Sex Offences Procedure) Act 2008**, the offence is alleged to have been committed before that commencement.

137 Transitional provision—Crimes Amendment (Identity Crime) Act 2009

S. 137
inserted by
No. 22/2009
s. 7.

- (1) Section 6AAA, as amended by section 5 of the **Crimes Amendment (Identity Crime) Act 2009**, applies to a sentence imposed on or after the commencement of section 5 of that Act irrespective of when the sentencing hearing commenced.
- (2) An application may be made under section 89F in relation to an identity crime offence (within the meaning of section 89E) committed before the commencement of section 6 of the **Crimes Amendment (Identity Crime) Act 2009**.

138 Transitional provision—Statute Law Amendment (Evidence Consequential Provisions) Act 2009

S. 138
inserted by
No. 69/2009
s. 54(Sch. Pt 1
item 51.5).

Sections 89(3F) and 89B(6) do not apply to a hearing that commenced before the day the **Statute Law Amendment (Evidence Consequential Provisions) Act 2009** and that—

- (a) continued on or after that day; or
- (b) was adjourned until that day or a day after that day.

S. 138
inserted by
No. 68/2009
s. 97(Sch.
item 110.83),
renumbered
as s. 139 by
No. 7/2010
s. 14(1).

139 Transitional provision—Criminal Procedure Act 2009

- (1) Subject to subsection (2), the maximum fine set out in section 112A, as inserted by section 433 of the **Criminal Procedure Act 2009**, applies to a sentence imposed on or after the commencement of section 433 of that Act, irrespective of when the criminal proceeding commenced and irrespective of when the Magistrates' Court determined to grant a summary hearing.
- (2) If—
 - (a) the maximum fine set out in section 112A is greater than the maximum fine that applies to the summary hearing of an indictable offence immediately before the commencement of section 433 of the **Criminal Procedure Act 2009**; and
 - (b) before the commencement of section 433 of that Act, the Magistrates' Court determined to grant a summary hearing of a charge for the offence—the maximum fine for the offence immediately before that commencement applies.
- (3) Subject to subsection (4), the maximum fine set out in section 113D(1A) and (1B), as inserted by section 434 of the **Criminal Procedure Act 2009**, applies to a sentence imposed on or after the commencement of section 434 of that Act, irrespective of when the criminal proceeding commenced and irrespective of when the Magistrates' Court determined to grant a summary hearing.

(4) If—

- (a) the maximum fine set out in section 113D(1A) is greater than the maximum fine that applies to the summary hearing of an indictable offence immediately before the commencement of section 434 of the **Criminal Procedure Act 2009**; and
- (b) before the commencement of section 434 of that Act, the Magistrates' Court determined to grant a summary hearing of a charge for the offence—

the maximum fine for the offence immediately before that commencement applies.

140 Transitional provision—Sentencing Amendment Act 2009

Section 5(2)(daaa) as inserted by section 3 of the **Sentencing Amendment Act 2009** applies to a sentence imposed on or after the commencement of that Act, irrespective of when the offence was committed.

S. 138
inserted by
No. 77/2009
s. 4,
renumbered
as s. 140 by
No. 7/2010
s. 14(2).

141 Transitional provision—Justice Legislation Amendment Act 2010

- (1) Section 9 as amended by section 5 of the **Justice Legislation Amendment Act 2010** applies to the sentencing of a person for an offence on or after the commencement of section 5 of that Act, irrespective of when the offences were committed or the findings of guilt were made.
- (2) Section 14A applies to the sentencing of a person on or after the commencement of section 6 of the **Justice Legislation Amendment Act 2010**, irrespective of when the offence was committed or the finding of guilt was made.

S. 141
inserted by
No. 30/2010
s. 23.

- (3) Section 18SA applies to the sentencing of a person on or after the commencement of section 8 of the **Justice Legislation Amendment Act 2010**, irrespective of when the offence was committed or the finding of guilt was made.
- (4) An order may be made under section 18WJ of this Act on or after the commencement of section 9 of the **Justice Legislation Amendment Act 2010** consequent on a finding of a contravention made on or after that commencement, irrespective of when that contravention was committed.
- (5) Section 18ZGA applies to the sentencing of a person on or after the commencement of section 10 of the **Justice Legislation Amendment Act 2010**, irrespective of when the offence was committed or the finding of guilt was made.
- (6) Section 21A applies to the sentencing of a person on or after the commencement of section 12 of the **Justice Legislation Amendment Act 2010**, irrespective of when the offence was committed or the finding of guilt was made.
- (7) An order may be made under section 26J on or after the commencement of section 13 of the **Justice Legislation Amendment Act 2010** consequent on a finding of a contravention made on or after that commencement, irrespective of when that contravention was committed.
- (8) An order may be made under section 26ZK on or after the commencement of section 14 of the **Justice Legislation Amendment Act 2010** consequent on a finding of a contravention made on or after that commencement, irrespective of when that contravention was committed.

- (9) Section 27A applies to the sentencing of a person on or after the commencement of section 15 of the **Justice Legislation Amendment Act 2010**, irrespective of when the offence was committed or the finding of guilt was made.
- (10) Section 41A applies to the sentencing of a person on or after the commencement of section 17 of the **Justice Legislation Amendment Act 2010**, irrespective of when the offence was committed or the finding of guilt was made.
- (11) An order may be made under section 47J on or after the commencement of section 18 of the **Justice Legislation Amendment Act 2010** consequent on a finding of a contravention made on or after that commencement, irrespective of when that contravention was committed.
- (12) Section 51 as amended by section 19 of the **Justice Legislation Amendment Act 2010** applies to the sentencing of a person for an offence on or after the commencement of section 19 of that Act, irrespective of when the offences were committed or the findings of guilt were made.
- (13) An order may be made under section 79J on or after the commencement of section 22 of the **Justice Legislation Amendment Act 2010** consequent on a finding of a contravention made on or after that commencement, irrespective of when that contravention was committed.

141A Transitional provision—Sentencing Legislation Amendment (Abolition of Home Detention) Act 2011

S. 141A
inserted by
No. 48/2011
s. 24.

- (1) In this section—

2011 Act means the **Sentencing Legislation Amendment (Abolition of Home Detention) Act 2011**;

old home detention order means a home detention order within the meaning of section 3 as in force before the commencement of section 19 of the 2011 Act, being an order in force immediately before that commencement.

- (2) Despite the commencement of section 19 of the 2011 Act, an old home detention order is taken to continue in force on and from that commencement as if this Act, as in force before that commencement, continued to apply to it.
- (3) Despite the commencement of section 25 of the 2011 Act, section 131 of the **Personal Safety Intervention Orders Act 2010**, as in force before that commencement, is taken to continue to apply on and from that commencement in relation to an old home detention order.
- (4) Despite the commencement of section 27 of the 2011 Act, sections 17(8), 24(da) and 176AA of the **Family Violence Protection Act 2008**, as in force before that commencement, are taken to continue to apply on and from that commencement in relation to an old home detention order.

S. 142
inserted by
No. 18/2010
s. 10.

142 Transitional provision—Justice Legislation Amendment (Victims of Crime Assistance and Other Matters) Act 2010

This Act as amended by sections 7, 8 and 9 of the **Justice Legislation Amendment (Victims of Crime Assistance and Other Matters) Act 2010** applies to a sentencing hearing of a person for an offence irrespective of when the offence was committed, provided the sentencing hearing commences after those sections come into operation.

143 Transitional provision—Sentencing Amendment Act 2010

(1) In this section—

2010 Act means the **Sentencing Amendment Act 2010**;

* * * *

* * * *

old serious suspended sentence order means an order made under Subdivision 3 of Division 2 of Part 3 as in force before the commencement of section 12 of the 2010 Act as to the suspending of a sentence of imprisonment on an offender for a serious offence, being such an order in force immediately before that commencement;

old significant suspended sentence order means an order made under Subdivision 3 of Division 2 of Part 3 as in force before the commencement of section 12 of the 2010 Act as to the suspending of a sentence of imprisonment on an offender for a significant offence, being such an order in force immediately before that commencement.

S. 143 inserted by No. 77/2010 s. 27 (as amended by No. 9/2011 s. 5).

S. 143(1) def. of *old combined custody and treatment order* repealed by No. 65/2011 s. 53(1)(a).

S. 143(1) def. of *old intensive correction order* repealed by No. 65/2011 s. 53(1)(b).

S. 143(1) def. of *old serious suspended sentence order* amended by No. 43/2012 s. 3(Sch. item 46.2).

Sentencing Act 1991
No. 49 of 1991
Part 12—Transitionals

Heading preceding s. 143(2) repealed by No. 65/2011 s. 53(2).	*	*	*	*	*
S. 143(2) repealed by No. 65/2011 s. 53(3).	*	*	*	*	*
Heading preceding s. 143(3) repealed by No. 65/2011 s. 53(4).	*	*	*	*	*
S. 143(3) repealed by No. 65/2011 s. 53(5).	*	*	*	*	*
Heading preceding s. 143(4) repealed by No. 65/2011 s. 53(6).	*	*	*	*	*
S. 143(4) repealed by No. 65/2011 s. 53(7).	*	*	*	*	*

Suspended sentences

- (5) Despite the commencement of section 12 of the 2010 Act, an old serious suspended sentence order is taken to continue in force on and from that commencement as if this Act, as in force before that commencement, continued to apply to it.

- (6) The amendment of this Act made by section 12 of the 2010 Act, does not apply where a finding of guilt is made in relation to a serious offence committed before the commencement of that section, irrespective of whether the finding of guilt is made, before, on or after that commencement.
- (7) For the purposes of subsection (6), if a serious offence is alleged to have been committed between two dates, one before and one after the commencement of section 12 of the 2010 Act, the offence is taken to be alleged to have been committed before that commencement.
- (8) Despite the commencement of section 12 of the 2010 Act, an old significant suspended sentence order is taken to continue in force on and from that commencement as if this Act as in force before that commencement continued to apply to it.
- (9) The amendment of this Act made by section 12 of the 2010 Act, does not apply where a finding of guilt is made in relation to a significant offence committed before the commencement of that section, irrespective of whether the finding of guilt is made before, on or after that commencement.
- (10) For the purposes of subsection (9), if a significant offence is alleged to have been committed between two dates, one before and one after the commencement of section 12 of the 2010 Act, the offence is taken to be alleged to have been committed before that commencement.

S. 144
inserted by
No. 9/2011
s. 7.

144 Transitional provision—Sentencing Further Amendment Act 2011

On and from the commencement of section 6 of the **Sentencing Further Amendment Act 2011** the Sentencing Advisory Council is taken to be the same body as it was immediately before that commencement, despite any changes to the board of directors and no decision, matter or thing is to be affected because of those changes.

S. 145
inserted by
No. 48/2012
s. 46.

145 Transitional provisions—Criminal Procedure Amendment Act 2012

- (1) Section 9 as amended by section 44 of the **Criminal Procedure Amendment Act 2012** applies to the sentencing of a person for offences on or after the commencement of section 44 of that Act, irrespective of when the offences were committed or the findings of guilt were made.
- (2) Section 51 as amended by section 45 of the **Criminal Procedure Amendment Act 2012** applies to the sentencing of a person for offences on or after the commencement of section 45 of that Act, irrespective of when the offences were committed or the findings of guilt were made.

S. 147
inserted by
No. 45/2012
s. 10.

147 Transitional provision—Sentencing Amendment (Community Correction Reform) Act 2011

Schedule 3 has effect.

S. 148
inserted by
No. 45/2012
s. 10.

148 Transitional provision—Road Safety and Sentencing Acts Amendment Act 2012

- (1) Section 38 as amended by section 7 of the **Road Safety and Sentencing Acts Amendment Act 2012** applies to a sentence imposed on or after the commencement of section 7 of that Act, irrespective of when the offence was committed or the finding of guilt was made.

- (2) Section 44 as substituted by section 8 of the **Road Safety and Sentencing Acts Amendment Act 2012** applies to a sentence imposed on or after the commencement of section 8 of that Act, irrespective of when the offence was committed or the finding of guilt was made.
- (3) Despite subsections (1) and (2), the amendment of section 38 by section 7 of the **Road Safety and Sentencing Acts Amendment Act 2012** and the substitution of section 44 by section 8 of that Act do not affect the rights of the parties in the proceedings known as *DPP v Tyson Jason Leys*; *DPP v Dillon Thomas Leys* (No. S APCR 2012 0054 and No. S APCR 2012 0055).

149 Transitional provision—Criminal Procedure and Sentencing Acts Amendment (Victims of Crime) Act 2012

S. 146
inserted by
No. 49/2012
s. 8,
renumbered
as s. 149 by
No. 56/2013
s. 33.

- (1) Section 86AA applies in relation to an offence for which the hearing of the charge commenced on or after the commencement of section 6 of the **Criminal Procedure and Sentencing Acts Amendment (Victims of Crime) Act 2012** irrespective of when the offence was committed or the proceeding for the offence commenced.
- (2) Section 86 as amended by section 7 of the **Criminal Procedure and Sentencing Acts Amendment (Victims of Crime) Act 2012** applies in relation to an offence for which the hearing of the charge commenced on or after the commencement of section 7 of that Act irrespective of when the offence was committed or the proceeding for the offence commenced.

S. 149A
inserted by
No. 31/2013
s. 10.

149A Validation—Justice Legislation Amendment Act 2013

Schedule 4 has effect.

S. 149B
inserted by
No. 32/2013
s. 5.

149B Transitional provision—Sentencing Amendment (Abolition of Suspended Sentences and Other Matters) Act 2013

(1) In this section—

2013 Act means the **Sentencing Amendment (Abolition of Suspended Sentences and Other Matters) Act 2013**.

(2) The amendment of this Act made by Division 1 of Part 2 of the 2013 Act does not apply to a proceeding that was transferred under section 168 of the **Criminal Procedure Act 2009** before the commencement of Division 1 of Part 2 of the 2013 Act.

S. 149C
inserted by
No. 32/2013
s. 7.

149C Further transitional provision—Sentencing Amendment (Abolition of Suspended Sentences and Other Matters) Act 2013

(1) In this section—

2013 Act means the **Sentencing Amendment (Abolition of Suspended Sentences and Other Matters) Act 2013**;

old suspended sentence order means a suspended sentence order made under Subdivision (3) of Division 2 of Part 3 of this Act as in force before the commencement of Division 2 of Part 2 of the 2013 Act, being an order in force immediately before that commencement;

(2) Despite the commencement of Division 2 of Part 2 of the 2013 Act, an old suspended sentence order is taken to continue in force on and from that commencement as if this Act, as in force

before that commencement, continued to apply to it.

- (3) The amendment of this Act made by Division 2 of Part 2 of the 2013 Act does not apply if a finding of guilt is made in relation to an offence committed before the commencement of Division 2 of Part 2 of the 2013 Act, irrespective of whether that finding is made before, on or after that commencement.
- (4) For the purposes of this section if an offence is alleged to have been committed between two dates, one before and one after the commencement of Division 2 of Part 2 of the 2013 Act, the offence is alleged to have been committed before that commencement.

149D Additional transitional provision—Sentencing Amendment (Abolition of Suspended Sentences and Other Matters) Act 2013

S. 149D
inserted by
No. 32/2013
s. 22.

- (1) In this section—

2013 Act means the **Sentencing Amendment (Abolition of Suspended Sentences and Other Matters) Act 2013**;

old suspended sentence order means a suspended sentence order made under Subdivision (3) of Division 2 of Part 3 of this Act as in force before the commencement of Division 3 of Part 2 of the 2013 Act being an order in force immediately before that commencement.

- (2) Despite the commencement of Division 3 of Part 2 of the 2013 Act, an old suspended sentence order is taken to continue in force on and from that commencement as if this Act, as in force before that commencement, continued to apply to it.

- (3) Without limiting subsection (2), sections 29, 83AB and 83AR as in force immediately before their repeal continue to apply in relation to an old suspended sentence order despite the amendment of this Act by Division 3 of Part 2 of the 2013 Act.
- (4) Without limiting subsection (2), sections 18 and 35 as in force immediately before their amendment continue to apply in relation to an old suspended sentence order or a suspended sentence order despite the amendment of this Act by Division 3 of Part 2 of the 2013 Act.
- (5) The amendment of this Act by Division 3 of Part 2 of the 2013 Act does not apply if a finding of guilt is made in relation to an offence committed before the commencement of Division 3 of Part 2 of the 2013 Act, irrespective of whether that finding is made before, on or after that commencement.
- (6) For the purposes of this section if an offence is alleged to have been committed between two dates, one before and one after the commencement of Division 3 of Part 2 of the 2013 Act, the offence is alleged to have been committed before that commencement.

S. 150
inserted by
No. 56/2013
s. 37.

150 Transitional provisions—Road Safety and Sentencing Acts Amendment Act 2013

- (1) In this section—

alcohol interlock condition means a condition imposed on a driver licence or learner permit in accordance with a direction under section 89A(2), 89A(3)(b) or 89A(4) as in force immediately before 30 September 2013;

alcohol interlock condition direction has the same meaning as in the amended Act;

alcohol interlock condition removal order has the same meaning as in the amended Act;

amended Act means the **Road Safety Act 1986** as amended by the **Road Safety and Sentencing Acts Amendment Act 2013**;

licence eligibility order has the same meaning as in the amended Act.

- (2) This Act as in force immediately before 30 September 2013 continues to apply with respect to applications made before that date—
- (a) under section 89(2) for an order as to the issue of a driver licence or learner permit; or
 - (b) under section 89B(3) for an order to remove an alcohol interlock condition.
- (3) A person who—
- (a) has been disqualified under section 89 before 30 September 2013; and
 - (b) under this Act as in force immediately before that date may only be granted a driver licence or learner permit on an order made by the Magistrates' Court on an application under section 89(2); and
 - (c) wishes to apply for such an order on or after that date—
- may only do so by applying for a licence eligibility order in accordance with the amended Act.
- (4) Despite anything to the contrary in the amended Act, on an application for a licence eligibility order made by a person covered by subsection (3) the Magistrates' Court—
- (a) is not required to give an alcohol interlock condition direction if it would not have been required to give a direction before

30 September 2013 under section 89A as in force immediately before that date; and

- (b) does not have power to give such a direction if it would not have had power to give it before that date under that section 89A; and
- (c) may not specify in such a direction under section 50AAA of the amended Act a period longer than it could have specified before that date under that section 89A—

had the application been made under section 89(2) of this Act before that date.

(5) A person who—

- (a) has had an alcohol interlock condition imposed on his or her driver licence or learner permit in accordance with a direction under section 89A before 30 September 2013; and
- (b) under this Act as in force immediately before that date can only have that condition removed by the Corporation on an order made by the Magistrates' Court on an application under section 89B(3); and
- (c) wishes to apply for such an order on or after that date—

may only do so by applying for an alcohol interlock condition removal order in accordance with the amended Act.

(6) For the purposes of an application covered by subsection (5) the reference in section 50AAB(5)(b)(iii) of the amended Act to a licence eligibility report includes a reference to a licence restoration report as defined by section 3(1) of this Act immediately before 30 September 2013 if such a report was obtained before that date.

- (7) Section 89C, as in force immediately before 30 September 2013, continues to apply with respect to appeals made to the County Court in respect of a direction given under section 89A(2), 89A(3)(b) or 89A(4) before that date, irrespective of whether the appeal is made before, on or after that date.
- (8) Sections 89 and 89A, as substituted by section 32 of the **Road Safety and Sentencing Acts Amendment Act 2013**, apply only in respect of an offence that is alleged to have been committed on or after 30 September 2013.
- (9) For the purposes of subsection (8), if an offence is alleged to have been committed between two dates, one before and one on or after 30 September 2013, the offence is alleged to have been committed before that date.

Note

30 September 2013 is the date on which the **Road Safety and Sentencing Acts Amendment Act 2013** (other than Part 1, sections 19(1), 20, 21, 22, 33 and 38 and Divisions 3, 5 and 6 of Part 4) came into operation.

151 Transitional provision—Summary Offences and Sentencing Amendment Act 2014

S. 151
inserted by
No. 15/2014
s. 8.

- (1) This Act, as amended by Part 3 of the **Summary Offences and Sentencing Amendment Act 2014**, applies in respect of a relevant offence committed after the commencement date.
- (2) For the purposes of subsection (1), if an offence is alleged to have been committed between 2 dates, one before and one after the commencement date, the offence is alleged to have been committed before that commencement.

- (3) In this section, ***commencement date*** means the date on which all of the provisions of Part 3 of the **Summary Offences and Sentencing Amendment Act 2014** have come into operation.

S. 152
inserted by
No. 72/2014
s. 9.

152 Transitional provisions—Sentencing Amendment (Coward's Punch Manslaughter and Other Matters) Act 2014

- (1) Sections 9B and 9C only apply to the sentencing of an offender for an offence alleged to have been committed on or after the commencement of Division 1 of Part 3 of the **Sentencing Amendment (Coward's Punch Manslaughter and Other Matters) Act 2014**.
- (2) For the purposes of subsection (1), if an offence is alleged to have been committed between 2 dates, one before and one after the commencement of Division 1 of Part 3 of the **Sentencing Amendment (Coward's Punch Manslaughter and Other Matters) Act 2014**, it is alleged to have been committed before that commencement.

S. 153
inserted by
No. 55/2014
s. 170.

153 Transitional provision—Criminal Organisations Control and Other Acts Amendment Act 2014—alcohol exclusion orders

The amendments made to this Act by Part 7 of the **Criminal Organisations Control and Other Acts Amendment Act 2014** apply to the sentencing of a person on or after the commencement of that Part, irrespective of when the offence was committed or the conviction was recorded.

**154 Transitional provisions—Sentencing Amendment
(Emergency Workers) Act 2014—general**

S. 154
inserted by
No. 69/2014
s. 6.

- (1) The amendments made to this Act by Division 1 of Part 2 of the **Sentencing Amendment (Emergency Workers) Act 2014** only apply to the sentencing of an offender on or after the commencement of that Division for an offence alleged to have been committed on or after that commencement.
- (2) For the purposes of subsection (1), if an offence is alleged to have been committed between 2 dates, one before and one after the commencement of Division 1 of Part 2 of the **Sentencing Amendment (Emergency Workers) Act 2014**, it is alleged to have been committed before that commencement.
- (3) The amendments made to this Act by Part 5 of the **Sentencing Amendment (Emergency Workers) Act 2014** apply to the sentencing of an offender on or after the commencement of that Part, irrespective of when the offence was committed or the finding of guilt was made.

* * * * *

S. 155
inserted by
No. 52/2014
s. 10 (as
amended by
No. 72/2014
s. 12),
repealed by
No. 34/2017
s. 11.

**156 Transitional provision—Justice Legislation
Amendment (Confiscation and Other Matters)
Act 2014**

S. 156
inserted by
No. 79/2014
s. 58.

The amendments made to this Act by Part 8 of the **Justice Legislation Amendment (Confiscation and Other Matters) Act 2014** apply to the sentencing of an offender on or after the commencement of that Part, irrespective of

when the offence was committed or the finding of guilt was made.

S. 156A
inserted by
No. 19/2015
s. 8.

**156A Transitional provision—Sentencing Amendment
(Correction of Sentencing Error) Act 2015**

- (1) The amendments made to section 104A by section 6 of the amending Act apply to judgments given or purportedly given and sentences passed or purportedly passed before, on or after the commencement of the amending Act.

Note

The amending Act commences on the day after the day on which it receives the Royal Assent—see section 2 of that Act.

- (2) Section 104B applies in relation to the imposition of a penalty, or the failure to impose a penalty, before, on or after the commencement of the amending Act.
- (3) In this section—

amending Act means the **Sentencing Amendment (Correction of Sentencing Error) Act 2015**.

S. 157
inserted by
No. 81/2014
s. 4.

**157 Transitional provision—Sentencing Amendment
(Historical Homosexual Convictions Expungement)
Act 2014**

This Act, as amended by section 3 of the **Sentencing Amendment (Historical Homosexual Convictions Expungement) Act 2014**, applies to convictions for historical homosexual offences (within the meaning of Part 8) irrespective of when the offences were committed or the convictions were recorded or findings of guilt were made.

158 Transitional provisions—Crimes Legislation Amendment Act 2016

S. 158
inserted by
No. 28/2016
s. 5.

- (1) The amendments made to this Act by Part 2 of the **Crimes Legislation Amendment Act 2016** apply to the sentencing of an offender for an offence alleged to have been committed on or after the commencement of that Part.
- (2) For the purposes of subsection (1), if an offence is alleged to have been committed between 2 dates, one before and one after the commencement of Part 2 of the **Crimes Legislation Amendment Act 2016**, the offence is alleged to have been committed before that commencement.

159 Transitional provisions—Serious Sex Offenders (Detention and Supervision) Amendment (Community Safety) Act 2016

S. 159
inserted by
No. 32/2016
s. 42.

- (1) This Act, as amended by Part 5 of the **Serious Sex Offenders (Detention and Supervision) Amendment (Community Safety) Act 2016**, applies to the sentencing of an offender for an offence alleged to have been committed on or after the commencement of that Part of that Act.
- (2) For the purposes of subsection (1), if an offence is alleged to have been committed between 2 dates, one before and one after the commencement of Part 5 of the **Serious Sex Offenders (Detention and Supervision) Amendment (Community Safety) Act 2016**, the offence is alleged to have been committed before that commencement.

160 Transitional provision—Police and Justice Legislation Amendment (Miscellaneous) Act 2016

S. 160
inserted by
No. 54/2016
s. 36.

On and from 1 July 2016, a disclosure of a kind specified in section 105K(8) by the Chief Commissioner of Police to the Australian Crime Commission for the purposes of incorporation into the police information sharing system known

as the National Police Reference System is taken to be a lawful disclosure.

S. 161
inserted by
No. 43/2017
s. 64(1).

**161 Transitional provision—Children and Justice
Legislation Amendment (Youth Justice Reform)
Act 2017**

- (1) The amendments made to section 32 of this Act by section 21 of the **Children and Justice Legislation Amendment (Youth Justice Reform) Act 2017** apply to the sentencing of an offender for an offence alleged to have been committed on or after the commencement of that section, irrespective of when the previous offence referred to in section 32(2D)(b) of this Act (as inserted by the **Children and Justice Legislation Amendment (Youth Justice Reform) Act 2017**) was committed.
- (2) The amendments made to this Act by Division 1 and 2 of Part 8 of the **Children and Justice Legislation Amendment (Youth Justice Reform) Act 2017** apply respectively to the sentencing of an offender, or the hearing of a charge, for an offence alleged to have been committed on or after the commencement of that Part.
- (3) For the purposes of subsection (1) and (2), if an offence is alleged to have been committed between 2 dates, one before and one after the commencement of **Children and Justice Legislation Amendment (Youth Justice Reform) Act 2017**, the offence is alleged to have been committed before that commencement.

162 Transitional provision—Sentencing (Community Correction Order) and Other Acts Amendment Act 2016

- (1) The amendments made to this Act by Part 2 of the **Sentencing (Community Correction Order) and Other Acts Amendment Act 2016** (other than sections 3 and 4) apply to the sentencing of an offender on or after the commencement of that Part, irrespective of when the offence was committed or the finding of guilt was made.
- (2) The amendments made to this Act by sections 3 and 4 of the **Sentencing (Community Correction Order) and Other Acts Amendment Act 2016** apply only to offences alleged to have been committed after the commencement of those sections.
- (3) For the purposes of subsection (2), if an offence is alleged to have been committed between 2 dates, one before and one on or after the commencement of sections 3 and 4 of the **Sentencing (Community Correction Order) and Other Acts Amendment Act 2016**, it is alleged to have been committed before that commencement.

S. 160
inserted by
No. 65/2016
s. 17,
renumbered
as s. 160A by
No. 57/2017
s. 52(3),
renumbered
as s. 162 by
No. 3/2019
s. 88(1).

163 Transitional—Justice Legislation Amendment (Parole Reform and Other Matters) Act 2016

The amendment to section 5 by the **Justice Legislation Amendment (Parole Reform and Other Matters) Act 2016** applies to the sentencing of an offender on or after the commencement of section 9 of that Act irrespective of when the offence was committed or the finding of guilt was made.

S. 161
inserted by
No. 76/2016
s. 10,
renumbered
as s. 163 by
No. 3/2019
s. 88(2).

S. 163
inserted by
No. 59/2017
s. 132,
renumbered
as s. 164 by
No. 3/2019
s. 88(3).

164 Transitional—Fines Reform Amendment Act 2017

The amendments to sections 69G and 69H made by the **Fines Reform Amendment Act 2017** apply to the making of an order in respect of an offender on or after the commencement of sections 129 and 130 of that Act irrespective of when the offence was committed or the finding of guilt was made.

S. 165
inserted by
No. 7/2019
s. 31.

165 Transitional provision—Transport Legislation Amendment (Better Roads Victoria and Other Amendments) Act 2019

On and after the commencement of section 30 of the **Transport Legislation Amendment (Better Roads Victoria and Other Amendments) Act 2019**, a court must not make a finding under section 89C(1) of this Act in respect of an offence under section 89A(1), irrespective of when the offence was committed.

S. 162
inserted by
No. 34/2017
s. 42,
renumbered
as s. 165 by
No. 3/2019
s. 88(4),
renumbered
as s. 165A by
No. 22/2020
s. 26(2).

165A Transitional provisions—Sentencing Amendment (Sentencing Standards) Act 2017

(1) In this section—

2017 Act means the **Sentencing Amendment (Sentencing Standards) Act 2017**;

Part 3 commencement day means the day on which Part 3 of the 2017 Act comes into operation.

(2) The amendments made to this Act by Part 3 of the 2017 Act only apply to the sentencing of an offender on or after the Part 3 commencement day for an offence alleged to have been committed on or after that day.

(3) However, nothing in subsection (2) prevents a court taking into account the effect on current sentencing practices of the amendments made to this Act by Part 3 of the 2017 Act in sentencing an

offender on or after the Part 3 commencement day for an offence to which those amendments would have applied had it been committed on or after that day.

Note

Section 5(2)(b) requires a court in sentencing an offender to have regard to current sentencing practices.

- (4) For the purposes of subsections (2) and (3), if an offence is alleged to have been committed between 2 dates, one before and one after the Part 3 commencement day, the offence is alleged to have been committed before that day.
- (5) The amendment made to this Act by section 43(2) of the 2017 Act applies to a sentence imposed after the commencement of that section, irrespective of when the offence was committed.
- (6) For the purposes of subsection (5), a sentence imposed by an appellate court on setting aside a sentencing order must be taken to have been imposed at the time the original sentencing order was made.

166 Transitional—Justice Legislation Amendment (Victims) Act 2018

- (1) The amendments made to this Act by sections 32 and 33 of the **Justice Legislation Amendment (Victims) Act 2018** apply to the sentencing of an offender on or after the commencement of those sections, irrespective of when the offence was committed.
- (2) The amendment made to this Act by section 35 of the **Justice Legislation Amendment (Victims) Act 2018** applies to a sentence imposed after the commencement of that section, irrespective of when the offence was committed.

S. 164
inserted by
No. 5/2018
s. 34,
renumbered
as s. 166 by
No. 3/2019
s. 88(5).

- (3) For the purpose of this section, a sentence imposed by an appellate court on setting aside a sentencing order must be taken to have been imposed at the time the original sentencing order was made.

S. 168
inserted by
No. 48/2018
s. 83,
renumbered
as s. 167 by
No. 3/2019
s. 88(6).

**167 Transitional provisions—Justice Legislation
Miscellaneous Amendment Act 2018**

- (1) The amendments made to the definition of *category 1 offence* in section 3(1) by section 73(1) of the **Justice Legislation Miscellaneous Amendment Act 2018** apply to the sentencing of an offender for an offence alleged to have been committed after the commencement of section 73(1) of that Act.
- (2) For the purposes of subsection (1), if an offence is alleged to have been committed between 2 dates, one before and one after the commencement of section 73(1) of the **Justice Legislation Miscellaneous Amendment Act 2018**, the offence is alleged to have been committed before that commencement.
- (3) The amendments made to the definition of *category 1 offence* in section 3(1) by section 73(2) of the **Justice Legislation Miscellaneous Amendment Act 2018** apply to the sentencing of an offender after the commencement of section 73(2) of that Act for an offence alleged to have been committed on or after 20 March 2017.
- (4) The amendments made to the definition of *category 2 offence* in section 3(1) by section 74(d) and (e) of the **Justice Legislation Miscellaneous Amendment Act 2018** apply to the sentencing of an offender for an offence alleged to have been committed after the commencement of section 74(d) and (e) of that Act.

- (5) For the purposes of subsection (4), if an offence is alleged to have been committed between 2 dates, one before and one after the commencement of section 74(d) and (e) of the **Justice Legislation Miscellaneous Amendment Act 2018**, the offence is alleged to have been committed before that commencement.
- (6) The amendments made to this Act by section 78(2) or a provision of section 76 (other than section 76(1) and (2)) or 79 of the **Justice Legislation Miscellaneous Amendment Act 2018** apply to the sentencing of an offender for an offence alleged to have been committed after the commencement of that provision of that Act.
- (7) For the purposes of subsection (6), if an offence is alleged to have been committed between 2 dates, one before and one after the commencement of a provision referred to in subsection (6), the offence is alleged to have been committed before that commencement.
- (8) The amendment made to the definition of *serious sexual offender* in section 6B(2) by section 77 of the **Justice Legislation Miscellaneous Amendment Act 2018** applies to the sentencing of an offender after the commencement of section 77 of that Act, irrespective of when the offence was committed.
- (9) The amendments made to this Act by sections 76(1) and (2), 80, 81 and 82 of the **Justice Legislation Miscellaneous Amendment Act 2018** apply to the sentencing of an offender for an offence alleged to have been committed after the commencement of those sections of that Act.

- (10) For the purposes of subsection (9), if an offence is alleged to have been committed between 2 dates, one before and one after the commencement of sections 76(1) and (2), 80, 81 and 82 of the **Justice Legislation Miscellaneous Amendment Act 2018**, the offence is alleged to have been committed before that commencement.
- (11) For the purposes of this section, a sentence imposed by a court after the setting aside of a sentencing order on appeal must be taken to have been imposed at the time the original sentencing order was made.

S. 169
inserted by
No. 42/2018
s. 28,
renumbered
as s. 168 by
No. 3/2019
s. 88(7).

168 Transitional provision—Victims and Other Legislation Amendment Act 2018

The amendments made to this Act by Part 4 of the **Victims and Other Legislation Amendment Act 2018** apply to the sentencing of an offender on or after the commencement of that Part, irrespective of when the offence was committed.

S. 169
inserted by
No. 3/2019
s. 86.

169 Transitional provision—Justice Legislation Amendment (Police and Other Matters) Act 2019

Section 10A as amended by section 85 of the **Justice Legislation Amendment (Police and Other Matters) Act 2019** applies to a sentence imposed on or after the commencement of section 85 of that Act, irrespective of when the offence was committed.

S. 170
inserted by
No. 23/2020
s. 6.

170 Transitional provision—Sentencing Amendment (Emergency Worker Harm) Act 2020

- (1) Section 5 as amended by section 3 of the **Sentencing Amendment (Emergency Worker Harm) Act 2020** applies to the sentencing of an offender on or after the commencement of section 3 of that Act for an offence, irrespective of when the offence was committed.

- (2) Section 10AA(6)(a) as amended by section 4(1) of the **Sentencing Amendment (Emergency Worker Harm) Act 2020** applies to a proceeding commenced on or after the commencement of section 4(1) of that Act, irrespective of when the offence was committed.
- (3) Section 10A as amended by section 5 of the **Sentencing Amendment (Emergency Worker Harm) Act 2020** applies to the sentencing of an offender on or after the commencement of section 5 of that Act for an offence, irrespective of when the offence was committed.

**171 Transitional provision—Justice Legislation
Amendment (Drug Court and Other Matters)
Act 2020**

S. 171
inserted by
No. 43/2020
s. 34.

On and after the commencement of Division 2 of Part 2 of the **Justice Legislation Amendment (Drug Court and Other Matters) Act 2020**—

- (a) this Act as amended by that Division applies to a proceeding for an offence regardless of when the offence is alleged to have been committed; and
- (b) a reference in this or any other Act to a drug and alcohol treatment order also refers to a drug treatment order made under this Act before that commencement.

Sentencing Act 1991
No. 49 of 1991

Pt 13
(Headings
and ss 170–
180)
inserted by
No. 11/2020
s. 42,
amended by
No. 27/2020
s. 41,
repealed by
No. 49/1991
s. 180 (as
amended by
No. 27/2020
s. 41).

* * * * *

Schedules

Schedule 1—Serious offender offences

1 Sexual offences

This clause applies to the following offences—

- (a) an offence against, or for which the penalty or the maximum or minimum penalty is fixed by, any of the following sections of the **Crimes Act 1958**:

(i) section 38 (rape);

(ia) section 39 (rape by compelling sexual penetration) if the person against whom the offence is committed is a child;

(ii) section 40 (sexual assault) or 41 (sexual assault by compelling sexual touching);

(iii) section 42 (assault with intent to commit a sexual offence) or 43 (threat to commit a sexual offence);

(iv) section 50C(1) (sexual penetration of a child or lineal descendant);

Sch. 1
amended by
Nos 43/1994
s. 56(Sch.
item 6.2),
36/1995
s. 13(2),
substituted by
No. 48/1997
s. 34.

Sch. 1 cl. 1(a)
amended by
No. 69/1997
s. 21.

Sch. 1
cl. 1(a)(ia)
inserted by
No. 2/2006
s. 43(2)(a),
amended by
No. 74/2014
s. 19(3)(a).

Sch. 1
cl. 1(a)(ii)
substituted by
No. 57/2005
s. 50(2)(a),
amended by
No. 74/2014
s. 19(3)(b).

Sch. 1
cl. 1(a)(iii)
amended by
No. 74/2014
s. 19(3)(c).

Sch. 1
cl. 1(a)(iv)
substituted by
No. 47/2016
s. 41(4).

Sentencing Act 1991
No. 49 of 1991
Schedule 1—Serious offender offences

Sch. 1
cl. 1(a)(iva)
inserted by
No. 47/2016
s. 41(4).

(iva) section 50D(1) (sexual penetration of a step-child);

Sch. 1
cl. 1(a)(ivb)
inserted by
No. 47/2016
s. 41(4),
amended by
No. 38/2022
s. 18.

(ivb) section 50F(1) (sexual penetration of a sibling or half-sibling) in circumstances other than where both people are aged 18 years or older and each consented (as defined by sections 36 and 36AA of the **Crimes Act 1958**) to engage in the sexual penetration;

Sch. 1
cl. 1(a)(v)
amended by
No. 67/2000
s. 10(2)(a)(i),
substituted by
No. 47/2016
s. 41(4).

(v) section 49A(1) (sexual penetration of a child under the age of 12);

Sch. 1
cl. 1(a)(va)
inserted by
No. 47/2016
s. 41(4).

(va) section 49B(1) (sexual penetration of a child under the age of 16);

Sch. 1
cl. 1(a)(vi)
repealed by
No. 67/2000
s. 10(2)(a)(ii).

* * * * *

Sch. 1
cl. 1(a)(vii)
substituted by
No. 47/2016
s. 41(4).

(vii) section 49D(1) (sexual assault of a child under the age of 16);

Sch. 1
cl. 1(a)(viiia)
inserted by
No. 47/2016
s. 41(4).

(viiia) section 49F(1) (sexual activity in the presence of a child under the age of 16);

Sentencing Act 1991
No. 49 of 1991
Schedule 1—Serious offender offences

(viib) section 49H(1) (causing a child under the age of 16 to be present during sexual activity);	Sch. 1 cl. 1(a)(viib) inserted by No. 47/2016 s. 41(4).
(viii) section 49J(1) (persistent sexual abuse of a child under the age of 16);	Sch. 1 cl. 1(a)(viii) amended by No. 2/2006 s. 43(2)(b), substituted by No. 47/2016 s. 41(4).
(viiia) section 49C(1) (sexual penetration of a child aged 16 or 17 under care, supervision or authority);	Sch. 1 cl. 1(a)(viiia) inserted by No. 57/2005 s. 50(2)(b), substituted by No. 47/2016 s. 41(4).
(viiiab) section 49E(1) (sexual assault of a child aged 16 or 17 under care, supervision or authority);	Sch. 1 cl. 1(a)(viiiab) inserted by No. 47/2016 s. 41(4).
(viiib) section 49G(1) (sexual activity in the presence of a child aged 16 or 17 under care, supervision or authority);	Sch. 1 cl. 1(a)(viiib) inserted by No. 57/2005 s. 50(2)(b), amended by No. 18/2008 s. 17, substituted by No. 47/2016 s. 41(4).
(viiiiba) section 49I(1) (causing a child aged 16 or 17 under care, supervision or authority to be present during sexual activity);	Sch. 1 cl. 1(a)(viiiiba) inserted by No. 47/2016 s. 41(4).

Sentencing Act 1991
No. 49 of 1991
Schedule 1—Serious offender offences

Sch. 1
cl. 1(a)(ix)
substituted by
No. 47/2016
s. 41(4).

(ix) section 49S(1) (facilitating a sexual offence against a child);

Sch. 1
cl. 1(a)(ixa)
inserted by
No. 7/2014
s. 5(2),
substituted by
No. 47/2016
s. 41(4).

(ixa) section 49M(1) (grooming for sexual conduct with a child under the age of 16);

Sch. 1
cl. 1(a)(x)
amended by
No. 2/2006
s. 43(2)(c),
substituted by
No. 47/2016
s. 41(4).

(x) section 52B(1) (sexual penetration of a person with a cognitive impairment or mental illness);

Sch. 1
cl. 1(a)(xa)
inserted by
No. 47/2016
s. 41(4).

(xa) section 52C(1) (sexual assault of a person with a cognitive impairment or mental illness);

Sch. 1
cl. 1(a)(xb)
inserted by
No. 47/2016
s. 41(4).

(xb) section 52D(1) (sexual activity in the presence of a person with a cognitive impairment or mental illness);

Sch. 1
cl. 1(a)(xc)
inserted by
No. 47/2016
s. 41(4).

(xc) section 52E(1) (causing a person with a cognitive impairment or mental illness to be present during sexual activity);

Sch. 1
cl. 1(a)(xi)
amended by
No. 2/2006
s. 43(2)(d),
repealed by
No. 47/2016
s. 41(4).

* * * * *

Sentencing Act 1991
No. 49 of 1991
Schedule 1—Serious offender offences

(xii) section 46(1) (administration of an intoxicating substance for a sexual purpose);	Sch. 1 cl. 1(a)(xii) substituted by No. 47/2016 s. 41(4).
* * * * *	Sch. 1 cl. 1(a)(xiiia) inserted by No. 57/2005 s. 50(2)(c), repealed by No. 47/2016 s. 41(4).
(xiii) section 47(1) (abduction or detention for a sexual purpose);	Sch. 1 cl. 1(a)(xiii) substituted by No. 47/2016 s. 41(4).
(xiv) section 49P(1) (abduction or detention of a child under the age of 16 for a sexual purpose);	Sch. 1 cl. 1(a)(xiv) substituted by No. 47/2016 s. 41(4).
(xv) section 44(1) (procuring sexual act by threat);	Sch. 1 cl. 1(a)(xv) substituted by No. 47/2016 s. 41(4).
(xva) section 45(1) (procuring sexual act by fraud);	Sch. 1 cl. 1(a)(xva) inserted by No. 47/2016 s. 41(4).
(xvb) section 49K(1) (encouraging a child under the age of 16 to engage in, or be involved in, sexual activity);	Sch. 1 cl. 1(a)(xvb) inserted by No. 47/2016 s. 41(4).
(xvc) section 49L(1) (encouraging a child aged 16 or 17 under care, supervision or authority to engage in, or be involved in, sexual activity);	Sch. 1 cl. 1(a)(xvc) inserted by No. 47/2016 s. 41(4).

Sentencing Act 1991
No. 49 of 1991
Schedule 1—Serious offender offences

Sch. 1
cl. 1(a)(xvi)
amended by
No. 2/2006
s. 43(2)(e) (as
amended by
No. 76/2006
s. 14(2)(a)),
repealed by
No. 47/2016
s. 41(4).

* * * * *

Sch. 1
cl. 1(a)(xvia)
inserted by
No. 20/2004
s. 9,
substituted by
No. 47/2016
s. 41(4).

(xvia) section 53B(1) (using force, threat etc.
to cause another person to provide
commercial sexual services);

Sch. 1
cl. 1(a)(xviab)
inserted by
No. 47/2016
s. 41(4).

(xviab) section 53C(1) (causing another person
to provide commercial sexual services
in circumstances involving sexual
servitude);

Sch. 1
cl. 1(a)(xviac)
inserted by
No. 47/2016
s. 41(4).

(xviac) section 53D(1) (conducting a business
in circumstances involving sexual
servitude);

Sch. 1
cl. 1(a)(xvib)
inserted by
No. 20/2004
s. 9,
substituted by
No. 47/2016
s. 41(4).

(xvib) section 53E(1) (aggravated sexual
servitude);

Sch. 1
cl. 1(a)(xvic)
inserted by
No. 20/2004
s. 9,
substituted by
No. 47/2016
s. 41(4).

(xvic) section 53F(1) (deceptive recruiting for
commercial sexual services);

Sentencing Act 1991
No. 49 of 1991
Schedule 1—Serious offender offences

(xvid) section 53G(1) (aggravated deceptive recruiting for commercial sexual services);	Sch. 1 cl. 1(a)(xvid) inserted by No. 20/2004 s. 9, substituted by No. 47/2016 s. 41(4).
(xvida) section 53H(1) (causing or inducing a child to take part in commercial sexual services);	Sch. 1 cl. 1(a)(xvida) inserted by No. 7/2022 s. 78(1).
(xvidb) section 53I(1) (obtaining a commercial benefit, payment or reward for commercial sexual services provided by a child);	Sch. 1 cl. 1(a)(xvidb) inserted by No. 7/2022 s. 78(1).
(xvidc) section 53J(1) (agreement for provision of commercial sexual services by a child);	Sch. 1 cl. 1(a)(xvidc) inserted by No. 7/2022 s. 78(1).
(xvidd) section 53K(1) (allowing a child to take part in commercial sexual services);	Sch. 1 cl. 1(a)(xvidd) inserted by No. 7/2022 s. 78(1).
(xvie) section 54A(1) (bestiality);	Sch. 1 cl. 1(a)(xvie) inserted by No. 57/2005 s. 50(2)(d), substituted by No. 47/2016 s. 41(4).
* * * * *	Sch. 1 cl. 1(a)(xvif) inserted by No. 57/2005 s. 50(2)(d), repealed by No. 47/2016 s. 41(4).

Sentencing Act 1991
No. 49 of 1991
Schedule 1—Serious offender offences

Sch. 1
cl. 1(a)(xvii)
inserted by
No. 57/2005
s. 50(2)(d),
substituted by
No. 47/2016
s. 41(4).

(xvii) section 51C(1) (producing child abuse material) except if the offence only relates to child abuse material of a kind described in paragraph (a)(i)(A) of the definition of ***child abuse material*** in section 51A of the **Crimes Act 1958**, where the torture, cruelty or abuse is not sexual;

Sch. 1
cl. 1(a)(xviii)
inserted by
No. 57/2005
s. 50(2)(d),
substituted by
No. 47/2016
s. 41(4).

(xviii) section 51B(1) (involving a child in the production of child abuse material) except if the offence only relates to child abuse material of a kind described in paragraph (a)(i)(A) of the definition of ***child abuse material*** in section 51A of the **Crimes Act 1958**, where the torture, cruelty or abuse is not sexual;

Sch. 1
cl. 1(a)(xviiha)
inserted by
No. 47/2016
s. 41(4).

(xviiha) section 51D(1) (distributing child abuse material) except if the offence only relates to child abuse material of a kind described in paragraph (a)(i)(A) of the definition of ***child abuse material*** in section 51A of the **Crimes Act 1958**, where the torture, cruelty or abuse is not sexual;

Sch. 1
cl. 1(a)(xviihb)
inserted by
No. 47/2016
s. 41(4).

(xviihb) section 51H(1) (accessing child abuse material) except if the offence only relates to child abuse material of a kind described in paragraph (a)(i)(A) of the definition of ***child abuse material*** in section 51A of the **Crimes Act 1958**, where the torture, cruelty or abuse is not sexual;

Sch. 1
cl. 1(a)(xviihc)
inserted by
No. 47/2016
s. 41(4).

(xviihc) section 51G(1) (possession of child abuse material) except if the offence only relates to child abuse material of a kind described in paragraph (a)(i)(A) of the definition of ***child abuse material***

in section 51A of the **Crimes Act 1958**,
where the torture, cruelty or abuse is
not sexual;

*

*

*

*

*

Sch. 1
cl. 1(a)(xvii)
inserted by
No. 57/2005
s. 50(2)(d),
repealed by
No. 47/2016
s. 41(4).

(xviiia) section 51E(1) (administering a website
used to deal with child abuse material)
except if the offence only relates to
child abuse material of a kind described
in paragraph (a)(i)(A) of the definition
of ***child abuse material*** in section 51A
of the **Crimes Act 1958**, where the
torture, cruelty or abuse is not sexual;

Sch. 1
cl. 1(a)(xviiia)
inserted by
No. 42/2015
s. 26(2),
substituted by
No. 47/2016
s. 41(4).

(xviiib) section 51F(1) (encouraging use of a
website to deal with child abuse
material) except if the offence only
relates to child abuse material of a kind
described in paragraph (a)(i)(A) of the
definition of ***child abuse material*** in
section 51A of the **Crimes Act 1958**,
where the torture, cruelty or abuse is
not sexual;

Sch. 1
cl. 1(a)(xviiib)
inserted by
No. 42/2015
s. 26(2),
substituted by
No. 47/2016
s. 41(4).

(xviiic) section 51I(1) (assisting a person to
avoid apprehension) except if the
offence only relates to child abuse
material of a kind described in
paragraph (a)(i)(A) of the definition of
child abuse material in section 51A of
the **Crimes Act 1958**, where the
torture, cruelty or abuse is not sexual;

Sch. 1
cl. 1(a)(xviiic)
inserted by
No. 42/2015
s. 26(2),
substituted by
No. 47/2016
s. 41(4).

Sentencing Act 1991
No. 49 of 1991
Schedule 1—Serious offender offences

Sch. 1
cl. 1(a)(xvii)
inserted by
No. 57/2005
s. 50(2)(d),
substituted by
No. 47/2016
s. 41(4).

(xvii) section 49Q(1) (causing or allowing a sexual performance involving a child);

Sch. 1
cl. 1(a)(xvija)
inserted by
No. 47/2016
s. 41(4).

(xvija) section 49R(1) (inviting or offering a sexual performance involving a child);

Sch. 1
cl. 1(a)(xvii)
amended by
No. 74/2014
s. 19(3)(d),
substituted by
No. 47/2016
s. 41(4).

(xvii) section 76 (burglary) in circumstances where the offender entered the building or part of the building as a trespasser with intent to commit an offence referred to in subparagraph (i) to (ix) or (x) to (xvie);

Sch. 1
cl. 1(a)(xviii)
amended by
No. 74/2014
s. 19(3)(d),
substituted by
No. 47/2016
s. 41(4).

(xviii) section 77 (aggravated burglary) in circumstances where the offender entered the building or part of the building as a trespasser with intent to commit an offence referred to in subparagraph (i) to (ix) or (x) to (xvie);

Sch. 1 cl. 1(ab)
inserted by
No. 67/2000
s. 10(2)(b).

(ab) an offence against section 45(1) (sexual penetration of child under the age of 10) (as amended) of the **Crimes Act 1958** inserted in the **Crimes Act 1958** on 5 August 1991 by section 3 of the **Crimes (Sexual Offences) Act 1991** and repealed by section 5 of the **Crimes (Amendment) Act 2000**;

Sch. 1 cl. 1(ac)
inserted by
No. 67/2000
s. 10(2)(b).

(ac) an offence against section 46(1) (sexual penetration of child aged between 10 and 16) (as amended) of the **Crimes Act 1958** inserted in the **Crimes Act 1958** on 5 August 1991 by section 3 of the **Crimes (Sexual Offences) Act 1991** and repealed by

section 5 of the **Crimes (Amendment) Act 2000**;

- (b) an offence against, or for which the penalty or the maximum or minimum penalty is fixed by, any of the following provisions (as amended) inserted in the **Crimes Act 1958** on 5 August 1991 by section 3 of the **Crimes (Sexual Offences) Act 1991** and repealed on 1 January 1992 by section 3 of the **Crimes (Rape) Act 1991**:

Sch. 1 cl. 1(b)
amended by
No. 69/1997
s. 21.

- (i) section 40 (rape);
- (ii) section 41 (rape with aggravating circumstances);
- (iii) section 43 (indecent assault with aggravating circumstances);

- (c) an offence against, or for which the penalty or the maximum or minimum penalty is fixed by, any of the following provisions (as amended) inserted in the **Crimes Act 1958** on 1 March 1981 by section 5 of the **Crimes (Sexual Offences) Act 1980** and repealed on 5 August 1991 by section 3 of the **Crimes (Sexual Offences) Act 1991**:

Sch. 1 cl. 1(c)
amended by
No. 69/1997
s. 21.

- (i) section 44(1) (indecent assault);
- (ii) section 44(2) (indecent assault with aggravating circumstances);
- (iii) section 45(1) (rape);
- (iv) section 45(2) (attempted rape);
- (v) section 45(2) (assault with intent to commit rape);
- (vi) section 45(3) (rape with aggravating circumstances);
- (vii) section 45(4) (attempted rape with aggravating circumstances);

- (viii) section 45(4) (assault with intent to commit rape with aggravating circumstances);
- (ix) section 47(1) (sexual penetration of child under the age of 10);
- (x) section 47(2) (attempted sexual penetration of child under the age of 10);
- (xi) section 47(2) (assault with intent to take part in act of sexual penetration with child under the age of 10);
- (xii) section 48(1) (sexual penetration of child aged between 10 and 16);
- (xiii) section 48(2) (attempted sexual penetration of child aged between 10 and 16);
- (xiv) section 48(2) (assault with intent to take part in act of sexual penetration with child aged between 10 and 16);
- (xv) section 50(1) (gross indecency with child under the age of 16);
- (xvi) section 51 (sexual penetration of mentally ill or intellectually defective person);
- (xvii) section 51 (attempted sexual penetration of mentally ill or intellectually defective person);
- (xviii) section 51 (assault with intent to take part in act of sexual penetration with mentally ill or intellectually defective person);
- (xix) section 52 (incest) but not section 52(4) or (5) if both people are aged 18 or

- older and each consented to taking part in the act of sexual penetration;
- (xx) section 54 (procuring persons by threats or fraud);
- (xxi) section 55 (administration of drugs, etc.);
- (xxii) section 56 (abduction and detention);
- (xxiii) section 61 (unlawful detention for purposes of sexual penetration);
- (ca) an offence, committed on or after 1 April 1959 and before 8 November 1967, against section 68(3) of the **Crimes Act 1958** as then in force, consisting of an indecent assault upon a male person; Sch. 1 cl. 1(ca)
inserted by
No. 5/2018
s. 35.
- (d) an offence against, or for which the penalty or the maximum or minimum penalty is fixed by, any of the following provisions (as amended) of the **Crimes Act 1958** repealed on 1 March 1981 by section 5 of the **Crimes (Sexual Offences) Act 1980**: Sch. 1 cl. 1(d)
amended by
No. 69/1997
s. 21.
- (i) section 44(1) (rape);
- (ii) section 44(2) (rape with mitigating circumstances);
- (iii) section 45 (attempted rape);
- (iv) section 45 (assault with intent to rape);
- (v) section 46 (unlawfully and carnally knowing and abusing a girl under the age of 10);
- (vi) section 47 (attempting to unlawfully and carnally know and abuse girl under the age of 10);

- (vii) section 47 (assault with intent to unlawfully and carnally know and abuse girl under the age of 10);
- (viii) section 48(1) (unlawfully and carnally knowing and abusing girl aged between 10 and 16);
- (ix) section 48(2) (attempting to unlawfully and carnally know and abuse girl aged between 10 and 16);
- (x) section 48(2) (assault with intent to unlawfully and carnally know and abuse girl aged between 10 and 16);
- (xi) section 52 (incest) but not section 52(3) or (4) if the woman or girl is the sister of the offender and both are aged 18 or older and the carnal knowledge or attempt or assault with intent to have unlawful carnal knowledge was or was made with the consent of the sister;
- (xii) section 54 (carnal knowledge of female mentally ill or intellectually defective person);
- (xiii) section 54 (attempted carnal knowledge of female mentally ill or intellectually defective person);
- (xiv) section 54 (assault with intent to carnally know female mentally ill or intellectually defective person);
- (xv) section 55(1) (indecent assault);
- (xvi) section 55(3) (felonious indecent assault);
- (xvii) section 57(1) or (2) (procuring defilement of woman by threats or fraud or administering drugs);

- (xviii) section 62 (forcible abduction of woman);
- (xix) section 68(1) (buggery);
- (xx) section 68(3A) or (3B) (indecent assault on male person);
- (xxi) section 69(1) (act of gross indecency with girl under the age of 16);

*

*

*

*

*

Sch. 1 cl. 1(da)
inserted by
No. 57/2005
s. 50(2)(e),
repealed by
No. 47/2016
s. 41(5).

- (dab) an offence against any of the following provisions of the **Crimes Act 1958** inserted in the **Crimes Act 1958** on 5 August 1991 by section 3 of the **Crimes (Sexual Offences) Act 1991** and repealed by section 16 of the **Crimes Amendment (Sexual Offences) Act 2016**:

Sch. 1
cl. 1(dab)
inserted by
No. 47/2016
s. 41(5).

- (i) section 44(1) (incest);
- (ia) section 44(2) (incest);
- (ib) section 44(4) (incest) in circumstances other than where both people are aged 18 years or older and each consented to the sexual penetration;
- (ii) section 47(1) (indecent act with child under the age of 16);
- (iii) section 47A(1) (persistent sexual abuse of child under the age of 16);
- (iv) section 48(1) (sexual penetration of 16 or 17 year old child);

- (v) section 53(1) (administration of drugs etc.);
- (vi) section 54 (occupier etc. permitting unlawful sexual penetration);
- (vii) section 55 (abduction or detention);
- (viii) section 56(1) (abduction of child under the age of 16);
- (viiiia) section 56(2) (abduction of child under the age of 16);
- (ix) section 57(1) (procuring sexual penetration by threats or fraud);
- (ixa) section 57(2) (procuring sexual penetration by threats or fraud);
- (x) section 59(1) (bestiality);

Sch. 1
cl. 1(dac)
inserted by
No. 47/2016
s. 41(5).

- (dac) an offence against section 45(1) of the **Crimes Act 1958** (sexual penetration of child under the age of 16) inserted in the **Crimes Act 1958** on 22 November 2000 by section 5 of the **Crimes (Amendment) Act 2000** and repealed by section 16 of the **Crimes Amendment (Sexual Offences) Act 2016**;

Sch. 1
cl. 1(dad)
inserted by
No. 47/2016
s. 41(5).

- (dad) an offence against section 49(1) of the **Crimes Act 1958** (indecent act with 16 or 17 year old child) inserted in the **Crimes Act 1958** on 1 December 2006 by section 13 of the **Crimes (Sexual Offences) Act 2006** and repealed by section 16 of the **Crimes Amendment (Sexual Offences) Act 2016**;

Sch. 1
cl. 1(dae)
inserted by
No. 47/2016
s. 41(5).

- (dae) an offence against section 49A(1) of the **Crimes Act 1958** (facilitating sexual offences against children) inserted in the **Crimes Act 1958** on 13 June 1995 by section 93 of the **Sex Work Act 1994** and

repealed by section 16 of the **Crimes Amendment (Sexual Offences) Act 2016**;

- (daf) an offence against section 49B(2) of the **Crimes Act 1958** (grooming for sexual conduct with child under the age of 16 years) inserted in the **Crimes Act 1958** on 9 April 2014 by section 3 of the **Crimes Amendment (Grooming) Act 2014** and repealed by section 16 of the **Crimes Amendment (Sexual Offences) Act 2016**;

Sch. 1
cl. 1(daf)
inserted by
No. 47/2016
s. 41(5).

- (dag) an offence against section 51(1) of the **Crimes Act 1958** (sexual offences against persons with a cognitive impairment by providers of medical or therapeutic services) inserted in the **Crimes Act 1958** on 1 December 2006 by section 16 of the **Crimes (Sexual Offences) Act 2006** and repealed by section 16 of the **Crimes Amendment (Sexual Offences) Act 2016**;

Sch. 1
cl. 1(dag)
inserted by
No. 47/2016
s. 41(5).

- (daga) an offence against section 51(2) of the **Crimes Act 1958** (sexual offences against persons with a cognitive impairment by providers of medical or therapeutic services) inserted in the **Crimes Act 1958** on 1 December 2006 by section 16 of the **Crimes (Sexual Offences) Act 2006** and repealed by section 16 of the **Crimes Amendment (Sexual Offences) Act 2016**;

Sch. 1
cl. 1(daga)
inserted by
No. 47/2016
s. 41(5).

- (dah) an offence against section 52(1) of the **Crimes Act 1958** (sexual offences against persons with a cognitive impairment by workers) inserted in the **Crimes Act 1958** on 1 December 2006 by section 17 of the **Crimes (Sexual Offences) Act 2006** and repealed by section 16 of the **Crimes Amendment (Sexual Offences) Act 2016**;

Sch. 1
cl. 1(dah)
inserted by
No. 47/2016
s. 41(5).

Sentencing Act 1991
No. 49 of 1991
Schedule 1—Serious offender offences

Sch. 1
cl. 1(daha)
inserted by
No. 47/2016
s. 41(5).

(daha) an offence against section 52(2) of the **Crimes Act 1958** (sexual offences against persons with a cognitive impairment by workers) inserted in the **Crimes Act 1958** on 1 December 2006 by section 17 of the **Crimes (Sexual Offences) Act 2006** and repealed by section 16 of the **Crimes Amendment (Sexual Offences) Act 2016**;

Sch. 1
cl. 1(dai)
inserted by
No. 47/2016
s. 41(5).

(dai) an offence against section 53(2) of the **Crimes Act 1958** (administration of drugs etc.) inserted in the **Crimes Act 1958** on 11 February 2009 by section 3 of the **Crimes Legislation Amendment (Food and Drink Spiking) Act 2009** and repealed by section 16 of the **Crimes Amendment (Sexual Offences) Act 2016**;

Sch. 1
cl. 1(daj)
inserted by
No. 47/2016
s. 41(5).

(daj) an offence against section 58(1) of the **Crimes Act 1958** (procuring sexual penetration of a child) inserted in the **Crimes Act 1958** on 1 December 2006 by section 18 of the **Crimes (Sexual Offences) Act 2006** and repealed by section 16 of the **Crimes Amendment (Sexual Offences) Act 2016**;

Sch. 1
cl. 1(daja)
inserted by
No. 47/2016
s. 41(5).

(daja) an offence against section 58(2) of the **Crimes Act 1958** (procuring sexual penetration of a child) inserted in the **Crimes Act 1958** on 1 December 2006 by section 18 of the **Crimes (Sexual Offences) Act 2006** and repealed by section 16 of the **Crimes Amendment (Sexual Offences) Act 2016**;

Sch. 1
cl. 1(dajb)
inserted by
No. 47/2016
s. 41(5).

(dajb) an offence against section 58(3) of the **Crimes Act 1958** (procuring sexual penetration of a child) inserted in the **Crimes Act 1958** on 1 December 2006 by section 18 of the **Crimes (Sexual Offences) Act 2006** and repealed by section 16 of the **Crimes Amendment (Sexual Offences) Act 2016**;

- | | |
|---|--|
| (dak) an offence against section 60A(1) of the Crimes Act 1958 (sexual offence while armed with an offensive weapon) inserted in the Crimes Act 1958 on 15 August 1993 by section 21 of the Sentencing (Amendment) Act 1993 and repealed by section 16 of the Crimes Amendment (Sexual Offences) Act 2016 ; | Sch. 1
cl. 1(dak)
inserted by
No. 47/2016
s. 41(5). |
| (dal) an offence against section 60AB(2) of the Crimes Act 1958 (sexual servitude) inserted in the Crimes Act 1958 on 19 May 2004 by section 3 of the Justice Legislation (Sexual Offences and Bail) Act 2004 and repealed by section 16 of the Crimes Amendment (Sexual Offences) Act 2016 ; | Sch. 1
cl. 1(dal)
inserted by
No. 47/2016
s. 41(5). |
| (dala) an offence against section 60AB(3) of the Crimes Act 1958 (sexual servitude) inserted in the Crimes Act 1958 on 19 May 2004 by section 3 of the Justice Legislation (Sexual Offences and Bail) Act 2004 and repealed by section 16 of the Crimes Amendment (Sexual Offences) Act 2016 ; | Sch. 1
cl. 1(dala)
inserted by
No. 47/2016
s. 41(5). |
| (dalb) an offence against section 60AB(4) of the Crimes Act 1958 (sexual servitude) inserted in the Crimes Act 1958 on 19 May 2004 by section 3 of the Justice Legislation (Sexual Offences and Bail) Act 2004 and repealed by section 16 of the Crimes Amendment (Sexual Offences) Act 2016 ; | Sch. 1
cl. 1(dalb)
inserted by
No. 47/2016
s. 41(5). |
| (dalc) an offence against section 60AC(1) of the Crimes Act 1958 (aggravated sexual servitude) inserted in the Crimes Act 1958 on 19 May 2004 by section 3 of the Justice Legislation (Sexual Offences and Bail) Act 2004 and repealed by section 16 of the Crimes Amendment (Sexual Offences) Act 2016 ; | Sch. 1
cl. 1(dalc)
inserted by
No. 47/2016
s. 41(5). |

Sch. 1
cl. 1(dald)
inserted by
No. 47/2016
s. 41(5).

(dald) an offence against section 60AD(1) of the **Crimes Act 1958** (deceptive recruiting for commercial sexual services) inserted in the **Crimes Act 1958** on 19 May 2004 by section 3 of the **Justice Legislation (Sexual Offences and Bail) Act 2004** and repealed by section 16 of the **Crimes Amendment (Sexual Offences) Act 2016**;

Sch. 1
cl. 1(dale)
inserted by
No. 47/2016
s. 41(5).

(dale) an offence against section 60AE(1) of the **Crimes Act 1958** (aggravated deceptive recruiting for commercial sexual services) inserted in the **Crimes Act 1958** on 19 May 2004 by section 3 of the **Justice Legislation (Sexual Offences and Bail) Act 2004** and repealed by section 16 of the **Crimes Amendment (Sexual Offences) Act 2016**;

Sch. 1
cl. 1(dam)
inserted by
No. 47/2016
s. 41(5).

(dam) an offence against section 68(1) of the **Crimes Act 1958** (production of child pornography) inserted in the **Crimes Act 1958** on 1 January 1996 by section 88 of the **Classification (Publications, Films and Computer Games) (Enforcement) Act 1995** and repealed by section 18 of the **Crimes Amendment (Sexual Offences) Act 2016**;

Sch. 1
cl. 1(dama)
inserted by
No. 47/2016
s. 41(5).

(dama) an offence against section 69(1) of the **Crimes Act 1958** (procurement etc. of minor for child pornography) inserted in the **Crimes Act 1958** on 1 January 1996 by section 88 of the **Classification (Publications, Films and Computer Games) (Enforcement) Act 1995** and repealed by section 18 of the **Crimes Amendment (Sexual Offences) Act 2016**;

Sch. 1
cl. 1(dan)
inserted by
No. 47/2016
s. 41(5).

(dan) an offence against section 70(1) of the **Crimes Act 1958** (possession of child pornography) inserted in the **Crimes**

Act 1958 on 22 November 2000 by section 6 of the **Crimes (Amendment) Act 2000** and repealed by section 18 of the **Crimes Amendment (Sexual Offences) Act 2016**;

- (dao) an offence against section 70AAAB(1) of the **Crimes Act 1958** (administering a child pornography website) inserted in the **Crimes Act 1958** on 1 December 2015 by section 6 of the **Crimes Amendment (Child Pornography and Other Matters) Act 2015** and repealed by section 18 of the **Crimes Amendment (Sexual Offences) Act 2016**;

Sch. 1
cl. 1(dao)
inserted by
No. 47/2016
s. 41(5).

- (daoa) an offence against section 70AAAC(1) of the **Crimes Act 1958** (encouraging use of a website to deal with child pornography) inserted in the **Crimes Act 1958** on 1 December 2015 by section 6 of the **Crimes Amendment (Child Pornography and Other Matters) Act 2015** and repealed by section 18 of the **Crimes Amendment (Sexual Offences) Act 2016**;

Sch. 1
cl. 1(daoa)
inserted by
No. 47/2016
s. 41(5).

- (daob) an offence against section 70AAD(1) of the **Crimes Act 1958** (assisting a person to avoid apprehension) inserted in the **Crimes Act 1958** on 1 December 2015 by section 6 of the **Crimes Amendment (Child Pornography and Other Matters) Act 2015** and repealed by section 18 of the **Crimes Amendment (Sexual Offences) Act 2016**;

Sch. 1
cl. 1(daob)
inserted by
No. 47/2016
s. 41(5).

- (dap) an offence against section 70AC of the **Crimes Act 1958** (sexual performance involving a minor) inserted in the **Crimes Act 1958** on 19 May 2004 by section 7 of the **Justice Legislation (Sexual Offences and Bail) Act 2004** and repealed by

Sch. 1
cl. 1(dap)
inserted by
No. 47/2016
s. 41(5).

Sch. 1
cl. 1(daq)
inserted by
No. 47/2016
s. 41(5).

section 18 of the **Crimes Amendment (Sexual Offences) Act 2016**;
(daq) an offence against section 57A of the **Classification (Publications, Films and Computer Games) (Enforcement) Act 1995** (publication or transmission of child pornography) inserted in the **Classification (Publications, Films and Computer Games) (Enforcement) Act 1995** on 8 November 2001 by section 16 of the **Classification (Publications, Films and Computer Games) (Enforcement) (Amendment) Act 2001** and repealed by section 34 of the **Crimes Amendment (Sexual Offences) Act 2016**;

Sch. 1
cl. 1(dar)
inserted by
No. 47/2016
s. 41(5).

(dar) an offence referred to in paragraph (a)(xvii) or (xviii) as in force immediately before the commencement of section 41 of the **Crimes Amendment (Sexual Offences) Act 2016**.

Sch. 1
cl. 1(db)
inserted by
No. 57/2005
s. 50(2)(e),
amended by
Nos 63/2010
s. 81(Sch.
item 10(a)),
7/2022
s. 78(2).

(db) an offence against any of the following sections of the **Sex Work Act 1994** despite its repeal by the **Sex Work Decriminalisation Act 2022**:

Sch. 1
cl. 1(db)(i)
amended by
No. 63/2010
s. 81(Sch.
item 10(b)).

(i) section 5(1) (causing or inducing a child to take part in sex work);

(ii) section 6(1) (obtaining payment for sexual services provided by a child);

(iii) section 7(1) (agreement for provision of sexual services by a child);

Sentencing Act 1991
No. 49 of 1991
Schedule 1—Serious offender offences

- | | |
|--|--|
| (iv) section 11(1) (allowing child to take part in sex work); | Sch. 1
cl. 1(db)(iv)
amended by
No. 63/2010
s. 81(Sch.
item 10(b)). |
| (dc) an offence against any of the following sections of the Crimes Act 1914 of the Commonwealth: | Sch. 1 cl. 1(dc)
inserted by
No. 57/2005
s. 50(2)(e). |
| (i) section 50BA(1) (sexual intercourse with child under 16); | |
| (ii) section 50BB(1) (inducing child under 16 to engage in sexual intercourse); | |
| (iii) section 50BC(1) (sexual conduct involving child under 16); | |
| (iv) section 50BD(1) (inducing child under 16 to be involved in sexual conduct); | |
| (v) section 50DA(1) (benefiting from offence against Part IIIA); | |
| (vi) section 50DB(1) (encouraging offences against Part IIIA); | |
| (dd) an aggravated offence against any of the following sections of the Criminal Code of the Commonwealth: | Sch. 1
cl. 1(dd)
inserted by
No. 57/2005
s. 50(2)(e). |
| (i) section 270.6 (sexual servitude offences); | |
| (ii) section 270.7 (deceptive recruiting for sexual services); | |

Note

The Criminal Code of the Commonwealth is contained in the Schedule to the Criminal Code Act 1995 of the Commonwealth.

Sentencing Act 1991
No. 49 of 1991
Schedule 1—Serious offender offences

Sch. 1 cl. 1(de)
inserted by
No. 57/2005
s. 50(2)(e).

(de) an offence against section 233BAB(5) or 233BAB(6) of the Customs Act 1901 of the Commonwealth (special offence relating to tier 2 goods) where the goods are goods covered by section 233BAB(1)(h) of that Act;

Sch. 1 cl. 1(df)
inserted by
No. 57/2005
s. 50(2)(e).

- (df) an offence against any of the following sections of the Criminal Code of the Commonwealth:
- (i) section 271.4 (trafficking in children) or section 271.7 (domestic trafficking in children) in circumstances where the purpose of the exploitation is to provide sexual services within the meaning of that section;
 - (ii) section 474.19(1) (using a carriage service for child pornography material);
 - (iii) section 474.20(1) (possessing, controlling, producing, supplying or obtaining child pornography material for use through a carriage service);
 - (iv) section 474.22(1) (using a carriage service for child abuse material);
 - (v) section 474.23(1) (possessing, controlling, producing, supplying or obtaining child abuse material through a carriage service);
 - (vi) section 474.26 (using a carriage service to procure persons under 16 years of age);
 - (vii) section 474.27 (using a carriage service to "groom" persons under 16 years of age);

- (dg) an offence that, at the time it was committed, was an offence to which this clause applied;
- (e) any of the following common law offences:
- (i) rape;
 - (ii) attempted rape;
 - (iii) assault with intent to rape;
- (f) an offence of conspiracy to commit, incitement to commit or attempting to commit an offence referred to in paragraphs (a) to (e);
- (g) any other offence, whether committed in Victoria or elsewhere, the necessary elements of which consist of elements that constitute any of the offences referred to in paragraphs (a) to (f).

Sch. 1
cl. 1(dg)
inserted by
No. 2/2006
s. 43(2)(f) (as
amended by
No. 76/2006
s. 14(2)(b)).

Sch. 1 cl. 1(f)
amended by
No. 57/2005
s. 50(2)(f).

Sch. 1 cl. 1(g)
inserted by
No. 57/2005
s. 50(2)(g).

2 Violent offences

This clause applies to the following offences—

- (a) murder;
- (b) manslaughter;
- (baa) child homicide;

Sch. 1 cl. 2(baa)
inserted by
No. 7/2008
s. 7(4)(b).

* * * * *

Sch. 1 cl. 2(ba)
inserted by
No. 77/2005
s. 8(4)(b),
repealed by
No. 63/2014
s. 5(3)(b).

Sentencing Act 1991
No. 49 of 1991
Schedule 1—Serious offender offences

Sch. 1 cl. 2(bb)
inserted by
No. 16/2020
s. 25.

(bb) homicide by firearm;

Sch. 1 cl. 2(c)
amended by
No. 69/1997
s. 21.

(c) an offence against, or for which the penalty
or the maximum or minimum penalty is
fixed by, any of the following sections of the
Crimes Act 1958:

Sch. 1
cl. 2(c)(iaa)
inserted by
No. 6/2013
s. 10(1).

(iaa) section 15A (causing serious injury
intentionally in circumstances of gross
violence);

Sch. 1
cl. 2(c)(iab)
inserted by
No. 6/2013
s. 10(1).

(iab) section 15B (causing serious injury
recklessly in circumstances of gross
violence);

(i) section 16 (causing serious injury
intentionally);

(ii) section 17 (causing serious injury
recklessly);

Sch. 1
cl. 2(c)(iii)
repealed by
No. 17/2015
s. 4(1).

* * * * *

(iv) section 20 (threats to kill);

(v) section 21 (threats to inflict serious
injury);

(vi) section 63A (kidnapping);

Sch. 1 cl. 2(d)
amended by
No. 69/1997
s. 21.

(d) an offence against, or for which the penalty
or the maximum or minimum penalty is
fixed by, any of the following provisions
(as amended) of the **Crimes Act 1958**
repealed on 24 March 1986 by section 8(2)
of the **Crimes (Amendment) Act 1985**:

- (i) section 17 (intentionally causing grievous bodily harm or shooting, etc. with intention to do grievous bodily harm or to resist or prevent arrest);
- (ii) section 19A (inflicting grievous bodily harm);
- (iii) section 20 (attempting to choke, etc. in order to commit an indictable offence);
- (iv) section 35B (making demand with threat to kill or injure or endanger life);
- (da) an offence against section 19A (intentionally causing a very serious disease) of the **Crimes Act 1958** repealed by section 3 of the **Crimes Amendment (Repeal of Section 19A) Act 2015**; Sch. 1 cl. 2(da) inserted by No. 17/2015 s. 4(2).
- (e) the common law offence of kidnapping;
- (f) an offence of conspiracy to commit, incitement to commit or attempting to commit an offence referred to in paragraphs (a) to (e); Sch. 1 cl. 2(f) amended by No. 57/2005 s. 50(3)(a).
- (g) any other offence, whether committed in Victoria or elsewhere, the necessary elements of which consist of elements that constitute any of the offences referred to in paragraphs (a) to (f). Sch. 1 cl. 2(g) amended by No. 57/2005 s. 50(3)(b).

3 Serious violent offences

This clause applies to the following offences—

- (a) murder;
- (b) an offence against, or for which the penalty or the maximum or minimum penalty is fixed by, any of the following sections of the **Crimes Act 1958**: Sch. 1 cl. 3(b) amended by No. 69/1997 s. 21.

Sentencing Act 1991
No. 49 of 1991
Schedule 1—Serious offender offences

Sch. 1
cl. 3(b)(iaa)
inserted by
No. 6/2013
s. 10(2).

(iaa) section 15A (causing serious injury intentionally in circumstances of gross violence);

Sch. 1
cl. 3(b)(iab)
inserted by
No. 6/2013
s. 10(2).

(iab) section 15B (causing serious injury recklessly in circumstances of gross violence);

(i) section 16 (causing serious injury intentionally);

Sch. 1
cl. 3(b)(ii)
repealed by
No. 17/2015
s. 4(3).

* * * * *

(iii) section 20 (threats to kill);

Sch. 1 cl. 3(c)
amended by
No. 69/1997
s. 21.

(c) an offence against, or for which the penalty or the maximum or minimum penalty is fixed by, any of the following provisions (as amended) of the **Crimes Act 1958** repealed on 24 March 1986 by section 8(2) of the **Crimes (Amendment) Act 1985**:

(i) section 17 (intentionally causing grievous bodily harm or shooting, etc. with intention to do grievous bodily harm or to resist or prevent arrest);

(ii) section 35B (making demand with threat to kill or injure or endanger life);

Sch. 1 cl. 3(ca)
inserted by
No. 17/2015
s. 4(4).

(ca) an offence against section 19A (intentionally causing a very serious disease) of the **Crimes Act 1958** repealed by section 3 of the **Crimes Amendment (Repeal of Section 19A) Act 2015**;

- | | |
|--|--|
| (d) an offence of conspiracy to commit, incitement to commit or attempting to commit an offence referred to in paragraphs (a) to (ca); | Sch. 1 cl. 3(d) amended by Nos 57/2005 s. 50(4)(a), 17/2015 s. 4(5). |
| (e) any other offence, whether committed in Victoria or elsewhere, the necessary elements of which consist of elements that constitute any of the offences referred to in paragraphs (a) to (d). | Sch. 1 cl. 3(e) inserted by No. 57/2005 s. 50(4)(b). |

4 Drug offences

This clause applies to the following offences—

- | | |
|--|--|
| (a) an offence against any of the following sections of the Drugs, Poisons and Controlled Substances Act 1981 : | |
| (i) section 71 (trafficking in a quantity of a drug or drugs of dependence that is not less than the large commercial quantity applicable to that drug or those drugs); | Sch. 1 cl. 4(a)(i) substituted by No. 61/2001 s. 14(1). |
| (ii) section 71AA(1) (trafficking in a quantity of a drug or drugs of dependence that is not less than the commercial quantity applicable to that drug or those drugs); | Sch. 1 cl. 4(a)(ii) substituted by No. 61/2001 s. 14(1), amended by No. 3/2019 s. 21(3). |
| (iia) section 71AA(2) (trafficking in a quantity of a drug or drugs of dependence that is not less than the commercial quantity applicable to that drug or those drugs for the benefit of or at the direction of a criminal organisation); | Sch. 1 cl. 4(a)(iia) inserted by No. 3/2019 s. 21(4). |
| (iii) section 72 (cultivation of a narcotic plant in a quantity of a drug of dependence, being a narcotic plant, that is not less than the large commercial | Sch. 1 cl. 4(a)(iii) substituted by No. 61/2001 s. 14(1). |

Sch. 1
cl. 4(a)(iv)
substituted by
No. 61/2001
s. 14(1).

quantity applicable to that narcotic plant);

- (iv) section 72A (cultivation of a narcotic plant in a quantity of a drug of dependence, being a narcotic plant, that is not less than the commercial quantity applicable to that narcotic plant);

Sch. 1
cl. 4(a)(v)
substituted by
No. 61/2001
s. 14(1).

- (v) section 79(1) or 80(3)(a) (conspiracy) where the conspiracy is to commit an offence against section 71, 71AA, 72 or 72A of that Act or an offence under a law in force in a place outside Victoria that is a corresponding law in relation to section 71, 71AA, 72 or 72A of that Act;

Sch. 1
cl. 4(a)(vi)
inserted by
No. 61/2001
s. 14(1),
substituted by
No. 79/2014
s. 64.

- (vi) section 80(1) (inciting) where the offence that is incited is an offence against section 71, 71AA, 72 or 72A of that Act;

Sch. 1
cl. 4(a)(via)
inserted by
No. 79/2014
s. 64.

- (via) section 80(3)(b) (aiding, abetting etc. an offence outside Victoria) where the offence that is aided, abetted, counselled or procured is an offence under a law in force in a place outside Victoria that is a corresponding law in relation to section 71, 71AA, 72 or 72A of that Act;

Sch. 1
cl. 4(a)(vii)
inserted by
No. 61/2001
s. 14(1).

- (vii) section 80(4) (preparatory act) where the offence to which the act relates is an offence under a law in force in a place outside Victoria that is a corresponding law in relation to section 71, 71AA, 72 or 72A of that Act;

(ab) an offence against any of the following provisions of the **Drugs, Poisons and Controlled Substances Act 1981** as in force immediately before the commencement of the **Drugs, Poisons and Controlled Substances (Amendment) Act 2001**—

Sch. 1 cl. 4(ab)
inserted by
No. 35/2002
s. 28(Sch.
item 5.2).

- (i) section 71 (trafficking in a drug of dependence) in circumstances where the offence is committed in relation to a quantity of a drug of dependence that is not less than the commercial quantity applicable to that drug of dependence;
- (ii) section 72 (cultivation of narcotic plants) in circumstances where the offence is committed in relation to a quantity of a drug of dependence, being a narcotic plant, that is not less than the commercial quantity applicable to that narcotic plant;
- (iii) section 79(1) or 80(3)(a) (conspiracy) in circumstances where the conspiracy is to commit an offence against section 71 of that Act in relation to a quantity of a drug of dependence that is not less than the commercial quantity applicable to that drug of dependence or an offence under a law in force in a place outside Victoria that is a corresponding law in relation to that section in relation to that quantity;
- (iv) section 80(1) or 80(3)(b) (aiding and abetting etc.) in circumstances where the offence that is aided, abetted, counselled, procured, solicited or incited is an offence against section 71 of that Act in relation to a quantity of a drug of dependence that is not less than

the commercial quantity applicable to that drug of dependence or an offence under a law in force in a place outside Victoria that is a corresponding law in relation to that section in relation to that quantity;

- (v) section 80(4) (preparatory act) in circumstances where the offence to which the act relates is an offence under a law in force in a place outside Victoria that is a corresponding law in relation to section 71 of that Act in relation to a quantity of a drug of dependence that is not less than the commercial quantity applicable to that drug of dependence;

Sch. 1 cl. 4(ac)
inserted by
No. 35/2002
s. 28(Sch.
item 5.2).

- (ac) an offence of attempting to commit an offence referred to in paragraph (ab)(i);

Sch. 1 cl. 4(b)
amended by
No. 93/2005
s. 15(1)(a)(b).

- (b) an offence against section 233B(1) of the Customs Act 1901 of the Commonwealth (narcotic goods) as in force immediately before the commencement of the Law and Justice Legislation Amendment (Serious Drug Offences and Other Measures) Act 2005 of the Commonwealth, in the circumstances referred to in the following sections of that Act as in force immediately before that commencement:

- (i) section 235(2)(c)(i) (commercial quantity);
- (ii) section 235(2)(c)(ii)(A) (trafficable quantity and previous conviction involving trafficable quantity);

- | | |
|--|--|
| <p>(iii) section 235(2)(c)(ii)(B) (trafficable quantity and previous finding that offender had committed offence involving trafficable quantity without conviction recorded);</p> <p>(iv) section 235(2)(d)(i) (trafficable quantity of narcotic goods other than cannabis);</p> <p>(ba) an offence against section 307.1, 307.2, 307.5, 307.6, 307.8 or 307.9 of the Criminal Code of the Commonwealth;</p> | <p>Sch. 1 cl. 4(ba) inserted by No. 29/2011 s. 3(Sch. 1 item 84(b)).</p> |
| <p>(c) any other offence, whether committed in Victoria or elsewhere, the necessary elements of which consist of elements that constitute any of the offences referred to in paragraphs (a) to (ba).</p> | <p>Sch. 1 cl. 4(c) inserted by No. 57/2005 s. 50(5) (as amended by No. 93/2005 s. 16).</p> |
| <p>* * * *</p> | <p>Sch. 1 cl. 4(ba) inserted by No. 93/2005 s. 15(2), repealed by No. 29/2011 s. 3(Sch. 1 item 84(a)).</p> |
| <p>* * * *</p> | <p>Sch. 1 cl. 4(c) repealed by No. 61/2001 s. 14(2).</p> |

5 Arson offences

This clause applies to the following offences—

- (a) an offence against any of the following sections of the **Crimes Act 1958**:
- (i) section 197 (destroying or damaging property) in circumstances where the offence is charged as arson;
 - (ii) section 197A (arson causing death);

Sentencing Act 1991
No. 49 of 1991
Schedule 1—Serious offender offences

Sch. 1
cl. 5(a)(iii)
inserted by
No. 10/2003
s. 13.

(iii) section 201A (intentionally or recklessly causing a bushfire);

Sch. 1 cl. 5(ba)
inserted by
No. 69/2014
s. 19(a).

(b) the common law offence of arson;

(ba) an offence against section 66 of the **Forests Act 1958** (placing inflammable material for the purpose of causing fire);

Sch. 1
cl. 5(bb)
inserted by
No. 69/2014
s. 19(a).

(bb) an offence against section 39C of the **Country Fire Authority Act 1958** (causing fire in a country area with intent to cause damage);

Sch. 1 cl. 5(c)
amended by
Nos 69/2014
s. 19(b),
21/2015
s. 3(Sch. 1
item 47.5),
34/2017
s. 43(1).

(c) an offence of conspiracy to commit, incitement to commit or attempting to commit an offence referred to in paragraph (a), (b), (ba) or (bb);

Sch. 1 cl. 5(d)
inserted by
No. 34/2017
s. 43(2).

(d) any other offence, whether committed in Victoria or elsewhere, the necessary elements of which consist of elements that constitute any of the offences referred to in paragraphs (a) to (c).

Schedule 1A—Continuing criminal enterprise offences

Sch. 1A
inserted by
No. 108/1997
s. 149.

1. An offence against any of the following provisions of the **Crimes Act 1958**:
 - (a) section 74(1) (theft) where the value of the property stolen is \$50 000 or more;
 - (b) section 75(1) (robbery) where the value of the property stolen is \$50 000 or more;
 - (c) section 75A(1) (armed robbery) where the value of the property stolen is \$50 000 or more;
 - (d) section 81(1) (obtaining property by deception) where the value of the property obtained is \$50 000 or more;
 - (e) section 82(1) (obtaining financial advantage by deception) where the value of the financial advantage obtained is \$50 000 or more;
 - (f) section 83(1) (false accounting) where the potential gain or loss is \$50 000 or more;
 - (g) section 88(2) (handling stolen goods) where the value of the goods handled is \$50 000 or more;
 - (h) section 197(1), (2) or (3) (destroying or damaging property) where the value of the property destroyed or damaged is \$50 000 or more.
2. Any Schedule 2 offence within the meaning of the **Confiscation Act 1997** where the value of the property in respect of which the offence is committed is \$50 000 or more.
3. The common law offence of conspiracy to defraud where the property, financial advantage or economic loss in respect of which the offence is committed is \$50 000 or more.

Sch. 1A cl. 2
amended by
No. 87/2004
s. 24(b).

Sentencing Act 1991
No. 49 of 1991
Schedule 1A—Continuing criminal enterprise offences

Sch. 1A cl. 4
inserted by
No. 68/2010
s. 70(4).

4. An offence against section 111A, 111B or 111C of the **Fisheries Act 1995** where the quantity of fish in respect of which the offence is committed is not less than 5 times the commercial quantity (within the meaning of that Act).

Schedule 2—Forms for use where other offences taken into account in sentencing

PART A

To

Charged with (1)

(2)

(3)

(4)

Before the

Court at

MEMORANDUM FOR THE ACCUSED'S INFORMATION

- (1) The list on the back of this form gives particulars of
other alleged offences with which you are charged.
- (2) If you are convicted on the charge(s) set out above you may, before
sentence is passed, ask to be allowed to admit all or any of the other
offences listed on the back of this form and to have them taken into
account by the court in passing sentence on you.
- (3) If at your request any of the other offences listed on the back are
taken into account by the court, then—
 - (a) this does not amount to a conviction in respect of the other
offences taken into account;
 - (b) the sentence that may be imposed on you by the court for
each offence of which you have in fact been convicted
cannot exceed the maximum that might have been imposed
for it if there had been no taking into account of other
offences listed on the back.
- (4) No further proceedings may be taken against you in respect of any
other offences taken into account at your request unless your
conviction for the offence(s) above is set aside.
- (5) If any proceedings are taken against you in respect of any offence
that you have asked to have taken into account your admission of
that offence cannot be used as evidence against you in those
proceedings.

Signature of (*police officer*) or
(*Associate Crown Prosecutor*) or (*Crown Prosecutor*) or (*Director
of Public Prosecutions*)

Date

Sch. 2
amended by
No. 8/1991
s. 20(3) (as
amended by
No. 49/1991
s. 119(2)),
substituted by
No. 48/1997
s. 34,
amended by
Nos 68/2009
s. 97(Sch.
item 110.84),
37/2014
s. 10(Sch.
item 151.8).

Signature of accused acknowledging receipt of a
copy of this document

Signature of (Judge)
or
(Magistrate)

<i>Number</i>	<i>Place where offence committed</i>	<i>Date of offence</i>	<i>Description of offence (with particulars)</i>
1			
2			
3			
4			
etc.			

Schedule 3—Transitional provisions— Sentencing Amendment (Community Correction Reform) Act 2011

Part 1—Definitions

1 Definitions

In this Schedule—

old combined custody and treatment order means
a combined custody and treatment order
within the meaning of section 3(1) as in
force before the commencement of
section 12 of the **Sentencing Amendment
(Community Correction Reform)
Act 2011**, being an order in force
immediately before that commencement;

old community-based order means a
community-based order within the
meaning of section 3(1) as in force before
the commencement of section 21 of the
**Sentencing Amendment (Community
Correction Reform) Act 2011**, being an
order in force immediately before that
commencement;

old intensive correction order means an intensive
correction order within the meaning of
section 3(1) as in force before the
commencement of section 15 of the
**Sentencing Amendment (Community
Correction Reform) Act 2011**, being an
order in force immediately before that
commencement.

Sch. 3
(Heading)
substituted by
No. 45/2012
s. 11(2).

Sch. 3
amended by
No. 81/1991
s. 10(Sch.
item 3.1),
repealed by
No. 48/1997
s. 34, new
Sch. 3
inserted by
No. 65/2011
s. 54,
amended by
No. 45/2012
s. 11(1).

Part 2—Sentencing Amendment (Community Correction Reform) Act 2011

2 Combined custody and treatment orders

Subject to clause 7 and despite the commencement of section 12 of the **Sentencing Amendment (Community Correction Reform) Act 2011**, an old combined custody and treatment order is taken to continue in force on and from that commencement as if this Act, as in force before that commencement, continued to apply to it.

3 Intensive correction orders

Subject to clause 9 and despite the commencement of section 15 of the **Sentencing Amendment (Community Correction Reform) Act 2011**, an old intensive correction order is taken to continue in force on and from that commencement as if this Act, as in force before that commencement, continued to apply to it.

4 Community-based orders

Subject to clause 10 and despite the commencement of section 21 of the **Sentencing Amendment (Community Correction Reform) Act 2011**, an old community-based order is taken to continue in force on and from that commencement as if this Act, as in force before that commencement, continued to apply to it.

5 Community correction orders

Section 37 as inserted by section 21 of the **Sentencing Amendment (Community Correction Reform) Act 2011** applies to a sentence imposed on or after the commencement of section 21 of that Act, irrespective of when the offence was committed or the finding of guilt was made.

Sch. 3 cl. 5
amended by
No. 45/2012
s. 12.

6 Contravention—Suspended sentences

- (1) Divisions 1 and 2 of Part 3C apply to a suspended sentence order that is made on or after the commencement of section 18 of the **Sentencing Amendment (Community Correction Reform) Act 2011**. Sch. 3 cl. 6(1)
amended by
No. 32/2013
s. 38(1).
- (2) Divisions 1 and 2 of Part 3C apply to a contravention of a pre-existing suspended sentence order that occurs on or after the commencement of section 18 of the **Sentencing Amendment (Community Correction Reform) Act 2011**. Sch. 3 cl. 6(2)
amended by
No. 32/2013
s. 38(2).
- (3) In this clause—
- pre-existing suspended sentence order* means a suspended sentence order made before the commencement of section 18 of the **Sentencing Amendment (Community Correction Reform) Act 2011**;
- suspended sentence order* means an order made under section 27.

7 Contravention—Old combined custody and treatment orders

- (1) An offender who is subject to an old combined custody and treatment order must not, unless that person has a reasonable excuse, contravene that order.
- Penalty: 3 months imprisonment.
- (2) Subclause (1) does not apply to a contravention of an old combined custody and treatment order that occurs before the commencement of section 12 of the **Sentencing Amendment (Community Correction Reform) Act 2011**. Sch. 3 cl. 7(2)
amended by
No. 43/2012
s. 3(Sch.
item 46.3).

Sentencing Act 1991
No. 49 of 1991
Schedule 3—Transitional provisions—Sentencing Amendment (Community
Correction Reform) Act 2011

Sch. 3 cl. 7(3)
amended by
No. 32/2013
s. 39.

(3) Subject to subclause (4), Divisions 1 and 2 of Part 3C apply to an offence under subclause (1) as if any reference in Divisions 1 and 2 of that Part to an offence under section 83AD were a reference to an offence under subclause (1).

(4) If in a proceeding for an offence under subclause (1) for a contravention of an old combined custody and treatment order, the court finds the person guilty of the offence the court, in addition to sentencing the offender for that offence, must—

Sch. 3
cl. 7(4)(a)
substituted by
No. 26/2012
s. 67.

(a) whether or not the order has expired, confirm the order that was contravened and if necessary to enable the offender to perform the remaining period and conditions of the order, vary the duration and dates of the order; or

(b) whether or not the offender has served any part of the sentence in the community, order the offender to serve in custody the whole or part of the sentence that was to be served in the community.

(5) The court must make an order under subclause (4)(b), unless the court is of the opinion that it would be unjust to do so in view of any exceptional circumstances which have arisen since the order that was contravened was made.

(6) If the court decides not to exercise the power under subclause (4)(b) it must state its reasons for doing so in writing.

(7) If the court makes an order under subclause (4)(b), the term of imprisonment which the offender must serve in custody must be served—

- (a) immediately or, if the offender is still serving the original custodial part of the sentence, immediately on completion of service of that part of the sentence; and
- (b) unless the court otherwise orders, cumulatively on any other term of imprisonment previously imposed on the offender by that or any other court.

8 Contravention—pre-existing home detention orders

- (1) An offender who is subject to a pre-existing home detention order must not, unless that person has a reasonable excuse, commit a serious contravention of that order.

Penalty: 3 months imprisonment.

- (2) This clause does not apply to a contravention of a pre-existing home detention order—
 - (a) that occurs before the commencement of section 43 of the **Sentencing Amendment (Community Correction Reform) Act 2011**; or
 - (b) a contravention of a home detention order that is not a serious contravention.
- (3) Subject to this clause, Divisions 1 and 2 of Part 3C apply to an offence under this clause as if any reference in Divisions 1 and 2 of that Part to an offence under section 83AD were a reference to an offence under this clause.
- (4) If in a proceeding for an offence under this clause, the court finds the person guilty of the offence the court must (in addition to sentencing the offender for the offence)—

Sch. 3 cl. 8(3)
amended by
No. 32/2013
s. 40.

Sch. 3
cl. 8(4)(a)
substituted by
No. 26/2012
s. 68.

- (a) whether or not the order has expired, confirm the order that was contravened and if necessary to enable the offender to perform the remaining period and conditions of the order, vary the duration and dates of the order; or
 - (b) cancel the order (if it is still in force) and, whether or not it is still in force, commit the offender to prison for the portion of the term of imprisonment to which he or she was sentenced that was unexpired at the date on which the contravention occurred.
- (5) The court must make an order under subclause (4)(b), unless the court is of the opinion that it would be unjust to do so in view of any exceptional circumstances which have arisen since the order that was contravened was made.
- (6) If the court decides not to exercise the power under subclause (4)(b) it must state its reasons for doing so in writing.
- (7) If the court, under subclause (4)(b), orders the offender to serve in prison the unexpired portion of the term of imprisonment, the offender must serve the term of imprisonment—
 - (a) immediately; and
 - (b) unless the court otherwise orders, cumulatively on any other term of imprisonment previously imposed on the offender by that or any other court.
- (8) In this clause—

pre-existing home detention order means a home detention order made before the commencement of section 43 of the **Sentencing Amendment (Community Correction Reform) Act 2011**;

serious contravention means—

- (a) a contravention that compromises the safety and security of the community, any person residing with the offender or the offender's family; or
- (b) a contravention that involves the commission of an offence; or
- (c) a contravention that involves non-compliance with an order made under section 84 or 86(1); or
- (d) a contravention that occurs after repeated failure to comply with the conditions of the order; or
- (e) a contravention of a core condition of the home detention order set out in section 26U(d) or (e) (as in force before their repeal by the **Sentencing Legislation Amendment (Abolition of Home Detention) Act 2011**).

9 Contravention—Old intensive correction orders

- (1) An offender who is subject to an old intensive correction order must not, unless that person has a reasonable excuse, contravene that order.

Penalty: 3 months imprisonment.

- (2) Subclause (1) does not apply to a contravention of an old intensive correction order that occurs before the commencement of section 15 of the **Sentencing Amendment (Community Correction Reform) Act 2011**.

Sch. 3 cl. 9(2)
amended by
No. 43/2012
s. 3(Sch.
item 46.4).

- (3) Subject to subclause (4), Divisions 1 and 2 of Part 3C apply to an offence under subclause (1) as if any reference in Divisions 1 and 2 of that Part to an offence under section 83AD were a reference to an offence under subclause (1).

Sch. 3 cl. 9(3)
amended by
No. 32/2013
s. 41.

Sch. 3
cl. 9(4)(a)
substituted by
No. 26/2012
s. 69.

- (4) If in a proceeding for an offence under subclause (1) for a contravention of an old intensive correction order, the court finds the person guilty of the offence the court must (in addition to sentencing the offender for the offence)—
- (a) whether or not the order has expired, confirm the order that was contravened and if necessary to enable the offender to perform the remaining period and conditions of the order, vary the duration and dates of the order; or
 - (b) cancel the order (if it is still in force) and, whether or not it is still in force, commit the offender to prison for the portion of the term of imprisonment to which he or she was sentenced that was unexpired at the date of the offence.
- (5) If the person has been found guilty of a contravention of the old intensive correction order that was constituted, in whole or in part, by another offence punishable by imprisonment, the court must make an order under subclause (4)(b), unless the court is of the opinion that it would be unjust to do so in view of any exceptional circumstances which have arisen since the order that was contravened was made.
- (6) If the court decides not to exercise the power under subclause (4)(b) it must state its reasons for doing so in writing.
- (7) If the court, under subclause (4)(b), orders the offender to serve in prison the unexpired portion of the term of imprisonment, the offender must serve the term of imprisonment—

- (a) immediately; and
- (b) unless the court otherwise orders, cumulatively on any other term of imprisonment previously imposed on the offender by that or any other court.

10 Contravention—Old community-based orders

- (1) An offender who is subject to an old community-based order must not, unless that person has a reasonable excuse, contravene that order.

Penalty: 3 months imprisonment.

- (1A) An offender who is subject to an old community-based order (fines) must not, unless that person has a reasonable excuse, contravene that order.

Sch. 3
cl. 10(1A)
inserted by
No. 26/2012
s. 70(1).

Penalty: Level 10 fine.

- (2) Subclause (1) does not apply to a contravention of an old community-based order that occurs before the commencement of section 21 of the **Sentencing Amendment (Community Correction Reform) Act 2011**.

Sch. 3 cl. 10(2)
amended by
No. 43/2012
s. 3(Sch.
item 46.5).

- (2A) Subclause (1A) does not apply to a contravention of an old community-based order (fines) that occurs before the commencement of section 70 of the **Courts and Sentencing Legislation Amendment Act 2012**.

Sch. 3
cl. 10(2A)
inserted by
No. 26/2012
s. 70(2).

- (3) Subject to subclause (4), Divisions 1 and 2 of Part 3C apply to an offence under subclause (1) as if any reference in Divisions 1 and 2 of that Part to an offence under section 83AD were a reference to an offence under subclause (1).

Sch. 3 cl. 10(3)
amended by
Nos 26/2012
s. 70(3),
32/2013
s. 42(1)(2),
77/2013
s. 47(1).

Sch. 3
cl. 10(3A)
inserted by
No. 26/2012
s. 70(4),
amended by
No. 32/2013
s. 42(3),
substituted by
No. 77/2013
s. 47(2).

(3A) Subject to subclause (4) in respect of an offence under subclause (1A)—

(a) if the offence was committed before the commencement of section 50 of the **Sentencing Amendment (Abolition of Suspended Sentences and Other Matters) Act 2013**—

(i) Divisions 1 and 2 of Part 3C apply to the offence as if any reference in Divisions 1 and 2 of that Part to an offence against section 83AD were a reference to an offence under subclause (1A); and

(ii) section 63A(3), as in force immediately before its repeal, applies to the offence as if in that section a reference to a "fine conversion order or a fine default unpaid community work order" were a reference to an "old community-based order (fines)"; and

(b) if the offence was committed on or after the commencement of section 50 of the **Sentencing Amendment (Abolition of Suspended Sentences and Other Matters) Act 2013**, Divisions 1 and 2 of Part 3C apply to the offence as if any reference in Divisions 1 and 2 of that Part to an offence under section 83ADA or 83ADB were a reference to an offence under subclause (1A).

Sch. 3 cl. 10(4)
amended by
No. 26/2012
s. 70(5).

(4) If in a proceeding for an offence under subclause (1) or (1A) for a contravention of an old community-based order, the court finds the person guilty of the offence the court must (in addition to sentencing the offender for the offence)—

- (a) whether or not the order has expired, confirm the order that was contravened and if necessary to enable the offender to perform the remaining period and conditions of the order, vary the duration and dates of the order; or
- (b) cancel the order (if it is still in force) and, whether or not it is still in force, deal with the offender for the offence or offences with respect to which the order was made as if the court has just found him or her guilty of that offence or those offences.
- (5) In determining how to deal with an offender following the cancellation by it of an old community-based order, the court—
- (a) must take into account the extent to which the offender complied with the order before its cancellation; and
- (b) in imposing any new sentencing order on the offender, must have regard to the conditions of the old community-based order.
- (6) In this clause, ***old community-based order (fines)*** means an old community-based order made under Division 4 of Part 3 before the commencement of section 70 of the **Courts and Sentencing Legislation Amendment Act 2012**.

Sch. 3
cl. 10(4)(a)
substituted by
No. 26/2012
s. 70(6).

Sch. 3 cl. 10(6)
inserted by
No. 26/2012
s. 70(7).

11 Presumption of concurrency, old orders and community correction orders

- (1) The conditions of a community correction order made in respect of an offender are concurrent with the conditions of any old sentencing order made in respect of the offender, unless the court orders otherwise.

- (2) In this clause ***old sentencing order*** means—
- (a) an old combined custody and treatment order;
 - (b) an old community-based order;
 - (c) an old intensive correction order.

12 Offences occurring on more than one date

- (1) An offence under clause 7(1), 8(1) or (2), 9(1) or 10 is taken not to have been committed if the conduct that would be the subject of any alleged offence has occurred between two dates, one of which is before the commencement of the clause and the other of which is after the commencement of the clause.
- (2) The provisions of this Act as in force before the commencement of section 12 of the **Sentencing Amendment (Community Correction Reform) Act 2011** in relation to an offence under this Act for the breach of an old combined custody and treatment order, are taken to continue to apply in respect of a breach of such an order which is alleged to have been committed between two dates, one of which occurs before that commencement and the other of which occurs after that commencement, and for that purpose the breach is taken to have been committed before that commencement.
- (3) The provisions of this Act as in force before the commencement of section 21 of the **Sentencing Amendment (Community Correction Reform) Act 2011** in relation to an offence under this Act for the breach of an old community-based order, are taken to continue to apply in respect of a breach of such an order which is alleged to have been committed between two dates, one of which occurs before that commencement and the other of which occurs after that commencement, and for

that purpose the breach is taken to have been committed before that commencement.

- (4) The provisions of this Act as in force before the commencement of section 15 of the **Sentencing Amendment (Community Correction Reform) Act 2011** in relation to an offence under this Act for the breach of an old intensive correction order, are taken to continue to apply in respect of a breach of such an order which is alleged to have been committed between two dates, one of which occurs before that commencement and the other of which occurs after that commencement, and for that purpose the breach is taken to have been committed before that commencement.

13 Time for bringing proceeding

- (1) A proceeding for an offence under clause 7(1), 8(1) or (2), 9(1) or 10(1) must be commenced—
- (a) if the contravention is constituted by the offender committing another offence punishable by imprisonment while the order is in force, within 6 months after the person is convicted or found guilty of the later offence, subject to subclause (2); or
 - (b) if the contravention is not constituted by the offender committing another offence punishable by imprisonment while the order is in force, within 1 year after the order ceases to be in force.
- (2) A proceeding to which subclause (1)(a) applies must not be commenced more than 2 years after the order ceases to be in force.

Sch. 3 Pt 3
(Heading and
cls 14–17)
inserted by
No. 65/2011
s. 70.

Part 3—Sentencing Amendment (Community Correction Reform) Act 2011—Further amendments

Sch. 3 cl. 14
inserted by
No. 65/2011
s. 70.

14 Community correction orders—bond condition

Section 48JA as inserted by section 58 of the **Sentencing Amendment (Community Correction Reform) Act 2011** applies to a sentence imposed on or after the commencement of section 58 that Act, irrespective of when the offence was committed or the finding of guilt was made.

Sch. 3 cl. 15
inserted by
No. 65/2011
s. 70.

15 Direction of certain conditions on failure to comply with a community correction order

- (1) The amendment of this Act by section 60 of the **Sentencing Amendment (Community Correction Reform) Act 2011** apply to a failure by an offender to comply with a community correction order that is alleged to have been committed on or after that commencement.
- (2) For the purposes of subclause (1), if a failure to comply with a community correction order is alleged to have been committed between two dates, one before and one after the commencement of section 60 of the **Sentencing Amendment (Community Correction Reform) Act 2011**, the failure to comply with the community correction order is alleged to have been committed before that commencement.

Sch. 3
cls 16, 17
inserted by
No. 65/2011
s. 70,
repealed by
No. 56/2013
s. 38.

* * * * *

Part 4—Road Safety and Sentencing Acts Amendment Act 2012—Validations

Sch. 3 Pt 4
(Heading and
cl. 18)
inserted by
No. 45/2012
s. 13.

18 Validation of certain community correction orders

Sch. 3 cl. 18
inserted by
No. 45/2012
s. 13.

- (1) A community correction order made or purported to have been made on or after 16 January 2012 and before the day on which the **Road Safety and Sentencing Acts Amendment Act 2012** receives the Royal Assent has, and is taken always to have had, the same force and effect as it would have had if section 12 of that Act had been in operation when the order was made or purported to have been made.
- (2) For the avoidance of doubt, a community correction order may be made in respect of an offender sentenced on or after 16 January 2012, irrespective of when the offence was committed or the finding of guilt was made.
- (3) A community correction order referred to in subclause (1) and a sentence of imprisonment (irrespective of the period of imprisonment and whether or not the sentence is suspended in whole or in part) that are imposed on an offender in exercise, or purported exercise, of a power under section 44 (as then in force) are not invalid by reason only of failure to comply with section 44.
- (4) Any act or thing done or omitted to be done, whether under a power conferred by or under an enactment or otherwise, before or after the commencement of section 13 of the **Road Safety and Sentencing Acts Amendment Act 2012** in reliance on or in relation to—

- (a) a community correction order that is validated by subclause (1) or (3) or a sentence of imprisonment that is validated by subclause (3); or
- (b) a contravention or alleged contravention of an order or sentence referred to in paragraph (a)—

including any penalty imposed, has the same effect, and gives rise to the same consequences, and is to be regarded as always having had the same effect and having given rise to the same consequences, as if section 12 of the **Road Safety and Sentencing Acts Amendment Act 2012** had been in operation and section 44 of this Act (as then in force) had been complied with.

- (5) A right or liability conferred or imposed in relation to, or affected by—
 - (a) a community correction order that is validated by subclause (1) or (3) or a sentence of imprisonment that is validated by subclause (3); or
 - (b) a contravention or alleged contravention of an order or sentence referred to in paragraph (a)—

including any penalty imposed, is exercisable or enforceable, and is to be regarded as always having been exercisable or enforceable, as if section 12 of the **Road Safety and Sentencing Acts Amendment Act 2012** had been in operation and section 44 of this Act (as then in force) had been complied with.

- (6) Without limiting subclause (5), the rights and liabilities conferred or imposed in relation to a community correction order include rights of appeal.

- (7) This clause does not affect the right of any person to appeal against a sentence that includes a community correction order on any other ground.
- (8) This clause and the amendment of clause 5 of this Schedule by section 12 of the **Road Safety and Sentencing Acts Amendment Act 2012** do not affect the rights of the parties in the proceedings known as *DPP v Tyson Jason Leys*; *DPP v Dillon Thomas Leys* (No. S APCR 2012 0054 and No. S APCR 2012 0055).

Sch. 3A
(Heading and
cl. 1)
inserted by
No. 27/2018
s. 351(Sch. 4
cl. 21).

Schedule 3A—Transitional provisions— Serious Offenders Act 2018

Sch. 3A cl. 1
inserted by
No. 27/2018
s. 351(Sch. 4
cl. 21).

1 Saving of orders continued in effect after commencement by Serious Offenders Act 2018

Sch. 3A
cl. 1(1)
amended by
No. 22/2020
s. 26(3).

- (1) Despite the amendment of section 10AB by section 364 of the **Serious Offenders Act 2018**, section 10AB has effect, on and after the commencement day, as if a reference in that section to a supervision order or an interim supervision order within the meaning of the **Serious Offenders Act 2018** included a reference to a supervision order or an interim supervision order that is continued in force by subclause 4(1) of Schedule 4 to the **Serious Offenders Act 2018**.

- (2) In this clause—

commencement day means the day on which section 364 of the **Serious Offenders Act 2018** comes into operation.

Schedule 4—Justice Legislation Amendment Act 2013—validation

Sch. 4
repealed by
No. 48/1997
s. 34,
new Sch. 4
inserted by
No. 31/2013
s. 11.

1 Definitions

In this Schedule—

adjournment order means an adjournment order made under section 72 or 75;

commencement day means the day on which the **Justice Legislation Amendment Act 2013** receives the Royal Assent;

community-based order means a community-based order within the meaning of this Act as in force before the repeal day;

donation condition means a condition requiring an offender to pay an amount to an organisation that provides a charitable or community service or to the court for payment to such an organisation;

relevant order means—

- (a) an adjournment order; or
- (b) a community-based order;

repeal day means the date of commencement of section 21 of the **Sentencing Amendment (Community Correction Reform) Act 2011**.

2 Validation of adjournment orders

- (1) An adjournment order under section 72 or 75 made or purported to be made before the commencement day that required an offender to give an undertaking with a donation condition attached has, and is taken always to have had, the same force and effect as it would have had if sections 8 and 9 of the **Justice Legislation**

Amendment Act 2013 had been in operation when the order was made or purported to be made.

- (2) Any act or thing done or omitted to be done, whether under a power conferred by an enactment or otherwise, before or after the commencement day in reliance on or in relation to—
- (a) an adjournment order that is validated by subclause (1); or
 - (b) a contravention or alleged contravention of an adjournment order that is validated by subclause (1)—

including any penalty imposed, has the same effect, and gives rise to the same consequences, and is to be regarded as always having had the same effect and having given rise to the same consequences as if sections 8 and 9 of the **Justice Legislation Amendment Act 2013** had been in operation when the adjournment order was made or purported to be made.

- (3) A right or liability conferred or imposed in relation to, or affected by—
- (a) an adjournment order that is validated by subclause (1); or
 - (b) a contravention or alleged contravention of an adjournment order that is validated by subclause (1)—

including any penalty imposed, is exercisable or enforceable, and is to be regarded as always having been exercisable or enforceable as if sections 8 and 9 of the **Justice Legislation Amendment Act 2013** had been in operation when the adjournment order was made or purported to be made.

3 Validation of community-based orders

- (1) A community-based order made or purported to be made before the repeal day that had a donation condition attached has, and is taken always to have had, the same force and effect as it would have had if—
- (a) section 8 of the **Justice Legislation Amendment Act 2013** had been in operation when the order was made or purported to be made; and
 - (b) section 38 (as in force before the repeal day) had included the following provision at the time the order was made or purported to be made—

"(2A) A condition attached under subsection (1)(g) may include a condition requiring the offender to make a payment to an organisation that provides charitable or community service or to the court for payment to such an organisation."
- (2) Any act or thing done or omitted to be done, whether under a power conferred by an enactment or otherwise, before or after the repeal day in reliance on or in relation to—
- (a) a community-based order that is validated by subclause (1); or
 - (b) a contravention or alleged contravention of a community-based order that is validated by subclause (1)—

including any penalty imposed, has the same effect, and gives rise to the same consequences, and is to be regarded as always having had the same effect and having given rise to the same consequences as if section 8 of the **Justice Legislation Amendment Act 2013** and the

purported section 38(2A) referred to in subclause (1)(b) had been in operation when the community-based order was made or purported to be made.

- (3) A right or liability conferred or imposed in relation to, or affected by—
- (a) a community-based order that is validated by subclause (1); or
 - (b) a contravention or alleged contravention of a community-based order that is validated by subclause (1)—

including any penalty imposed, is exercisable or enforceable, and is to be regarded as always having been exercisable or enforceable as if section 8 of the **Justice Legislation Amendment Act 2013** and the purported section 38(2A) referred to in subclause (1)(b) had been in operation when the community-based order was made or purported to be made.

4 Additional provisions relating to rights of appeal

- (1) Without limiting clause 2(3) or 3(3), the rights and liabilities conferred or imposed in relation to a relevant order include rights of appeal.
- (2) This Schedule does not affect the right of any person to appeal against a sentence that includes a relevant order on any other ground.

5 Rights in specific proceedings not affected

This Schedule does not affect the rights of the parties in the proceedings known as *Brittain v Mansour* [2013] VSC 50 in the Supreme Court of Victoria.

Endnotes

1 General information

See www.legislation.vic.gov.au for Victorian Bills, Acts and current authorised versions of legislation and up-to-date legislative information.

Minister's second reading speech—

Legislative Assembly: 19 March 1991

Legislative Council: 30 May 1991

The long title for the Bill for this Act was "A Bill to revise and restate the sentencing powers of courts, to provide sentencing principles to be applied by courts in sentencing offenders, to repeal the **Penalties and Sentences Act 1985**, to vary the penalties that may be imposed in respect of offences under the **Crimes Act 1958**, to make consequential amendments to various Acts and for other purposes."

The **Sentencing Act 1991** was assented to on 25 June 1991 and came into operation on 22 April 1992: Government Gazette 15 April 1992 page 898.

INTERPRETATION OF LEGISLATION ACT 1984 (ILA)

Style changes

Section 54A of the ILA authorises the making of the style changes set out in Schedule 1 to that Act.

References to ILA s. 39B

Sidenotes which cite ILA s. 39B refer to section 39B of the ILA which provides that where an undivided section or clause of a Schedule is amended by the insertion of one or more subsections or subclauses, the original section or clause becomes subsection or subclause (1) and is amended by the insertion of the expression "(1)" at the beginning of the original section or clause.

Interpretation

As from 1 January 2001, amendments to section 36 of the ILA have the following effects:

- **Headings**

All headings included in an Act which is passed on or after 1 January 2001 form part of that Act. Any heading inserted in an Act which was passed before 1 January 2001, by an Act passed on or after 1 January 2001, forms part of that Act. This includes headings to Parts, Divisions or Subdivisions in a Schedule; sections; clauses; items; tables; columns; examples; diagrams; notes or forms. See section 36(1A)(2A).

- **Examples, diagrams or notes**

All examples, diagrams or notes included in an Act which is passed on or after 1 January 2001 form part of that Act. Any examples, diagrams or notes inserted in an Act which was passed before 1 January 2001, by an Act passed on or after 1 January 2001, form part of that Act. See section 36(3A).

- **Punctuation**

All punctuation included in an Act which is passed on or after 1 January 2001 forms part of that Act. Any punctuation inserted in an Act which was passed before 1 January 2001, by an Act passed on or after 1 January 2001, forms part of that Act. See section 36(3B).

- **Provision numbers**

All provision numbers included in an Act form part of that Act, whether inserted in the Act before, on or after 1 January 2001. Provision numbers include section numbers, subsection numbers, paragraphs and subparagraphs. See section 36(3C).

- **Location of "legislative items"**

A "legislative item" is a penalty, an example or a note. As from 13 October 2004, a legislative item relating to a provision of an Act is taken to be at the foot of that provision even if it is preceded or followed by another legislative item that relates to that provision. For example, if a penalty at the foot of a provision is followed by a note, both of these legislative items will be regarded as being at the foot of that provision. See section 36B.

- **Other material**

Any explanatory memorandum, table of provisions, endnotes, index and other material printed after the Endnotes does not form part of an Act. See section 36(3)(3D)(3E).

2 Table of Amendments

This publication incorporates amendments made to the **Sentencing Act 1991** by Acts and subordinate instruments.

Crimes (Sexual Offences) Act 1991, No. 8/1991 (as amended by No. 49/1991)

<i>Assent Date:</i>	16.4.91
<i>Commencement Date:</i>	S. 20(3) on 5.8.91: Government Gazette 24.7.91 p. 2026
<i>Current State:</i>	This information relates only to the provision/s amending the Sentencing Act 1991

Sentencing Act 1991, No. 49/1991

<i>Assent Date:</i>	25.6.91
<i>Commencement Date:</i>	S. 180 inserted on 25.4.20 by No. 11/2020 s. 42: s. 2 (as amended by No. 27/2020 s. 41)
<i>Note:</i>	S. 180 repealed Pt 13 (ss 170–180) on 26.4.21
<i>Current State:</i>	This information relates only to the provision/s amending the Sentencing Act 1991

Crimes (Rape) Act 1991, No. 81/1991

<i>Assent Date:</i>	3.12.91
<i>Commencement Date:</i>	Ss 7, 8 on 16.4.91: s. 2(2); ss 1–4, 6, 9, 10 on 1.1.92: Government Gazette 18.12.91 p. 3486; s. 5 on 1.2.92: Government Gazette 22.1.92 p. 114
<i>Current State:</i>	All of Act in operation

Crimes (Confiscation of Profits) (Amendment) Act 1991, No. 90/1991

<i>Assent Date:</i>	10.12.91
<i>Commencement Date:</i>	All of Act (<i>except</i> ss 26, 37) on 1.9.92; ss 26, 37 on 6.12.92: Government Gazette 12.8.92 p. 2179
<i>Current State:</i>	All of Act in operation

Sentencing (Amendment) Act 1993, No. 41/1993

<i>Assent Date:</i>	1.6.93
<i>Commencement Date:</i>	Ss 1, 2 on 1.6.93: s. 2(1); rest of Act (<i>except</i> ss 13, 15) on 15.8.93; ss 13, 15 on 1.11.93: Government Gazette 12.8.93 p. 2244
<i>Current State:</i>	All of Act in operation

Health and Community Services (General Amendment) Act 1993, No. 42/1993

<i>Assent Date:</i>	1.6.93
<i>Commencement Date:</i>	S. 60 on 21.8.94: Government Gazette 18.8.94 p. 2240
<i>Current State:</i>	This information relates only to the provision/s amending the Sentencing Act 1991

Crimes (Criminal Trials) Act 1993, No. 60/1993

<i>Assent Date:</i>	8.6.93
<i>Commencement Date:</i>	Ss 1–3 on 8.6.93: s. 2(1); s. 27 on 21.6.93: Special Gazette (No. 40) 17.6.93 p. 1; rest of Act on 1.7.93: Government Gazette 1.7.93 p. 1735
<i>Current State:</i>	All of Act in operation

Sentencing Act 1991
No. 49 of 1991
Endnotes

Medical Practice Act 1994, No. 23/1994

Assent Date: 17.5.94
Commencement Date: Ss 1, 2 on 17.5.94: s. 2(1); rest of Act on 1.7.94:
Government Gazette 23.6.94 p. 1672
Current State: All of Act in operation

Sentencing (Victim Impact Statement) Act 1994, No. 24/1994

Assent Date: 17.5.94
Commencement Date: Ss 1–3 on 17.5.94: s. 2(1); ss 4–9 on 31.5.94:
Government Gazette 26.5.94 p. 1265
Current State: All of Act in operation

Public Prosecutions Act 1994, No. 43/1994

Assent Date: 7.6.94
Commencement Date: Pt 1 (ss 1–3) on 7.6.94: s. 2(1); rest of Act on 1.7.94:
s. 2(3)
Current State: All of Act in operation

Constitution (Court of Appeal) Act 1994, No. 109/1994

Assent Date: 20.12.94
Commencement Date: Pt 1 (ss 1, 2) on 20.12.94: s. 2(1); rest of Act on 7.6.95:
Special Gazette (No. 41) 23.5.95 p. 1
Current State: All of Act in operation

Public Prosecutions (Amendment) Act 1995, No. 36/1995

Assent Date: 6.6.95
Commencement Date: 6.6.95
Current State: All of Act in operation

Mental Health (Amendment) Act 1995, No. 98/1995

Assent Date: 5.12.95
Commencement Date: Ss 1, 2 on 5.12.95: s. 2(1); s. 60 on 26.5.96:
Government Gazette 9.5.96 p. 1099; rest of Act on
1.7.96: Government Gazette 27.6.96 p. 1593
Current State: All of Act in operation

Miscellaneous Acts (Omnibus Amendments) Act 1996, No. 22/1996

Assent Date: 2.7.96
Commencement Date: Pt 9 (ss 19–21) on 2.7.96: s. 2(1)
Current State: This information relates only to the provision/s
amending the **Sentencing Act 1991**

Corrections (Amendment) Act 1996, No. 45/1996

Assent Date: 26.11.96
Commencement Date: S. 18(Sch. 2 items 11.1–11.15) on 6.2.97: Government
Gazette 6.2.97 p. 257
Current State: This information relates only to the provision/s
amending the **Sentencing Act 1991**

Victims of Crime Assistance Act 1996, No. 81/1996

Assent Date: 17.12.96
Commencement Date: Ss 74, 75 on 1.7.97: s. 2(3)
Current State: This information relates only to the provision/s
amending the **Sentencing Act 1991**

Sentencing Act 1991
No. 49 of 1991
Endnotes

Police and Corrections (Amendment) Act 1997, No. 26/1997

Assent Date: 20.5.97
Commencement Date: S. 54 on 22.5.97: Government Gazette 22.5.97 p. 1131
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Sentencing and Other Acts (Amendment) Act 1997, No. 48/1997

Assent Date: 11.6.97
Commencement Date: Ss 3, 4(b)–(e), 5–7, 8(2)(b)(c), 10, 11, 13(1), 14, 16–18, 19(1), 20, 22, 25, 27–34 on 1.9.97: s. 2(2); ss 9, 13(2)–(4), 15, 19(2)(3), 21, 26 on 20.11.97: Government Gazette 20.11.97 p. 3169; ss 4(a), 8(1)(2)(a), 12, 23, 24 on 15.12.97: Government Gazette 11.12.97 p. 3365
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Sentencing (Amendment) Act 1997, No. 69/1997

Assent Date: 18.11.97
Commencement Date: Ss 17, 19, 21 on 1.9.97: s. 2(2); ss 4–6, 9–16, 18, 20 on 18.11.97: s. 2(1); ss 7, 8 on 11.12.97: Government Gazette 11.12.97 p. 3365
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Confiscation Act 1997, No. 108/1997

Assent Date: 23.12.97
Commencement Date: Ss 148, 149, 156 on 1.7.98: Government Gazette 25.6.98 p. 1561
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Public Sector Reform (Miscellaneous Amendments) Act 1998, No. 46/1998

Assent Date: 26.5.98
Commencement Date: S. 7(Sch. 1) on 1.7.98: s. 2(2)
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Road Safety (Amendment) Act 1998, No. 57/1998

Assent Date: 13.10.98
Commencement Date: Ss 26, 27 on 1.5.99: Government Gazette 18.3.99 p. 665
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Magistrates' Court (Amendment) Act 1999, No. 10/1999

Assent Date: 11.5.99
Commencement Date: Ss 30, 31(4) on 11.5.99: s. 2(1); ss 18(1)–(3), 19 on 1.7.99: s. 2(2)
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Sentencing Act 1991
No. 49 of 1991
Endnotes

Sentencing (Amendment) Act 1999, No. 19/1999

Assent Date: 18.5.99
Commencement Date: S. 16 on 18.5.99: s. 2(1); ss 4–15 on 1.1.00: s. 2(3)
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Dental Practice Act 1999, No. 26/1999 (as amended by No. 27/2000)

Assent Date: 1.6.99
Commencement Date: S. 107(Sch. item 8) on 1.7.00: s. 2(3)
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Crimes (Criminal Trials) Act 1999, No. 35/1999

Assent Date: 8.6.99
Commencement Date: S. 37 on 1.9.99: s. 2(3)
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Courts and Tribunals Legislation (Amendment) Act 2000, No. 1/2000

Assent Date: 28.3.00
Commencement Date: Ss 8, 9 on 29.3.00: s. 2(1)
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Psychologists Registration Act 2000, No. 41/2000

Assent Date: 6.6.00
Commencement Date: S. 102(Sch. item 6) on 1.6.01: s. 2(2)
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Victims of Crime Assistance (Amendment) Act 2000, No. 54/2000

Assent Date: 12.9.00
Commencement Date: Ss 21–24 on 1.1.01: s. 2(2)
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Crimes (Amendment) Act 2000, No. 67/2000

Assent Date: 21.11.00
Commencement Date: 22.11.00 s. 2
Current State: All of Act in operation

Magistrates' Court (Infringements) Act 2000, No. 99/2000

Assent Date: 12.12.00
Commencement Date: Ss 15, 16 on 1.7.01: s. 2(3)
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Corrections (Custody) Act 2001, No. 45/2001

Assent Date: 27.6.01
Commencement Date: S. 45 on 1.3.02: s. 2(2)
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Sentencing Act 1991
No. 49 of 1991
Endnotes

Drugs, Poisons and Controlled Substances (Amendment) Act 2001, No. 61/2001

Assent Date: 23.10.01
Commencement Date: S. 14 on 1.1.02: s. 2(2)
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Sentencing (Emergency Service Costs) Act 2001, No. 80/2001

Assent Date: 4.12.01
Commencement Date: 5.12.01: s. 2
Current State: All of Act in operation

Road Safety (Alcohol Interlocks) Act 2002, No. 1/2002

Assent Date: 26.3.02
Commencement Date: Ss 11–14 on 13.5.02: Government Gazette 2.5.02 p. 789
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Sentencing (Amendment) Act 2002, No. 2/2002

Assent Date: 26.3.02
Commencement Date: Ss 4–7 on 2.5.02: Government Gazette 2.5.02 p. 789
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Criminal Justice Legislation (Miscellaneous Amendments) Act 2002, No. 35/2002

Assent Date: 18.6.02
Commencement Date: S. 28(Sch. item 5.1) on 2.5.02: s. 2(2); s. 28(Sch. item 5.2) on 19.6.02: s. 2(1)
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Crimes (Property Damage and Computer Offences) Act 2003, No. 10/2003

Assent Date: 6.5.03
Commencement Date: Ss 13, 14 on 7.5.03: s. 2
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Sentencing (Amendment) Act 2003, No. 13/2003

Assent Date: 6.5.03
Commencement Date: Ss 4–6 on 1.7.04: s. 2(3)
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Corrections and Sentencing Acts (Home Detention) Act 2003, No. 53/2003

Assent Date: 16.6.03
Commencement Date: Ss 3–8 on 1.1.04: s. 2(5)
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Confiscation (Amendment) Act 2003, No. 63/2003

Assent Date: 30.9.03
Commencement Date: S. 50 on 1.12.03: s. 2(2)
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Sentencing Act 1991
No. 49 of 1991
Endnotes

Monetary Units Act 2004, No. 10/2004

Assent Date: 11.5.04
Commencement Date: Ss 13, 15(Sch. 1 item 27) on 1.7.04: s. 2(2)
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Justice Legislation (Sexual Offences and Bail) Act 2004, No. 20/2004

Assent Date: 18.5.04
Commencement Date: S. 9 on 19.5.04: s. 2
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Transport Legislation (Miscellaneous Amendments) Act 2004, No. 49/2004

Assent Date: 16.6.04
Commencement Date: Ss 43–45 on 17.6.04: s. 2(1)
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Crimes (Dangerous Driving) Act 2004, No. 59/2004

Assent Date: 12.10.04
Commencement Date: S. 9 on 13.10.04: s. 2
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Sentencing (Superannuation Orders) Act 2004, No. 65/2004

Assent Date: 12.10.04
Commencement Date: S. 3 on 13.10.04: s. 2
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Children and Young Persons (Age Jurisdiction) Act 2004, No. 72/2004

Assent Date: 9.11.04
Commencement Date: Ss 38–40 on 1.7.05: s. 2(2)
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Major Crime Legislation (Seizure of Assets) Act 2004, No. 87/2004

Assent Date: 23.11.04
Commencement Date: S. 24 on 1.1.05: s. 2(2)
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Public Administration Act 2004, No. 108/2004

Assent Date: 21.12.04
Commencement Date: S. 117(1)(Sch. 3 item 181) on 5.4.05: Government Gazette 31.3.05 p. 602
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Transport Legislation (Amendment) Act 2004, No. 110/2004

Assent Date: 21.12.04
Commencement Date: S. 45 on 22.12.04: s. 2(1)
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Sentencing Act 1991
No. 49 of 1991
Endnotes

Serious Sex Offenders Monitoring Act 2005, No. 1/2005

Assent Date: 1.3.05
Commencement Date: S. 48 on 26.5.05: Government Gazette 26.5.05 p. 1069
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Statute Law Revision Act 2005, No. 10/2005

Assent Date: 27.4.05
Commencement Date: S. 4(Sch. 2 item 2) on 28.4.05: s. 2
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Sentencing (Further Amendment) Act 2005, No. 15/2005

Assent Date: 10.5.05
Commencement Date: Ss 3–6 on 11.5.05: s. 2
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Legal Profession (Consequential Amendments) Act 2005, No. 18/2005

Assent Date: 24.5.05
Commencement Date: S. 18(Sch. 1 item 97) on 12.12.05: Government Gazette 1.12.05 p. 2781
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Magistrates' Court (Judicial Registrars and Court Rules) Act 2005, No. 19/2005

Assent Date: 24.5.05
Commencement Date: S. 11(2) on 25.5.05: s. 2(1)
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Parliamentary Administration Act 2005, No. 20/2005

Assent Date: 24.5.05
Commencement Date: S. 52(3) on 1.7.05: s. 2(4)
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Courts Legislation (Miscellaneous Amendments) Act 2005, No. 30/2005

Assent Date: 21.6.05
Commencement Date: S. 8 on 22.6.05: s. 2(1)
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Sex Offenders Registration (Amendment) Act 2005, No. 34/2005

Assent Date: 21.6.05
Commencement Date: S. 27 on 1.8.05: Government Gazette 28.7.05 p. 1642
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Sentencing Act 1991
No. 49 of 1991
Endnotes

Victoria State Emergency Service Act 2005, No. 51/2005

Assent Date: 24.8.05
Commencement Date: S. 58(7)(8) on 1.11.05: Government Gazette 20.10.05 p. 2308
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Working with Children Act 2005, No. 57/2005 (as amended by No. 93/2005)

Assent Date: 13.9.05
Commencement Date: S. 50 on 3.4.06: Government Gazette 30.3.06 p. 615
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Sentencing and Mental Health Acts (Amendment) Act 2005, No. 69/2005

Assent Date: 11.10.05
Commencement Date: Ss 3–6 on 1.10.06: s. 2(3)
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Crimes (Homicide) Act 2005, No. 77/2005

Assent Date: 22.11.05
Commencement Date: S. 8(4) on 23.11.05: s. 2
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Road Safety and Other Acts (Vehicle Impoundment and Other Amendments) Act 2005, No. 93/2005

Assent Date: 29.11.05
Commencement Date: S. 15 on 30.11.05: s. 2(1)
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Health Professions Registration Act 2005, No. 97/2005

Assent Date: 7.12.05
Commencement Date: S. 182(Sch. 4 item 45) on 1.7.07: s. 2(3)
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Crimes (Sexual Offences) Act 2006, No. 2/2006 (as amended by No. 76/2006)

Assent Date: 7.3.06
Commencement Date: S. 43 on 1.12.06: s. 2(2)
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Disability Act 2006, No. 23/2006

Assent Date: 16.5.06
Commencement Date: Ss 226–230 on 1.7.07: s. 2(3)
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Sentencing Act 1991
No. 49 of 1991
Endnotes

Education and Training Reform Act 2006, No. 24/2006

Assent Date: 16.5.06
Commencement Date: S. 6.1.2(Sch. 7 item 35) on 1.7.07: Government Gazette 28.6.07 p. 1304
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Infringements (Consequential and Other Amendments) Act 2006, No. 32/2006

Assent Date: 13.6.06
Commencement Date: Ss 92, 93 on 1.7.06: Government Gazette 29.6.06 p. 1315
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Children, Youth and Families (Consequential and Other Amendments) Act 2006, No. 48/2006

Assent Date: 15.8.06
Commencement Date: S. 42(Sch. item 32) on 23.4.07: s. 2(3)
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Courts Legislation (Jurisdiction) Act 2006, No. 50/2006

Assent Date: 15.8.06
Commencement Date: Ss 38, 39 on 16.8.06: s. 2(1)
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Public Sector Acts (Further Workplace Protection and Other Matters) Act 2006, No. 80/2006

Assent Date: 10.10.06
Commencement Date: S. 26(Sch. item 95) on 11.10.06: s. 2(1)
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Road Legislation (Projects and Road Safety) Act 2006, No. 81/2006

Assent Date: 10.10.06
Commencement Date: S. 7 on 11.10.06: s. 2(1)
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Sentencing (Suspended Sentences) Act 2006, No. 82/2006

Assent Date: 10.10.06
Commencement Date: S. 8 on 11.10.06: s. 2(1); ss 3–6(1), 7(1) on 1.11.06: s. 2(4); ss 6(2)(3), 7(2) on 23.4.07: s. 2(3)
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Working With Children Amendment Act 2007, No. 56/2007

Assent Date: 7.11.07
Commencement Date: S. 22 on 3.4.06: s. 2(2)
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Sentencing Act 1991
No. 49 of 1991
Endnotes

Crimes Amendment (Child Homicide) Act 2008, No. 7/2008

Assent Date: 18.3.08
Commencement Date: S. 7(4) on 19.3.08: s. 2
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Criminal Procedure Legislation Amendment Act 2008, No. 8/2008

Assent Date: 18.3.08
Commencement Date: Ss 3, 18 on 1.7.08: s. 2(5)
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Relationships Act 2008, No. 12/2008

Assent Date: 15.4.08
Commencement Date: S. 73(1)(Sch. 1 item 56) on 1.12.08: s. 2(2)
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Justice Legislation Amendment (Sex Offences Procedure) Act 2008, No. 18/2008

Assent Date: 13.5.08
Commencement Date: Ss 15–17 on 1.7.08: s. 2(2)
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Justice Legislation Amendment Act 2008, No. 21/2008

Assent Date: 2.6.08
Commencement Date: S. 25(1) on 3.6.08: Special Gazette (No. 148) 3.6.08 p. 1
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Public Health and Wellbeing Act 2008, No. 46/2008

Assent Date: 2.9.08
Commencement Date: S. 287 on 1.1.10: s. 2(2)
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Family Violence Protection Act 2008, No. 52/2008

Assent Date: 23.9.08
Commencement Date: Ss 265, 266 on 8.12.08: Special Gazette (No. 339) 4.12.08 p. 1
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Stalking Intervention Orders Act 2008, No. 68/2008

Assent Date: 18.11.08
Commencement Date: Ss 82, 83 on 8.12.08: Special Gazette (No. 339) 4.12.08 p. 1
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Sentencing Act 1991
No. 49 of 1991
Endnotes

Criminal Procedure Act 2009, No. 7/2009 (as amended by No. 68/2009)

Assent Date: 10.3.09
Commencement Date: Ss 432–434 on 1.1.10: Government Gazette 10.12.09 p. 3215
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Crimes Amendment (Identity Crime) Act 2009, No. 22/2009

Assent Date: 17.6.09
Commencement Date: Ss 5–7 on 1.10.09: s. 2(2)
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Criminal Procedure Amendment (Consequential and Transitional Provisions) Act 2009, No. 68/2009

Assent Date: 24.11.09
Commencement Date: S. 97(Sch. item 110) on 1.1.10: Government Gazette 10.12.09 p. 3215
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Statute Law Amendment (Evidence Consequential Provisions) Act 2009, No. 69/2009

Assent Date: 24.11.09
Commencement Date: S. 54(Sch. Pt 1 item 51) on 1.1.10: s. 2(2)
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Sentencing Amendment Act 2009, No. 77/2009

Assent Date: 1.12.09
Commencement Date: 2.12.09: s. 2
Current State: All of Act in operation

Justice Legislation Miscellaneous Amendments Act 2009, No. 87/2009

Assent Date: 15.12.09
Commencement Date: S. 58 on 17.12.09: Government Gazette 17.12.09 p. 3338
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Serious Sex Offenders (Detention and Supervision) Act 2009, No. 91/2009

Assent Date: 15.12.09
Commencement Date: S. 219(Sch. 3 item 2) on 1.1.10: Government Gazette 24.12.09 p. 3397
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Transport Legislation Amendment (Hoon Boating and Other Amendments) Act 2009, No. 93/2009

Assent Date: 15.12.09
Commencement Date: S. 49(1) on 17.12.09: Government Gazette 17.12.09 p. 3339
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Sentencing Act 1991
No. 49 of 1991
Endnotes

Crimes Legislation Amendment Act 2010, No. 7/2010

Assent Date: 16.3.10
Commencement Date: S. 14 on 17.3.10: s. 2
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Statute Law Amendment (National Health Practitioner Regulation) Act 2010, No. 13/2010

Assent Date: 30.3.10
Commencement Date: S. 51(Sch. item 49) on 1.7.10: s. 2(2)
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Justice Legislation Amendment (Victims of Crime Assistance and Other Matters) Act 2010, No. 18/2010

Assent Date: 18.5.10
Commencement Date: Ss 7–10 on 1.1.11: s. 2(3)
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Health and Human Services Legislation Amendment Act 2010, No. 29/2010

Assent Date: 8.6.10
Commencement Date: S. 71 on 1.7.10: Special Gazette (No. 235) 23.6.10 p. 1
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Justice Legislation Amendment Act 2010, No. 30/2010

Assent Date: 8.6.10
Commencement Date: S. 5 on 26.6.10: Government Gazette 24.6.10 p. 1274; ss 3, 4, 6–8, 10–12, 14, 15, 17, 23, 24, 28, 29 on 1.1.11: Government Gazette 28.10.10 p. 2583; ss 16, 19, 25–27 on 1.1.12: s. 2(5); ss 9, 13, 18, 20–22 never proclaimed, repealed by No. 65/2011 s. 99
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Severe Substance Dependence Treatment Act 2010, No. 43/2010

Assent Date: 10.8.10
Commencement Date: S. 48 on 1.3.11: s. 2(2)
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Personal Safety Intervention Orders Act 2010, No. 53/2010

Assent Date: 7.9.10
Commencement Date: S. 224 on 1.12.10: Government Gazette 14.10.10 p. 2405; s. 221(Sch. item 10) on 5.9.11: Special Gazette (No. 271) 23.8.11 p. 1
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Consumer Affairs Legislation Amendment (Reform) Act 2010, No. 63/2010

Assent Date: 28.9.10
Commencement Date: S. 81(Sch. item 10) on 1.11.10: s. 2(2)
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Sentencing Act 1991
No. 49 of 1991
Endnotes

Confiscation Amendment Act 2010, No. 68/2010

Assent Date: 12.10.10
Commencement Date: S. 70(4) on 1.11.10: Government Gazette 28.10.10 p. 2583; s. 70(1)–(3) on 1.4.12: s. 2(2)
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Sentencing Amendment Act 2010, No. 77/2010 (as amended by No. 9/2011)

Assent Date: 19.10.10
Commencement Date: Ss 3(a), 12, 27 on 1.5.11: Special Gazette (No. 125) 19.4.11 p. 1; s. 21 on 1.1.12: s. 2(2); ss 3(b)–(e), 4–11, 13–20, 22–26 never proclaimed, repealed by No. 65/2011 ss 71–92
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Sentencing Further Amendment Act 2011, No. 9/2011

Assent Date: 12.4.11
Commencement Date: Ss 6, 7 on 1.1.12: s. 2(3)
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Statute Law Revision Act 2011, No. 29/2011

Assent Date: 21.6.11
Commencement Date: S. 3(Sch. 1 item 84) on 22.6.11: s. 2(1)
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Sentencing Legislation Amendment (Abolition of Home Detention) Act 2011, No. 48/2011

Assent Date: 22.9.11
Commencement Date: Ss 12–24 on 16.1.12: Special Gazette (No. 423) 21.12.11 p. 4
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Sentencing Amendment (Community Correction Reform) Act 2011, No. 65/2011
(as amended by Nos 26/2012, 43/2012, 32/2013, 56/2013)

Assent Date: 22.11.11
Commencement Date: Ss 3(13), 53 on 23.11.11: s. 2(1); s. 5(4) on 1.1.12: s. 2(2); ss 3(1)–(12)(14), 4, 5(1)–(3), 6–48, 50–52, 54, 68 on 16.1.12: Special Gazette (No. 423) 21.12.11 p. 3; ss 55, 58, 59, 70 on 1.5.13: Special Gazette (No. 156) 23.4.13 p. 1; ss 56, 57, 60, 69 on 30.6.13: Special Gazette (No. 156) 23.4.13 p. 1; s. 49 on 30.9.13: s. 2(4); ss 61–67 never proclaimed, repealed by No. 56/2013 s. 35(1)
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Sentencing Act 1991
No. 49 of 1991
Endnotes

Courts and Sentencing Legislation Amendment Act 2012, No. 26/2012

Assent Date: 29.5.12
Commencement Date: Ss 26–70 on 16.7.12: Special Gazette (No. 237) 3.7.12 p. 1
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Statute Law Revision Act 2012, No. 43/2012

Assent Date: 27.6.12
Commencement Date: S. 3(Sch. item 46) on 28.6.12: s. 2(1)
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Road Safety and Sentencing Acts Amendment Act 2012, No. 45/2012

Assent Date: 17.8.12
Commencement Date: S. 12 on 16.1.12: s. 2(3); ss 6, 9, 11, 13 on 17.8.12: s. 2(1); ss 7, 8, 10 on 18.8.12: s. 2(2)
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Criminal Procedure Amendment Act 2012, No. 48/2012

Assent Date: 4.9.12
Commencement Date: Ss 43–46 on 5.9.12: s. 2(1)
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Criminal Procedure and Sentencing Acts Amendment (Victims of Crime) Act 2012, No. 49/2012

Assent Date: 4.9.12
Commencement Date: Ss 6–8 on 31.1.13: s. 2(2)
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Justice Legislation Amendment (Family Violence and Other Matters) Act 2012, No. 83/2012

Assent Date: 18.12.12
Commencement Date: S. 33(1)–(3) on 20.12.12: Special Gazette (No. 444) 19.12.12 p. 1
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Crimes Amendment (Gross Violence Offences) Act 2013, No. 6/2013

Assent Date: 26.2.13
Commencement Date: Ss 8–10 on 1.7.13: Special Gazette (No. 180) 21.5.13 p. 1
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Justice Legislation Amendment Act 2013, No. 31/2013

Assent Date: 4.6.13
Commencement Date: Ss 8–11 on 4.6.13: s. 2(1)
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Sentencing Act 1991
No. 49 of 1991
Endnotes

Sentencing Amendment (Abolition of Suspended Sentences and Other Matters) Act 2013, No. 32/2013 (as amended by No. 77/2013)

Assent Date: 4.6.13
Commencement Date: Ss 3–5, 33–36, 38–42 on 5.6.13: s. 2(1); s. 37 on 30.6.13: Special Gazette (No. 226) 25.6.13 p. 1; ss 23–26 on 27.7.13: Special Gazette (No. 226) 25.6.13 p. 1; ss 6, 7 on 1.9.13: Special Gazette (No. 284) 13.8.13 p. 1; ss 27, 30–32 on 30.9.13: Special Gazette (No. 284) 13.8.13 p. 1; ss 28, 29 on 20.12.13: Special Gazette (No. 449) 17.12.13 p. 1; ss 46–50, 56–58 on 19.4.14: Special Gazette (No. 122) 15.4.14 p. 2; ss 8–22 on 1.9.14: s. 2(5)
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Corrections Amendment (Breach of Parole) Act 2013, No. 46/2013

Assent Date: 10.9.13
Commencement Date: S. 5 on 1.7.14: s. 2(2)
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Road Safety and Sentencing Acts Amendment Act 2013, No. 56/2013

Assent Date: 24.9.13
Commencement Date: Ss 33, 38 on 25.9.13: s. 2(1); ss 31, 32, 37 on 30.9.13: s. 2(2)
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Statute Law Revision Act 2013, No. 70/2013

Assent Date: 19.11.13
Commencement Date: S. 3(Sch. 1 item 49) on 1.12.13: s. 2(1)
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Justice Legislation Amendment (Miscellaneous) Act 2013, No. 77/2013

Assent Date: 17.12.13
Commencement Date: S. 50 on 18.12.13: s. 2(1); s. 47 on 19.4.14: s. 2(2); s. 46 on 2.9.14: Special Gazette (No. 295) 2.9.14 p. 1
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Crimes Amendment (Grooming) Act 2014, No. 7/2014

Assent Date: 25.2.14
Commencement Date: S. 5(2) on 9.4.14: Special Gazette (No. 112) 8.4.14 p. 1
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Summary Offences and Sentencing Amendment Act 2014, No. 15/2014

Assent Date: 18.3.14
Commencement Date: Ss 7, 8 on 1.9.14: s. 2(2)
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Sentencing Act 1991
No. 49 of 1991
Endnotes

Legal Profession Uniform Law Application Act 2014, No. 17/2014

Assent Date: 25.3.14
Commencement Date: S. 160(Sch. 2 item 88) on 1.7.15: Special Gazette (No. 151) 16.6.15 p. 1
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Mental Health Act 2014, No. 26/2014

Assent Date: 8.4.14
Commencement Date: Ss 429–435 on 1.7.14: s. 2(1)
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Victoria Police Amendment (Consequential and Other Matters) Act 2014, No. 37/2014

Assent Date: 3.6.14
Commencement Date: S. 10(Sch. items 151.1–151.5, 151.7, 151.8) on 1.7.14: Special Gazette (No. 200) 24.6.14 p. 2; s. 10(Sch. item 151.6) on 1.9.14: Special Gazette (No. 200) 24.6.14 p. 2
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Fines Reform Act 2014, No. 47/2014

Assent Date: 1.7.14
Commencement Date: Ss 305–312 on 31.12.17: Special Gazette (No. 443) 19.12.17 p. 1
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Sentencing Amendment (Baseline Sentences) Act 2014, No. 52/2014 (as amended by No. 72/2014)

Assent Date: 12.8.14
Commencement Date: Ss 3–10 on 2.11.14: Special Gazette (No. 350) 7.10.14 p. 1
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Criminal Organisations Control and Other Acts Amendment Act 2014, No. 55/2014

Assent Date: 26.8.14
Commencement Date: Ss 169, 170 on 2.9.14: Special Gazette (No. 295) 2.9.14 p. 1; ss 48, 49 on 1.10.14: Special Gazette (No. 330) 23.9.14 p. 1
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Children, Youth and Families Amendment (Permanent Care and Other Matters) Act 2014, No. 61/2014

Assent Date: 9.9.14
Commencement Date: S. 170 on 1.3.16: s. 2(3)
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Sentencing Act 1991
No. 49 of 1991
Endnotes

Crimes Amendment (Abolition of Defensive Homicide) Act 2014, No. 63/2014

Assent Date: 9.9.14
Commencement Date: Ss 5(3), 7(18)(19) on 1.11.14: Special Gazette (No. 350) 7.10.14 p. 1; s. 7(17) on 2.11.14: s. 2(2)
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Sentencing Amendment (Emergency Workers) Act 2014, No. 69/2014

(as amended by Nos 72/2014, 79/2014)²⁰

Assent Date: 23.9.14
Commencement Date: Ss 6, 16–19 on 29.9.14: Special Gazette (No. 330) 23.9.14 p. 1; ss 3, 4, 5(2)–(4), 7 on 2.11.14: Special Gazette (No. 330) 23.9.14 p. 1; s. 5(1) never proclaimed, repealed by No. 72/2014 s. 13(1)
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Sentencing Amendment (Coward's Punch Manslaughter and Other Matters) Act 2014, No. 72/2014

Assent Date: 30.9.14
Commencement Date: Ss 6–9 on 1.11.14: s. 2(4); ss 10, 11 on 1.11.14: s. 2(2)
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Crimes Amendment (Sexual Offences and Other Matters) Act 2014, No. 74/2014

Assent Date: 21.10.14
Commencement Date: Ss 17–19 on 1.7.15: s. 2(3)
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Justice Legislation Amendment (Confiscation and Other Matters) Act 2014, No. 79/2014

Assent Date: 21.10.14
Commencement Date: S. 71 on 22.10.14: s. 2(1); s. 64 on 1.11.14: s. 2(5); ss 55–58 on 2.11.14: Special Gazette (No. 400) 29.10.14 p. 2; s. 63 on 2.11.14: s. 2(6)
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Sentencing Amendment (Historical Homosexual Convictions Expungement) Act 2014, No. 81/2014 (as amended by No. 20/2015)

Assent Date: 21.10.14
Commencement Date: Ss 3, 4 on 1.9.15: s. 2(2)
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Crimes Amendment (Repeal of Section 19A) Act 2015, No. 17/2015

Assent Date: 2.6.15
Commencement Date: S. 4 on 3.6.15: s. 2
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Sentencing Act 1991
No. 49 of 1991
Endnotes

Sentencing Amendment (Correction of Sentencing Error) Act 2015, No. 19/2015

Assent Date: 2.6.15
Commencement Date: Ss 4–8 on 3.6.15: s. 2
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Justice Legislation Amendment Act 2015, No. 20/2015

Assent Date: 16.6.15
Commencement Date: S. 54 on 17.6.15: s. 2(3)
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Statute Law Revision Act 2015, No. 21/2015

Assent Date: 16.6.15
Commencement Date: S. 3(Sch. 1 item 47) on 1.8.15: s. 2(1)
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Crimes Amendment (Child Pornography and Other Matters) Act 2015, No. 42/2015

Assent Date: 22.9.15
Commencement Date: S. 26 on 1.12.15: s. 2(2)
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Serious Sex Offenders (Detention and Supervision) and Other Acts Amendment Act 2015, No. 52/2015

Assent Date: 13.10.15
Commencement Date: S. 46 on 14.10.15: s. 2(1)
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Justice Legislation Further Amendment Act 2016, No. 3/2016

Assent Date: 16.2.16
Commencement Date: Ss 56, 57 on 1.5.16: Special Gazette (No. 114) 26.4.16 p. 1
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Confiscation and Other Matters Amendment Act 2016, No. 27/2016

Assent Date: 31.5.16
Commencement Date: S. 46 on 1.6.16: s. 2(1)
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Crimes Legislation Amendment Act 2016, No. 28/2016

Assent Date: 31.5.16
Commencement Date: Ss 3–5 on 3.10.16: Special Gazette (No. 296) 27.9.16 p. 1
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Sentencing Act 1991
No. 49 of 1991
Endnotes

Serious Sex Offenders (Detention and Supervision) Amendment (Community Safety) Act 2016, No. 32/2016

Assent Date: 31.5.16
Commencement Date: Ss 40–42 on 1.6.16: s. 2(1)
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Justice Legislation (Evidence and Other Acts) Amendment Act 2016, No. 38/2016

Assent Date: 28.6.16
Commencement Date: S. 11 on 12.9.16: Special Gazette (No. 278) 6.9.16 p. 1
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Crimes Amendment (Sexual Offences) Act 2016, No. 47/2016

Assent Date: 6.9.16
Commencement Date: S. 41 on 1.7.17: s. 2(2)
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Crimes Amendment (Carjacking and Home Invasion) Act 2016, No. 50/2016

Assent Date: 18.10.16
Commencement Date: Ss 5, 6 on 7.12.16: Special Gazette (No. 375) 6.12.16 p. 1
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

National Domestic Violence Order Scheme Act 2016, No. 53/2016

Assent Date: 18.10.16
Commencement Date: S. 124 on 25.11.17: Special Gazette (No. 388) 15.11.17 p. 1
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Police and Justice Legislation Amendment (Miscellaneous) Act 2016, No. 54/2016

Assent Date: 18.10.16
Commencement Date: Ss 34–36 on 19.10.16: s. 2(1)
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Sentencing (Community Correction Order) and Other Acts Amendment Act 2016, No. 65/2016

Assent Date: 15.11.16
Commencement Date: Ss 3–17 on 20.3.17: Special Gazette (No. 17) 31.1.17 p. 1; s. 23 on 1.7.17: s. 2(2)
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Justice Legislation Amendment (Parole Reform and Other Matters) Act 2016, No. 76/2016

Assent Date: 13.12.16
Commencement Date: Ss 9, 10 on 6.6.17: s. 2(3)
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Sentencing Act 1991
No. 49 of 1991
Endnotes

**Family Violence Protection Amendment (Information Sharing) Act 2017,
No. 23/2017**

Assent Date: 14.6.17
Commencement Date: S. 43 on 26.2.18: Special Gazette (No. 40) 6.2.18 p. 1
Current State: This information relates only to the provision/s
amending the **Sentencing Act 1991**

Bail Amendment (Stage One) Act 2017, No. 26/2017

Assent Date: 27.6.17
Commencement Date: S. 25 on 21.5.18: Special Gazette (No. 218) 15.5.18
p. 1
Current State: This information relates only to the provision/s
amending the **Sentencing Act 1991**

Sentencing Amendment (Sentencing Standards) Act 2017, No. 34/2017

Assent Date: 15.8.17
Commencement Date: Ss 3–11, 43 on 29.11.17: Special Gazette (No. 406)
28.11.17 p. 1; ss 17–23, 38–42 on 1.2.18: Special
Gazette (No. 28) 30.1.18 p. 1
Current State: This information relates only to the provision/s
amending the **Sentencing Act 1991**

**Justice Legislation Amendment (Court Security, Juries and Other Matters)
Act 2017, No. 38/2017**

Assent Date: 29.8.17
Commencement Date: S. 93 on 30.8.17: s. 2(1)
Current State: This information relates only to the provision/s
amending the **Sentencing Act 1991**

**Children and Justice Legislation Amendment (Youth Justice Reform) Act 2017,
No. 43/2017**

Assent Date: 26.9.17
Commencement Date: Ss 58, 64(1) on 30.11.17: Special Gazette (No. 406)
28.11.17 p.1; ss 20, 21 on 26.2.18: Special Gazette
(No. 406) 28.11.17 p. 1; ss 45–47, 50, 51 on 5.4.18:
Special Gazette (No. 136) 27.3.18 p. 1; s. 8 on 1.6.18:
s. 2(2)
Current State: This information relates only to the provision/s
amending the **Sentencing Act 1991**

**Serious Sex Offenders (Detention and Supervision) Amendment (Governance)
Act 2017, No. 57/2017**

Assent Date: 8.11.17
Commencement Date: S. 52 on 27.2.18: Special Gazette (No. 49) 13.2.18 p. 1
Current State: This information relates only to the provision/s
amending the **Sentencing Act 1991**

Fines Reform Amendment Act 2017, No. 59/2017

Assent Date: 5.12.17
Commencement Date: Ss 127–132 on 6.12.17: s. 2(1)
Current State: This information relates only to the provision/s
amending the **Sentencing Act 1991**

Sentencing Act 1991
No. 49 of 1991
Endnotes

Crimes Legislation Amendment (Protection of Emergency Workers and Others) Act 2017, No. 65/2017

Assent Date: 19.12.17
Commencement Date: Ss 15–19 on 5.4.18: Special Gazette (No. 136) 27.3.18 p. 1
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Bail Amendment (Stage Two) Act 2018, No. 3/2018

Assent Date: 27.2.18
Commencement Date: S. 29 on 5.4.18: Special Gazette (No. 136) 27.3.18 p. 1
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Justice Legislation Amendment (Victims) Act 2018, No. 5/2018

Assent Date: 27.2.18
Commencement Date: Ss 34, 35 on 28.2.18: s. 2(1); ss 32, 33 on 5.4.18: Special Gazette (No. 136) 27.3.18 p. 2
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Oaths and Affirmations Act 2018, No. 6/2018

Assent Date: 27.2.18
Commencement Date: S. 68(Sch. 2 item 115) on 1.3.19: s. 2(2)
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Children Legislation Amendment (Information Sharing) Act 2018, No. 11/2018

Assent Date: 10.4.18
Commencement Date: S. 39 on 27.9.18: Special Gazette (No. 405) 4.9.18 p. 1
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Serious Offenders Act 2018, No. 27/2018

Assent Date: 26.6.18
Commencement Date: Ss 351(Sch. 4 cl. 21), 364 on 3.9.18: Special Gazette (No. 356) 31.7.18 p. 1
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Justice Legislation Amendment (Terrorism) Act 2018, No. 32/2018

Assent Date: 7.8.18
Commencement Date: S. 133 on 30.11.18: Special Gazette (No. 497) 23.10.18 p. 1
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Victims and Other Legislation Amendment Act 2018, No. 42/2018

Assent Date: 11.9.18
Commencement Date: Ss 26–28 on 29.10.18: Special Gazette (No. 480) 16.10.18 p. 1
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Sentencing Act 1991
No. 49 of 1991
Endnotes

Justice Legislation Miscellaneous Amendment Act 2018, No. 48/2018

Assent Date: 25.9.18
Commencement Date: Ss 73(2), 83, 84 on 26.9.18: s. 2(2); ss 73(1), 74–82 on 28.10.18: Special Gazette (No. 480) 16.10.18 p. 1
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Justice Legislation Amendment (Police and Other Matters) Act 2019, No. 3/2019

Assent Date: 13.3.19
Commencement Date: Ss 84–88 on 14.3.19: s. 2(1); ss 7, 8, 21 on 5.6.19: Special Gazette (No. 215) 4.6.19 p. 1
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Transport Legislation Amendment (Better Roads Victoria and Other Amendments) Act 2019, No. 7/2019

Assent Date: 26.3.19
Commencement Date: Ss 29–31 on 1.12.19: s. 2(3)
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Guardianship and Administration Act 2019, No. 13/2019

Assent Date: 4.6.19
Commencement Date: S. 221(Sch. 1 item 46) on 1.3.20: s. 2(2)
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Disability (National Disability Insurance Scheme Transition) Amendment Act 2019, No. 19/2019

Assent Date: 25.6.19
Commencement Date: S. 269 on 26.6.19: s. 2(1)
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Firefighters' Presumptive Rights Compensation and Fire Services Legislation Amendment (Reform) Act 2019, No. 20/2019

Assent Date: 2.7.19
Commencement Date: Ss 187, 188 on 1.7.20: Special Gazette (No. 328) 30.6.20 p. 1
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Justice Legislation Amendment (Serious Offenders and Other Matters) Act 2019, No. 45/2019

Assent Date: 19.11.19
Commencement Date: S. 50 on 20.11.19: s. 2(1)
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Sentencing Act 1991
No. 49 of 1991
Endnotes

Transport Legislation Amendment Act 2019, No. 49/2019

Assent Date: 3.12.19
Commencement Date: S. 186(Sch. 4 item 37) on 1.1.20: Special Gazette (No. 514) 10.12.19 p. 1
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Road Safety and Other Legislation Amendment Act 2020, No. 6/2020

Assent Date: 17.3.20
Commencement Date: Ss 10–12 on 12.11.20: s. 2(2)
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Local Government Act 2020, No. 9/2020

Assent Date: 24.3.20
Commencement Date: S. 390(Sch. 1 item 90.2) on 6.4.20: Special Gazette (No. 150) 24.3.20 p. 1; s. 390(Sch. 1 items 90.1, 90.3, 90.4) on 1.7.21: s. 2(4)
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

COVID-19 Omnibus (Emergency Measures) Act 2020, No. 11/2020

Assent Date: 24.4.20
Commencement Date: S. 42 on 25.4.20: s. 2
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Crimes Amendment (Manslaughter and Related Offences) Act 2020, No. 16/2020

Assent Date: 10.6.20
Commencement Date: Ss 23–25 on 1.7.20: s. 2(2)
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Wage Theft Act 2020, No. 21/2020

Assent Date: 23.6.20
Commencement Date: Ss 82, 83 on 1.7.21: s. 2(2)
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Justice Legislation Miscellaneous Amendments Act 2020, No. 22/2020

Assent Date: 30.6.20
Commencement Date: Ss 25, 26 on 1.7.20: s. 2
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Sentencing Amendment (Emergency Worker Harm) Act 2020, No. 23/2020

Assent Date: 30.6.20
Commencement Date: Ss 3–6 on 1.7.20: s. 2(1)
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Sentencing Act 1991
No. 49 of 1991
Endnotes

COVID-19 Omnibus (Emergency Measures) and Other Acts Amendment Act 2020, No. 27/2020

Assent Date: 20.10.20
Commencement Date: S. 41 on 21.10.20: s. 2
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Worker Screening Act 2020, No. 34/2020

Assent Date: 4.11.20
Commencement Date: S. 238 on 1.2.21: Special Gazette (No. 647) 8.12.20 p. 1
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Justice Legislation Amendment (Drug Court and Other Matters) Act 2020, No. 43/2020

Assent Date: 8.12.20
Commencement Date: Ss 6–34 on 26.4.21: s. 2(2)
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Justice Legislation Amendment (System Enhancements and Other Matters) Act 2021, No. 11/2021

Assent Date: 23.3.21
Commencement Date: Ss 107–109 on 26.4.21: s. 2(2)
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Transport Legislation Miscellaneous Amendments Act 2021, No. 30/2021

Assent Date: 10.8.21
Commencement Date: S. 94 on 11.8.21: s. 2(1); ss 95, 96 on 1.3.22: s. 2(3)
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Justice Legislation Amendment (Criminal Procedure Disclosure and Other Matters) Act 2022, No. 1/2022

Assent Date: 15.2.22
Commencement Date: Ss 80, 81 on 29.3.22: Special Gazette (No. 157) 29.3.22 p. 1
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Justice Legislation Amendment (Fines Reform and Other Matters) Act 2022, No. 17/2022

Assent Date: 18.5.22
Commencement Date: Ss 81, 83–86 on 19.5.22: s. 2(1); s. 82 on 18.7.22: Special Gazette (No. 346) 5.7.22 p. 1
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Sentencing Act 1991
No. 49 of 1991
Endnotes

Sex Work Decriminalisation Act 2022, No. 7/2022

Assent Date: 1.3.22
Commencement Date: S. 78 on 1.12.23: s. 2(3)
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Victims of Crime (Financial Assistance Scheme) Act 2022, No. 21/2022

Assent Date: 7.6.22
Commencement Date: Ss 77–80 on 18.11.24: Special Gazette (No. 610) 12.11.24 p. 1
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Justice Legislation Amendment (Sexual Offences and Other Matters) Act 2022, No. 38/2022

Assent Date: 6.9.22
Commencement Date: Ss 17, 18, 40, 41 on 30.7.23: s. 2(5)
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Mental Health and Wellbeing Act 2022, No. 39/2022

Assent Date: 6.9.22
Commencement Date: Ss 861–864 on 1.9.23: s. 2(2)
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Statute Law Amendment (References to the Sovereign) Act 2023, No. 25/2023

Assent Date: 5.9.23
Commencement Date: S. 7(Sch. 1 item 23) on 6.9.23: s. 2
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Transport Legislation Amendment Act 2023, No. 34/2023

Assent Date: 21.11.23
Commencement Date: S. 128 on 17.10.24: s. 2(3)
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

Private Security and County Court Amendment Act 2024, No. 12/2024

Assent Date: 9.4.24
Commencement Date: S. 64 on 10.4.24: s. 2(1)
Current State: This information relates only to the provision/s amending the **Sentencing Act 1991**

3 Explanatory details

¹ S. 5(2AA):

Section 5 of the **Sentencing and Other Acts (Amendment) Act 1997**, No. 48/1997 (*repealed*) inserted two new guidelines into section 5 of the **Sentencing Act 1991**.

Section 5(2AA)(a) is declaratory of the common law position that the court must not have regard in sentencing an offender to any possibility or likelihood that the length of time actually spent in custody by the offender will be affected by executive action of any kind. Such executive action would include any action which the Adult Parole Board might take in respect of a sentence.

Section 5(2AA)(b) directs the court, when considering sentencing an offender, not to have regard to any sentencing practices which arose out of the application of section 10 of the **Sentencing Act 1991**.

Section 10(1) was in the following terms:

"When sentencing an offender to a term of imprisonment a court must consider whether the sentence it proposes would result in the offender spending more time in custody, only because of the abolition of remission entitlements by section 3(1) of the **Corrections (Remissions) Act 1991**, than he or she would have spent had he or she been sentenced before the commencement of that section for a similar offence in similar circumstances."

If section 10(1) applied, section 10(2) required the court to reduce the sentence it would otherwise have passed by one third. Section 10 of the **Sentencing Act 1991** sunsetted on 22 April 1997. The sunset clause was in the following terms:

"It is intended that the expiry of this section will not of itself have any effect on sentencing practices and that after the expiry a court will, as required by section 5(2)(b), have regard to sentencing practices current immediately before then as if this section had not expired."

In *R v Boucher* [1995] 1 VR 110, section 10 was interpreted to apply only to offences where the maximum penalty had remained unaltered by the **Sentencing Act 1991**. The court took the view that Parliament had already taken into account the abolition of remissions when formulating the new penalties. This led to inconsistent and anomalous sentencing practices, which had the effect of distorting the scale of effective maximum penalties.

Section 5(2AA)(b) requires the court to disregard any sentencing practices which developed from the application of section 10 of the **Sentencing Act 1991**. This is intended to include the principles expressed in *Boucher's* case.

² S. 5(2E): Section 29 of the **Constitution (Court of Appeal) Act 1994**, No. 109/1994 reads as follows:

29 Proceedings before Full Court

- (1) The **Constitution Act 1975**, the **Supreme Court Act 1986** and the **Crimes Act 1958** and any other Act amended by this Act as respectively in force immediately before the commencement of this section continue to apply, despite the enactment of this Act, to a proceeding the hearing of which by the Full Court of the Supreme Court commenced before the commencement of this section.
- (2) If the Court of Appeal so orders, anything required to be done by the Supreme Court in relation to or as a consequence of a proceeding after the Full Court has delivered judgment in that proceeding, may be done by the Court of Appeal.

³ S. 9:

Section 9 of the **Sentencing and Other Acts (Amendment) Act 1997**, No. 48/1997 (*repealed*) inserted a new section 9 into the **Sentencing Act 1991** to provide the Magistrates' Court with the power to impose an aggregate sentence of imprisonment in certain circumstances. The power to impose an aggregate sentence is founded on a proper joinder of the charges before the court. (See for example the **Crimes Act 1958**, Rule 2, Sixth Schedule (*repealed*)). A similar power is contained in section 51 of the **Sentencing Act 1991** in respect of fines. The power is not limited to sentencing for summary offences, but applies to any proceedings in the Magistrates' Court, including indictable offences being tried summarily.

⁴ S. 10 (*expired*): Section 10 was in operation from 22 April 1992 until 22 April 1997. Section 10, as in force before 22 April 1997, read as follows:

10 Court must take abolition of remissions into account

- (1) When sentencing an offender to a term of imprisonment a court must consider whether the sentence it proposes would result in the offender spending more time in custody, only because of the abolition of remission entitlements by section 3(1) of the **Corrections (Remissions) Act 1991**, than he or she would have spent had he or she been sentenced before the commencement

of that section for a similar offence in similar circumstances.

- (2) If the court considers that the sentence it proposes would have the result referred to in subsection (1) it must reduce the proposed sentence in accordance with subsection (3).
- (3) In applying this section a court—
 - (a) must assume that an offender sentenced before the commencement of section 3(1) of the **Corrections (Remissions) Act 1991** would have been entitled to maximum remission entitlements; and
 - (b) must not reduce a sentence by more than is necessary to ensure that the actual time spent in custody by an offender sentenced after that commencement is not greater, only because of the abolition of remissions, that it would have been if the offender had been sentenced before that commencement for a similar offence in similar circumstances.
- (4) For the purposes of this section—
 - (a) **remission entitlements** are entitlements to remission under section 60 of the **Corrections Act 1986** or regulation 97 of the Corrections Regulations 1988; and
 - (b) **term of imprisonment** includes—
 - (i) a term that is suspended wholly or partly; and
 - (ii) any non-parole period fixed in respect of the term.

S. 10(4A) inserted by No. 41/1993 s. 6.

- (4A) This section does not apply to the Supreme Court or the County Court when sentencing a serious sexual offender for a sexual offence or a violent

offence or a serious violent offender for a serious violent offence.

- (5) This section expires on the fifth anniversary of the day on which it comes into operation.
- (6) It is intended that the expiry of this section will not of itself have any effect on sentencing practices and that after the expiry a court will, as required by section 5(2)(b), have regard to sentencing practices current immediately before then as if this section had not expired.

⁵ S. 16:

Sections 16 and 17 of the **Sentencing and Other Acts (Amendment) Act 1997**, No. 48/1997 (*repealed*) concerned Youth Training Centre orders and Youth Residential Centre orders. These sections amended various sections of the **Sentencing Act 1991** to insert consistent terminology, for example, the use of "young offender" throughout the Act. The amendments also clarified that, in sentencing a young offender, the Supreme and County courts may impose up to a maximum of 3 years detention. Section 32 has also been amended to enable the court to order detention in a Youth Residential Centre in respect of young offenders who at the time of being sentenced are under 15 years of age.

The amendments clarified that the provisions of the **Sentencing Act 1991** are paramount when courts other than the Children's Court are sentencing a young offender, who is defined in section 3 as being an offender who at the time of being sentenced is under the age of 21 years. For an example of the difficulties which the courts have had in interpreting the interrelationship of the provisions of the **Children and Young Persons Act 1989** (*repealed*) and the **Sentencing Act 1991** when sentencing children, see the case of *R v Hill* [1996] 2 VR 496.

⁶ S. 16(1A)(d):

Section 10 of the **Sentencing and Other Acts (Amendment) Act 1997**, No. 48/1997 (*repealed*) amended section 16 of the Principal Act to deal with the sentencing of offenders who commit offences while on parole or bail.

New section 16(3B) of the **Sentencing Act 1991** requires a sentence of imprisonment imposed on an offender for an offence committed while on parole to be served cumulatively on any period of imprisonment which that offender may be required to serve in custody on cancellation of the parole order, unless otherwise directed by the court because of the existence of exceptional circumstances.

In *R v Kuru* (1995) 78 A Crim R 447 the Victorian Court of Appeal held that an offender is not to be regarded as actually serving a sentence when released on parole. Accordingly, there was no sentence in existence upon which another sentence could be ordered to be served cumulatively. Under the new subsection, the court will be required to order cumulation of the sentence unless there are exceptional circumstances.

⁷ S. 16(1A)(e): The amendment proposed by section 17(1) of the **Crimes Legislation Amendment (Protection of Emergency Workers and Others) Act 2017**, No. 65/2017 (*repealed*) is not included in this publication because the word "offence." does not appear in section 16(1A)(e). Section 17(1) reads as follows:

17 Sentences—whether concurrent or cumulative

(1) In section 16(1A)(e) of the **Sentencing Act 1991**, for "offence." **substitute** "offence; or".

⁸ S. 16(1A)(e): See note 6.

⁹ S. 16(3B): See note 6.

¹⁰ S. 16(3C): See note 6.

¹¹ S. 17: See note 5.

¹² S. 18:

Section 11 of the **Sentencing and Other Acts (Amendment) Act 1997**, No. 48/1997 (*repealed*) amended section 18 of the **Sentencing Act 1991** by extending the circumstances in which a declaration pursuant to section 18(1) may be made. Section 18 of the **Sentencing Act 1991** provides a mechanism for recognising the period of time an offender has been held in custody prior to sentence, as well as for treating such terms as a period of imprisonment already served under the sentence. The aim of the amendments was to enable section 18 declarations to be made in as many cases as possible. It is no longer necessary for the time held in custody to be exclusively referable to the offence for which the offender is being sentenced before a declaration pursuant to section 18(1) of the Act is made. See, for example, the case of *R v Renzella*, unreported, Court of Appeal (Vic.) 6/9/1996.

Section 11(2)(a) clarified that such declarations cannot be made in respect of intensive correction orders.

Section 11(2)(b) inserted a new subsection (d) into section 18 to clarify that the offender should not receive a benefit for pre-sentence detention more than once for any specific period of pre-sentence custody.

Section 11(3) amended section 18(4) of the Act to remove the inconsistent requirement referred to in *R v McGrath*, unreported, Court of Criminal Appeal (Vic.) 15/9/1992. When a court imposes a sentence of

Sentencing Act 1991
No. 49 of 1991
Endnotes

imprisonment, in circumstances in which section 18(1) of the Act applies, it must make a declaration concerning whether any period of time is to be reckoned as a period of imprisonment served as part of the sentence imposed. When a sentence of imprisonment is imposed it is not normally reduced by the amount of pre-sentence imprisonment. Therefore any period of pre-sentence imprisonment which should be reckoned as part of that sentence which has been served, should be declared as served.

Corresponding amendments have been made to the provisions governing sentences of detention imposed on young offenders in section 35 of the **Sentencing Act 1991**.

¹³ S. 18O: See note 2.

¹⁴ S. 32: See note 5.

¹⁵ S. 33: See note 5.

¹⁶ S. 34: See note 5.

¹⁷ S. 35: See note 5.

¹⁸ S. 35: See note 12.

¹⁹ S. 114: The following Table sets out the alterations in the maximum penalties for offences under the **Crimes Act 1958**, No. 6231/1958. The alterations were made by section 60 (Schedule 1) of the **Sentencing and Other Acts (Amendment) Act 1997**, No. 48/1997 (*repealed*) and came into operation on 1 September 1997:

**TABLE INDICATING THE PREVIOUSLY PRESCRIBED
MAXIMUM PENALTY FOR AN OFFENCE AND THE NEW
PRESCRIBED MAXIMUM PENALTY FOR AN OFFENCE**

OFFENCE	PREVIOUSLY PRESCRIBED MAXIMUM PENALTY	NEW PRESCRIBED MAXIMUM PENALTY
Section 3 Murder (common law)	Level 1 imprisonment (Life)	Level 1 imprisonment (Life)
Section 3A Murder (Crimes Act)	Level 1 imprisonment (Life)	Level 1 imprisonment (Life)

Sentencing Act 1991
No. 49 of 1991
Endnotes

OFFENCE	PREVIOUSLY PRESCRIBED MAXIMUM PENALTY	NEW PRESCRIBED MAXIMUM PENALTY
Section 5 Manslaughter	Level 3 imprisonment (15 years)	Level 3 imprisonment (20 years)
Section 6 Infanticide	Level 7 imprisonment (5 years)	Level 6 imprisonment (5 years)
Section 6B(1A) Suicide pact manslaughter	Level 6 imprisonment (7½ years)	Level 5 imprisonment (10 years)
Section 6B(2) Inciting, aids or abets suicide	Level 7 imprisonment (5 years)	Level 6 imprisonment (5 years)
Section 6B(2) Being party to a suicide pact	Level 8 imprisonment (3 years)	Level 6 imprisonment (5 years)
Section 9A(1) Treason	Level 1 imprisonment (Life)	Level 1 imprisonment (Life)
Section 9A(2) Knowingly receiving or assisting a person guilty of treason	Level 3 imprisonment (15 years)	Level 3 imprisonment (20 years)
Section 10 Child destruction	Level 5 imprisonment (10 years)	Level 4 imprisonment (15 years)
Section 16 Causing serious injury intentionally	Level 4 imprisonment (12½ years)	Level 3 imprisonment (20 years)
Section 17 Causing serious injury recklessly	Level 5 imprisonment (10 years)	Level 4 imprisonment (15 years)
Section 18 Causing injury intentionally	Level 6 imprisonment (7½ years)	Level 5 imprisonment (10 years)
Section 18 Causing injury recklessly	Level 7 imprisonment (5 years)	Level 6 imprisonment (5 years)
Section 19(1) Administering a substance to another	Level 7 imprisonment (5 years)	Level 6 imprisonment (5 years)
Section 19A Intentionally causing a very serious disease	25 years imprisonment	Level 2 imprisonment (25 years)
Section 20 Threats to kill	Level 7 imprisonment (5 years)	Level 5 imprisonment (10 years)
Section 21 Threats to inflict serious injury	Level 8 imprisonment (3 years)	Level 6 imprisonment (5 years)

Sentencing Act 1991
No. 49 of 1991
Endnotes

OFFENCE	PREVIOUSLY PRESCRIBED MAXIMUM PENALTY	NEW PRESCRIBED MAXIMUM PENALTY
Section 21A Stalking	Level 5 imprisonment (10 years)	Level 5 imprisonment (10 years)
Section 22 Conduct endangering life	Level 5 imprisonment (10 years)	Level 5 imprisonment (10 years)
Section 23 Conduct endangering persons	Level 6 imprisonment (7½ years)	Level 6 imprisonment (5 years)
Section 24 Negligently causing serious injury	Level 7 imprisonment (5 years)	Level 6 imprisonment (5 years)
Section 25 Setting traps to kill	Level 4 imprisonment (12½ years)	Level 4 imprisonment (15 years)
Section 26 Setting traps to cause serious injury	Level 5 imprisonment (10 years)	Level 5 imprisonment (10 years)
Section 27 Extortion with threat to kill	Level 6 imprisonment (7½ years)	Level 4 imprisonment (15 years)
Section 28 Extortion with threat to destroy property	Level 7 imprisonment (5 years)	Level 5 imprisonment (10 years)
Section 29 Using firearm to resist arrest	Level 5 imprisonment or Level 5 fine (10 years or 1200 Penalty Units)	Level 5 imprisonment (10 years) or Level 5 fine (1200 penalty units)
Section 30 Threatening injury to prevent arrest	Level 7 imprisonment (5 years)	Level 6 imprisonment (5 years)
Section 31 Assaults	Level 8 imprisonment (3 years)	Level 6 imprisonment (5 years)
Section 32 Performing female genital mutilation	Level 4 imprisonment (12½ years)	Level 4 imprisonment (15 years)
Section 33 Taking a person from the State to perform female genital mutilation	Level 4 imprisonment (12½ years)	Level 4 imprisonment (15 years)
Section 38 Rape	25 years imprisonment	Level 2 imprisonment (25 years)
Section 39 Indecent assault	Level 5 imprisonment (10 years)	Level 5 imprisonment (10 years)

Sentencing Act 1991
No. 49 of 1991
Endnotes

OFFENCE	PREVIOUSLY PRESCRIBED MAXIMUM PENALTY	NEW PRESCRIBED MAXIMUM PENALTY
Section 40 Assault with intent to rape	Level 5 imprisonment (10 years)	Level 5 imprisonment (10 years)
Section 44 Incest Subsection (1) with a child etc. Subsection (2) with an under 18 child etc. of de facto spouse	Level 2 imprisonment (20 years) Level 2 imprisonment (20 years)	Level 2 imprisonment (25 years) Level 2 imprisonment (25 years)
Subsection (3) with father or mother etc. where offender is 18 or older Subsection (4) with sister or brother etc.	Level 6 imprisonment (7½ years) Level 6 imprisonment (7½ years)	Level 6 imprisonment (5 years) Level 6 imprisonment (5 years)
Section 45 Sexual penetration of child under 10	Level 2 imprisonment (20 years)	Level 2 imprisonment (25 years)
Section 46 Sexual penetration of child 10–16 Subsection (1)(a) under care, supervision or authority Subsection (1)(b) any other case	Level 3 imprisonment (15 years) Level 5 imprisonment (10 years)	Level 4 imprisonment (15 years) Level 5 imprisonment (10 years)
Section 47 Indecent act with child under 16	Level 5 imprisonment (10 years)	Level 5 imprisonment (10 years)
Section 47A Sexual relationship with child under 16	Maximum penalty for the relevant offence	Level 2 imprisonment (25 years)
Section 48 Sexual penetration of a 16 or 17 year old child (under care, supervision or authority)	Level 8 imprisonment (3 years)	Level 5 imprisonment (10 years)
Section 49 Indecent act with 16 year old child	Level 8 imprisonment (3 years)	Level 6 imprisonment (5 years)

Sentencing Act 1991
No. 49 of 1991
Endnotes

OFFENCE	PREVIOUSLY PRESCRIBED MAXIMUM PENALTY	NEW PRESCRIBED MAXIMUM PENALTY
Section 49A Facilitating sexual offences against children	Level 2 imprisonment (20 years)	Level 3 imprisonment (20 years)
Section 51 Subsection (1) Sexual penetration of person with impaired mental functioning by medical or therapeutic service provider Subsection (2) Indecent act with person with impaired mental functioning by medical or therapeutic service provider	Level 7 imprisonment (5 years) Level 8 imprisonment (3 years)	Level 5 imprisonment (10 years) Level 6 imprisonment (5 years)
Section 52 Subsection (1) Sexual penetration by worker of resident in residential facilities Subsection (2) Indecent act by worker of resident in residential facilities	Level 7 imprisonment (5 years) Level 8 imprisonment (3 years)	Level 5 imprisonment (10 years) Level 6 imprisonment (5 years)
Section 53 Administering drug for sexual penetration	Level 5 imprisonment (10 years)	Level 5 imprisonment (10 years)
Section 54 Occupier, etc. inducing or knowingly allowing unlawful sexual penetration (a) where child is aged under 13 (b) where child is aged between 13–17	 Level 5 imprisonment (10 years) Level 7 imprisonment (5 years)	 Level 4 imprisonment (15 years) Level 5 imprisonment (10 years)

Sentencing Act 1991
No. 49 of 1991
Endnotes

OFFENCE	PREVIOUSLY PRESCRIBED MAXIMUM PENALTY	NEW PRESCRIBED MAXIMUM PENALTY
Section 55 Abduction or detention for sexual penetration	Level 5 imprisonment (10 years)	Level 5 imprisonment (10 years)
Section 56 Abduction of child under 16 for sexual penetration	Level 6 imprisonment (7½ years)	Level 6 imprisonment (5 years)
Section 57 Subsection (1) Procuring sexual penetration by threats or intimidation	Level 6 imprisonment (7½ years)	Level 5 imprisonment (10 years)
Subsection (2) Procuring sexual penetration by fraud	Level 7 imprisonment (5 years)	Level 6 imprisonment (5 years)
Section 58 Procuring sexual penetration of child under 16	Level 7 imprisonment (5 years)	Level 6 imprisonment (5 years)
Section 59 Bestiality	Level 7 imprisonment (5 years)	Level 6 imprisonment (5 years)
Section 60 Soliciting acts of sexual penetration or indecent acts	Level 10 imprisonment or Level 10 fine (1 year or 120 Penalty Units)	Level 8 imprisonment (1 year) or Level 11 fine (60 Penalty Units)
Section 60A Sexual offence while armed with an offensive weapon	Level 8 imprisonment (3 years)	Level 7 imprisonment (2 years)
60B Loitering near schools etc.	Level 10 imprisonment or Level 11 fine (1 year or 60 Penalty Units)	Level 8 imprisonment (1 year)
Section 63 Subsection (1) Child stealing	Level 6 imprisonment (7½ years)	Level 6 imprisonment (5 years)
Subsection (2) Takes, decoys or entices away a child	Level 7 imprisonment (5 years)	Level 6 imprisonment (5 years)
Section 63A Kidnapping	Level 2 imprisonment (20 years)	Level 2 imprisonment (25 years)

Sentencing Act 1991
No. 49 of 1991
Endnotes

OFFENCE	PREVIOUSLY PRESCRIBED MAXIMUM PENALTY	NEW PRESCRIBED MAXIMUM PENALTY
Section 64 Bigamy	Level 7 imprisonment (5 years)	Level 6 imprisonment (5 years)
Section 65 Abortion (attempt to procure)	Level 6 imprisonment (7½ years)	Level 5 imprisonment (10 years)
Section 66 Supplying or procuring anything to be employed in abortion	Level 8 imprisonment (3 years)	Level 6 imprisonment (5 years)
Section 67 Concealing birth of a child	Level 11 imprisonment (6 months)	6 months
Section 68 Production of child pornography	Level 9 imprisonment (2 years)	Level 5 imprisonment (10 years)
Section 69 Procuring of minor for child pornography	Level 7 imprisonment (5 years)	Level 5 imprisonment (10 years)
Section 70 Possession of child pornography	Level 10 imprisonment (1 year)	Level 7 imprisonment (2 years)
Section 70A Piracy with violence	Level 3 imprisonment (15 years)	Level 3 imprisonment (20 years)
Section 70B Piratical acts	Level 1 imprisonment (Life)	Level 3 imprisonment (20 years)
Section 70C Trading etc. with pirates	Level 5 imprisonment (10 years)	Level 5 imprisonment (10 years)
Section 70D Being found on board piratical vessel and unable to prove non-complicity	Level 11 imprisonment (6 months)	Level 6 imprisonment (5 years)
Section 74 Theft	Level 5 imprisonment (10 years)	Level 5 imprisonment (10 years)
Section 75 Robbery	Level 4 imprisonment (12½ years)	Level 4 imprisonment (15 years)
Section 75A Armed robbery	Level 2 imprisonment (20 years)	Level 2 imprisonment (25 years)
Section 76 Burglary	Level 4 imprisonment (12½ years)	Level 5 imprisonment (10 years)
Section 77 Aggravated burglary	Level 3 imprisonment (15 years)	Level 2 imprisonment (25 years)

Sentencing Act 1991
No. 49 of 1991
Endnotes

OFFENCE	PREVIOUSLY PRESCRIBED MAXIMUM PENALTY	NEW PRESCRIBED MAXIMUM PENALTY
Section 78 Removal of articles from places open to the public	Level 7 imprisonment (5 years)	Level 6 imprisonment (5 years)
Section 80(1) Unlawfully taking control of an aircraft	Level 4 imprisonment (12½ years)	Level 4 imprisonment (15 years)
Subsection (2) where force or violence etc. is used	Level 3 imprisonment (15 years)	Level 3 imprisonment (20 years)
Section 81 Obtaining property by deception	Level 5 imprisonment (10 years)	Level 5 imprisonment (10 years)
Section 82 Obtaining financial advantage by deception	Level 5 imprisonment (10 years)	Level 5 imprisonment (10 years)
Section 83 False accounting	Level 6 imprisonment (7½ years)	Level 5 imprisonment (10 years)
Section 83A Falsification of documents Subsection (1)–(5B)	Level 6 imprisonment (7½ years)	Level 5 imprisonment (10 years)
Subsection (5C)	Level 9 imprisonment (2 years)	Level 6 imprisonment (5 years)
Section 85 False statements by company directors etc.	Level 6 imprisonment (7½ years)	Level 5 imprisonment (10 years)
Section 86 Suppression etc. of documents	Level 6 imprisonment (7½ years)	Level 5 imprisonment (10 years)
Section 87 Blackmail	Level 4 imprisonment (12½ years)	Level 4 imprisonment (15 years)
Section 88 Handling stolen goods	Level 5 imprisonment (10 years)	Level 4 imprisonment (15 years)
Section 89 Advertising rewards for return of goods stolen or lost	Level 13 fine (5 Penalty Units)	Level 13 fine (5 Penalty Units)

Sentencing Act 1991
No. 49 of 1991
Endnotes

OFFENCE	PREVIOUSLY PRESCRIBED MAXIMUM PENALTY	NEW PRESCRIBED MAXIMUM PENALTY
Section 91 Going equipped for stealing etc.	Level 8 imprisonment (3 years)	Level 7 imprisonment (2 years)
Section 176 Receipt or solicitation of secret commission by an agent • corporation • person	Level 5 fine (1200 Penalty Units) Level 5 imprisonment and/or Level 5 fine (10 years and/or 1200 Penalty Units)	Level 5 fine (1200 Penalty Units) Level 5 imprisonment (10 years) and/or Level 5 fine (1200 Penalty Units)
Section 178 Giving or receiving false or misleading receipt or account • corporation • person	Level 5 fine (1200 Penalty Units) Level 5 imprisonment and/or Level 5 fine (10 years and/or 1200 Penalty Units)	Level 5 fine (1200 Penalty Units) Level 5 imprisonment (10 years) and/or Level 5 fine (1200 Penalty Units)
Section 179 Gift or receipt of secret commission in return for advice given • corporation • person	Level 5 fine (1200 Penalty Units) Level 5 imprisonment and/or Level 5 fine (10 years and/or 1200 Penalty Units)	Level 5 fine (1200 Penalty Units) Level 5 imprisonment (10 years) and/or Level 5 fine (1200 Penalty Units)

Sentencing Act 1991
No. 49 of 1991
Endnotes

OFFENCE	PREVIOUSLY PRESCRIBED MAXIMUM PENALTY	NEW PRESCRIBED MAXIMUM PENALTY
Section 180 Secret commission to trustee in return for substituted appointment • corporation • other person	Level 5 fine (1200 Penalty Units) Level 5 imprisonment and/or Level 5 fine (10 years and/or 1200 Penalty Units)	corporation; level 5 fine (1200 Penalty Units) person; Level 5 imprisonment (10 years) and/or level 5 fine (1200 Penalty Units)
Section 181 Aiding and abetting offences within or outside Victoria • corporation • other person	Level 5 fine (1200 Penalty Units) Level 5 imprisonment and/or Level 5 fine (10 years and/or 1200 Penalty Units)	Level 5 fine (1200 Penalty Units) Level 5 imprisonment (10 years) and/or Level 5 fine (1200 Penalty Units)
Section 182 Liability of directors etc. acting without authority • corporation • other person	Level 5 fine (1200 Penalty Units) Level 5 imprisonment and/or Level 5 fine (10 years and/or 1200 Penalty Units)	Level 5 fine (1200 Penalty Units) Level 5 imprisonment (10 years) and/or level 5 fine (1200 Penalty Units)
Section 191(1) Fraudulently inducing persons to invest money	Level 5 imprisonment (10 years)	Level 4 imprisonment (15 years)

Sentencing Act 1991
No. 49 of 1991
Endnotes

OFFENCE	PREVIOUSLY PRESCRIBED MAXIMUM PENALTY	NEW PRESCRIBED MAXIMUM PENALTY
Section 197 Destroying or damaging property Subsection (1) damaging property Subsection (2) damaging property intending to endanger another's life Subsection (3) damaging property for gain Subsection (7) Arson	Level 6 imprisonment (7½ years) Level 4 imprisonment (12½ years) Level 5 imprisonment (10 years) Level 4 imprisonment (12½ years)	Level 5 imprisonment (10 years) Level 4 imprisonment (15 years) Level 5 imprisonment (10 years) Level 4 imprisonment (15 years)
Section 197A Arson causing death	not applicable	Level 2 imprisonment (25 years)
Section 198 Threats to destroy or damage property	Level 7 imprisonment (5 years)	Level 6 imprisonment (5 years)
Section 199 Possessing anything with intent to destroy or damage property	Level 8 imprisonment (3 years)	Level 6 imprisonment (5 years)
Section 206 Rioters demolishing buildings Subsection (1) Subsection (2)	Level 6 imprisonment (7½ years) Level 7 imprisonment (5 years)	Level 4 imprisonment (15 years) Level 6 imprisonment (5 years)
Section 207 Forcible entry	Level 10 imprisonment and/or Level 10 fine (1 year and/or 120 Penalty Units)	Level 8 imprisonment (1 year)
Section 225 Conveying water into a mine	Level 6 imprisonment (7½ years)	Level 6 imprisonment (5 years)
Section 228 Removing etc. piles of sea banks	Level 6 imprisonment (7½ years)	Level 6 imprisonment (5 years)

Sentencing Act 1991
No. 49 of 1991
Endnotes

OFFENCE	PREVIOUSLY PRESCRIBED MAXIMUM PENALTY	NEW PRESCRIBED MAXIMUM PENALTY
Section 232 Placing things on railways to obstruct or overturn engine etc.	Level 6 imprisonment (7½ years)	Level 5 imprisonment (10 years)
Section 233 Obstructing engine, carriage etc. on railway	Level 9 imprisonment (2 years)	Level 7 imprisonment 2 years
Section 244 Altering signals or exhibiting false ones	Level 6 imprisonment (7½ years)	Level 5 imprisonment (10 years)
Section 245 Removing buoy etc.	Level 8 imprisonment (3 years)	Level 6 imprisonment (5 years)
Section 246A Endangering safe operation of an aircraft	Level 5 imprisonment (10 years)	Level 4 imprisonment (15 years)
Section 246B Setting fire etc. to aircraft	Level 6 imprisonment (7½ years)	Level 4 imprisonment (15 years)
Section 246C Endangering safety of aircraft	Level 7 imprisonment (5 years)	Level 5 imprisonment (10 years)
Section 246D(1) Dangerous goods on aircraft	Level 7 imprisonment (5 years)	Level 6 imprisonment (5 years)
Section 246E Threats to safety of aircraft	Level 7 imprisonment (5 years)	Level 6 imprisonment (5 years)
Section 247 False statements	Level 9 imprisonment (2 years)	Level 6 imprisonment (5 years)
Section 248 subsections (1)–(3) Contamination of goods	Level 5 imprisonment and/or Level 5 fine (10 years and/or 1200 Penalty Units)	Level 5 imprisonment (10 years)
Section 314 Perjury	Level 4 imprisonment (12½ years)	Level 4 imprisonment (15 years)

Sentencing Act 1991
No. 49 of 1991
Endnotes

OFFENCE	PREVIOUSLY PRESCRIBED MAXIMUM PENALTY	NEW PRESCRIBED MAXIMUM PENALTY
Section 316(1) Unlawful oaths to commit treason, murder etc.	Level 7 imprisonment (5 years)	Level 5 imprisonment (10 years)
Section 316(2) Unlawful oaths for other offences	Level 8 imprisonment (3 years)	Level 6 imprisonment (5 years)
Section 317 Offences connected with explosive substances Subsection (2)	Level 4 imprisonment (12½ years)	Level 4 imprisonment (15 years)
Subsection (3)	Level 5 imprisonment (10 years)	Level 5 imprisonment (10 years)
Subsection (4)	Level 7 imprisonment (5 years)	Level 6 imprisonment (5 years)
Section 317A Bomb hoaxes	Level 7 imprisonment and/or Level 7 fine (5 years and/or 600 Penalty Units)	Level 6 imprisonment (5 years)
Section 318 Culpable driving causing death	Level 3 imprisonment and/or Level 3 fine (15 years and/or 1800 Penalty Units)	Level 3 imprisonment (20 years)

Sentencing Act 1991
No. 49 of 1991
Endnotes

OFFENCE	PREVIOUSLY PRESCRIBED MAXIMUM PENALTY	NEW PRESCRIBED MAXIMUM PENALTY
Section 321C Penalties for conspiracy; Subsection (1)(a) to commit an offence with a prescribed maximum Subsection (1)(b) to commit an offence where the penalty is imprisonment for a term the maximum length of which is not prescribed Subsection (1)(ba) to commit murder or treason or piratical acts Subsection (1)(d) to commit a summary offence	Liable to the maximum prescribed for the substantive offence Level 5 imprisonment (10 years) Level 1 imprisonment (Life) Level 8 imprisonment (3 years)	Liable to the maximum prescribed for the substantive offence Level 4 imprisonment (15 years) (for common law offences) Level 1 imprisonment (Life) Level 6 imprisonment (5 years)
Subsection (2) to commit an offence against a law in force only in a place outside Victoria— (a) punishable by a term of imprisonment (b) in any other case	Level 7 imprisonment (5 years) Level 7 fine (600 Penalty Units)	Liable to the maximum prescribed as if the conspiracy was to commit an offence against the laws of Victoria Level 7 fine (600 Penalty Units)

Sentencing Act 1991
No. 49 of 1991
Endnotes

OFFENCE	PREVIOUSLY PRESCRIBED MAXIMUM PENALTY	NEW PRESCRIBED MAXIMUM PENALTY
Section 321I Penalties for incitement Subsection (1)(a) to commit an offence with a prescribed maximum Subsection (1)(b) to commit an offence where the penalty is imprisonment for a term the maximum length of which is not prescribed Subsection (1)(ba) to commit murder or treason or piratical acts Subsection (1)(d) to commit a summary offence	Liable to the maximum prescribed for the offence Level 7 imprisonment (5 years) Level 1 imprisonment (Life) Level 8 imprisonment (3 years)	Liable to the maximum prescribed for the substantive offence Level 4 imprisonment (15 years) Life Level 6 imprisonment (5 years)
Subsection (2) to commit an offence against a law in force only in a place outside Victoria— (a) punishable by a term of imprisonment (b) in any other case	Level 7 imprisonment (5 years) Level 7 fine (600 Penalty Units)	Liable to the maximum prescribed as if the incitement was to commit an offence against the laws of Victoria Level 7 fine (600 Penalty Units)
Section 321P Penalties for attempt		See item 94 of Schedule 1

Sentencing Act 1991
No. 49 of 1991
Endnotes

OFFENCE	PREVIOUSLY PRESCRIBED MAXIMUM PENALTY	NEW PRESCRIBED MAXIMUM PENALTY
Section 325 Subsection (4)(a) where the principal offence is punishable by Level 1 imprisonment Subsection (4)(b) in any other case	Level 2 imprisonment (20 years) imprisonment for a term not more than 60 months nor more than ½ the length of the longest term which may be imposed on first conviction for the principal offence	Level 3 imprisonment (20 years) imprisonment for a term not more than 60 months nor more than ½ the length of the longest term which may be imposed on first conviction for the principal offence
Section 326 Concealing offences for benefit	Level 10 imprisonment (1 year)	Level 8 imprisonment (1 year)
Section 343 Obstruction	Level 11 fine	Level 11 fine
Section 357(3) Failing or refusing to comply with a warrant to discharge a person from imprisonment	5 Penalty Units	5 Penalty Units
Section 415(1A) Issue of warrant when witness does not appear	Level 13 fine (5 Penalty Units)	Level 13 fine (5 Penalty Units)
Section 443A Failing to comply with an undertaking to the Director of Public Prosecutions	Level 12 fine (10 penalty units)	Level 12 fine (10 penalty units)
Section 456AA Requirement to give name and address	Level 13 fine (5 penalty units)	Level 13 fine (5 penalty units)
Section 456E Offence by an employee or member of a law enforcement agency	Level 10 fine (1200 penalty units)	Level 10 fine (1200 penalty units)

Sentencing Act 1991
No. 49 of 1991
Endnotes

OFFENCE	PREVIOUSLY PRESCRIBED MAXIMUM PENALTY	NEW PRESCRIBED MAXIMUM PENALTY
Section 464O Destruction of records	Level 12 fine (10 penalty units)	Level 12 fine (10 penalty units)
Section 464ZG Destruction of identifying information	Level 10 imprisonment or Level 10 fine	Level 10 imprisonment or Level 10 fine
Section 479A Rescuing of a prisoner from lawful custody	Level 5 imprisonment (10 years)	Level 5 imprisonment (10 years)
Section 479B Aiding a prisoner in escaping	Level 7 imprisonment (5 years)	Level 6 imprisonment (5 years)
Section 479C Escape and related offences	Level 7 imprisonment (5 years)	Level 6 imprisonment (5 years)

**Maximum penalties introduced for common law offences for which no
statutory maximum penalty had previously been fixed**

OFFENCE	PRESCRIBED MAXIMUM PENALTY
Affray	Level 6 imprisonment (5 years)
Attempting to pervert the course of justice	Level 2 imprisonment (25 years)
Breach of Prison	Level 6 imprisonment (5 years)
Bribery of Public official	Level 5 imprisonment (10 years)
Common assault	Level 6 imprisonment (5 years)
Conspiracy to cheat and defraud	Level 4 imprisonment (15 years)
Conspiracy to defraud	Level 4 imprisonment (15 years)
Criminal defamation	Level 5 imprisonment (10 years)
Embracery	Level 4 imprisonment (15 years)
False imprisonment	Level 5 imprisonment (10 years)
Kidnapping	Level 2 imprisonment (25 years)
Misconduct in public office	Level 5 imprisonment (10 years)
Perverting the course of justice	Level 2 imprisonment (25 years)
Public Nuisance	Level 6 imprisonment (5 years)
Riot	Level 5 imprisonment (10 years)
Rout	Level 6 imprisonment (5 years)
Unlawful assembly	Level 6 imprisonment (5 years)

Sentencing Act 1991
No. 49 of 1991
Endnotes

Amendments to the maximum penalties of other Acts

OFFENCE	PREVIOUSLY PRESCRIBED MAXIMUM PENALTY	NEW PRESCRIBED MAXIMUM PENALTY
Crimes (Confiscation of Profits) Act 1986 Section 41Q Money laundering	10 years imprisonment	Level 3 imprisonment (20 years)
Drugs, Poisons and Controlled Substances Act 1981 Section 71 Trafficking in a drug of dependence— (a) commercial quantity (b) any other case	25 years imprisonment and not more than 2500 penalty units 15 years imprisonment and/or 1000 penalty units	Level 2 imprisonment (25 years) and not more than 2500 penalty units Level 4 imprisonment (15 years) and/or 1000 penalty units
Section 72 Cultivation of a narcotic plant— (a) not for any purpose related to trafficking (b) any other case	1 year imprisonment and/or 20 penalty units 15 years imprisonment and/or 1000 penalty units	Level 8 imprisonment (1 year) and/or 20 penalty units Level 4 imprisonment (15 years) and/or 1000 penalty units
Section 73 Possession of a drug of dependence— (a) small quantity (b) not for a purpose related to trafficking (c) any other case	5 penalty units 1 year imprisonment and/or 30 penalty units 5 years imprisonment and/or 400 penalty units	5 penalty units Level 8 imprisonment (1 year) and/or 30 penalty units Level 6 imprisonment (5 years) and/or 400 penalty units

Sentencing Act 1991
No. 49 of 1991
Endnotes

OFFENCE	PREVIOUSLY PRESCRIBED MAXIMUM PENALTY	NEW PRESCRIBED MAXIMUM PENALTY
Section 78 Conspiring	same penalty and punishment as if the offender committed the offence	same penalty and punishment as if the offender committed the offence
Legal Practice Act 1996		
Section 188 Solicitor defalcation	10 years imprisonment	Level 4 imprisonment (15 years)
Section 263 Improperly destroying property	3 years imprisonment	Level 6 imprisonment (5 years)
Prisoners (Interstate Transfer) Act 1983		
Section 33(1) Escape from custody	7 years imprisonment	Level 6 imprisonment (5 years)
Prostitution Control Act 1994		
Section 5 Causing or inducing child to take part in prostitution	7 years imprisonment	Level 5 imprisonment (10 years)
Section 6 Obtaining payment for sexual services provided by a child	7 years imprisonment	Level 4 imprisonment (15 years)
Section 7 Agreement for provision of sexual services by a child	7 years imprisonment	Level 4 imprisonment (15 years)
Section 8 Forcing person into or to remain in prostitution	7 years imprisonment	Level 5 imprisonment (10 years)
Section 9 Forcing person to provide financial support out of prostitution	7 years imprisonment	Level 5 imprisonment (10 years)
Section 10 Living on earnings of prostitute	4 years imprisonment	Level 6 imprisonment (5 years)

Sentencing Act 1991
No. 49 of 1991
Endnotes

OFFENCE	PREVIOUSLY PRESCRIBED MAXIMUM PENALTY	NEW PRESCRIBED MAXIMUM PENALTY
Section 11 Allowing child to take part in prostitution	4 years imprisonment	Level 5 imprisonment (10 years)
Section 22(1) and (3) Prostitution service providers to be licensed	3 years imprisonment and/or 360 penalty units	Level 6 imprisonment (5 years) and/or 360 penalty units

²⁰ Table of Amendments: The amendment proposed by section 10A of the **Sentencing Amendment (Emergency Workers) Act 2014**, No. 69/2014 (as amended by Nos 72/2014, 79/2014) (*repealed*) is not included in this publication, as section 10A never commenced. Commencement of section 10A was contingent upon legislation that was not enacted: see section 2(1) of No. 69/2014 (as amended by No. 79/2014 section 66).